

Regulation (EU) No 910/2014, consolidated version of 18 October 2024
eIDAS and eIDAS 2.0

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This document has no legal effect. Only the text published in the Official Journal of the European Union is authentic.

How to read a norm block

Every provision is one block with the same fields in the same order. Modality is colour and shape; priority is position at the page edge. The two codes never share a channel. 'Wallet' is used throughout for the European Digital Identity Wallet, the term defined in Article 3(42); quoted wording always keeps the official full term.

MODALITY

SHALL	Unconditional duty.
SHALL NOT	Prohibition.
MAY	Discretion or a right; no duty unless exercised.
DEFINITION	Defines a term; imposes no duty. The most common source of error.
COMMISSION MANDATE	Empowerment to adopt an implementing or delegated act.
REFERENCING PROVISION	Applies other articles by reference.
LEGAL EFFECT	Non-discrimination rule or legal presumption; addressed to courts.

PRIORITY

L1	Core material; asked in conformity assessments.
L2	Important for understanding the system.
L3	Procedural and peripheral provisions.

MARKS ON A REFERENCE

✓	Wording checked character-for-character against the official English text.
●	A summary in this manual's own words; nothing is quoted.
	No mark: the reference is explained, but no wording is quoted or asserted.

A

Electronic Identification

Chapter II · Articles 5a to 12b

SHALL

■ L1

Art. 5a(1)

TOPIC **Obligation to provide the European Digital Identity Wallet**ADDRESSEE *Member State*

CONTENT Each Member State (MS) shall provide **AT LEAST ONE** European Digital Identity Wallet. Purpose according to the wording: secure, trusted and seamless cross-border access to public **AND** private services, while having full control over their data.

PURPOSE *Without an obligation to provide it, the Wallet would remain a non-binding offer; only the obligation brings about the EU-wide rollout.*

DEADLINE **24 months after the entry into force of the implementing acts under Article 5a(23) AND Article 5c(6) – the period does NOT run from the date of the Regulation**

REFERENCES **Article 5a(23) Implementing act on the core Wallet requirements**

The Regulation's most important empowering provision in practice. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – that is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month period under paragraph 1. Numerous further provisions (Article 5b(11), Article 5d(7), Article 5e(5), Article 45d(5), Article 45e(2), Article 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

Relevance: Without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is also the anchor for the time limit under paragraph 1.

Article 5c(6) Implementing act on Wallet certification

Establishes reference standards, specifications and procedures for the certification under paragraphs 1, 2 and 3. Together with Article 5a(23), the second trigger of the 24-month period. Without a uniform certification scheme, a Wallet certificate from one Member State would not be reliable in another – and the list under Article 5d would have no common yardstick.

Relevance: The second trigger of the same period – if either of the two acts is missing, the 24-month clock under paragraph 1 does not start to run at all.

Article 5f(2) Acceptance obligation of certain private entities

Covers private relying parties which, under Union law, national law or by contract, are required to carry out strong user authentication – the areas named include transport, energy, banking, financial services, social security, health, digital infrastructure, education and telecommunications. Microenterprises and small enterprises are exempt; acceptance takes place only upon the voluntary request of the user. Time limit: 36 months from the same anchor as Article 5a(1).

“Where private relying parties that provide services, with the exception of microenterprises and small enterprises”

✓ Article 5f(2)

Article 52 eIDAS Entry into force

Staggeres the date of application: the general rule is 1 July 2016; the empowering provisions referred to in paragraph 2, point (a) already apply from 17 September 2014; Articles 7, 8(1) and (2), 9, 10, 11 and 12(1) apply from the date of application of the implementing acts under Article 8(3) and Article 12(8); and the recognition obligation under Article 6 takes effect only three years thereafter.

KEY POINT

'At least one' – a Member State (MS) may have several, but never zero.

DEFINITION

■ L2

Art. 5a(2)(a)–(c)

TOPIC **The three ways of providing the European Digital Identity Wallet**ADDRESSEE *Member State*

CONTENT Three permissible models: (a) directly by the Member State (MS), (b) under a mandate from the MS, (c) independently of the MS but recognised by it. No ranking, no preference.

PURPOSE *Permits private Wallet providers without giving up the responsibility of the State – in all three cases the Member State remains the guarantor.*

REFERENCES

REFERENCES Article 5a(14)

User control and logical separation Prohibits the Wallet provider from collecting usage information that is not necessary and from combining Wallet data with data from its own other services or from third-party services. The provider must in addition keep the data logically separate from all other holdings. Where provision is private under paragraph 2, point (b) or (c), Article 45h(3) (functional separation) applies in addition, mutatis mutandis. This is the only paragraph outside paragraphs 4, 5 and 8 that is expressly certified.

“Personal data relating to the provision of the European Digital Identity Wallet shall be kept logically separate from any other data held by the provider of the European Digital Identity Wallet”

✓ Article 5a(14)

Article 45h(3) eIDAS Functional separation

Requires providers to deliver qualified electronic attestation of attributes services in such a way that they are functionally separate from their other services. Via Article 5a(14), that provision applies mutatis mutandis to private Wallet providers as well.

Relevance: It applies only where provision is private under paragraph 2, point (b) or (c), and adds functional separation to logical separation.

Article 4 eIDAS

Internal market principle Prohibits Member States from restricting the provision of trust services from another Member State for reasons falling within the scope of the Regulation. Paragraph 2 requires that products and services lawfully provided in one Member State be able to circulate freely in the internal market. The general rule is spelled out for qualified services in Article 24a.

Article 46a eIDAS Supervision of the Wallet framework

Requires Member States to designate supervisory bodies for Wallet providers and to notify them to the Commission. Those bodies monitor compliance with the requirements, may require evidence and may order measures. Before eIDAS 2.0 there was no comparable supervisory structure for the electronic identification (eID) pillar.

KEY POINT

State, mandate, recognition – three routes, one responsible party.

SHALL

■ L2

Art. 5a(3)

TOPIC Open-source obligation for the source code

ADDRESSEE *Wallet provider / Member State*

CONTENT The source code of the **APPLICATION SOFTWARE COMPONENTS** shall be open-source licensed. Exception: for duly justified reasons a Member State (MS) may provide that the source code of specific components other than those installed on user devices is **NOT** disclosed (server side).

PURPOSE *Verifiability instead of a leap of faith – the security of an identity application must be publicly auditable.*

REFERENCES Article 5c Certification of the Wallet

Provides that the Wallet and the underlying electronic identification (eID) scheme are certified by designated conformity assessment bodies, and divides up the assessment: cybersecurity requirements via the schemes under the Cybersecurity Act, everything else via national certification schemes, the drafts of which are to be submitted to the Cooperation Group. In addition, it governs the five-year limit with a two-yearly vulnerability assessment, the optional certification under the GDPR, the implementing act and a delegated act on the criteria for the assessment bodies.

KEY POINT

Client open, server may stay closed – but only with justification.

SHALL

■ L1

Art. 5a(4) intro

TOPIC User functions – principle

ADDRESSEE *Wallet (technical) / Wallet provider*

CONTENT The European Digital Identity Wallet **SHALL** enable the user to perform functions (a) to (g) in a manner that is user-friendly, transparent and traceable by the user. Points (a) to (g) are **CUMULATIVE**.

PURPOSE *A Wallet that is secure but unusable will not be used – here usability is a legal obligation, not an optional extra.*

REFERENCES Article 5a(23) Implementing act on the core Wallet requirements

The Regulation's most important empowering provision in practice. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – that is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month period under paragraph 1. Numerous further provisions (Article 5b(11), Article 5d(7), Article 5e(5), Article 45d(5), Article 45e(2), Article 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

Relevance: Without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is also the anchor for the time limit under paragraph 1.

KEY POINT

Paragraph 4 = what the USER can do. Paragraph 5 = what the TECHNOLOGY must be able to do.

SHALL		L1	Art. 5a(4) (a)
TOPIC	Managing attributes + selective disclosure		
ADDRESSEE	<i>User (entitled) / Wallet</i>		
CONTENT	Securely requesting, obtaining, selecting, combining, storing, deleting, sharing and presenting electronic attestations of attributes (EAA) and person identification data – under the SOLE control of the user, online and, where appropriate, in offline mode. Selective disclosure SHALL be possible.		
PURPOSE	<i>Data minimisation put into practice: proof of age without a date of birth, proof of residence without a street address.</i>		
REFERENCES	Article 5b(3) Prohibition of over-asking Makes the registration information under paragraph 2, point (c) legally binding: the registered scope of data is at the same time the maximum permissible scope. Purpose limitation under data protection law thereby becomes enforceable technically and by supervision for the first time, instead of merely being asserted. “shall not request users to provide any data other than that indicated pursuant to paragraph 2, point (c)” ✓ Article 5b(3) Article 45g eIDAS Issuance of electronic attestations of attributes to Wallets Paragraph 1 requires ALL providers of electronic attestations of attributes to enable Wallet users to request, obtain, store and manage them irrespective of the Member State of provision. Paragraph 2 requires in addition – but only of providers of QUALIFIED electronic attestations of attributes – an interface to the Wallet. Without that bridge the Wallet would remain empty.		
KEY POINT	Selective disclosure is the core: prove age without disclosing the date of birth.		

SHALL		L2	Art. 5a(4) (b)
TOPIC	Pseudonyms		
ADDRESSEE	<i>User / Wallet</i>		
CONTENT	Generating pseudonyms and storing them ENCRYPTED and LOCALLY within the European Digital Identity Wallet.		
PURPOSE	<i>Pseudonyms are effective in data protection terms only if they are not held by the provider – local + encrypted is the condition.</i>		
REFERENCES	Article 5b(9) Responsibility for validation and protection of pseudonyms Places responsibility for the authentication and validation of the data presented on the relying party – not on the Wallet provider. The second sentence also prohibits refusing the use of pseudonyms unless a legal provision requires identification by real name. Article 5 is thereby protected against being circumvented in practice. Article 5 eIDAS Use of pseudonyms A single, unnumbered sentence: without prejudice to specific identification obligations and to the legal effect of pseudonyms under national law, the use of pseudonyms chosen by the user shall not be prohibited in electronic transactions. The Article has NO paragraphs. It is given specific effect in Article 5a(4), point (b), Article 5b(9) and Article 32(1), point (e). Article 2 eIDAS Scope Covers notified electronic identification (eID) schemes, the Wallets provided by the Member States and trust service providers established in the Union. Expressly NOT covered are trust services provided, under national law or under an agreement, exclusively within a closed group of participants – enterprise-internal PKI therefore falls outside. Paragraph 3 makes clear that the Regulation does not affect national contract law or the GDPR.		
KEY POINT	Pseudonym = local + encrypted. Held server-side, it would not be one.		

SHALL		L2	Art. 5a(4) (c)
TOPIC	European Digital Identity Wallet-to-European Digital Identity Wallet interaction		
ADDRESSEE	<i>User / Wallet</i>		
CONTENT	Securely authenticating ANOTHER person's European Digital Identity Wallet and receiving and sharing person identification data (PID) and electronic attestations of attributes (EAA) between two Wallets.		
PURPOSE	<i>Person-to-person attestations (tenancy agreement, contract of sale, power of attorney) without a detour via a service provider.</i>		
REFERENCES	Article 5a(5) Mandatory technical characteristics The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party (RP) authentication, verification of authenticity, erasure requests, reporting to authorities, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes (EAA), point (d) mandates assurance level high (LoA high) and point (g) the free-of-charge qualified electronic signature for natural persons.		

KEY POINT

The Wallet is not only an identity document, but also a counterparty.

SHALL

■ L1

Art. 5a(4) (d)

TOPIC **Dashboard and transaction log**ADDRESSEE *User / Wallet*

CONTENT Access to a log of **ALL** transactions via a common dashboard, so that the user can (i) view all relying parties (**RP**) and the data shared, (ii) easily request erasure pursuant to Article 17 GDPR, (iii) easily report unlawful or suspicious requests for data to the national data protection authority.

PURPOSE *Without a transparency tool the user cannot exercise the 'sole control' under paragraph 4, point (a) at all.*

REFERENCES **Article 17 GDPR**

Right to erasure – right to be forgotten Paragraph 1 gives the data subject the right to obtain erasure without undue delay, inter alia where the data are no longer necessary for the purposes of the processing, where consent has been withdrawn, where an objection has been lodged or where the processing was unlawful. Paragraph 2 requires other controllers to be informed where the data have been made public. Paragraph 3 sets out exceptions, for example for legal obligations and for the establishment or exercise of legal claims. Link to eIDAS: Article 5a(4), point (d)(ii) eIDAS requires the user to be able to make that erasure request EASILY, directly from the Wallet dashboard – the right is thus translated into an operating function. Summary of content, not verified against the original text

● summary, not verified

Article 5a(5) Mandatory technical characteristics

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party (RP) authentication, verification of authenticity, erasure requests, reporting to authorities, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes (EAA), point (d) mandates assurance level high (LoA high) and point (g) the free-of-charge qualified electronic signature for natural persons.

KEY POINT

Dashboard = view, erase, report. Three buttons, not one.

SHALL

■ L1

Art. 5a(4) (e)

TOPIC **Signing and sealing from the European Digital Identity Wallet**ADDRESSEE *User / Wallet*

CONTENT Signing by means of qualified electronic signatures or sealing by means of qualified electronic seals.

PURPOSE *Connects the electronic identification (eID) pillar (Chapter II) directly with the trust services pillar (Chapter III) – the Wallet becomes a signature application.*

REFERENCES **Article 5a(5) Mandatory technical characteristics**

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party (RP) authentication, verification of authenticity, erasure requests, reporting to authorities, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes (EAA), point (d) mandates assurance level high (LoA high) and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 25 eIDAS

Legal effects of electronic signatures Contains two sentences of far-reaching significance: paragraph 1 prohibits denying an electronic signature legal effect and admissibility as evidence solely on the ground that it is in electronic form or that it does not meet the requirements for qualified electronic signatures. Paragraph 2 gives the qualified electronic signature the equivalent legal effect of a handwritten signature. The former paragraph 3 was deleted by eIDAS 2.0.

Article 29a eIDAS Qualified service for the management of remote electronic signature creation devices

Makes the server-side management of signature keys a qualified trust service in its own right, subject to three conditions: generation or management of the electronic signature creation data on behalf of the signatory; duplication of that data solely for back-up purposes, at the same level of security and in no more copies than strictly necessary; and compliance with all requirements set out in the certification report under Article 30. Grandfathering applies until 21 May 2026.

KEY POINT

The Wallet is the bridge between Chapter II and Chapter III.

SHALL

□ L3

Art. 5a(4) (f)–(g)

TOPIC **Data export and data portability**ADDRESSEE *User / Wallet*

CONTENT (f) Download of the user's data, electronic attestations of attributes (EAA) and configurations – to the extent technically feasible. (g) Exercise of the user's rights to data portability.

PURPOSE *Prevents lock-in to a single Wallet provider; implements Article 20 of Regulation (EU) 2016/679 (GDPR) in the context of the Wallet.*

REFERENCES **Article 20 GDPR Right to data portability.**

The data subject may receive the personal data concerning him or her in a structured, commonly used and machine-readable format and transmit that data to another controller, provided that the processing is based on consent or on a contract and is carried out by automated means. Where technically feasible, there is a right to have the data transmitted directly from one controller to another. Relationship to eIDAS: Article 5a(4), points (f) and (g), eIDAS implements this for the Wallet – point (f) being qualified by 'to the extent technically feasible', point (g) not. The purpose is to avoid lock-in to a Wallet provider.

Summary of content, not verified against the original text

● summary, not verified

KEY POINT

Point (f) is qualified ('to the extent technically feasible'), point (g) is not.

SHALL

■ L1

Art. 5a(5) intro

TOPIC **Mandatory technical characteristics – principle**

ADDRESSEE *Wallet (technical) / Wallet provider*

CONTENT The European Digital Identity Wallet **SHALL IN PARTICULAR** meet the requirements in points (a) to (g). 'In particular' = not exhaustive; the implementing act under paragraph 23 supplements them.

PURPOSE *Paragraph 4 describes the user-facing view, paragraph 5 the internal technical view – only the two together yield an auditable Wallet.*

REFERENCES **Article 5a(23) Implementing act on the core Wallet requirements for the Wallet.**

The Regulation's most important empowering provision for practical purposes. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month deadline in paragraph 1. Numerous further provisions (5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act. Significance here: without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is at the same time the deadline anchor of paragraph 1.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

Article 5c(1) Subject matter of certification.

Defines exhaustively what is certified: the conformity of the Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), the logical separation under paragraph 14 and, where applicable, the standards referred to in paragraph 24. Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The sequence 4-5-8-14 is the practical mnemonic anchor.

KEY POINT

Remember: what is certified is 4, 5, 8 + 14 – not the whole Article.

SHALL

■ L1

Art. 5a(5)(a)(i)–(xi)

TOPIC **Common protocols and interfaces**

ADDRESSEE *Wallet (technical)*

CONTENT Eleven interface cases: (i) issuance of person identification data (PID)/electronic attestations of attributes (EAA)/certificates; (ii) requesting and validating by relying parties (**RP**); (iii) sharing and presentation (including selectively disclosed data, online/offline mode); (iv) user interaction + display of the EU Digital Identity Wallet Trust Mark; (v) secure onboarding of the user in accordance with paragraph 24; (vi) European Digital Identity Wallet-to-Wallet; (vii) authentication of relying parties in accordance with Article 5b; (viii) verification by relying parties of the authenticity and validity of the Wallet; (ix) requests for erasure pursuant to Article 17 GDPR; (x) reporting to the data protection authority; (xi) creation of qualified electronic signatures (QES)/qualified electronic seals by means of qualified electronic signature creation devices (**QSCD**).

PURPOSE *Without uniform protocols, 27 mutually non-interoperable Wallets would emerge – interoperability would be merely asserted.*

REFERENCES

REFERENCES ARF Architecture and Reference Framework of the Wallet.

Not a legal act, but the technical reference architecture developed in the context of the implementing acts under Article 5a(23) eIDAS. It describes the roles, data models, protocols and trust model of the Wallet, drawing on formats such as ISO/IEC 18013-5 (mobile driving licences) and W3C Verifiable Credentials. Relationship to eIDAS: it fills the eleven interface cases of Article 5a(5), point (a), (i) to (xi), eIDAS with concrete specifications. Only what the implementing act takes over becomes legally binding. Summary of content, not verified against the original text

● summary, not verified

Article 5a(23) Implementing act on the core Wallet requirements for the Wallet.

The Regulation's most important empowering provision for practical purposes. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month deadline in paragraph 1. Numerous further provisions (5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act. Significance here: without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is at the same time the deadline anchor of paragraph 1.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

KEY POINT

Eleven interfaces, (i) to (xi) – that is the ARF table of contents.

SHALL NOT

■ L1

Art. 5a(5) (b)

TOPIC No feedback to the issuer of the electronic attestation of attributes

ADDRESSEE *Wallet (technical)*

CONTENT The European Digital Identity Wallet **SHALL ENSURE** that, after issuance, **No** information whatsoever about the use of those electronic attestations is provided to trust service providers of electronic attestations of attributes (EAA).

PURPOSE *Prevents the 'phone-home' problem: the issuer of the credential must not be able to observe where the credential is used.*

REFERENCES Article 5a(16)

Unlinkability in the technical framework. Point (a) prohibits providers of electronic attestations of attributes or any other party from obtaining, after issuance of the attestation of attributes, data that would allow transactions or user behaviour to be tracked, linked or correlated. Point (b) requires techniques which ensure unlinkability where identification of the user is not needed. Whereas paragraph 5, point (b), prohibits observation of the use, paragraph 16 prohibits the bringing together of data – technically this leads to techniques such as selective disclosure and zero-knowledge proofs.

Article 45h eIDAS

Additional rules for services of electronic attestation of attributes. Prohibits providers of qualified and non-qualified attestation services from combining personal data from those services with data from other services offered by them or by their business partners. Paragraph 2 requires the logical separation of that data from all other data held; paragraph 3 requires the functional separation of the qualified service from the provider's other services.

KEY POINT

The issuer must not be able to observe. No phone-home.

SHALL

■ L1

Art. 5a(5) (c)

TOPIC Authentication of relying parties

ADDRESSEE *Wallet (technical)*

CONTENT Ensure that relying parties (**RP**) can be authenticated and identified by implementing authentication mechanisms in accordance with Article 5b.

PURPOSE *Mutual authentication: it is not only the user who identifies himself or herself, the service too must identify itself – protection against phishing relying parties.*

REFERENCES Article 5b(7) Common identification mechanism.

Obliges the Member State (MS) to provide a common mechanism for allowing the identification and authentication of relying parties, as referred to in Article 5a(5), point (c). Twenty-seven different procedures would be unmanageable across borders.

Article 5b(8) Self-identification towards the user.

Obliges the relying party to identify itself to the user. Before releasing data, the user is to know to whom the data is being given – protection against phishing and impersonation.

Article 5a(8) Free-of-charge validation mechanisms.

Requires the Member State to provide two free-of-charge verification paths running in opposite directions: point (a) allows verification that a presented Wallet is authentic and valid; point (b) allows the user to verify that the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1).

KEY POINT

Two-way: the user shows the Wallet, the relying party shows its registration.

SHALL		■ L1	Art. 5a(5) (d)
TOPIC	Assurance level 'high' mandatory		
ADDRESSEE	<i>Wallet (technical)</i>		
CONTENT	The European Digital Identity Wallet SHALL meet the requirements set out in Article 8 with regard to assurance level HIGH , in particular as applied to the requirements for identity proofing and verification and for electronic identification means management and authentication.		
PURPOSE	<i>The Wallet is the starting point for qualified electronic signatures and for access to public sector services – a lower assurance level would devalue the entire chain.</i>		
REFERENCES	Article 8(2) eIDAS The three assurance levels. Contains definitions only, no obligations to act – a frequent source of error. The scale is calibrated to the effect against identity misuse: 'low' reduces the risk, 'substantial' reduces it substantially, 'high' prevents it. The substantive requirements only follow from the implementing act under paragraph 3, implemented by Implementing Regulation (EU) 2015/1502. “The assurance levels low, substantial and high shall meet respectively the following criteria” ✓ Article 8(2) Article 5a(11) eIDAS Provision at assurance level high. Provides that Wallets are to be provided under an electronic identification scheme with assurance level high. In law the Wallet is therefore an electronic identification means at assurance level high and not a special object – subject, however, to the exceptions in paragraph 22. Article 24(1a) eIDAS Four methods of identity verification. Exhaustive list: (a) a Wallet or a notified electronic identification means with assurance level high; (b) a certificate of a qualified electronic signature or of a qualified electronic seal issued in accordance with point (a), (c) or (d); (c) other methods which ensure a high level of confidence, the conformity of which is confirmed by a conformity assessment body; (d) physical presence. Point (c) is the route for video identification and comparable remote procedures – but only with confirmation by a conformity assessment body (CAB).		
KEY POINT	Wallet = assurance level high. Always. Without exception.		

SHALL		□ L3	Art. 5a(5) (e)
TOPIC	Embedded disclosure policies		
ADDRESSEE	<i>Wallet (technical)</i>		
CONTENT	In the case of electronic attestations of attributes (EAA) with embedded disclosure policies, an appropriate mechanism SHALL inform the user that the requesting relying party (RP) or the requesting user has the permission to access that attestation.		
PURPOSE	<i>The user is to be able to recognise whether a request is legitimate before releasing data.</i>		
REFERENCES	Annex V Annex V – qualified electronic attestations of attributes. Nine mandatory items, (a) to (i). The core is point (d): the attested attributes, including their scope. Point (g) requires – unlike Annexes I and III – a QUALIFIED electronic signature or a qualified electronic seal of the issuing qualified trust service provider (QTSP). Article 5b(2) Minimum content of the relying party's registration. The relying party shall provide the information necessary for authentication, its contact details and – point (c) – the intended use, including an indication of the data to be requested. Point (c) is the anchor of purpose limitation: it defines the permissible scope of requests, to which paragraph 3 binds the relying party.		
KEY POINT	Inform first, then release.		

SHALL		■ L1	Art. 5a(5) (f)
TOPIC	Uniqueness of the person identification data		
ADDRESSEE	<i>Wallet (technical) / Member State (MS)</i>		
CONTENT	The person identification data (PID) available from the electronic identification scheme shall UNIQUELY represent the associated natural or legal person (or the natural person representing that person).		
PURPOSE	<i>Without uniqueness, cross-border identity matching under Article 11a fails – duplicate identities arise.</i>		
REFERENCES			

REFERENCES Article 5a(18)

Notification obligations towards the Commission. Names five items to be notified: the body responsible for the list of relying parties, together with the location of that list; the bodies responsible for the provision of the Wallets; the bodies responsible for associating the person identification data; the mechanism allowing for the validation of that data and of the identity of the relying parties; and the mechanisms by which to validate the authenticity and validity of the Wallet. The Commission makes this available to the public through a secure channel, in electronically signed or sealed form suitable for automated processing.

Article 11a eIDAS Cross-border identity matching. New in eIDAS 2.0.

Obliges Member States, where they are themselves relying parties for cross-border services, to ensure identity matching for natural persons using a notified electronic identification means or a Wallet. Paragraph 2 requires technical and organisational measures for a high level of protection of the matching data and expressly the prevention of user profiling. Paragraph 3 contains the empowerment to adopt an implementing act.

Article 3 eIDAS

Definitions. Contains the legal definitions in points 1 to 57, supplemented by the lettered points inserted by eIDAS 2.0 such as 5a, 16a and 21a. Particularly important in practice: point 3 person identification data, point 5a user, point 6 relying party, point 16 trust service, point 20 qualified trust service provider, point 42 electronic attestation of attributes, point 45 authentic source and point 46 the public sector body responsible for an authentic source.

KEY POINT

Unique means: one person, one data record, resolvable EU-wide.

SHALL

■ L1

Art. 5a(5)(g) , 2nd subpara.

TOPIC Free-of-charge qualified electronic signatures for natural persons

ADDRESSEE *Wallet provider / Member State (MS)*

CONTENT All **NATURAL** persons shall be offered the ability to sign by means of qualified electronic signatures (QES) **BY DEFAULT** and **FREE OF CHARGE**. Second subparagraph: Member States (MS) **MAY** provide for proportionate measures to limit the free-of-charge use to **NON-PROFESSIONAL** purposes.

PURPOSE *Makes the qualified electronic signature practically attainable for private individuals for the first time; the exception prevents undertakings from using the free-of-charge service as business infrastructure.*

REFERENCES Article 25(2) eIDAS Equivalence of the qualified electronic signature with a handwritten signature.

The most consequential sentence of signature law in practice: a qualified electronic signature has the same legal effect as a handwritten signature. Advanced electronic signatures do not achieve that effect – not even on the basis of a qualified certificate. In German law, Section 126a BGB is the counterpart.

“A qualified electronic signature shall have the equivalent legal effect of a handwritten signature”

✓ Article 25(2)

Article 5a(13) eIDAS Free of charge.

Provides that the issuance, use and revocation of the Wallet shall be free of charge to all natural persons. All three operations are covered, not only issuance.

Article 29a eIDAS Qualified service for the management of remote electronic signature creation devices.

Makes the server-side management of signature keys a qualified trust service in its own right, subject to three conditions: generation or management of the electronic signature creation data on behalf of the signatory; duplication of that data for back-up purposes only, at the same security level and in no more copies than strictly necessary; and compliance with all requirements set out in the certification report under Article 30. Grandfathering applies until 21 May 2026.

KEY POINT

Free QES for all natural persons BY DEFAULT – MS MAY limit it to non-professional use.

SHALL

■ L2

Art. 5a(6)

TOPIC Informing users of security breaches

ADDRESSEE *Member State*

CONTENT The Member State shall inform users **WITHOUT DELAY** of any security breach that could have entirely or partially compromised their European Digital Identity Wallet or its contents – in particular where the Wallet has been suspended or revoked pursuant to Article 5e.

PURPOSE *The user must be able to stop relying on a compromised Wallet.*

DEADLINE **without delay**

REFERENCES

REFERENCES Article 5e Security breach of Wallets

Governs the emergency case: suspension without undue delay, immediate withdrawal where the severity so justifies, and information of users, single points of contact, relying parties and the Commission. If the breach is not remedied within three months, the Wallets shall be withdrawn and their validity revoked. Once the breach has been remedied, provision shall be re-established; the Commission shall update the list referred to in Article 5d without undue delay.

Article 46c eIDAS Single points of contact

Requires every Member State to designate, make public and notify to the Commission a single point of contact for trust services, Wallets and notified electronic identification schemes. Cross-border supervision needs a defined contact point; the single point of contact is, among other things, an addressee of the notifications under Article 5e.

KEY POINT

Paragraph 6 = tell the users. Article 5e = suspend the Wallet. Two separate duties.

MAY

□ L3

Art. 5a(7)**TOPIC Additional functionalities under national law****ADDRESSEE** Member State

CONTENT A Member State (MS) **MAY** provide for additional functionalities, including interoperability with existing national electronic identification means. Those additional functionalities **SHALL** comply with Article 5a.

PURPOSE *Permits national value-added services without diluting the harmonised core.*

REFERENCES Article 5f Cross-border reliance and the obligation to accept

Requires the public sector to accept the Wallet wherever it requires electronic identification, and extends this to certain private parties in eleven named sectors as well as to very large online platforms. Microenterprises and small enterprises are exempt, and use follows only upon the voluntary request of the user. In addition, the Article provides for codes of conduct and an assessment of the use of Wallets.

KEY POINT

They may do more – not worse.

SHALL

■ L1

Art. 5a(8)(a)–(b)**TOPIC Free-of-charge validation mechanisms****ADDRESSEE** Member State

CONTENT The Member State shall provide validation mechanisms **FREE OF CHARGE** in order to (a) make the authenticity and validity of the European Digital Identity Wallet verifiable and (b) allow users to verify the authenticity and the identity of registered relying parties (RPs).

PURPOSE *Trust arises only where each side can verify the other independently – and without a cost barrier.*

REFERENCES Article 5a(18)

Notification obligations towards the Commission Names five items to be notified: the body responsible for the list of relying parties, together with the location of that list; the bodies responsible for the provision; the bodies responsible for associating the person identification data; the mechanism for validating those data and the identity of the relying parties; and the mechanisms for validating the authenticity and validity of the Wallet. The Commission makes this information available to the public through a secure channel, in electronically signed form suitable for automated processing.

Article 5b(5) Publication of the registration

Requires the Member State to make the registration information publicly available online in electronically signed or sealed form suitable for automated processing. Only this enables the Wallet to verify by automated means whether a requesting party is registered.

Article 5c(1) Subject matter of certification

Defines exhaustively what is certified: the conformity of the Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), the requirement for logical separation laid down in paragraph 14 and, where applicable, the standards referred to in paragraph 24. Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The number sequence 4-5-8-14 is the practical mnemonic anchor.

KEY POINT

Two directions, free of charge: genuine EUDI Wallet? Genuine relying party?

SHALL

■ L2

Art. 5a(9)(a)–(c)**TOPIC Grounds for revocation****ADDRESSEE** Member State

CONTENT The Member State shall ensure that the validity of the European Digital Identity Wallet can be revoked: (a) upon the explicit request of the user, (b) where the security of the Wallet has been compromised, (c) upon the death of the user or the cessation of activity of the legal person.

PURPOSE *An identity without a possibility of revocation is a security risk – in particular in the event of death or theft.*

REFERENCES

REFERENCES Article 5e Security breach of Wallets

Governs the emergency case: suspension without undue delay, immediate withdrawal where the severity so justifies, and information of users, single points of contact, relying parties and the Commission. If the breach is not remedied within three months, the Wallets shall be withdrawn and their validity revoked. Once the breach has been remedied, provision shall be re-established; the Commission shall update the list referred to in Article 5d without undue delay.

KEY POINT User request, compromise, death – three triggers.

SHALL

■ L2

Art. 5a(10)**TOPIC User support and incident reporting****ADDRESSEE** *Provider of the Wallet*

CONTENT Providers shall ensure that users can **EASILY** request technical support and report technical problems or any other incidents having a negative impact.

PURPOSE *Incident detection begins with the user – without a low-threshold reporting channel a compromise goes undetected.*

REFERENCES Article 5e(1) Immediate suspension in the event of compromise

Requires the Member State to suspend the provision and the use without undue delay where the Wallet, the validation mechanisms or the underlying electronic identification scheme are breached or compromised in a manner that affects their reliability – with immediate withdrawal where the severity so justifies. Four groups of addressees are to be informed: the users affected, the single points of contact under Article 46c, the relying parties and the Commission.

KEY POINT The user is the first sensor.

SHALL

■ L1

Art. 5a(11)**TOPIC Provision at assurance level high****ADDRESSEE** *Member State*

CONTENT European Digital Identity Wallets shall be provided under an electronic identification scheme with assurance level **HIGH**.

PURPOSE *Anchors the Wallet in the existing electronic identification framework – in law it is an electronic identification means, not a special object.*

REFERENCES Article 5a(22)

Exemptions from the electronic identification Articles Disapplies Articles 7, 9, 10, 12 and 12a for the Wallet and the underlying scheme. Instead, the Wallet follows its own, stricter regime under Articles 5a to 5f. Important for the delimitation: Article 11 (liability) does apply, via Article 5a(19), and Article 12b (platform access) is precisely NOT exempted here.

“shall not be subject to the requirements laid down in Articles 7, 9, 10, 12 and 12a”

✓ Article 5a(22)

Article 5a(5) eIDAS Mandatory technical characteristics

The internal view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure requests, reporting to the authority, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any information being provided to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 9 eIDAS

Notification Governs the content of, and the procedure for, the notification of an electronic identification scheme. The Member State submits the description of the scheme, the assurance levels, the supervision and liability arrangements separately for the issuer and for the party operating the authentication procedure, the competent authorities, the registry responsible for the person identification data, the evidence of interoperability, the description of the authentication and the suspension and revocation arrangements. The Commission publishes the list in the Official Journal and includes amendments within one month.

KEY POINT EUDI Wallet = electronic identification means at assurance level high.

SHALL

■ L2

Art. 5a(12)**TOPIC Security by design****ADDRESSEE** *Provider of the Wallet*

CONTENT European Digital Identity Wallets shall be equipped with 'security by design'.

PURPOSE *Security is to be an architectural feature, not a protective layer bolted on afterwards.*

REFERENCES

REFERENCES Article 25 GDPR

Data protection by design and by default Paragraph 1 requires that appropriate measures such as pseudonymisation be taken already when determining the means of processing, in order to implement the principles of Article 5 GDPR effectively. Paragraph 2 requires default settings ensuring that, as a rule, only the personal data necessary for each specific purpose are processed – as regards the amount of data, the extent of the processing, the period of storage and accessibility. Relation to eIDAS: Article 12(3), point (c), eIDAS expressly incorporates privacy and security by design into the interoperability framework; Article 5a(12) eIDAS requires security by design for the Wallet. Summary of content, not verified against the original text

● summary, not verified

Article 5c Certification of the Wallet

Provides that the Wallet and the underlying electronic identification scheme are certified by designated conformity assessment bodies, and splits the assessment: cybersecurity requirements through the schemes under the Cybersecurity Act, everything else through national certification schemes, the drafts of which are to be submitted to the Cooperation Group. In addition it governs the five-year limit with a vulnerability assessment every two years, the optional GDPR certification, the implementing act and a delegated act on the criteria for the conformity assessment bodies.

KEY POINT

Security by design is a legal obligation here, not a best practice.

SHALL

■ L2

Art. 5a(13)**TOPIC Free of charge for natural persons**

ADDRESSEE Member State / provider of the Wallet

CONTENT The issuance, use and revocation of the European Digital Identity Wallet shall be **FREE OF CHARGE** to **ALL** natural persons.

PURPOSE *An identity subject to a charge would make access to public services socially selective.*

REFERENCES Article 5a(5) Mandatory technical characteristics

The internal view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure requests, reporting to the authority, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any information being provided to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 5a(15) Voluntary use and prohibition of discrimination

The core political condition of the Wallet: no one has to use it, and those who do not use it must not be disadvantaged in their access to services, on the labour market or in their freedom to conduct business. It forms the necessary counterweight to the obligations to accept under Article 5f – the service **SHALL** accept, the user is **NOT** required to use.

“The use of European Digital Identity Wallets shall be voluntary”

✓ Article 5a(15) eIDAS

KEY POINT

Three operations are free: issuing, using, revoking.

SHALL NOT

■ L1

Art. 5a(14)**TOPIC User control, prohibition of tracking, logical separation**

ADDRESSEE Provider of the Wallet

CONTENT Users shall have full control. The provider shall collect **No** information about the use that is not necessary, and shall **NOT** combine person identification data (**PID**) or other European Digital Identity Wallet data with personal data from other services of its own or of third parties, unless the user has expressly requested otherwise. Wallet data shall be kept **LOGICALLY SEPARATE** from any other data stored. Where the Wallet is provided by private parties (paragraph 2, points (b) and (c)), Article 45h(3) applies mutatis mutandis.

PURPOSE *Prevents the State's identity infrastructure from becoming a data source for an advertising or platform business.*

REFERENCES Article 45h(1) eIDAS

Prohibition on combining data from electronic attestations of attributes Prohibits providers of qualified AND non-qualified electronic attestation of attributes services from combining personal data from those services with data from other services offered by themselves OR BY THEIR BUSINESS PARTNERS. The reach beyond the provider's own group of companies is frequently overlooked. Paragraphs 2 and 3 add logical and functional separation.

Article 5a(16)

Unlinkability in the technical framework Point (a) prohibits providers of electronic attestations of attributes or any other party from obtaining, after issuance, data that would allow transactions or user behaviour to be tracked, linked or correlated. Point (b) requires techniques that ensure unlinkability where identification of the user is not necessary. Whereas paragraph 5, point (b), prohibits reading along, paragraph 16 prohibits bringing data together – technically this leads to techniques such as selective disclosure and zero-knowledge proofs.

REFERENCES Article 5c(1) Subject matter of certification

Defines exhaustively what is certified: the conformity of the Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), the requirement for logical separation laid down in paragraph 14 and, where applicable, the standards referred to in paragraph 24. Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The number sequence 4-5-8-14 is the practical mnemonic anchor.

Article 12b eIDAS Access to hardware and software features

Requires gatekeepers within the meaning of the Digital Markets Act to provide providers of Wallets and issuers of notified electronic identification means with effective interoperability with, and access to, the same operating system, hardware and software features – such as the secure element and the NFC interface. Pursuant to Article 6(7) DMA, free of charge and irrespective of whether the feature is part of the operating system. Without this provision, two platform operators could technically prevent compliance with the State's obligation to provide. It is enforced through the DMA, not through eIDAS supervision. Summary of content, not verified against the original text

● summary, not verified

KEY POINT

Paragraph 14 is the only paragraph outside 4/5/8 that is expressly certified.

SHALL NOT

■ L1

Art. 5a(15)

TOPIC Voluntary use and prohibition of discrimination

ADDRESSEE Member State / all service providers

CONTENT Use shall be **VOLUNTARY**. Persons who do not use the European Digital Identity Wallet **SHALL NOT** in any way be restricted or placed at a disadvantage in accessing public and private services, in access to the labour market or in the freedom to conduct a business. Other identification means shall remain possible.

PURPOSE *A core political condition of the Regulation – without it the Wallet would amount to a de facto obligation to identify oneself.*

REFERENCES Article 5f Cross-border use and obligation of acceptance

Requires the public sector to accept the Wallet wherever it requires electronic identification, and extends this to certain private parties in eleven named sectors as well as to very large online platforms. Microenterprises and small enterprises are exempt; use takes place only at the voluntary request of the user. In addition, the Article provides for codes of conduct and an evaluation of the use of the Wallet.

KEY POINT

The relying party SHALL accept (5f) – the user is NOT REQUIRED to use (Article 5a(15)).

SHALL NOT

■ L1

Art. 5a(16)(a)–(b)

TOPIC Unlinkability in the technical framework

ADDRESSEE Wallet (technical) / Commission (via implementing act)

CONTENT The technical framework (a) **SHALL NOT** allow providers of electronic attestations of attributes (EAA) or any other party, after issuance, to obtain any data that would allow transactions or user behaviour to be tracked, linked or correlated, unless the user explicitly authorises it; (b) shall enable privacy preserving techniques which ensure **UNLINKABILITY** where identification is not required.

PURPOSE *Protects against the build-up of an EU-wide behavioural profile via the identity infrastructure.*

REFERENCES ARF Architecture and Reference Framework of the Wallet

Not a legal act, but the technical reference architecture developed within the implementing acts under Article 5a(23) eIDAS. It describes the roles, data models, protocols and trust model of the Wallet, drawing on formats such as ISO/IEC 18013-5 (mobile driving licences) and W3C Verifiable Credentials. Relationship to eIDAS: it fills the eleven interface cases of Article 5a(5), point (a)(i) to (xi) eIDAS with concrete specifications. Only what the implementing act takes over becomes legally binding. Summary of content, not verified against the original text

● summary, not verified

Article 5a(5) Mandatory technical characteristics

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, deletion requests, reporting to authorities, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) requires assurance level high, point (g) the qualified electronic signature free of charge for natural persons.

Article 45h eIDAS

Additional rules for services for electronic attestation of attributes Prohibits providers of qualified and non-qualified attestation services from combining personal data from those services with data from other services offered by them or by their business partners. Paragraph 2 requires the data to be kept logically separate from all other data holdings; paragraph 3 requires the qualified service to be functionally separate from the provider's other services.

KEY POINT

Paragraph 5(b) prohibits monitoring, paragraph 16 prohibits aggregating.

SHALL		L1	Art. 5a(17)
TOPIC	GDPR compliance and accountability		
ADDRESSEE	Member State / responsible bodies		
CONTENT	Any processing shall be carried out in accordance with appropriate and effective data protection measures. Compliance of the processing activities with the GDPR SHALL BE DEMONSTRATED . Member States (MS) may adopt national provisions further specifying those requirements.		
PURPOSE	<i>The burden of proof lies with the operator – accountability analogous to Article 5(2) GDPR.</i>		
REFERENCES	Article 5 GDPR Principles relating to processing of personal data Paragraph 1 sets out six principles: lawfulness, fairness and transparency; purpose limitation; data minimisation; accuracy; storage limitation; integrity and confidentiality. Paragraph 2 establishes accountability – the controller SHALL be able to DEMONSTRATE compliance with those principles. Relationship to eIDAS: Article 5b(2), point (c), and Article 5b(3) eIDAS make the purpose limitation of paragraph 1(b) technically enforceable: what has not been stated as an intended use at registration may not be requested. The accountability of paragraph 2 recurs in Article 5a(17) eIDAS as a self-standing obligation to demonstrate compliance. Summary of content, not verified against the original text ● summary, not verified Article 35 eIDAS Legal effects of electronic seals Paragraph 1 contains the prohibition of discrimination, paragraph 2 the presumption of the integrity of the data and of the correctness of the origin claimed, for qualified electronic seals. Unlike the qualified electronic signature, the electronic seal is NOT given the equivalent effect of a handwritten signature – it attests the origin from an organisation, not a person's intention to be legally bound. The former paragraph 3 has been deleted. Article 24 eIDAS Requirements for qualified trust service providers The central catalogue of obligations. Paragraphs 1, 1a and 1b govern the verification of identity (four methods) and of attributes (five methods). Paragraph 2 contains points (a) to (k) – notification obligations, staff, financial resources, information to users, trustworthy systems and cryptography, verifiable storage, risk management, 24-hour notification, protection against forgery, record-keeping, termination plan and certificate database. Paragraphs 3 and 4 govern revocation and certificate status information.		
KEY POINT	Not 'being compliant', but 'demonstrating compliance'.		

SHALL		L2	Art. 5a(18)(a)–(e)
TOPIC	Notification obligations towards the Commission		
ADDRESSEE	Member State / Commission		
CONTENT	The Member State (MS) shall notify, WITHOUT UNDUE DELAY , information about (a) the body responsible for the list of relying parties and the location of that list, (b) the bodies responsible for the provision of the European Digital Identity Wallet, (c) the bodies responsible for associating the person identification data (PID), (d) the mechanism for validating the person identification data and the identity of the relying parties, (e) the mechanisms for validating the authenticity and validity of the Wallet. The Commission shall make this available to the public through a SECURE channel, in electronically signed or sealed form suitable for automated processing.		
PURPOSE	<i>A relying party abroad must be able to establish by automated means which Wallet and which list of relying parties are genuine.</i>		
DEADLINE	without undue delay		
REFERENCES	Article 5b(5) Publication of the registration Requires the Member State to make the registration information publicly available online in electronically signed or sealed form suitable for automated processing. Only this enables the Wallet to verify by automated means whether a requesting party is registered.		

REFERENCES Article 5a(23)

Implementing act on the core Wallet requirements In practice the most important empowering provision of the Regulation. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. At the same time it is one of the two triggers of the 24-month time limit in paragraph 1. Numerous further provisions (Article 5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act. Significance here: without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is also the time-limit anchor of paragraph 1.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

Article 5d Publication of the list of certified Wallets

Requires Member States to inform the Commission and the Cooperation Group without undue delay of certified as well as of withdrawn Wallets, and states the minimum content of that notification. The Commission maintains a machine-readable list published in the Official Journal and incorporates changes within one month. The list of Wallets is to be distinguished from the trusted list of trust service providers under Article 22.

KEY POINT

Five notifications: list, providers, association – plus two validation mechanisms.

REFERENCING PROVISION

■ L2

Art. 5a(19)

TOPIC Liability

ADDRESSEE Member State / Wallet provider

CONTENT Article 11 (liability in the field of electronic identification) applies **MUTATIS MUTANDIS** to the European Digital Identity Wallet – without prejudice to paragraph 22.

PURPOSE *Avoids a separate liability regime; the Wallet follows the electronic identification liability rules.*

REFERENCES Article 5a(22)

Exemptions from the electronic identification Articles Disapplies Articles 7, 9, 10, 12 and 12a for the Wallet and the underlying scheme. The Wallet instead follows its own, stricter regime under Articles 5a to 5f. Important for the delimitation: Article 11 (liability) does apply, by virtue of Article 5a(19), and Article 12b (access to platforms) is precisely NOT exempted here.

“shall not be subject to the requirements laid down in Articles 7, 9, 10, 12 and 12a”

✓ Article 5a(22)

Article 11 eIDAS

Liability in the field of electronic identification Allocates liability over three roles and three points of Article 7: the notifying Member State is liable for point (d) (unambiguous attribution of the person identification data) and point (f) (availability of authentication), the issuer for point (e) (correct attribution of the means), and the operator of the authentication procedure for its incorrect operation. All three cases concern cross-border transactions only. By virtue of Article 5a(19) it applies mutatis mutandis to Wallets as well. Significance here: the Wallet follows the electronic identification liability of Chapter II, not the trust service liability of Article 13.

KEY POINT

EUDI Wallet liability = Article 11 (electronic identification), not Article 13.

REFERENCING PROVISION

■ L1

Art. 5a(20)

TOPIC Partial application of the qualified trust service provider obligations

ADDRESSEE Wallet provider

CONTENT Article 24(2), points (b) and (d) to (h), apply **MUTATIS MUTANDIS** to providers of European Digital Identity Wallets: qualified staff, information to users, trustworthy systems, verifiable storage, risk management (fa), 24-hour notification (fb), protection against forgery, record-keeping.

PURPOSE *Transfers the established catalogue of qualified trust service provider (QTSP) obligations in part to Wallet providers, without turning them into qualified trust service providers.*

REFERENCES Article 24(2) eIDAS Catalogue of obligations of the qualified trust service provider

The central catalogue, in practice the structure of every audit: (a) notification obligations (1 month for changes, 3 months for cessation), (b) qualified and trained staff in accordance with recognised standards, (c) sufficient financial resources or liability insurance, (d) pre-contractual information, (e) trustworthy systems, including suitable cryptographic techniques, (f) verifiable data storage, (fa) risk management, (fb) 24-hour notification, (g) protection against forgery and loss of data, (h) record-keeping beyond the cessation of activities, (i) termination plan, (k) certificate database. Point (j) has been deleted – the gap is intentional. Significance here: only points (b) and (d) to (h) are taken over – this expressly does not make the Wallet provider a qualified trust service provider.

Article 46a eIDAS Supervision of the Wallet framework

Requires Member States to designate supervisory bodies for Wallet providers and to notify them to the Commission. Those bodies monitor compliance with the requirements, may require evidence and may order measures. Before eIDAS 2.0 there was no comparable supervisory structure for the electronic identification pillar.

KEY POINT

(b) and (d) to (h) – NOT (a), (c), (i), (k). The extract is precisely delimited.

SHALL

■ L2

Art. 5a(21)

TOPIC **Accessibility**ADDRESSEE *Wallet provider / Member State*

CONTENT European Digital Identity Wallets shall be made accessible for use by persons with disabilities on an equal basis with other users, in accordance with Directive (EU) 2019/882.

PURPOSE *An infrastructure that is mandatory must not technically exclude any group of persons.*

REFERENCES **Article 15 eIDAS**

Accessibility Requires electronic identification means, trust services AND the end-user products used in the provision of those services to be made accessible in easy-to-understand language – in accordance with the UN Convention on the Rights of Persons with Disabilities and the accessibility requirements of Directive (EU) 2019/882. Older persons and persons with limited access to digital technologies are expressly covered as well. eIDAS 2.0 has deleted the former qualification 'where feasible'.

KEY POINT

Accessible on an equal basis for persons with disabilities – Directive (EU) 2019/882.

DEFINITION

■ L1

Art. 5a(22)

TOPIC **Exemptions from the electronic identification Articles**ADDRESSEE *Member State*

CONTENT For the purposes of the provision of the European Digital Identity Wallet and of the underlying electronic identification scheme, Articles 7, 9, 10, 12 and 12a do **Not** apply.

PURPOSE *With Articles 5a to 5f the Wallet has its own, stricter regime; applying both in parallel would be contradictory.*

REFERENCES **Article 7 eIDAS**

Conditions for notification Eight cumulative conditions, points (a) to (h). Particularly relevant in practice: point (f) requires online authentication that is available across borders and must be free of charge for public services; point (g) requires the description of the scheme to be submitted to the other Member States at least six months before notification. Points (d), (e) and (f) are at the same time the connecting factors for liability under Article 11. Not applicable to Wallets (Article 5a(22)).

Article 9 eIDAS

Notification Governs the content and the procedure for notifying an electronic identification scheme. The Member State transmits the description of the scheme, the assurance levels, the supervisory and liability arrangements separately for the issuer and for the operator of the authentication procedure, the competent authorities, the registry for the person identification data, the evidence of interoperability, the description of the authentication and the arrangements for suspension and revocation. The Commission publishes the list in the Official Journal and incorporates changes within one month.

Article 10 eIDAS Security breach in electronic identification schemes

Requires the notifying Member State, in the event of a breach affecting the reliability, to suspend or revoke cross-border authentication without delay and to inform the other Member States and the Commission. Once the breach is remedied, authentication is to be restored; if it is not remedied within three months, the withdrawal of the scheme is to be notified. The parallel provision for Wallets is Article 5e.

Article 12 eIDAS

Interoperability Requires the notified schemes to be interoperable and describes the framework to be created for that purpose: technology-neutral, based on European and international standards and – new since eIDAS 2.0 – promoting privacy and security by design. The framework covers the reference to the assurance levels, the mapping of the national levels, minimum technical requirements, the minimum data set of person identification data, procedural rules, dispute resolution and common security standards. In addition, the Article governs peer review.

Article 12a eIDAS Certification of electronic identification schemes

Allows the cybersecurity compliance of electronic identification schemes to be notified to be certified by designated conformity assessment bodies under a scheme adopted pursuant to the Cybersecurity Act. The certification is valid for a maximum of five years, subject to a vulnerability assessment every two years, and is withdrawn where a vulnerability is not remedied within three months. The practical incentive is in paragraph 5: certified schemes are exempt from peer review.

Article 11 eIDAS

Liability in the field of electronic identification Allocates liability over three roles and three points of Article 7: the notifying Member State is liable for point (d) (unambiguous attribution of the person identification data) and point (f) (availability of authentication), the issuer for point (e) (correct attribution of the means), and the operator of the authentication procedure for its incorrect operation. All three cases concern cross-border transactions only. By virtue of Article 5a(19) it applies mutatis mutandis to Wallets as well. Significance here: the Wallet follows the electronic identification liability of Chapter II, not the trust service liability of Article 13.

KEY POINT

Not applicable: 7, 9, 10, 12, 12a. Applicable: 11 (via paragraph 19).

SHALL		L1	Art. 5b(1)
TOPIC	Registration obligation of relying parties		
ADDRESSEE	<i>Relying party (RP)</i>		
CONTENT	Whoever intends to rely upon European Digital Identity Wallets for the provision of public OR private services SHALL REGISTER in the Member State where it is established.		
PURPOSE	<i>Only registered relying parties can be authenticated by the Wallet – registration is the filter against anonymous data harvesting.</i>		
REFERENCES	Article 5a(5) Mandatory technical characteristics The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice this is the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons. Article 5a(8) Free-of-charge validation mechanisms Requires the Member State to provide two free-of-charge verification routes running in opposite directions: point (a) allows verification of whether a Wallet presented is authentic and valid; point (b) allows the user to verify whether the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1). Relevance: the registration becomes effective only because the Wallet can verify the registered relying party free of charge. Article 5b(5) Publication of the registration Obliges the Member State to make the registration information publicly available online in electronically signed or sealed form suitable for automated processing. Only this enables the Wallet to verify by automated means whether a requesting entity is registered. Article 5b(7) Common identification mechanism Obliges the Member State to provide a common mechanism for allowing the identification and authentication of relying parties, as referred to in Article 5a(5), point (c). Twenty-seven different procedures would be unmanageable across borders.		
KEY POINT	No access without registration. That is the entry ticket.		

SHALL		L1	Art. 5b(2)(a)–(c)
TOPIC	Minimum content of the registration		
ADDRESSEE	<i>Relying party (RP)</i>		
CONTENT	The registration process shall be cost-effective and proportionate to risk. The relying party shall provide AT LEAST: (a) the information necessary for authentication (i the Member State (MS) in which it is established, ii the name and, where applicable, the registration number as stated in an official record, together with the identification data of that official record), (b) contact details, (c) the INTENDED USE , including an indication of the data to be requested.		
PURPOSE	<i>Point (c) is the anchor of purpose limitation: what is not indicated here may not be requested later.</i>		
REFERENCES	Article 5b(3) Prohibition of over-asking Makes the registration information under paragraph 2, point (c) legally binding: the registered scope of data is at the same time the maximum permissible scope. This makes purpose limitation under data protection law enforceable in technical and supervisory terms for the first time, instead of merely being asserted. “shall not request users to provide any data other than that indicated pursuant to paragraph 2, point (c)” ✓ Article 5b(3) Article 5b(6) eIDAS Duty to update Obliges registered entities to inform the Member State without delay of any change to the registration information – including a change of the intended use and thus of the permissible scope of requests. Article 5b(11) Implementing act Empowers the Commission to establish technical and operational specifications and procedures for paragraphs 2, 5 and 6 to 9, by means of the implementing acts on the implementation of the Wallet referred to in Article 5a(23). Without a uniform format, the registration could not be evaluated across borders.		
KEY POINT	What is not in point (c) may not be requested under paragraph 3.		

SHALL NOT		L1	Art. 5b(3)
TOPIC	Prohibition of over-asking		
ADDRESSEE	<i>Relying party (RP)</i>		

CONTENT	Relying parties SHALL NOT request users to provide ANY DATA OTHER THAN that indicated pursuant to paragraph 2, point (c).
PURPOSE	<i>Makes purpose limitation enforceable in technical and supervisory terms instead of merely asserted.</i>
REFERENCES	Article 5 GDPR Principles relating to the processing of personal data Paragraph 1 sets out six principles: lawfulness, fairness and transparency; purpose limitation; data minimisation; accuracy; storage limitation; integrity and confidentiality. Paragraph 2 establishes accountability – the controller must be able to DEMONSTRATE compliance with those principles. Link to eIDAS: Article 5b(2), point (c) and Article 5b(3) eIDAS make the purpose limitation of paragraph 1, point (b) technically enforceable: what is not indicated as an intended use at registration may not be requested. The accountability of paragraph 2 recurs in Article 5a(17) eIDAS as a separate obligation to demonstrate compliance. Summary of content, not verified against the original text ● summary, not verified Article 5b(2) Minimum content of the relying party registration The relying party must provide authentication information, contact details and – point (c) – the intended use, including an indication of the data to be requested. Point (c) is the anchor of purpose limitation: it defines the permissible scope of requests to which paragraph 3 binds the relying party. Article 5b(6) Duty to update Obliges registered entities to inform the Member State without delay of any change to the registration information – including a change of the intended use and thus of the permissible scope of requests.
KEY POINT	Registered scope = maximum scope. No adding data later.

	DEFINITION	☐ L3	Art. 5b(4)
TOPIC	Other legal provisions left unaffected		
ADDRESSEE	–		
CONTENT	Paragraphs 1 and 2 shall be without prejudice to Union or national law that is applicable to the provision of specific services.		
PURPOSE	<i>Sectoral law (for example anti-money-laundering law, health law) continues to apply with priority.</i>		
REFERENCES	GDPR Regulation (EU) 2016/679 – General Data Protection Regulation Continues to apply in full alongside eIDAS; Article 2(3) eIDAS states this expressly. For the Wallet and for trust services, the decisive provisions are above all the principles relating to processing (Article 5), accountability (Article 5(2), Article 24), data protection by design (Article 25), security of processing (Article 32), notification obligations (Article 33), the impact assessment (Article 35) and liability and penalties (Articles 82 and 83). Link to eIDAS: Article 5a(17) eIDAS expressly requires compliance with the GDPR to be DEMONSTRATED for processing in the Wallet; Article 20(3b) eIDAS makes a notified infringement of the GDPR a ground for withdrawing qualified status. Summary of content, not verified against the original text ● summary, not verified Article 2(3) eIDAS Relationship with data protection law Clarifies that this Regulation is without prejudice to the General Data Protection Regulation. Where eIDAS regulates processing operations, its requirements are added to the GDPR and do not replace it.		
KEY POINT	eIDAS does not displace sectoral law.		

	SHALL	☒ L1	Art. 5b(5)
TOPIC	Publication of the relying party registration		
ADDRESSEE	Member State		
CONTENT	The Member State (MS) shall make the information referred to in paragraph 2 PUBLICLY available online in electronically signed or sealed form suitable for automated processing.		
PURPOSE	<i>The Wallet must be able to verify by automated means whether the requesting relying party is registered – this requires a signed, retrievable list.</i>		
REFERENCES	Article 5a(8) Free-of-charge validation mechanisms Requires the Member State to provide two free-of-charge verification routes running in opposite directions: point (a) allows verification of whether a Wallet presented is authentic and valid; point (b) allows the user to verify whether the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1). Relevance: the registration becomes effective only because the Wallet can verify the registered relying party free of charge. Article 5a(18) Notification obligations towards the Commission Names five subjects of notification: the body responsible for the list of relying parties together with the location of that list, the bodies responsible for the provision, the bodies responsible for associating the person identification data, the mechanism for validating that data and the identity of the relying parties, and the mechanisms for validating the authenticity and validity of the Wallet. The Commission makes this information public through a secure channel, in signed form suitable for automated processing.		

REFERENCES Article 5b(7) Common identification mechanism

Obliges the Member State to provide a common mechanism for allowing the identification and authentication of relying parties, as referred to in Article 5a(5), point (c). Twenty-seven different procedures would be unmanageable across borders.

KEY POINT

Public, signed, machine-readable – otherwise the EUDI Wallet can verify nothing.

SHALL

■ L2

Art. 5b(6)**TOPIC Duty to update****ADDRESSEE** *Relying party (RP)*

CONTENT Registered relying parties shall inform the Member State (MS) **WITHOUT DELAY** of any change to the information provided pursuant to paragraph 2.

PURPOSE *An out-of-date registration either permits impermissible requests or blocks permissible ones.*

DEADLINE **without delay****REFERENCES Article 5b(2) Minimum content of the relying party registration**

The relying party must provide authentication information, contact details and – point (c) – the intended use, including an indication of the data to be requested. Point (c) is the anchor of purpose limitation: it defines the permissible scope of requests to which paragraph 3 binds the relying party.

Article 5b(3) Prohibition of over-asking

Makes the registration information under paragraph 2, point (c) legally binding: the registered scope of data is at the same time the maximum permissible scope. This makes purpose limitation under data protection law enforceable in technical and supervisory terms for the first time, instead of merely being asserted.

“shall not request users to provide any data other than that indicated pursuant to paragraph 2, point (c)”

✓ Article 5b(3) eIDAS

KEY POINT

If the purpose changes, the registration changes.

SHALL

■ L2

Art. 5b(7)**TOPIC Common identification mechanism****ADDRESSEE** *Member State*

CONTENT The Member State (MS) shall provide a **COMMON** mechanism for allowing the identification and authentication of relying parties, as referred to in Article 5a(5), point (c).

PURPOSE *27 different relying party authentication procedures would be unmanageable for a cross-border Wallet.*

REFERENCES Article 5a(5) Mandatory technical characteristics

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice this is the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 5a(8) Free-of-charge validation mechanisms

Requires the Member State to provide two free-of-charge verification routes running in opposite directions: point (a) allows verification of whether a Wallet presented is authentic and valid; point (b) allows the user to verify whether the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1).

Relevance: the registration becomes effective only because the Wallet can verify the registered relying party free of charge.

Article 5b(5) Publication of the registration

Obliges the Member State to make the registration information publicly available online in electronically signed or sealed form suitable for automated processing. Only this enables the Wallet to verify by automated means whether a requesting entity is registered.

KEY POINT

One mechanism for all relying parties, interoperable EU-wide.

SHALL

■ L1

Art. 5b(8)**TOPIC Self-identification towards the user****ADDRESSEE** *Relying party (RP)*

CONTENT Relying parties intending to rely upon European Digital Identity Wallets **SHALL** identify themselves to the **USER**.

PURPOSE *Before releasing data the user should know to whom the data is given – protection against phishing and impersonation.*

REFERENCES **Article 5a(5) Mandatory technical characteristics**

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice this is the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 5a(8) Free-of-charge validation mechanisms

Requires the Member State to provide two free-of-charge verification routes running in opposite directions: point (a) allows verification of whether a Wallet presented is authentic and valid; point (b) allows the user to verify whether the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1).

Relevance: the registration becomes effective only because the Wallet can verify the registered relying party free of charge.

KEY POINT

First the service identifies itself, then the user.

SHALL

■ L1

Art. 5b(9)

TOPIC **Responsibility for validation + acceptance of pseudonyms**

ADDRESSEE *Relying party (RP)*

CONTENT Relying parties shall be **RESPONSIBLE** for carrying out the authentication and validation of the person identification data (**PID**) and electronic attestations of attributes (EAA) requested from the European Digital Identity Wallet. Relying parties **SHALL NOT** refuse the use of **PSEUDONYMS** where the identification of the user is not required by Union or national law.

PURPOSE *Places the verification duty squarely on the relying party and at the same time protects the right to use pseudonyms under Article 5 against being undermined in practice.*

REFERENCES **Article 5a(4)**

The seven user functionalities Describes, from the user's perspective, what the Wallet must be able to do: (a) securely request, store, delete and selectively present attributes, (b) generate pseudonyms and store them encrypted and locally, (c) interact with another person's Wallet, (d) a dashboard with a complete transaction history, including erasure requests and a button for reporting to the data protection authority, (e) sign by means of qualified electronic signatures and seal by means of qualified electronic seals, (f) download data, (g) exercise data portability. Together with paragraphs 5, 8 and 14, this paragraph forms the subject matter of certification under Article 5c(1).

Article 5 eIDAS Use of pseudonyms

A single, unnumbered sentence: without prejudice to specific identification obligations and to the legal effect given to pseudonyms under national law, the use of pseudonyms chosen by the user shall not be prohibited in electronic transactions. The Article has NO paragraphs. It is given concrete form in Article 5a(4), point (b), Article 5b(9) and Article 32(1), point (e).

Relevance: the second sentence of paragraph 9 makes the general right to use pseudonyms enforceable against the relying party.

Article 32 eIDAS Requirements for the validation of qualified electronic signatures

Sets out in eight points when a validation may confirm validity: a qualified certificate complying with Annex I at the time of signing, issuance by a qualified trust service provider and validity at that time, correspondence of the validation data, correct provision of the data representing the signatory, clear indication where a pseudonym is used, creation by a qualified electronic signature creation device, integrity of the data, and compliance with Article 26. Paragraph 2 additionally requires that the result be displayed in an understandable way.

KEY POINT

Only a party that can name a legal basis for doing so may refuse a pseudonym.

SHALL NOT

■ L1

Art. 5b(10)

TOPIC **Intermediaries**

ADDRESSEE *Intermediaries acting on behalf of relying parties*

CONTENT Intermediaries acting on behalf of relying parties **SHALL BE DEEMED TO BE** relying parties and shall store **No** data about the **CONTENT** of the transaction.

PURPOSE *Prevents an unregulated intermediate data layer from forming between the Wallet and the service.*

REFERENCES **Article 5b(1) Obligation to register**

Requires anyone intending to rely upon Wallets for the provision of public or private services to register in the Member State in which it is established. Only registered entities can be authenticated by the Wallet.

REFERENCES **Article 5a(16)**

Unlinkability in the technical framework Point (a) prohibits providers of electronic attestations of attributes or any other party from obtaining, after issuance of the attestation, data that would allow transactions or user behaviour to be tracked, linked or correlated. Point (b) requires techniques which ensure unlinkability where the attestation of attributes does not require the identification of the user. Whereas paragraph 5, point (b) prohibits the issuer from being informed of use, paragraph 16 prohibits the bringing together of data – technically this leads to techniques such as selective disclosure and zero-knowledge proofs.

KEY POINT

Deemed a relying party – and yet may store no transaction content.

SHALL

■ L1

Art. 5c(1)

TOPIC **Subject matter of certification**ADDRESSEE *Conformity assessment body / Member State*

CONTENT The conformity of the European Digital Identity Wallet **AND** of the electronic identification scheme under which it is provided with Article 5a **PARAGRAPHS** 4, 5 and 8, with the requirement of **LOGICAL SEPARATION** laid down in Article 5a(14) and, where applicable, with the standards referred to in Article 5a(24) shall be certified by conformity assessment bodies **DESIGNATED** by the Member States (MS).

PURPOSE *Defines exactly and exhaustively what is certified – everything else in Article 5a is a matter for supervision, not for certification.*

REFERENCES **Article 5a(4)**

The seven user functionalities Describes, from the user's perspective, what the Wallet must be able to do: (a) securely request, store, delete and selectively present attributes, (b) generate pseudonyms and store them encrypted and locally, (c) interact with another person's Wallet, (d) a dashboard with a complete transaction history, including erasure requests and a button for reporting to the data protection authority, (e) sign by means of qualified electronic signatures and seal by means of qualified electronic seals, (f) download data, (g) exercise data portability. Together with paragraphs 5, 8 and 14, this paragraph forms the subject matter of certification under Article 5c(1).

Article 5a(5) Mandatory technical characteristics

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure requests, reporting to the authority, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 5a(8) Free-of-charge validation mechanisms

Requires the Member State to provide two free-of-charge verification paths running in opposite directions: point (a) allows verification of whether a Wallet presented is authentic and valid; point (b) allows the user to verify whether the requesting relying party is registered and genuine. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1).

Article 5a(14)

User control and logical separation Prohibits the provider of the Wallet from collecting information about use that is not necessary, and from combining Wallet data with data from other services of its own or of third parties. It must also keep the data logically separate from all other holdings. Where the Wallet is provided by private parties under paragraph 2, point (b) or (c), Article 45h(3) (functional separation) applies mutatis mutandis in addition. This is the only paragraph outside 4, 5 and 8 that is expressly certified.

“Personal data relating to the provision of the European Digital Identity Wallet shall be kept logically separate from any other data held by the provider of the European Digital Identity Wallet”

✓ Article 5a(14) eIDAS

Relevance: the only paragraph outside 4, 5 and 8 that is expressly included in the scope of certification.

Article 5a(24)

Implementing act on user onboarding Empowers the Commission to establish reference standards and procedures for the onboarding of users – either by electronic identification means conforming to assurance level high, or by means conforming to assurance level substantial in conjunction with additional remote onboarding procedures that together meet the requirements of assurance level high. Without this route, citizens without an assurance-level-high identity document could not get into the Wallet.

Article 5d Publication of the list of certified Wallets

Requires the Member States to notify the Commission and the Cooperation Group without delay of both certified and withdrawn wallets, and states the minimum content of that notification. The Commission maintains a machine-readable list published in the Official Journal and incorporates changes within one month. The list of wallets is to be distinguished from the trusted list of trust service providers under Article 22.

KEY POINT

Scope of certification: 4 – 5 – 8 – 14 (+24). Learn this sequence of numbers by heart.

SHALL		L1	Art. 5c(2)
TOPIC	Cybersecurity element via CSA schemes		
ADDRESSEE	Conformity assessment body		
CONTENT	In so far as requirements are relevant for CYBERSECURITY , certification shall be carried out in accordance with the European cybersecurity certification schemes adopted pursuant to Regulation (EU) 2019/881 (Cybersecurity Act) and referred to in the implementing act under paragraph 6.		
PURPOSE	<i>Avoids parallel certification and connects to the existing ENISA framework.</i>		
REFERENCES	EUCC European cybersecurity certification scheme based on the Common Criteria The first scheme adopted under the Cybersecurity Act. It builds on the Common Criteria and the associated evaluation methodology and covers assurance levels substantial and high. ICT products are certified against protection profiles. Relationship to eIDAS: in practice the likely frame of reference for the cybersecurity elements of Wallet certification under Article 5c(2) eIDAS and of electronic identification scheme certification under Article 12a(2) eIDAS. Summary, not verified against the original text ● summary, not verified		
	Article 12a(2) eIDAS Link to the Cybersecurity Act Requires that certification be carried out under a relevant cybersecurity certification scheme adopted pursuant to Regulation (EU) 2019/881, or parts thereof, in so far as that scheme covers the requirements.		
KEY POINT	Cyber -> CSA scheme. Non-cyber -> national scheme (paragraph 3).		

SHALL		L1	Art. 5c(3)
TOPIC	National certification schemes for the remainder		
ADDRESSEE	Member State		
CONTENT	For requirements that are not relevant for cybersecurity, and for cybersecurity-relevant requirements that are not covered, or only partially covered, by CSA schemes, the Member States (MS) SHALL ESTABLISH national certification schemes following the requirements set out in the implementing act under paragraph 6. Draft schemes are to be transmitted to the Cooperation Group, which MAY issue opinions and recommendations.		
PURPOSE	<i>Closes the gap between cybersecurity and the remaining requirements (e.g. usability, data protection architecture).</i>		
REFERENCES	Article 5c(6) Implementing act on Wallet certification Establishes reference standards, specifications and procedures for certification under paragraphs 1, 2 and 3. Together with Article 5a(23), the second trigger of the 24-month deadline. Without a uniform certification scheme, a Wallet certificate from one Member State would not be dependable in another – and the list under Article 5d would have no common yardstick.		
	Article 46e eIDAS European Digital Identity Cooperation Group Establishes the Cooperation Group, in which the Member States coordinate practical application. It facilitates peer review and the exchange of experience and issues opinions and recommendations – inter alia on the draft national Wallet certification schemes under Article 5c(3) and on the notifications under Article 5d.		
KEY POINT	Two worlds of certification, one certificate.		

SHALL		L1	Art. 5c(4)
TOPIC	Period of validity and vulnerability assessment		
ADDRESSEE	Conformity assessment body / provider of the Wallet		
CONTENT	Certification shall be valid for UP TO FIVE YEARS, PROVIDED THAT a vulnerability assessment is carried out EVERY TWO YEARS . Where a vulnerability is identified and NOT remedied IN A TIMELY MANNER , the certification SHALL BE CANCELLED .		
PURPOSE	<i>Prevents the 'certificate as a snapshot' – without recurring assessment, any security statement becomes outdated.</i>		
DEADLINE	5 years max. / vulnerability assessment every 2 years		
REFERENCES			

REFERENCES **Article 12a(3) eIDAS** **Five years, two years, three months**
 A more precise variant of the 5/2 rule: certification of an electronic identification scheme is valid for up to five years where a vulnerability assessment is carried out every two years; where a vulnerability is not remedied within three months of being identified, the certification shall be cancelled. At the same point Article 5c(4) says only 'in a timely manner', and Article 30(3a) gives no time limit at all – a popular examination topic.
Relevance: the same 5/2 system, but there with an express three-month time limit instead of the indeterminate 'in a timely manner'.

Article 30(3a) eIDAS

Five-year limit for QSCD certifications New in eIDAS 2.0: certification of a qualified electronic signature creation device shall not exceed five years, provided that vulnerability assessments are carried out every two years; where vulnerabilities are not remedied, the certification shall be cancelled. Previously QSCD certificates were in effect open-ended, which was untenable in the face of ageing cryptography.

KEY POINT **5 years – 2 years – cancel. The same 5/2 rule applies in 12a(3) and 30(3a).**

	MAY	L3	Art. 5c(5)
TOPIC	Optional GDPR certification		
ADDRESSEE	<i>Provider of the Wallet</i>		
CONTENT	Compliance with the requirements of Article 5a relating to the processing of personal data MAY be certified pursuant to the GDPR.		
PURPOSE	<i>A bridge to Article 42 GDPR – voluntary, but strong evidence in supervisory proceedings.</i>		
REFERENCES	Article 42 GDPR Certification Provides for the establishment of data protection certification mechanisms and of data protection seals and marks, for the purpose of demonstrating compliance with that Regulation. Certification is voluntary, limited to a maximum of three years and does not reduce the responsibility of the controller. Relationship to eIDAS: Article 5c(5) eIDAS expressly allows the data protection related requirements of Article 5a to be certified under the GDPR – a may-provision that facilitates the demonstration required by Article 5a(17). Summary, not verified against the original text ● summary, not verified Article 5a(17) Demonstration of GDPR compliance Requires appropriate and effective data protection measures and expressly requires that compliance of the processing operations with the GDPR BE DEMONSTRATED. This restates, specifically for the Wallet, the accountability obligation of Article 5(2) GDPR. National provisions further specifying its application remain permissible.		
KEY POINT	A may-provision: helpful, not mandatory.		

	SHALL	L2	Art. 5c(7)
TOPIC	Communication of the conformity assessment bodies		
ADDRESSEE	<i>Member State / Commission</i>		
CONTENT	Member States shall communicate to the Commission the names and addresses of the designated conformity assessment bodies (CABs); the Commission shall make that information available to all Member States.		
PURPOSE	<i>Only bodies that are known can be recognised across borders.</i>		
REFERENCES	Article 12a(6) eIDAS Communication of the assessment bodies Requires the Member States to communicate to the Commission the names and addresses of the conformity assessment bodies they have designated. The parallel provisions are found in Article 5c(7), Article 20(1b) and Article 30(2). Article 20(1b) eIDAS Notification of the conformity assessment bodies Requires the Member States to notify the Commission without undue delay of the names, addresses AND ACCREDITATION details of the conformity assessment bodies, as well as of any changes thereto; the Commission makes that information available to all Member States. The fact that accreditation details are also subject to notification was added by eIDAS 2.0. Article 30(2) eIDAS Notification of the designated bodies Requires the Member States to communicate to the Commission the names and addresses of the public or private bodies designated for the certification of qualified electronic signature creation devices; the Commission makes that information available to all Member States.		
KEY POINT	The same notification mechanism appears in 12a(6), 20(1b) and 30(2).		

	SHALL	L2	Art. 5d(1)
TOPIC	Notification of certified and withdrawn European Digital Identity Wallets		
ADDRESSEE	<i>Member State</i>		

CONTENT	Member States shall inform the Commission AND the Cooperation Group WITHOUT UNDUE DELAY of certified European Digital Identity Wallets and of any CANCELLATION of a certification, stating the reasons.
PURPOSE	<i>The revocation must become public just as quickly as the authorisation – otherwise relying parties will continue to rely on a withdrawn Wallet.</i>
DEADLINE	without undue delay
REFERENCES	Article 5c(1) Subject matter of certification Defines exhaustively what is certified: the conformity of the Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), with the requirement for logical separation under paragraph 14 and, where applicable, with the standards under paragraph 24. Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The number sequence 4-5-8-14 is the practical mnemonic anchor. Article 5e(4) Publication of the amendment to the list Requires the Commission to publish the corresponding amendments to the list referred to in Article 5d in the Official Journal of the European Union without undue delay. Delayed publication would itself be a security problem, because relying parties would continue to rely on a suspended Wallet. Article 46e eIDAS European Digital Identity Cooperation Group Establishes the Cooperation Group in which the Member States coordinate practical application. It facilitates peer review and the exchange of experience and issues opinions and recommendations – inter alia on the draft national Wallet certification schemes under Article 5c(3) and on the notifications under Article 5d.
KEY POINT	Notification means: in AND out.

	SHALL	L2	Art. 5d(2)(a)–(e)
TOPIC	Minimum content of the notification		
ADDRESSEE	<i>Member State</i>		
CONTENT	The notification shall include at least (a) the certificate and certification assessment report, (b) a description of the electronic identification scheme, (c) the applicable supervisory regime and the LIABILITY REGIME , (d) the responsible authority or authorities, (e) arrangements for suspension or revocation.		
PURPOSE	<i>Almost identical in wording to Article 9(1) (notification of electronic identification schemes) – the Wallet follows the same transparency logic.</i>		
REFERENCES	Article 9(1) eIDAS Content of the notification Seven items, points (a) to (g), including the description of the scheme with its assurance levels, the supervisory regime together with the liability regime, set out separately for the issuer and the operator of the authentication procedure, the responsible authorities, the entity managing the registration of the person identification data (PID) and the arrangements for suspension and revocation. Almost congruent with Article 5d(2) for Wallets – the same notification logic in two regimes. Article 5a(19) Liability reference Provides that Article 11 shall apply mutatis mutandis – without prejudice to paragraph 22. The Wallet therefore follows the liability regime of electronic identification and not that of trust services under Article 13.		
KEY POINT	5d(2) is the twin of 9(1). Learn it once, know it twice.		

	SHALL	L1	Art. 5d(3)
TOPIC	List of certified European Digital Identity Wallets		
ADDRESSEE	<i>Commission</i>		
CONTENT	The Commission shall establish, publish in the OFFICIAL JOURNAL and maintain in a MACHINE-READABLE form a list of the certified European Digital Identity Wallets.		
PURPOSE	<i>A central, official reference – the counterpart to the trusted list under Article 22.</i>		
REFERENCES	Article 9(2) eIDAS Publication of the list of schemes Requires the Commission to publish the list of notified electronic identification schemes in the Official Journal of the European Union without undue delay. Only that publication triggers the obligation of recognition under Article 6. Article 22 eIDAS Trusted lists Requires each Member State to establish, maintain and publish lists of the qualified trust service providers and of the qualified trust services provided by them – in a secured manner, electronically signed or sealed and in a form suitable for automated processing. The information on the body responsible for the list, the place of publication and the signature certificates is to be notified to the Commission without undue delay, and the Commission in turn makes it available in a secured manner and in a form suitable for automated processing.		
KEY POINT	EUDI Wallets -> list under 5d. Qualified trust services -> Article 22. Two lists.		

SHALL		L2	Art. 5d(4)–(6)
TOPIC	Removal, updating, deadlines		
ADDRESSEE	Member State / Commission		
CONTENT	Paragraph 4: a Member State MAY submit a request for removal. Paragraph 5: where there are changes, the Member State shall provide updated information. Paragraph 6: the Commission shall publish the amendments WITHIN ONE MONTH of receipt of the request or of the updated information.		
PURPOSE	<i>Sets a hard processing deadline to prevent the list from becoming outdated.</i>		
DEADLINE	1 month (Commission)		
REFERENCES	Article 9(3) eIDAS One-month deadline for amendments Requires the Commission to publish amendments to the notified information in the Official Journal of the European Union within one month of receipt of the notification. The same one-month deadline applies under Article 5d(6) to Wallets and under Article 31(1) to electronic signature creation devices.		
KEY POINT	One month – the same deadline as for electronic identification schemes under Article 9.		

SHALL		L1	Art. 5e(1)
TOPIC	Immediate suspension in the event of compromise		
ADDRESSEE	Member State		
CONTENT	Where the European Digital Identity Wallet, the validation mechanisms referred to in Article 5a(8) or the underlying electronic identification scheme are breached or partly compromised in a manner that affects reliability, the Member State SHALL SUSPEND the provision AND the use WITHOUT UNDUE DELAY . Where justified by the severity, it SHALL WITHDRAW the Wallets without undue delay. The following are to be informed: the users affected, the single points of contact under Article 46c, the relying parties and the Commission.		
PURPOSE	<i>A compromised Wallet immediately endangers the entire EU-wide network of trust – a standstill is the lesser evil here.</i>		
DEADLINE	without undue delay		
REFERENCES	Article 5a(6) Informing users of security breaches Requires the Member State to inform users without delay of any security breach that could have entirely or partially compromised their Wallet or its contents – in particular where it has been suspended or revoked pursuant to Article 5e. The obligation is owed to the user and must be distinguished from notification to the authorities. Article 5a(8) Free-of-charge validation mechanisms Requires the Member State to provide two free-of-charge verification paths running in opposite directions: point (a) allows verification that a presented Wallet is authentic and valid; point (b) allows the user to verify that the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. It forms part of the subject matter of certification under Article 5c(1). Article 46c eIDAS Single points of contact Requires each Member State to designate, publish and notify to the Commission a single point of contact for trust services, Wallets and notified electronic identification schemes. Cross-border supervision needs a defined contact point; the single point of contact is, inter alia, an addressee of the notifications under Article 5e. Relevance: the single point of contact is one of the four mandatory addressees of the notification.		
KEY POINT	Four addressees: user, single point of contact, relying party, Commission.		

SHALL		L1	Art. 5e(2)
TOPIC	Withdrawal after THREE months		
ADDRESSEE	Member State		
CONTENT	If the security breach is not remedied within THREE MONTHS of the suspension, the Member State SHALL WITHDRAW the European Digital Identity Wallets and SHALL REVOKE their validity; the same four groups of addressees are to be informed again.		
PURPOSE	<i>Sets a hard upper limit on states of limbo.</i>		

DEADLINE 3 months

REFERENCES Article 10(3) eIDAS Withdrawal of the electronic identification scheme after three months
 The mirror image of Article 5e(2). If, after suspension or revocation, the breach is not remedied within three months, the notifying Member State notifies the withdrawal of the scheme; the Commission publishes the amendment in the Official Journal of the European Union without undue delay.

“three months of the suspension or revocation, the notifying Member State shall notify other Member States and the Commission of the withdrawal of the electronic identification scheme”

✓ Article 10(3) eIDAS

Relevance: an identical three-month deadline – the Wallet and a notified electronic identification scheme are treated with equal strictness.

Article 12a(3) eIDAS Five years, two years, three months
 A more precise variant of the 5/2 rule: the certification of an electronic identification scheme is valid for up to five years provided that a vulnerability assessment is carried out every two years; where a vulnerability is not remedied within three months of its identification, the certification is to be cancelled. At the same point Article 5c(4) says only ‘in a timely manner’, and Article 30(3a) gives no deadline at all – a popular exam topic.

Article 5a(9)

Grounds for revocation Names three circumstances in which it must be possible to revoke the validity of the Wallet: the explicit request of the user, the compromise of its security, and the death of the user or the cease of activity of the legal person.

Article 3 eIDAS

Definitions Contains the legal definitions in points (1) to (57), supplemented by the letter-suffixed points inserted by eIDAS 2.0, such as (5a), (16a) and (21a). Particularly important in practice: point (3) person identification data, point (5a) user, point (6) relying party, point (16) trust service, point (20) qualified trust service provider, point (44) electronic attestation of attributes, point (46) electronic attestation of attributes issued by or on behalf of a public sector body responsible for an authentic source and point (47) authentic source.

KEY POINT

THREE months, not six – the same limit as Article 10(3).

SHALL

■ L2

Art. 5e(3)TOPIC **Re-establishment**ADDRESSEE *Member State*

CONTENT Once the breach has been remedied, the providing Member State (MS) shall **RE-ESTABLISH** the provision and the use and shall inform the users, the relying parties (RPs), the single point of contact and the Commission without undue delay.

PURPOSE *The state of emergency must also be capable of coming to an end – with the same transparency.*

DEADLINE **without undue delay**

REFERENCES **Article 10(2) eIDAS**
 Re-establishment Requires the notifying Member State to re-establish cross-border authentication once the breach has been remedied and to inform the other Member States and the Commission without undue delay. The state of emergency must also be capable of coming to an end – with the same transparency as its imposition.

KEY POINT

Switching off and switching back on – both routes are subject to notification.

SHALL

■ L1

Art. 5f(1)TOPIC **Public sector obligation to accept**ADDRESSEE *Member States / public sector bodies*

CONTENT Where Member States (MS) require electronic identification and authentication for access to an online service provided by a public sector body, they shall **ALSO ACCEPT** European Digital Identity Wallets.

PURPOSE *Without an obligation to accept there would be no pressure to use it – the Wallet needs use cases in order to achieve uptake.*

DEADLINE **no separate deadline – follows Article 5a(1)**

REFERENCES **Article 6 eIDAS Mutual recognition**
 Establishes the obligation to recognise notified electronic identification means from other Member States where the scheme is included in the list published by the Commission, where its assurance level is at least substantial and corresponds to the level required, and where the public sector body itself uses assurance level substantial or high. Recognition must take place no later than twelve months after publication of the list. For assurance level low, recognition is merely optional (a ‘may’ recognition).

Article 45c eIDAS

An electronic attestation of attributes does not replace electronic identification Primarily a prohibition subject to authorisation: person identification data from an electronic attestation of attributes (EAA) may not replace the electronic identification, together with authentication, required under national law – unless the Member State expressly permits this. Only then does the legal consequence follow that qualified electronic attestations of attributes from other Member States must also be accepted. The widespread reading of the provision as a mere obligation to accept is incorrect.

KEY POINT

Paragraph 1 the State, 2 private parties except micro/small, 3 very large platforms.

SHALL		L1	Art. 5f(2)
TOPIC	Obligation of certain private relying parties to accept		
ADDRESSEE	<i>Private relying parties (except microenterprises and small enterprises)</i>		
CONTENT	Private relying parties (RPs) – WITH THE EXCEPTION OF microenterprises and small enterprises as defined in Recommendation 2003/361/Ec – which are required by Union law, national law OR BY CONTRACTUAL OBLIGATION to use STRONG user authentication for online identification shall accept the European Digital Identity Wallet. Sectors named: transport, energy, banking, financial services, social security, health, drinking water, postal services, digital infrastructure, education, telecommunications. Only upon the VOLUNTARY REQUEST OF THE USER .		
PURPOSE	<i>Creates the market: only once banks, insurers and telecommunications operators are required to take the Wallet does it become worthwhile for the citizen.</i>		
DEADLINE	36 months after the entry into force of the implementing acts referred to in Article 5a(23) and Article 5c(6)		
REFERENCES	Article 5a(15) Voluntary use and prohibition of discrimination The core political condition of the Wallet: nobody is obliged to use it, and those who do not use it may not be placed at a disadvantage in their access to services, in the labour market or in their freedom to conduct business. It forms the necessary counterweight to the obligations to accept under Article 5f – the service SHALL accept, the user NEED NOT use. “The use of European Digital Identity Wallets shall be voluntary” ✓ Article 5a(15) eIDAS Relevance: Necessary counterweight: the service must accept, the user need not use. Article 5a(1) Obligation to provide and deadline anchor Establishes the central implementation obligation of Chapter II: every Member State must provide at least one Wallet. The decisive element is the deadline mechanism – the 24 months do not run from the date of the Regulation, but from the entry into force of TWO implementing acts: Article 5a(23) (core functionalities) and Article 5c(6) (certification). As long as either of the two is missing, the period does not begin to run. The same anchor also governs Article 5f(2) (36 months) and Article 45e(1). “each Member State shall provide at least one European Digital Identity Wallet within 24 months of the date of entry into force of the implementing acts referred to in paragraph 23 of this Article and in Article 5c(6)” ✓ Article 5a(1) eIDAS		
KEY POINT	24 months to provide (5a(1)) – 36 months for private acceptance (5f(2)).		

SHALL		L2	Art. 5f(3)
TOPIC	Very large online platforms (VLOPs)		
ADDRESSEE	<i>Providers of very large online platforms as referred to in Article 33 DSA</i>		
CONTENT	Where VLOP providers as referred to in Article 33 of Regulation (EU) 2022/2065 (DSA) require user authentication for access, they shall also ACCEPT and FACILITATE the use of the European Digital Identity Wallet – only upon the voluntary request of the user and only in respect of the MINIMUM DATA necessary for the specific service.		
PURPOSE	<i>Brings the large platforms on board without opening up additional flows of data to them.</i>		
REFERENCES	Article 33 DSA Very large online platforms and very large online search engines Covers services with an average of at least 45 million monthly active recipients in the Union – which corresponds to around 10 percent of the Union population. The Commission designates the providers concerned by decision and publishes the list in the Official Journal; the enhanced obligations apply four months after notification. Relation to eIDAS: the obligation to accept under Article 5f(3) eIDAS attaches exclusively to that formal designation. A platform which reaches the threshold but has not been designated does not fall within it. Summary of content, not verified against the original text ● summary, not verified DMA Regulation (EU) 2022/1925 – Digital Markets Act Governs the obligations of so-called gatekeepers, that is to say large platform operators which have been formally designated by the Commission. Central to it are the definitions in Article 2 and the conduct obligations in Articles 5 to 7. Enforcement lies with the Commission, not with national supervisory bodies. Relation to eIDAS: Article 12b eIDAS connects directly to it: gatekeepers must grant providers of Wallets and issuers of electronic identification means access to the same operating system, hardware and software features. Enforcement of that eIDAS obligation therefore runs through the DMA and not through eIDAS supervision. Summary of content, not verified against the original text ● summary, not verified Article 5b(3) Prohibition of over-asking Makes the registration information under paragraph 2, point (c) legally binding: the scope of data registered is at the same time the maximum permissible scope. Purpose limitation under data protection law thereby becomes technically and supervisorily enforceable for the first time, instead of merely being asserted. “shall not request users to provide any data other than that indicated pursuant to paragraph 2, point (c)” ✓ Article 5b(3)		

REFERENCES	Article 12b eIDAS Access to hardware and software features Requires gatekeepers within the meaning of the Digital Markets Act to enable providers of Wallets and issuers of notified electronic identification means to have effective interoperability with, and access to, the same operating system, hardware and software features – such as the secure element and the NFC interface. Under Article 6(7) DMA this is free of charge and irrespective of whether the feature forms part of the operating system. Without this provision, two platform operators could technically prevent compliance with the State's obligation to provide. It is enforced through the DMA, not through eIDAS supervision. “gatekeepers shall in particular allow them effective interoperability with, and, for the purposes of interoperability, access to, the same operating system, hardware or software features” ✓ Article 12b eIDAS
KEY POINT	Three EU legal acts interlock: eIDAS, the DSA (paragraph 3), the DMA (Article 12b).

	SHALL	L1	Art. 6(1)(a)–(c)
TOPIC	Mutual recognition of notified electronic identification means		
ADDRESSEE	<i>Member States / public sector bodies</i>		
CONTENT	An electronic identification means issued in another Member State SHALL BE RECOGNISED where, cumulatively: (a) it comes from a scheme included in the Commission list under Article 9, (b) its assurance level is equal to or higher than the level required AND corresponds at least to SUBSTANTIAL, (c) the public sector body itself uses substantial or high for that service. Recognition shall take place N O LATER THAN 12 MONTHS after publication of the list.		
PURPOSE	<i>Core promise of eIDAS 2014: using the national identity document across borders to access public sector services.</i>		
DEADLINE	12 months after publication of the list; date of application under Article 52(2) (c)		
REFERENCES	Article 5f(1) eIDAS Public sector obligation to accept Where a Member State requires electronic identification and authentication to access an online service provided by a public sector body, it shall also accept the Wallet. Without this obligation there would be no use cases and therefore no incentive to use it. Article 52(3) eIDAS Transition for schemes already listed Governs the treatment of electronic identification schemes that were already included in the Commission list before the relevant date, and thereby secures the continuity of earlier notifications. Article 8 eIDAS Assurance levels of electronic identification schemes Requires in paragraph 1 that the assurance level attributed be specified, defines in paragraph 2 the scale low, substantial and high by reference to its effect against misuse of identity, and empowers the Commission in paragraph 3 to lay down minimum requirements for six fields: identity proofing and verification, issuance of the means, authentication mechanism, issuing entity, other bodies involved and the technical specifications of the means. Article 9 eIDAS Notification Governs the content and the procedure of the notification of an electronic identification scheme. The Member State transmits the description of the scheme, the assurance levels, the supervisory and liability regime separately for the issuing party and the party operating the authentication, the competent authorities, the entity managing the registration of the person identification data, the evidence of interoperability, the description of the authentication and the arrangements for suspension and revocation. The Commission publishes the list in the Official Journal and incorporates amendments within one month. Article 12 eIDAS Interoperability Requires the notified schemes to be interoperable and describes the framework to be established for that purpose: technology neutral, following European and international standards and – new since eIDAS 2.0 – facilitating privacy and security by design. The framework comprises a reference to the assurance levels (LoA), the mapping of the national levels, minimum technical requirements, the minimum set of person identification data, rules of procedure, dispute resolution and common operational security standards. In addition, the Article governs peer review.		
KEY POINT	'Low' NEVER triggers an obligation – it becomes binding only from substantial upwards.		

	MAY	L2	Art. 6(2)
TOPIC	'May' recognition at the assurance level 'low'		
ADDRESSEE	<i>Public sector bodies</i>		
CONTENT	An electronic identification means with the assurance level Low from a listed scheme MAY be recognised by public sector bodies.		
PURPOSE	<i>Leaves room for low-risk services without establishing an obligation.</i>		
REFERENCES			

REFERENCES Article 8(2) eIDAS

The three assurance levels Contains exclusively definitions, no obligations to act – a frequent source of error. The scale is aligned with the effect against misuse of identity: 'low' decreases the risk, 'substantial' decreases it substantially, 'high' prevents it. The substantive requirements follow only from the implementing act under paragraph 3, implemented by Implementing Regulation (EU) 2015/1502.

“The assurance levels low, substantial and high shall meet respectively the following criteria”

✓ Article 8(2) eIDAS

Relevance: the recognition obligation attaches directly to the scale of levels defined there – below 'substantial' no obligation arises.

KEY POINT

Low = may. Substantial/high = shall.

SHALL

■ L1

Art. 7Points (a)–(h)

TOPIC Eligibility for notification

ADDRESSEE *Notifying Member State*

CONTENT Notification only where **ALL** conditions are met: (a) issuance by the Member State, under its mandate or independently of it but recognised by it; (b) use for at least **ONE** service provided by a public sector body which requires electronic identification; (c) compliance with at least **ONE** assurance level under the implementing act referred to in Article 8(3); (d) unique attribution of the person identification data (**PID**) to the person; (e) attribution of the means to precisely that person by the issuing party; (f) **A AVAILABLE** online authentication for relying parties from other Member States – **FREE OF CHARGE** where a service provided online by a public sector body is concerned, and without disproportionate technical requirements; (g) provision of a description of the scheme to the other Member States **AT LEAST SIX MONTHS BEFORE** the notification (for the peer review under Article 12(5)); (h) compliance with the interoperability implementing act under Article 12(8).

PURPOSE *Without minimum conditions a Member State could notify a weak scheme which all the others would have to trust.*

DEADLINE **Point (g): 6 months before notification**

REFERENCES Article 8(3) eIDAS Empowerment for the LoA minimum requirements

The actual obligation of the Article, addressed to the Commission. It sets out technical specifications, standards and procedures with minimum requirements, relating to six fields: identity proofing and verification, issuance of the means, authentication mechanism, issuing entity, any other body involved as well as technical and security specifications of the means. Without that act, 'high' would mean something different in every Member State.

Article 11(1) eIDAS Liability of the Member State

Establishes the liability of the notifying Member State for damage caused intentionally or negligently which is due to a failure to comply with the obligations under Article 7, point (d) – unique attribution of the person identification data – and point (f) – availability of the authentication – in a cross-border transaction.

Article 12(5) eIDAS Peer review

Requires the Member States to carry out peer reviews of the electronic identification schemes that are to be notified. This collegial control replaces central Union supervision; under Article 12a(5) it does not apply to certified schemes.

Article 5a(22) eIDAS

Exemptions from the electronic identification Articles Switches off Articles 7, 9, 10, 12 and 12a for the Wallet and the underlying scheme. The Wallet instead follows its own, stricter regime under Articles 5a to 5f. Important for the demarcation: Article 11 (liability) does apply, via Article 5a(19), and Article 12b (platform access) is precisely NOT excluded here.

“shall not be subject to the requirements laid down in Articles 7, 9, 10, 12 and 12a”

✓ Article 5a(22)

Article 9 eIDAS

Notification Governs the content and the procedure of the notification of an electronic identification scheme. The Member State transmits the description of the scheme, the assurance levels, the supervisory and liability regime separately for the issuing party and the party operating the authentication, the competent authorities, the entity managing the registration of the person identification data, the evidence of interoperability, the description of the authentication and the arrangements for suspension and revocation. The Commission publishes the list in the Official Journal and incorporates amendments within one month.

KEY POINT

Points (d), (e) and (f) are at the same time the liability anchor in Article 11 – learn (a)–(h) once, use them twice.

SHALL

■ L1

Art. 8(1)

TOPIC Specification of the assurance level

ADDRESSEE *Notifying electronic identification scheme / Member State*

CONTENT	A notified scheme SHALL SPECIFY the assurance levels low, substantial AND/OR high which have been attributed to the electronic identification means issued under it. 'And/or': a scheme may contain means of differing strength.
PURPOSE	<i>An assurance level that is not specified cannot be evaluated by other Member States – Article 6(1)(b) would be inapplicable.</i>
DEADLINE	Applies from the date of application of the implementing act under Article 8(3), see Article 52(2) (b)
REFERENCES	Article 6(1) eIDAS Mutual recognition of notified electronic identification means The core promise of eIDAS 2014. The recognition obligation applies cumulatively: the scheme shall be included in the Commission list under Article 9, its assurance level shall be at least 'substantial' and shall correspond to the level required, and the public sector body shall itself use substantial or high for that service. Recognition no later than twelve months after publication of the list. The level 'low' never triggers an obligation (paragraph 2). Article 9(1) eIDAS Content of the notification Seven items, (a) to (g), including the description of the scheme with its assurance levels, the supervisory regime together with the liability regime separately for the issuing party and the party operating the authentication, the competent authorities, the entity managing the registration of the person identification data (PID) as well as the arrangements for suspension and revocation. Almost identical to Article 5d(2) for Wallets – the same reporting logic in two regimes. Article 7 eIDAS Eligibility for notification Eight cumulative conditions (a) to (h). Of particular practical relevance: point (f) requires online authentication available across borders, which shall be free of charge for services provided by a public sector body; point (g) requires the description of the scheme to be provided to the other Member States at least six months before notification. Points (d), (e) and (f) are at the same time the liability anchor of Article 11. Not applicable to Wallets (Article 5a(22)).
KEY POINT	One scheme, several assurance levels – that is permitted.

	DEFINITION	L1	Art. 8(2)(a)–(c)
TOPIC	The scale of the three assurance levels		
ADDRESSEE	<i>no one – pure definition</i>		
CONTENT	(a) Low: a limited degree of confidence, technical controls to DECREASE the risk of misuse or alteration of the identity. (b) SUBSTANTIAL: a substantial degree of confidence, SUBSTANTIAL DECREASE of the risk. (c) HIGH: a higher degree than substantial, PREVENTION of the risk. Three definitions on an ascending scale – NOT three obligations.		
PURPOSE	<i>Without a uniform definition, 'high' would mean something different in every Member State and recognition would be blind.</i>		
REFERENCES	Article 6(1) eIDAS Mutual recognition of notified electronic identification means The core promise of eIDAS 2014. The recognition obligation applies cumulatively: the scheme shall be included in the Commission list under Article 9, its assurance level shall be at least 'substantial' and shall correspond to the level required, and the public sector body shall itself use substantial or high for that service. Recognition no later than twelve months after publication of the list. The level 'low' never triggers an obligation (paragraph 2). Article 5a(5) eIDAS Mandatory technical properties The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, wallet-to-wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice this is the table of contents of the ARF. Point (b) prohibits any information being provided to the issuer of the electronic attestation of attributes (EAA), point (d) prescribes assurance level high, point (g) the free-of-charge qualified electronic signature for natural persons. Relevance: point (d) of that paragraph expressly requires for the Wallet the level 'high' defined here. Article 24(1a) eIDAS Four methods of identity verification Exhaustive list: (a) the Wallet or a notified electronic identification means with assurance level high, (b) a certificate of a qualified electronic signature or of a qualified electronic seal issued in compliance with (a), (c) or (d), (c) other identification methods which ensure identification with a high level of confidence, the conformity of which is confirmed by a conformity assessment body, (d) physical presence. Point (c) is the gateway for video identification and comparable remote procedures – but only with confirmation by a conformity assessment body (CAB). Article 12a(1) eIDAS Subject matter of certification for electronic identification schemes Provides that the conformity of the schemes to be notified with the cybersecurity requirements of the Regulation – including the cybersecurity relevant requirements set out in Article 8(2) – shall be certified by the conformity assessment bodies designated by the Member States.		
KEY POINT	Decrease – decrease substantially – prevent. Three verbs, three levels.		

	COMMISSION MANDATE	L1	Art. 8(3)(main clause)
TOPIC	Mandate to the Commission (LoA specifications)		
ADDRESSEE	<i>European Commission</i>		

CONTENT	The Commission SHALL SET OUT , by means of implementing acts, technical specifications, standards and procedures WITH MINIMUM REQUIREMENTS with reference to which the three assurance levels are specified – taking into account relevant international standards, subject to paragraph 2, adopted in accordance with the examination procedure referred to in Article 48(2).
PURPOSE	<i>The scale alone cannot be audited. Without minimum technical requirements, every Member State could claim that its scheme is 'high'.</i>
DEADLINE	by 18 September 2015 (deadline expired; implemented by Implementing Regulation (EU) 2015/1502)
REFERENCES	Article 12(8) eIDAS Implementing act on the interoperability framework Implements the framework which, under paragraph 4, comprises among other things the mapping of national assurance levels to the Article 8 levels, the minimum set of person identification data, rules of procedure, dispute resolution and common operational security standards. Together with the act under Article 8(3) it triggers, under Article 52(2)(b), the date of application of the electronic identification Articles. Deadline of the recast: 18 September 2025. Relevance: only both acts taken together trigger, under Article 52(2)(b), the date of application of the electronic identification Articles. Article 52(2) eIDAS Staggered dates of application Determines which provisions apply earlier or later by way of derogation from the general rule: the empowering provisions already from 17 September 2014, the electronic identification Articles from the date of application of the implementing acts under Article 8(3) and Article 12(8), and the recognition obligation of Article 6 only three years after that date.

Article 7 eIDAS

Eligibility for notification Eight cumulative conditions (a) to (h). Of particular practical relevance: point (f) requires online authentication available across borders, which shall be free of charge for services provided by a public sector body; point (g) requires the description of the scheme to be provided to the other Member States at least six months before notification. Points (d), (e) and (f) are at the same time the liability anchor of Article 11. Not applicable to Wallets (Article 5a(22)).

KEY POINT

THIS is the actual core of the Article – not paragraph 2.

	DEFINITION	■ L1	Art. 8(3)(a)–(f)
TOPIC	The six fields of the minimum requirements		
ADDRESSEE	<i>no one directly – catalogue of subject matter</i>		
CONTENT	(a) the procedure to prove and verify the identity of the applicants; (b) the procedure for the issuance of the means; (c) the authentication mechanism; (d) the entity issuing the means; (e) any other body involved in the application; (f) technical and security specifications of the issued means. (a)–(f) are NOT six obligations, but the elements to the reliability and quality of which the ONE obligation of the main clause refers.		
PURPOSE	<i>Limits the Commission's regulatory mandate in substance – it may regulate only in respect of these six fields.</i>		
REFERENCES	— ETSI EN 319 401 · General requirements for trust service providers The basic standard of every trust service audit. It covers, among other things, risk assessment, the practice statement and terms and conditions, organisation and reliability of personnel, physical and access security, operational and network security, incident management, records, business continuity and termination of the service. Relation to eIDAS: gives concrete form to Article 24(2), points (b), (e), (fa), (g), (h) and (i) eIDAS as well as Article 19a(1), point (a) eIDAS. Through the formula 'recognised European or international standards' in point (b) it is at the same time the bridge to ISO/IEC 27001. ● Summary of content, not verified against the original text Article 5a(5) eIDAS Mandatory technical properties The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, wallet-to-wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice this is the table of contents of the ARF. Point (b) prohibits any information being provided to the issuer of the electronic attestation of attributes (EAA), point (d) prescribes assurance level high, point (g) the free-of-charge qualified electronic signature for natural persons. Relevance: point (d) of that paragraph expressly requires for the Wallet the level 'high' defined here. Article 12a(1) eIDAS Subject matter of certification for electronic identification schemes Provides that the conformity of the schemes to be notified with the cybersecurity requirements of the Regulation – including the cybersecurity relevant requirements set out in Article 8(2) – shall be certified by the conformity assessment bodies designated by the Member States.		
KEY POINT	Application – issuance – use – issuer – third parties – product. Six fields, one obligation.		

SHALL		L1	Art. 9(1)(a)–(g)
TOPIC	Content of the notification		
ADDRESSEE	Notifying Member State		
CONTENT	The Member State shall notify the Commission and shall report WITHOUT UNDUE DELAY any subsequent changes: (a) a description of the scheme including its assurance levels and the issuers; (b) the supervisory regime and the LIABILITY REGIME with respect to (i) the party issuing the electronic identification means and (ii) the party operating the authentication procedure; (c) the competent authority or authorities; (d) the entity or entities which manage the registration of the unique person identification data (PID); (e) a description of how the interoperability implementing act under Article 12(8) is complied with; (f) a description of the authentication referred to in Article 7, point (f); (g) arrangements for suspension or revocation.		
PURPOSE	<i>Legal certainty: only the official publication triggers the recognition obligation under Article 6.</i>		
DEADLINE	without undue delay in the event of changes		
REFERENCES	Article 6(1) eIDAS Mutual recognition of notified electronic identification means The core promise of eIDAS 2014. The recognition obligation applies cumulatively: the scheme shall be included in the Commission list under Article 9, its assurance level shall be at least 'substantial' and shall correspond to the level required, and the public sector body shall itself use substantial or high for that service. Recognition no later than twelve months after publication of the list. The level 'low' never triggers an obligation (paragraph 2). Article 12(8) eIDAS Implementing act on the interoperability framework Implements the framework which, under paragraph 4, comprises among other things the mapping of national assurance levels to the Article 8 levels, the minimum set of person identification data, rules of procedure, dispute resolution and common operational security standards. Together with the act under Article 8(3) it triggers, under Article 52(2)(b), the date of application of the electronic identification Articles. Deadline of the recast: 18 September 2025. Article 5d(2) eIDAS Minimum content of the Wallet notification Names five items: the certificate and certification assessment report, a description of the underlying electronic identification scheme, the applicable supervisory regime and the liability regime, the competent authorities as well as the arrangements for suspension and revocation. The structure largely corresponds to Article 9(1) for notified electronic identification schemes. Relevance: an almost verbatim parallel provision – whoever knows one of the two reporting lists knows both. Article 7 eIDAS Eligibility for notification Eight cumulative conditions (a) to (h). Of particular practical relevance: point (f) requires online authentication available across borders, which shall be free of charge for services provided by a public sector body; point (g) requires the description of the scheme to be provided to the other Member States at least six months before notification. Points (d), (e) and (f) are at the same time the liability anchor of Article 11. Not applicable to Wallets (Article 5a(22)). Article 10 eIDAS Security breach of electronic identification schemes Requires the notifying Member State, where a compromise affects reliability, to suspend or revoke the cross-border authentication without delay and to inform the other Member States and the Commission. Once the breach is remedied, authentication shall be re-established; if it is not remedied within three months, the withdrawal of the scheme shall be notified. The parallel provision for Wallets is Article 5e. Article 11 eIDAS Liability in the field of electronic identification Distributes liability across three roles and three points of Article 7: the notifying Member State is liable for point (d) (unique attribution of the person identification data) and point (f) (availability of the authentication), the issuing party for point (e) (correct attribution of the means), the party operating the authentication procedure for its incorrect operation. All three cases concern cross-border transactions only. Applies mutatis mutandis to Wallets via Article 5a(19).		
KEY POINT	Article 9(1)(a)–(g) and Article 5d(2)(a)–(e) are almost identical – the Wallet and electronic identification follow the same reporting logic.		

SHALL		L2	Art. 9(2)–(4)
TOPIC	Publication and removal		
ADDRESSEE	Commission / Member State		
CONTENT	Paragraph 2: the Commission shall publish WITHOUT UNDUE DELAY a list of the notified schemes in the Official Journal. Paragraph 3: amendments shall be published WITHIN ONE MONTH of the date of receipt of the notification. Paragraph 4: a Member State MAY request removal; publication likewise within ONE MONTH.		
PURPOSE	<i>The list is the act that triggers the recognition obligation – keeping it up to date is therefore subject to deadlines.</i>		
DEADLINE	1 month		
REFERENCES			

REFERENCES	Article 6(1) eIDAS Mutual recognition of notified electronic identification means The core promise of eIDAS 2014. The recognition obligation applies cumulatively: the scheme shall be included in the Commission list under Article 9, its assurance level shall be at least 'substantial' and shall correspond to the level required, and the public sector body shall itself use substantial or high for that service. Recognition no later than twelve months after publication of the list. The level 'low' never triggers an obligation (paragraph 2). Article 10(3) eIDAS Withdrawal of the electronic identification scheme after three months The mirror image of Article 5e(2). If the breach is not remedied within three months of the suspension or revocation, the notifying Member State notifies the withdrawal of the scheme; the Commission publishes the amendment in the Official Journal without undue delay. “three months of the suspension or revocation, the notifying Member State shall notify other Member States and the Commission of the withdrawal of the electronic identification scheme” ✓ Article 10(3)
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Article 5d(3) eIDAS Official Journal list of certified Wallets

Requires the Commission to establish, publish in the Official Journal and maintain, in machine-readable form, a list of certified Wallets. That list is the central official reference and is not to be confused with the trusted list under Article 22.

KEY POINT

One month – the same deadline as for Wallets under Article 5d(6).

	COMMISSION MANDATE	☐ L3	Art. 9(5)
TOPIC	Implementing act on the circumstances of notification		
ADDRESSEE	Commission		
CONTENT	The Commission MAY , by means of implementing acts, define the circumstances, formats and procedures of notifications.		
PURPOSE	<i>A discretionary empowerment ('may'), not an obligation - hence no deadline.</i>		
DEADLINE	no deadline ('may')		
REFERENCES	Article 48(2) Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure. Article 52(2) Staggered start of application Determines which provisions apply earlier or later by way of derogation from the general principle: the empowering provisions already from 17 September 2014, the electronic identification articles from the date of application of the implementing acts referred to in Article 8(3) and Article 12(8), and the recognition obligation of Article 6 only three years after that date.		
KEY POINT	'May define' without a date vs. 'shall, by ..., establish' - always look at the verb.		

	SHALL	☐ L2	Art. 10(1)
TOPIC	Suspension in the event of a security breach		
ADDRESSEE	Notifying Member State		
CONTENT	Where the notified scheme OR the authentication referred to in Article 7, point (f), is breached or partly compromised in a manner that affects the reliability of the cross-border authentication, the Member State SHALL WITHOUT DELAY SUSPEND or REVOKE it and shall inform the other Member States and the Commission.		
PURPOSE	<i>It must be possible to take a compromised scheme out of the trust network immediately.</i>		
DEADLINE	without delay		
REFERENCES			

REFERENCES Article 5e(1) Immediate suspension in the event of compromise

Requires the Member State to suspend provision and use without undue delay where the Wallet, the validation mechanisms or the underlying electronic identification scheme are compromised in a manner affecting reliability - where the severity so justifies, immediate withdrawal. Four groups of addressees are to be informed: the users affected, the single points of contact under Article 46c, the relying parties and the Commission.

Article 9(2) Publication of the list of schemes

Requires the Commission to publish the list of notified electronic identification schemes in the Official Journal without undue delay. Only that publication triggers the recognition obligation of Article 6.

Article 7

Eligibility for notification Eight cumulative conditions (a) to (h). Of particular practical relevance: point (f) requires authentication available online across borders, which must be free of charge for services provided by public sector bodies; point (g) requires the description of the scheme to be provided to the other Member States at least six months prior to notification. Points (d), (e) and (f) are at the same time the liability trigger of Article 11. Not applicable to Wallets (Article 5a(22)).

KEY POINT

Article 10 = electronic identification scheme. Article 5e = Wallet. Same logic, different addressees.

SHALL

■ L1

Art. 10(2)-(3)**TOPIC Re-establishment and withdrawal after three months****ADDRESSEE** *Notifying Member State / Commission*

CONTENT Paragraph 2: Once the breach is remedied, the Member State **SHALL RE-ESTABLISH** the cross-border authentication and shall inform the others without undue delay. Paragraph 3: If the breach is not remedied **WITHIN THREE MONTHS** of the suspension or revocation, the Member State **SHALL NOTIFY** the **WITHDRAWAL** of the scheme; the Commission shall publish the amendment in the Official Journal without undue delay.

PURPOSE *Limits how long a state of suspense in the trust network may last.*

DEADLINE **three months**

REFERENCES Article 5e(2) Withdrawal after three months

Sets the upper limit for the state of suspense: if the security breach is not remedied within three months of the suspension, the Wallets are to be withdrawn and their validity revoked. The deadline is identical to that in Article 10(3) for notified electronic identification schemes - neither regime tolerates anything longer.

“is not remedied within three months of the suspension, the Member State that provided the European Digital Identity Wallets shall withdraw European Digital Identity Wallets and revoke their validity”

✓ Article 5e(2)

Article 9(2) eIDAS Publication of the list of schemes

Requires the Commission to publish the list of notified electronic identification schemes in the Official Journal without undue delay. Only that publication triggers the recognition obligation of Article 6.

KEY POINT

Three months - the same deadline as for the Wallet (Article 5e(2)).

SHALL

■ L2

Art. 11(1)**TOPIC Liability of the notifying Member State****ADDRESSEE** *Notifying Member State*

CONTENT The Member State **SHALL BE LIABLE** for damage caused intentionally or negligently due to a failure to comply with the obligations under Article 7, points (d) **AND** (f), in a **CROSS-BORDER** transaction.

PURPOSE *Without liability the loss always falls on the service that relied - and then nobody would rely.*

REFERENCES Article 5a(19) Liability cross-reference

Provides that Article 11 shall apply mutatis mutandis - without prejudice to paragraph 22. The Wallet thus follows the liability regime of electronic identification and not that of trust services under Article 13.

Article 7

Eligibility for notification Eight cumulative conditions (a) to (h). Of particular practical relevance: point (f) requires authentication available online across borders, which must be free of charge for services provided by public sector bodies; point (g) requires the description of the scheme to be provided to the other Member States at least six months prior to notification. Points (d), (e) and (f) are at the same time the liability trigger of Article 11. Not applicable to Wallets (Article 5a(22)).

KEY POINT

The Member State is liable for (d) + (f). The issuer for (e). The party operating the authentication for the operation of (f).

SHALL

L2

Art. 11(2)–(3)

TOPIC **Liability of the issuing party and of the party operating the authentication**

ADDRESSEE *Party issuing the electronic identification means / party operating the authentication procedure*

CONTENT Paragraph 2: The **ISSUING PARTY** shall be liable for damage due to a failure to comply with the obligation under Article 7, point (e) (correct attribution of the means). Paragraph 3: The **PARTY OPERATING** the authentication procedure shall be liable for the **INCORRECT OPERATION** of the authentication referred to in Article 7, point (f).

PURPOSE *Allocates liability to the body that is actually able to cause the error.*

REFERENCES **Article 9(1)**

Content of the notification Seven items (a) to (g), among them the description of the scheme with its assurance levels, the supervisory regime together with the liability regime stated separately for the issuing party and the party operating the authentication, the competent authorities, the PID registration body, and the arrangements for suspension and revocation. Almost identical to Article 5d(2) for Wallets - the same notification logic in two regimes.

Article 7

Eligibility for notification Eight cumulative conditions (a) to (h). Of particular practical relevance: point (f) requires authentication available online across borders, which must be free of charge for services provided by public sector bodies; point (g) requires the description of the scheme to be provided to the other Member States at least six months prior to notification. Points (d), (e) and (f) are at the same time the liability trigger of Article 11. Not applicable to Wallets (Article 5a(22)).

KEY POINT **Three paragraphs, three addressees, three points from Article 7: (d)/(f) - (e) - (f).**

DEFINITION

L3

Art. 11(4)–(5)

TOPIC **Relationship to national liability law**

ADDRESSEE -

CONTENT Paragraph 4: Paragraphs 1 to 3 shall be applied in accordance with national rules on liability. Paragraph 5: They are without prejudice to the liability under national law of the other parties to the transaction.

PURPOSE *eIDAS governs the ground of liability, not the whole of liability law - the assessment of damages and limitation periods remain national.*

REFERENCES **Article 13(3) Relationship to national liability law**

Provides that the liability rules of paragraphs 1 and 2 shall be applied in accordance with national rules on liability - the Regulation governs the ground of liability, national law the legal consequences in detail.

KEY POINT **eIDAS says WHO is liable, national law says HOW MUCH.**

SHALL

L2

Art. 11a(1)

TOPIC **Obligation to ensure identity matching**

ADDRESSEE *Member States acting as relying parties*

CONTENT Where Member States are themselves relying parties for cross-border services, they **SHALL ENSURE U NEQUIVOCAL IDENTITY MATCHING** for natural persons using notified electronic identification means or European Digital Identity Wallets.

PURPOSE *Without matching the person ends up in the foreign system as a 'new person' - duplicate files, misattributions, incorrect decisions.*

REFERENCES **Article 5a(5) Mandatory technical properties**

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, wallet-to-wallet, relying party authentication, verification of authenticity, erasure requests, reporting to the authority, creation of qualified electronic signatures) - in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) requires assurance level high, point (g) the qualified electronic signature free of charge for natural persons.

Relevance: point (f) requires the unique representation of the person - the technical precondition for any identity matching.

Article 12

Interoperability Requires the notified schemes to be interoperable and describes the framework to be established for that purpose: technology neutral, following European and international standards and - new since eIDAS 2.0 - facilitating privacy and security by design. The framework covers the reference to assurance levels, the mapping of the national levels, minimum technical requirements, the minimum set of person identification data, rules of procedure, dispute resolution and common operational security standards. In addition, the Article governs peer review.

Article 3

Definitions Contains the legal definitions of points 1 to 57, supplemented by the letter-numbered points inserted by eIDAS 2.0 such as 5a, 16a and 21a. Of particular practical importance: point 3 person identification data, point 5a user, point 6 relying party, point 16 trust service, point 20 qualified trust service provider, point 44 electronic attestation of attributes, point 46 the electronic attestation of attributes issued by or on behalf of a public sector body responsible for an authentic source and point 47 authentic source.

KEY POINT

New in eIDAS 2.0 – in 2014 this obligation did not yet exist.

SHALL

■ L1

Art. 11a(2)

TOPIC **Data protection in identity matching**ADDRESSEE *Member States*

CONTENT Member States **SHALL PROVIDE FOR** technical **AND** organisational measures to ensure a **HIGH** level of protection of the personal data used for identity matching and to **PREVENT THE PROFILING OF USERS**.

PURPOSE *By its very design a matching service sees every cross-border contact a person has with public authorities - and that is precisely what shall not be evaluated.*

REFERENCES **Article 25 GDPR**

Data protection by design and by default Paragraph 1 requires appropriate measures such as pseudonymisation to be taken already at the time of determining the means of processing, in order to implement the principles of Article 5 GDPR effectively. Paragraph 2 requires default settings ensuring that, in principle, only the data necessary for each specific purpose are processed - in terms of the amount, the extent of processing, the storage period and accessibility. Link to eIDAS: Article 12(3)(c) eIDAS expressly raises privacy and security by design into the interoperability framework; Article 5a(12) eIDAS requires security-by-design for the Wallet. Summary, not verified against the original text

● summary, not verified

Article 5a(16)

Unlinkability in the technical framework Point (a) prohibits providers of electronic attestations of attributes or any other party from obtaining, after issuance, data that would allow transactions or user behaviour to be tracked, linked or correlated. Point (b) requires techniques which ensure unlinkability where identification is not necessary. Whereas paragraph 5, point (b) prohibits reading along, paragraph 16 prohibits bringing data together - technically this leads to techniques such as selective disclosure and zero-knowledge proofs.

Article 32 Requirements for the validation of qualified electronic signatures

Sets out in eight points when a validation may confirm validity: a qualified certificate complying with Annex I at the time of signing, issuance by a qualified trust service provider and validity, correspondence of the validation data, correct provision of the unique set of data representing the signatory, clear indication of any pseudonym, creation by a qualified electronic signature creation device, integrity of the data and compliance with Article 26. Paragraph 2 additionally requires the result to be displayed in an understandable manner.

KEY POINT

Matching is necessary - and at the same time the greatest risk of profiling in the Regulation.

COMMISSION MANDATE

□ L3

Art. 11a(3)

TOPIC **Empowerment for implementing acts**ADDRESSEE *Commission*

CONTENT A list of reference standards and, where necessary, specifications and procedures for the requirements referred to in paragraph 1.

PURPOSE *Matching across 27 registers needs a common procedure.*

DEADLINE **by 21 November 2024**

REFERENCES **Article 48(2)**

Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.

SHALL

■ L1

Art. 12(1)– 2

TOPIC **Interoperability obligation**ADDRESSEE *Member States*

CONTENT Paragraph 1: The national electronic identification schemes (eID schemes) notified pursuant to Article 9(1) **SHALL BE INTEROPERABLE**. Paragraph 2: For that purpose, an **INTEROPERABILITY FRAMEWORK** shall be established.

PURPOSE *An obligation of recognition without technical connectivity would be worthless – a common protocol is needed (eIDAS node).*

DEADLINE **Applies from the date of application of the implementing acts under Article 8(3)/Article 12(8), cf. Article 52(2)(b)**

REFERENCES

REFERENCES Article 12(8) eIDAS

Implementing act on the interoperability framework
Implements the framework which, under paragraph 4, covers among other things the mapping of national assurance levels onto the Article 8 levels, the minimum set of person identification data, rules of procedure, dispute resolution and common operational security standards. Together with the act under Article 8(3) it triggers, under Article 52(2)(b), the start of application of the eID Articles. Deadline in the recast: 18 September 2025.

Article 6 eIDAS Mutual recognition

Establishes the obligation to recognise notified electronic identification means from other Member States where the scheme is included in the Commission's list, its assurance level is at least substantial and corresponds to the level required, and the public sector body itself uses substantial or high. Such recognition shall take place no later than twelve months after publication of the list. For assurance level low there is only an optional recognition.

Article 7 eIDAS

Eligibility for notification Eight cumulative conditions, points (a) to (h). Of particular practical relevance: point (f) requires authentication online available across borders, which shall be provided free of charge for services provided by public sector bodies; point (g) requires the description of the scheme to be provided to the other Member States at least six months prior to notification. Points (d), (e) and (f) are at the same time the basis of liability under Article 11. Not applicable to Wallets (Article 5a(22)).

KEY POINT

Recognition (Article 6) requires interoperability (Article 12) – otherwise it is only paper.

DEFINITION**Art. 12(3)(a) – (c)****TOPIC Criteria of the interoperability framework****ADDRESSEE** *Commission / Member States*

CONTENT The framework (a) aims at **TECHNOLOGY NEUTRALITY** and does not discriminate between national technical solutions, (b) follows European and international standards where possible, (c) **FACILITATES** the implementation of privacy and security by design. Point (c) was inserted by eIDAS 2.0.

PURPOSE *Technology neutrality protects national investments; point (c) raises data protection to the architectural level.*

REFERENCES Article 25 GDPR

Data protection by design and by default Paragraph 1 requires appropriate measures such as pseudonymisation to be taken already when determining the means of processing, in order to implement the principles of GDPR Article 5 effectively. Paragraph 2 requires default settings under which, as a rule, only the data necessary for each specific purpose are processed – with regard to amount, extent of processing, period of storage and accessibility. Link to eIDAS: Article 12(3)(c) eIDAS expressly writes privacy and security by design into the interoperability framework; Article 5a(12) eIDAS requires security-by-design for the Wallet. Summary, not verified against the original text

● summary, not verified

Article 5a(12) eIDAS

Security-by-design Requires Wallets to ensure security-by-design. Security is to be an architectural feature and not a protective layer added afterwards – the counterpart to GDPR Article 25 on the security side.

Article 12(8) eIDAS

Implementing act on the interoperability framework
Implements the framework which, under paragraph 4, covers among other things the mapping of national assurance levels onto the Article 8 levels, the minimum set of person identification data, rules of procedure, dispute resolution and common operational security standards. Together with the act under Article 8(3) it triggers, under Article 52(2)(b), the start of application of the eID Articles. Deadline in the recast: 18 September 2025.

KEY POINT

Point (c) is new in eIDAS 2.0 – a typical audit topic.

DEFINITION**Art. 12(4)(a) – (g)****TOPIC Components of the interoperability framework****ADDRESSEE** *Commission*

CONTENT The framework consists of (a) a reference to the minimum technical requirements related to the assurance levels under Article 8; (b) a mapping of national assurance levels onto the Article 8 assurance levels; (c) a reference to the minimum technical requirements for interoperability; (d) a reference to a **MINIMUM SET** of person identification data (**PID**) uniquely representing a person; (e) rules of procedure; (f) arrangements for dispute resolution; (g) common operational security standards.

PURPOSE *Describes precisely what the eIDAS node has to deliver – from the mapping to dispute resolution.*

REFERENCES

REFERENCES Article 5a(5) eIDAS Mandatory technical features

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, point (g) the free-of-charge qualified electronic signature for natural persons.

Article 8 eIDAS

Assurance levels of electronic identification schemes
Paragraph 1 requires the assurance level accorded to be specified, paragraph 2 defines the scale low, substantial and high by reference to their effect against misuse of identity, and paragraph 3 empowers the Commission to lay down minimum requirements in six fields: identity proofing and verification, issuance of the means, authentication mechanism, issuing entity, any other body involved, and the technical specifications of the means.

Article 11a eIDAS Cross-border identity matching New in eIDAS 2.0.

Requires Member States, where they themselves act as relying parties for cross-border services, to ensure identity matching for natural persons using a notified electronic identification means or a Wallet. Paragraph 2 requires technical and organisational measures to ensure a high level of protection of the data used for matching and expressly to prevent the profiling of users. Paragraph 3 contains the empowerment for the implementing act.

KEY POINT

Point (b) is the conversion table between the national and the EU assurance level.

SHALL**L2****Art. 12(5)– 6****TOPIC Peer review****ADDRESSEE** *Member States / Commission*

CONTENT Paragraph 5: Member States **SHALL CARRY OUT** peer reviews of the electronic identification schemes to be notified. Paragraph 6: The Commission shall establish the necessary procedural arrangements for the peer reviews with a view to fostering a high level of trust and security appropriate to the degree of risk.

PURPOSE *Collegial control replaces central EU supervision – the Member States review one another.*

DEADLINE **Paragraph 6: by 18 March 2025**

REFERENCES Article 12a(5) eIDAS Disapplication of the peer review

Provides that for certified schemes or parts thereof the peer review under Article 12(5) does not apply. For the non-cybersecurity-related requirements of Article 8(2) the Member States may use a certificate or a statement of conformity. This is where the practical incentive to certify lies.

Article 7 eIDAS

Eligibility for notification Eight cumulative conditions, points (a) to (h). Of particular practical relevance: point (f) requires authentication online available across borders, which shall be provided free of charge for services provided by public sector bodies; point (g) requires the description of the scheme to be provided to the other Member States at least six months prior to notification. Points (d), (e) and (f) are at the same time the basis of liability under Article 11. Not applicable to Wallets (Article 5a(22)).

Article 6 eIDAS Mutual recognition

Establishes the obligation to recognise notified electronic identification means from other Member States where the scheme is included in the Commission's list, its assurance level is at least substantial and corresponds to the level required, and the public sector body itself uses substantial or high. Such recognition shall take place no later than twelve months after publication of the list. For assurance level low there is only an optional recognition.

Article 46e eIDAS European Digital Identity Cooperation Group

Establishes the Cooperation Group in which the Member States coordinate practical application. It facilitates the peer review and the exchange of experience and issues opinions and recommendations – among other things on the draft national Wallet certification schemes under Article 5c(3) and on the notifications under Article 5d.

KEY POINT

Peer review OR certification under Article 12a – either one suffices.

COMMISSION MANDATE**L1****Art. 12(8)– 9****TOPIC Implementing act on the interoperability framework****ADDRESSEE** *Commission*

CONTENT Paragraph 8: The Commission **SHALL ADOPT**, subject to the criteria set out in paragraph 3 and taking into account the cooperation between the Member States, implementing acts on the interoperability framework as set out in paragraph 4. Paragraph 9: Adoption in accordance with the examination procedure under Article 48(2). (Paragraph 7 was deleted by eIDAS 2.0.)

PURPOSE *The implementing act under paragraph 8 is, together with the implementing act under Article 8(3), the trigger for the start of application of Articles 7 – 12 under Article 52(2)(b).*

DEADLINE **by 18 September 2025**

REFERENCES

REFERENCES Article 8(3) eIDAS Empowerment for the minimum requirements on assurance levels

The actual obligation of the Article, addressed to the Commission. It sets out minimum technical specifications, standards and procedures relating to six fields: identity proofing and verification, issuance of the means, authentication mechanism, issuing entity, any other body involved, and the technical and security specifications of the means. Without that act, 'high' would mean something different in every Member State.

Article 52(2) eIDAS

Staggered start of application Determines which provisions apply earlier or later than the general rule: the empowering provisions already from 17 September 2014, the eID Articles from the date of application of the implementing acts under Article 8(3) and Article 12(8), and the recognition obligation of Article 6 only three years from that date.

Article 7 eIDAS

Eligibility for notification Eight cumulative conditions, points (a) to (h). Of particular practical relevance: point (f) requires authentication online available across borders, which shall be provided free of charge for services provided by public sector bodies; point (g) requires the description of the scheme to be provided to the other Member States at least six months prior to notification. Points (d), (e) and (f) are at the same time the basis of liability under Article 11. Not applicable to Wallets (Article 5a(22)).

KEY POINT

Two implementing acts govern the entire eID part: Article 8(3) for the assurance levels and Article 12(8) for interoperability.

MAY

L2

Art. 12a(1)**TOPIC Certification of electronic identification schemes****ADDRESSEE** *Conformity assessment bodies / Member States*

CONTENT The conformity of the electronic identification schemes (eID schemes) **TO BE NOTIFIED** with the cybersecurity requirements of the Regulation – including the cybersecurity relevant requirements set out in Article 8(2) – **SHALL BE CERTIFIED** by the conformity assessment bodies designated by the Member State.

PURPOSE *Allows the evidence of the assurance level to rest on verifiable certificates instead of on self-declaration and peer review.*

REFERENCES Article 8(2) eIDAS

The three assurance levels Contains definitions only, no obligations to act – a frequent source of error. The scale is oriented to the effect against misuse of identity: 'low' decreases the risk, 'substantial' decreases it substantially, 'high' prevents it. The substantive requirements follow only from the implementing act under paragraph 3, implemented by Implementing Regulation (EU) 2015/1502.

“The assurance levels low, substantial and high shall meet respectively the following criteria”

✓ Article 8(2)

Article 5c eIDAS Certification of the Wallet

Provides that the Wallet and the electronic identification scheme under which it is provided shall be certified by designated conformity assessment bodies, and splits the assessment: cybersecurity requirements via the schemes of the Cybersecurity Act, everything else via national certification schemes whose drafts are to be transmitted to the Cooperation Group. In addition it governs the five-year limit with a vulnerability assessment every two years, the optional certification under the GDPR, the implementing act and a delegated act on the criteria for the assessment bodies.

Article 12(5) eIDAS Peer review

Requires Member States to carry out peer reviews of the electronic identification schemes to be notified. This collegial control replaces central Union supervision; under Article 12a(5) it does not apply to certified schemes.

Article 5a(22) eIDAS

Exceptions from the eID Articles Disapplies Articles 7, 9, 10, 12 and 12a for the Wallet and the electronic identification scheme under which it is provided. The Wallet instead follows its own, stricter regime of Articles 5a to 5f. Important for the delimitation: Article 11 (liability) does apply, via Article 5a(19), and Article 12b (platform access) is precisely NOT excepted here.

“shall not be subject to the requirements laid down in Articles 7, 9, 10, 12 and 12a”

✓ Article 5a(22)

KEY POINT

Article 12a for electronic identification schemes, Article 5c for Wallets – almost the same construction.

SHALL

L2

Art. 12a(2)**TOPIC Link to the Cybersecurity Act schemes****ADDRESSEE** *Conformity assessment bodies*

CONTENT Certification shall be carried out under a relevant cybersecurity certification scheme pursuant to Regulation (EU) 2019/881, or parts thereof, insofar as that scheme covers the cybersecurity requirements.

PURPOSE *No eIDAS scheme of its own, but use of the Cybersecurity Act.*

REFERENCES **Article 5c(2) eIDAS Cybersecurity certification**

Provides that certification shall, insofar as cybersecurity requirements are concerned, be carried out in accordance with the European cybersecurity certification schemes of Regulation (EU) 2019/881. No separate eIDAS certification world is thereby created; instead the Cybersecurity Act is relied upon.

SHALL

■ L1

Art. 12a(3)

TOPIC **Five-year validity and three-month remediation period**

ADDRESSEE *Conformity assessment bodies / Member States*

CONTENT Certification shall be valid for **UP TO FIVE YEARS**, provided that a vulnerability assessment is carried out **EVERY TWO YEARS**. Where a vulnerability is identified and **NOT REMEDIED WITHIN THREE MONTHS** of such identification, certification **SHALL BE CANCELLED**.

PURPOSE *A more precise wording than Article 5c(4): here the remediation period is quantified concretely as three months.*

DEADLINE **5 years / 2 years / 3 months for remediation**

REFERENCES **Article 5c(4) eIDAS**

Period of validity and vulnerability assessment Limits the Wallet certification to five years and ties it to a vulnerability assessment every two years. Where a vulnerability is not remedied in a timely manner, certification is to be cancelled. The same 5/2 pattern is found in Article 12a(3) (there with an express three-month period) and in Article 30(3a) for qualified electronic signature creation devices (QSCD).

“Certification pursuant to paragraph 1 shall be valid for up to five years, provided that a vulnerability assessment is carried out every two years”

✓ Article 5c(4)

Article 30(3a) eIDAS

Five-year limit for QSCD certifications New in eIDAS 2.0: the validity of a certification of a qualified electronic signature creation device shall not exceed five years, provided that vulnerabilities assessments are carried out every two years; where vulnerabilities are not remedied, the certification is to be cancelled. Previously QSCD certificates were in practice unlimited in time, which was untenable with ageing cryptography.

KEY POINT

The 5/2 rule appears three times – only the remediation period is worded differently.

SHALL

■ L2

Art. 12a(4) – 6

TOPIC **Additional information, peer review exception, communication**

ADDRESSEE *Member States / Commission*

CONTENT Paragraph 4: Member States **MAY** request additional information about certified schemes. Paragraph 5: For certified schemes or parts thereof the peer review under Article 12(5) **SHALL NOT APPLY**; Member States may use a certificate or a statement of conformity for the non-cybersecurity-related requirements of Article 8(2). Paragraph 6: Member States shall communicate to the Commission the names and addresses of the conformity assessment bodies (CAB).

PURPOSE *Paragraph 5 is the real incentive: certification spares the burdensome peer review.*

REFERENCES **Article 12(5) eIDAS Peer review**

Requires Member States to carry out peer reviews of the electronic identification schemes to be notified. This collegial control replaces central Union supervision; under Article 12a(5) it does not apply to certified schemes.

Article 5c(7) eIDAS Communication of the assessment bodies

Requires the Member States to communicate to the Commission the names and addresses of the designated conformity assessment bodies; the Commission shall make that information available to all Member States. Only bodies that are known can be recognised across borders.

KEY POINT

Certification instead of peer review – that is the deal in paragraph 5.

SHALL

■ L2

Art. 12bSole paragraph

TOPIC **Access to hardware and software features (DMA coupling)**

ADDRESSEE *Gatekeepers under Regulation (EU) 2022/1925 (DMA)*

CONTENT Where providers of European Digital Identity Wallets and issuers of notified electronic identification means acting in a commercial or professional capacity use **CORE PLATFORM SERVICES** within the meaning of Article 2(2) DMA and are thereby business users within the meaning of Article 2(21) DMA, gatekeepers **SHALL ALLOW** them effective **INTEROPERABILITY** with – and access to – **THE SAME** operating system, hardware or software features. Under Article 6(7) DMA this shall be done **FREE OF CHARGE** and regardless of whether the features are part of the operating system. Without prejudice to Article 5a(14).

PURPOSE *Without access to a smartphone's secure element a Wallet could not be operated securely at all in technical terms – the provision breaks open platform control.*

REFERENCES

REFERENCES Article 2 DMA

Definitions Point 2 defines the core platform service and lists the categories covered: online intermediation services, online search engines, online social networking services, video-sharing platform services, number-independent interpersonal communications services, OPERATING SYSTEMS, web browsers, virtual assistants, cloud computing services and online advertising services. Point 21 defines the business user as a natural or legal person which uses core platform services in the course of its commercial or professional activity. Relationship to eIDAS: Article 12b eIDAS presupposes precisely these two definitions: the Wallet provider must use a core platform service within the meaning of point 2 – in practice a mobile operating system – and must in doing so be a business user within the meaning of point 21. Only then does the entitlement arise. Summary, not verified against the original text

● summary, not verified

Article 6(7) DMA

DMA Article 6(7) – Interoperability access Does not relate to eIDAS but to the Digital Markets Act: the gatekeeper shall allow, free of charge, effective interoperability with, and access to, the same operating system, hardware or software features that are accessible via, or controlled by, the operating system or the virtual assistant – regardless of whether they are part of the operating system. Article 12b eIDAS refers expressly to this provision.

KEY POINT

Enforcement runs through the DMA, not through eIDAS supervision. That is the crux of the matter.

Article 5a(14)

User control and logical separation Prohibits the Wallet provider from collecting usage data that is not necessary, or from combining Wallet data with data from other services of its own or of third parties. It must also keep the data logically separate from all other holdings. Where the Wallet is provided privately under paragraph 2(b) or (c), Article 45h(3) (functional separation) additionally applies mutatis mutandis. This is the only paragraph outside 4, 5 and 8 that is expressly certified. Significance here: platform access extends the technical possibilities, not the data protection powers.

“Personal data relating to the provision of the European Digital Identity Wallet shall be kept logically separate from any other data held by the provider of the European Digital Identity Wallet”

✓ Article 5a(14) eIDAS

Article 5f(3) Very large online platforms

Requires the providers designated under Article 33 of the Digital Services Act (DSA) to accept the Wallet and to facilitate its use where they require user authentication for access – but only upon the voluntary request of the user and limited to the minimum data necessary for the specific service.

COMMISSION MANDATE

■ L1

Art. 5a(23)

TOPIC Implementing-act empowerment – basis of the ARF

ADDRESSEE Commission

CONTENT The Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in **P ARAGRAPHS** 4, 5, 8 and 18. Examination procedure under Article 48(2).

PURPOSE *The substantive Wallet requirements cannot be audited without technical specification – this paragraph is the legal basis of the Architecture and Reference Framework.*

DEADLINE **by 21 November 2024**

REFERENCES Article 5a(1) Obligation to provide and time-limit anchor
Establishes the central implementation obligation of Chapter II: every Member State SHALL provide at least one Wallet. The time-limit mechanism is decisive – the 24 months do not run from the date of the Regulation, but from the entry into force of TWO implementing acts: Article 5a(23) (core functions) and Article 5c(6) (certification). As long as either of the two is missing, the period does not start to run. The same anchor governs Article 5f(2) (36 months) and Article 45e(1) as well.
“each Member State shall provide at least one European Digital Identity Wallet within 24 months of the date of entry into force of the implementing acts referred to in paragraph 23 of this Article and in Article 5c(6)”
✓ Article 5a(1)

Article 5c(6) eIDAS Implementing act on Wallet certification

Establishes reference standards, specifications and procedures for the certification under paragraphs 1, 2 and 3. Together with Article 5a(23), the second trigger of the 24-month time limit. Without a uniform certification scheme, a Wallet certificate from one Member State would not be dependable in another – and the list under Article 5d would have no common yardstick. Significance here: the second trigger of the same time limit – if either of the two acts is missing, the 24-month clock in paragraph 1 does not start to run at all.

Article 5b(11)

Implementing act Empowers the Commission to lay down technical and operational specifications and procedures for paragraphs 2, 5 and 6 to 9, and to do so within the Wallet act under Article 5a(23). Without a uniform format, the registration could not be evaluated across borders.

Article 5d(7)

Implementing act on notification formats Empowers the Commission to lay down formats and procedures for the notifications under paragraphs 1, 4 and 5 – within the Wallet act under Article 5a(23). Notifications must be suitable for automated processing, otherwise the procedure does not scale.

Article 5e(5)

Implementing act on security incidents Empowers the Commission to lay down reference standards, specifications and procedures for the measures under paragraphs 1, 2 and 3 – that is, for suspension, withdrawal and reinstatement.

Article 45d(5) eIDAS

Implementing act on attestations of attributes Empowers the Commission to lay down reference standards, specifications and procedures for qualified electronic attestations of attributes – expressly in line with the Wallet act under Article 5a(23). Without that alignment, the attestation could not reach the Wallet.

REFERENCES Article 45e(2) eIDAS

Implementing act on the catalogue of attributes Empowers the Commission to lay down reference standards, specifications and procedures for the catalogue of attributes, the attestation schemes and the verification procedures – taking international standards into account and in line with the Wallet act.

Article 45f(6) eIDAS

Implementing act on PuB-EAA Empowers the Commission to lay down reference standards for electronic attestations of attributes issued by public sector bodies – in line with the Wallet act under Article 5a(23).

KEY POINT

Without the paragraph 23 act there is no ARF – and no 24-month clock.

COMMISSION MANDATE

■ L1

Art. 5a(24)**TOPIC Implementing act on user onboarding****ADDRESSEE** Commission

CONTENT Implementing act on reference standards and procedures for the onboarding of users to the European Digital Identity Wallet – either by electronic identification means conforming to assurance level **HIGH** or by electronic identification means conforming to assurance level **SUBSTANTIAL** in conjunction with additional remote onboarding procedures that together meet the requirements of assurance level **HIGH**.

PURPOSE *Without this bridge, citizens without an identity document at assurance level high could not get into the Wallet at all – the rollout would be blocked.*

DEADLINE **no explicit deadline in the wording**

REFERENCES Article 5a(5) Mandatory technical characteristics

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, Wallet-to-Wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice this is the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 5c(1) Subject matter of certification

Defines exhaustively what is certified: the conformity of the Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), with the requirement for logical separation laid down in Article 5a(14) and, where applicable, with the standards referred to in Article 5a(24). Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The number sequence 4-5-8-14 is the practical mnemonic anchor.

Article 8 eIDAS

Assurance levels of electronic identification schemes Paragraph 1 requires the assurance level attributed to be specified, paragraph 2 defines the scale of low, substantial and high by reference to their effectiveness against the misuse of identity, and paragraph 3 empowers the Commission to lay down minimum requirements in six areas: identity proofing and verification, issuance of the means, the authentication mechanism, the issuing body, other bodies involved, and the technical specifications of the means.

KEY POINT

Substantial + additional procedures = high. The only lawful detour.

COMMISSION MANDATE

■ L2

Art. 5b(11)**TOPIC Empowerment to adopt implementing acts****ADDRESSEE** Commission

CONTENT The Commission shall establish technical specifications and procedures for the requirements referred to in paragraphs 2, 5 and 6 to 9, within the framework of the European Digital Identity Wallet implementing act referred to in Article 5a(23).

PURPOSE *Without a uniform format, the registration of relying parties is neither machine-readable nor usable across borders.*

DEADLINE **by 21 November 2024**

REFERENCES Article 5a(23)

Implementing act on the core Wallet requirements In practice the most important empowering provision of the Regulation. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month deadline in paragraph 1. Numerous further provisions (5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23)

Article 48(2) eIDAS

Examination procedure Refers to Article 5 of the Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission may not adopt the draft. All implementing acts under this Regulation follow this procedure.

KEY POINT

Not paragraphs 1, 3, 4, 10 – the implementing act covers only 2, 5 and 6-9.

COMMISSION MANDATE

■ L1

Art. 5c(6)

TOPIC **Empowerment to adopt implementing acts – certification**ADDRESSEE *Commission*

CONTENT Implementing act containing a list of reference standards and, where necessary, specifications and procedures for the certification referred to in paragraphs 1, 2 and 3.

PURPOSE *Without a uniform certification scheme, a Wallet certificate from Member State (MS) A would not be dependable in MS B. This act is at the same time the SECOND trigger of the 24-month deadline under Article 5a(1).*

DEADLINE **by 21 November 2024**

REFERENCES **Article 5a(1) Obligation to provide and the deadline anchor**
Establishes the central implementation obligation of Chapter II: every Member State must provide at least one Wallet. The decisive element is the deadline mechanism – the 24 months do not run from the date of the Regulation but from the entry into force of TWO implementing acts: Article 5a(23) (core functionalities) and Article 5c(6) (certification). As long as either one is missing, the period does not begin to run. The same anchor governs Article 5f(2) (36 months) and Article 45e(1).

“each Member State shall provide at least one European Digital Identity Wallet within 24 months of the date of entry into force of the implementing acts referred to in paragraph 23 of this Article and in Article 5c(6)”

✓ Article 5a(1)

Article 5f(2) eIDAS Acceptance obligation of certain private entities

Covers private relying parties that are required by Union law, national law or contractual obligation to use strong user authentication – the areas mentioned include transport, energy, banking, financial services, social security, health, digital infrastructure, education and telecommunications. Microenterprises and small enterprises are excluded; acceptance takes place only upon the voluntary request of the user. Deadline: 36 months from the same anchor as Article 5a(1).

“Where private relying parties that provide services, with the exception of microenterprises and small enterprises”

✓ Article 5f(2)

Article 45e(1) eIDAS Verification of attributes against authentic sources

Requires the Member States to ensure that, at least for the eleven attributes listed in Annex VI – in so far as they rely on authentic sources within the public sector – electronic verification is possible at the request of the user. Without access to registers, an electronic attestation of attributes would be a mere assertion. Deadline: the same 24-month anchor as Article 5a(1).

KEY POINT

The clock only starts running once BOTH implementing acts are in force: 5a(23) AND 5c(6).

COMMISSION MANDATE

■ L2

Art. 5c(8)

TOPIC **Delegated act on criteria for conformity assessment bodies**ADDRESSEE *Commission*

CONTENT The Commission shall be empowered to adopt **DELEGATED** acts in accordance with Article 47 establishing specific criteria to be met by the designated conformity assessment bodies (CABs).

PURPOSE *Caution: this is a delegated act (Article 47), not an implementing act (Article 48) – a different procedure and a different right of veto.*

REFERENCES **Article 30(4) eIDAS**
Delegated act on the designated bodies Empowers the Commission to adopt delegated acts in accordance with Article 47 establishing specific criteria to be met by the designated bodies – the same construction as in Article 5c(8) for the conformity assessment bodies for Wallets.

Article 47 eIDAS Exercise of the delegation

Governs the procedure for delegated acts: the duration of the delegation, revocation at any time by the Parliament or the Council, the consultation of experts and the period for objection within which the Parliament or the Council may raise objections. The Regulation refers to Article 47 in only three places: Article 5c(8), Article 24(4b) and Article 30(4).

KEY POINT

47 = delegated, 48 = implementing. Paragraph 8 takes the 47 route.

COMMISSION MANDATE

□ L3

Art. 5d(7)

TOPIC **Implementing act on formats and procedures**ADDRESSEE *Commission*

CONTENT Implementing act on the formats and procedures for the purposes of paragraphs 1, 4 and 5, within the framework of the implementing act on European Digital Identity Wallets under Article 5a(23).

PURPOSE *Notifications must be capable of automated processing, otherwise the procedure does not scale.*

DEADLINE **by 21 November 2024**REFERENCES **Article 5a(23) Implementing act on the core Wallet requirements for Wallets**

The most important empowering provision of the Regulation in practice. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month deadline in paragraph 1. Numerous other provisions (5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

KEY POINT **Format follows obligation.**

COMMISSION MANDATE

□ L2

Art. 5e(4)–(5)

TOPIC **Publication + implementing act**ADDRESSEE *Commission*

CONTENT Paragraph 4: The Commission shall publish the corresponding amendments to the list referred to in Article 5d in the Official Journal **WITHOUT UNDUE DELAY**. Paragraph 5: implementing act on reference standards, specifications and procedures for the measures referred to in paragraphs 1, 2 and 3.

PURPOSE *The state of the list must mirror the state of security.*

DEADLINE **Paragraph 5: by 21 November 2024**REFERENCES **Article 5d(3) Official Journal list of certified Wallets**

Requires the Commission to establish, publish in the Official Journal and maintain a machine-readable list of certified Wallets. That list is the central official reference and is not to be confused with the trusted list under Article 22.

Article 5a(23) Implementing act on the core Wallet requirements for the Wallet

The most important empowering provision of the Regulation in practice. The Commission lays down reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. At the same time it is one of the two triggers of the 24-month period under paragraph 1. Numerous further provisions (Article 5b(11), Article 5d(7), Article 5e(5), Article 45d(5), Article 45e(2), Article 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

KEY POINT **The list = the truth. Delayed publication is a security problem.**

COMMISSION MANDATE

□ L3

Art. 5f(4)–(5)

TOPIC **Codes of conduct and evaluation**ADDRESSEE *Commission / Member States*

CONTENT Paragraph 4: The Commission shall **FACILITATE** the development of codes of conduct with all relevant stakeholders, including civil society. Paragraph 5: **WITHIN 24 MONTHS** after deployment of the European Digital Identity Wallet, the Commission shall assess the demand for, and the availability and usability of, the Wallet, taking into account criteria such as user take-up, cross-border presence, technological development and consumer demand.

PURPOSE *Built-in monitoring of success – the basis for a possible tightening of the obligations to accept. Not audit-relevant, but strategic: this is where the pressure for eIDAS 3 arises.*

DEADLINE **Paragraph 5: 24 months after deployment of the Wallet**REFERENCES **Article 49 eIDAS**

Review Requires the Commission to review the application of the Regulation at regular intervals and to report to the Parliament and the Council. eIDAS 2.0 emerged from this built-in review clause; together with the assessment under Article 5f(5) it is the starting point for a possible further amendment.

KEY POINT **Soft law (codes) plus evaluation – the preparatory pattern for the next amendment.**

B Trust Services

Chapter III · Articles 13 to 45I

SHALL

■ L1

Art. 13(1), first subparagraph

TOPIC Liability principle for all trust service providers

ADDRESSEE Trust service providers (TSP and QTSP)

CONTENT TSPs **SHALL BE LIABLE** for damage caused **INTENTIONALLY OR NEGLIGENTLY** to any natural or legal person as a result of a failure to comply with their obligations. Any person who has suffered damage shall have the right to seek compensation for **MATERIAL AND NON-MATERIAL** damage. Without prejudice to the GDPR.

PURPOSE *Without liability, compliance with the obligations would be economically unattractive – liability is the economic lever behind the catalogue of obligations.*

REFERENCES Article 82 GDPR

Liability and right to compensation Any person who has suffered material or non-material damage as a result of an infringement shall have the right to receive compensation. The controller is liable unless it proves that it is not in any way responsible for the event giving rise to the damage – an exculpation rule with the burden of proof on the controller. Relationship to eIDAS: structurally the same reversal of the burden of proof as in Article 13(1), third subparagraph, eIDAS for qualified providers. The extension to non-material damage likewise corresponds to the wording of Article 13(1) eIDAS since eIDAS 2.0. Summary, not verified against the original text

● summary, not verified

Article 24(2) Catalogue of obligations of the QTSP

The central catalogue, in practice the structure of every audit: a) notification obligations (1 month for changes, 3 months for cessation), b) qualified and trained staff in accordance with recognised standards, c) sufficient financial resources or liability insurance, d) pre-contractual information, e) trustworthy systems including suitable cryptographic techniques, f) verifiable data storage, fa) risk management, fb) 24-hour notification, g) protection against forgery and data loss, h) record-keeping obligation extending beyond the cessation of operations, i) termination plan, k) certificate database. Point j was deleted – the gap is intentional. Significance here: point h (the record-keeping obligation) is the practical precondition for a QTSP being able to exculpate itself at all.

Article 16

Penalties Requires the Member States to lay down effective, proportionate and dissuasive rules on penalties and, in paragraph 2, sets a maximum administrative fine of at least EUR 5 million, or, in the case of legal persons, EUR 5 million or 1 % of the total worldwide turnover of the preceding year. Paragraph 3 allows the supervisory body to initiate the procedure and a national court to impose the fine. Article 31 of the NIS2 Directive remains unaffected.

KEY POINT

Material AND non-material – the 'non-material' was added only with eIDAS 2.0.

SHALL

■ L1

Art. 13(1), second and third subparagraphs

TOPIC Reversal of the burden of proof for the QTSP

ADDRESSEE Injured person (in the case of a TSP) / QTSP (in the case of a QTSP)

CONTENT In the case of **NON-QUALIFIED** TSPs the burden of proving intention or negligence lies with the **INJURED PERSON**. In the case of **QUALIFIED** TSPs, intention or negligence **SHALL BE PRESUMED** unless the QTSP proves that the damage occurred without its intention or negligence.

PURPOSE *Qualified status must also be worth something in liability law – otherwise 'qualified' would be no more than a label.*

REFERENCES

REFERENCES	Article 20 Supervision of qualified trust service providers The audit core of the Regulation: an audit at least every 24 months at the provider's own expense by a conformity assessment body, the scope of the audit including Article 21 of the NIS2 Directive, submission of the report within three working days. New are the advance information one month before planned audits, with a right for the supervisory body to attend as an observer, and the withdrawal of qualified status where NIS2 or GDPR infringements are reported. Paragraph 4 contains the empowerment for the central implementing act. Article 21 Initiation of a qualified trust service Governs the admission procedure: notification of the intention to the supervisory body, accompanied by a conformity assessment report covering eIDAS and Article 21 of the NIS2 Directive. The supervisory body verifies, involves the NIS2 authorities with a two-month deadline for their reply, and decides within three months. The qualified service may not be provided until the status has been indicated in the trusted list. Article 22 Trusted lists Requires each Member State to establish, maintain and publish lists of the qualified providers and of the qualified services they provide – electronically signed or sealed in a secured manner and in a form suitable for automated processing. The information on the body responsible for the list, the place of publication and the signing certificates must be notified to the Commission without undue delay, and the Commission in turn makes it available in a secured, machine-processable form. Article 23 EU trust mark Allows qualified providers, once indicated in the trusted list, to use the EU trust mark to indicate the qualified services they provide. Anyone using it must make a link to the relevant trusted list available on its website. The form and design of the trust mark are laid down by implementing act. Article 3 Definitions Contains the legal definitions of points 1 to 57, supplemented by the letter-numbers inserted by eIDAS 2.0 such as 5a, 16a and 21a. Particularly important in practice: point 3 person identification data, point 5a user, point 6 relying party, point 16 trust service, point 20 qualified trust service provider, point 44 electronic attestation of attributes, point 47 authentic source and point 46 electronic attestation of attributes issued by or on behalf of a public sector body responsible for an authentic source.
KEY POINT	Non-qualified: the customer proves. Qualified: the provider exculpates itself. Exactly the other way round.

	MAY L1 Art. 13(2)
TOPIC	Limitation of liability by means of limitations on use
ADDRESSEE	<i>Trust service providers</i>
CONTENT	Where TSPs DULY inform their customers IN ADVANCE of limitations on the use of the services they provide and where those limitations are RECOGNISABLE TO THIRD PARTIES , they SHALL NOT be liable for damage arising from use exceeding those limitations.
PURPOSE	<i>Allows calculable product definitions – but only where there is double transparency: towards the customer and towards third parties.</i>
REFERENCES	Annex I Annex I – qualified certificates for electronic signatures Ten mandatory items a to j: machine-readable indication that the certificate has been issued as a qualified certificate, a set of data identifying the issuing QTSP including its Member State of establishment, the name OR pseudonym of the signatory, electronic signature validation data, the period of validity, a unique identity code, an advanced electronic signature or advanced electronic seal of the QTSP, the location where the underlying certificate is available free of charge, an indication of the validity status service and an indication whether a QSCD is used. Article 24(2) Catalogue of obligations of the QTSP The central catalogue, in practice the structure of every audit: a) notification obligations (1 month for changes, 3 months for cessation), b) qualified and trained staff in accordance with recognised standards, c) sufficient financial resources or liability insurance, d) pre-contractual information, e) trustworthy systems including suitable cryptographic techniques, f) verifiable data storage, fa) risk management, fb) 24-hour notification, g) protection against forgery and data loss, h) record-keeping obligation extending beyond the cessation of operations, i) termination plan, k) certificate database. Point j was deleted – the gap is intentional. Significance here: point h (the record-keeping obligation) is the practical precondition for a QTSP being able to exculpate itself at all.
KEY POINT	Two conditions: the customer informed AND third parties able to see it. One alone is not sufficient.

	DEFINITION L3 Art. 13(3)
TOPIC	Relationship to national liability law
ADDRESSEE	-
CONTENT	Paragraphs 1 and 2 shall be applied in accordance with national rules on liability.
PURPOSE	<i>eIDAS governs the ground of liability, not the assessment of damages, limitation periods or contributory fault.</i>
REFERENCES	

REFERENCES Article 11(4) Relationship to national law

Provides that the liability rules in paragraphs 1 to 3 are to be applied in accordance with national rules on liability. The Regulation thereby determines the ground of liability, but not the assessment of damages, limitation periods or contributory fault.

COMMISSION MANDATE

L2

Art. 14(1)**TOPIC Recognition of third-country trust services****ADDRESSEE** *Commission*

CONTENT Trust services from third countries or from international organisations shall be recognised as **LEGALLY EQUIVALENT** to the services of QTSPs established in the Union, **PROVIDED THAT** they are recognised by means of an implementing act **OR** by an agreement pursuant to Article 218 TFEU.

PURPOSE *Enables digital trade with non-EU States without lowering the EU level of trust.*

DEADLINE **no deadline ('provided that they are recognised')**

REFERENCES

—
TFEU · Treaty on the Functioning of the European Union
Primary law of the Union. For eIDAS, Article 218 is the relevant provision, governing the procedure for the conclusion of international agreements. Relationship to eIDAS: Article 14(1) eIDAS permits the recognition of third-country trust services by two routes: by implementing act or by an agreement pursuant to Article 218 TFEU. ● Summary, not verified against the original text

Article 48(2)

Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission may not adopt the draft. All implementing acts under this Regulation follow this procedure.

KEY POINT

Two routes: implementing act (unilateral) or agreement (bilateral). Without one of them: no recognition.

SHALL

L2

Art. 14(2)**TOPIC Substantive condition for recognition****ADDRESSEE** *Third country / international organisation*

CONTENT The implementing act or the agreement **SHALL ENSURE** that the requirements applicable to EU QTSPs are also met by the providers in the third country. Third countries and international organisations shall in particular **ESTABLISH, MAINTAIN** and **PUBLISH** a **TRUSTED LIST** of recognised providers.

PURPOSE *Prevents recognition from becoming a back door for lower standards – including the obligation to maintain a trusted list of their own.*

REFERENCES**Article 22 Trusted lists**

Requires each Member State to establish, maintain and publish lists of the qualified providers and of the qualified services they provide – electronically signed or sealed in a secured manner and in a form suitable for automated processing. The information on the body responsible for the list, the place of publication and the signing certificates must be notified to the Commission without undue delay, and the Commission in turn makes it available in a secured, machine-processable form.

Article 24 Requirements for qualified trust service providers

The central catalogue of obligations. Paragraphs 1, 1a and 1b govern the verification of identity (four methods) and of attributes (five methods). Paragraph 2 contains points a to k – notification obligations, staff, financial resources, user information, trustworthy systems and cryptography, verifiable storage, risk management, 24-hour notification, protection against forgery, record-keeping obligation, termination plan and certificate database. Paragraphs 3 and 4 govern revocation and status information.

KEY POINT

Equivalence means: the same requirements AND a trusted list of one's own.

SHALL

L3

Art. 14(3)**TOPIC Reciprocity****ADDRESSEE** *Commission / third country*

CONTENT The agreements referred to in paragraph 1 **SHALL ENSURE** that, conversely, the qualified services of EU QTSPs are also recognised as legally equivalent in the third country.

PURPOSE *Reciprocity – a unilateral opening of the market would be a competitive disadvantage for EU providers.*

REFERENCES**Article 24a EU-wide recognition of qualified services**

Lists in eleven paragraphs all types of qualified service and requires their recognition in all Member States: signatures and seals, creation devices, certificates and remote management services, validation and preservation services, time stamps, website authentication certificates, delivery services, attestations of attributes, archiving services and electronic ledgers. As a list, ideal for learning by heart.

KEY POINT

Only agreements (not implementing acts) have to establish reciprocity.

SHALL

L2

Art. 15 Sole paragraph

TOPIC **Accessibility**ADDRESSEE *Providers of electronic identification means and of trust services*

CONTENT Electronic identification means, trust services **AND** the **END-USER PRODUCTS** used in providing them shall be made available in **PLAIN AND INTELLIGIBLE LANGUAGE**, in accordance with the United Nations Convention on the Rights of Persons with Disabilities and with the accessibility requirements of Directive (EU) 2019/882 – thus also benefiting persons who experience functional limitations, elderly people and persons with limited access to digital technologies.

PURPOSE *Digital identity must exclude no one; eIDAS 2.0 has tightened the provision considerably (previously only 'where feasible').*

REFERENCES **Article 5a(21)**

Accessibility Requires that Wallets be made accessible for use by persons with disabilities on an equal basis with other users, in accordance with Directive (EU) 2019/882. The provision repeats Article 15 specifically for the Wallet.

KEY POINT **'Plain and intelligible language' is a legal obligation, not a recommendation.**

SHALL

L2

Art. 16(1)

TOPIC **Rules on penalties of the Member States**ADDRESSEE *Member States*

CONTENT Member States **SHALL LAY DOWN** the rules on penalties applicable to infringements. Those penalties shall be **EFFECTIVE, PROPORTIONATE** and **DISSUASIVE**. Without prejudice to Article 31 of the **NIS 2** Directive (EU) 2022/2555.

PURPOSE *Obligations without penalties are not complied with; the triad 'effective, proportionate, dissuasive' is the standard EU formula.*

REFERENCES **Article 31 NIS2 General aspects of supervision and enforcement**

Requires the Member States to ensure effective supervision and enforcement. Essential entities are subject to supervision ex ante AND ex post, important entities only ex post – that is, only once there are indications of an infringement. The supervisory measures shall be effective, proportionate and dissuasive and shall take account of the circumstances of each individual case. Relation to eIDAS: The same scheme is found in Article 46b(3) eIDAS: qualified providers ex ante and ex post, non-qualified providers only ex post. Article 16(1) eIDAS moreover refers expressly to Article 31 NIS 2. Summary, not verified against the original text

● summary, not verified

Article 46b Supervision of trust services Successor to the deleted Article 17.

Requires the designation of a supervisory body in each Member State and distinguishes the intensity of supervision: qualified providers ex ante and ex post, non-qualified providers only ex post where an alleged failure to comply becomes known. Paragraph 4 sets out the tasks exhaustively in points (a) to (k) – among them the analysis of the conformity assessment reports, the verification of the termination plans and the investigation of claims made by web-browser providers pursuant to Article 45a.

KEY POINT **Learn the triad by heart: effective – proportionate – dissuasive.**

SHALL

L1

Art. 16(2)(a)–(b)

TOPIC **Maximum amounts of administrative fines**ADDRESSEE *Member States*

CONTENT Member States shall ensure that administrative fines of a maximum of **AT LEAST** a) **EUR 5 000 000** where the trust service provider is a natural person or b) where the trust service provider is a legal person, **EUR 5 000 000 OR 1 %** of the total worldwide annual turnover of the undertaking in the preceding financial year – **WHICHEVER IS HIGHER** – may be imposed on **QUALIFIED AND NON-QUALIFIED** trust service providers.

PURPOSE *A maximum 'of at least' sets a Union-wide floor for the severity of national penalties.*

REFERENCES

REFERENCES Article 83 GDPR General conditions for imposing administrative fines

Provides for two tiers of fines: up to EUR 10 000 000 or 2 per cent of the total worldwide turnover of the preceding financial year for infringements of, for example, Articles 25 and 32, and up to EUR 20 000 000 or 4 per cent for infringements of the principles and of the rights of data subjects – in each case whichever amount is higher. Paragraph 2 names the criteria for determining the amount. Relation to eIDAS: These frameworks apply alongside the eIDAS framework of Article 16(2) (EUR 5 million or 1 per cent) and alongside Article 34 NIS 2. A single incident may in principle be sanctioned under several regimes. Summary, not verified against the original text

● summary, not verified

Article 34 NIS2 General conditions for imposing administrative fines

Sets the upper limits for fines: for ESSENTIAL entities at least EUR 10 000 000 or 2 per cent of the total worldwide turnover of the preceding financial year, whichever amount is higher; for IMPORTANT entities at least EUR 7 000 000 or 1.4 per cent. The amount is determined by reference to, among other things, the gravity, the duration, intent or negligence and the degree of cooperation with the authority. Relation to eIDAS: Here lies the source of a frequent confusion: the figures of EUR 10 million and 2 per cent come from NIS 2, NOT from eIDAS. Article 16(2) eIDAS provides for only one framework, of EUR 5 million or 1 per cent. Since qualified providers are at the same time essential entities under NIS 2, both frameworks may apply side by side. Summary, not verified against the original text

● summary, not verified

Article 13 Liability and burden of proof

Establishes the liability of all trust service providers for material and non-material damage caused intentionally or negligently and allocates the burden of proof: for a non-qualified provider it lies with the injured person, for a qualified provider intention or negligence is presumed. Paragraph 2 permits a limitation of liability by means of limitations on use, provided that the customer is informed in advance and the limitation remains recognisable to third parties. Paragraph 3 refers to national rules on liability.

Article 46b Supervision of trust services Successor to the deleted Article 17.

Requires the designation of a supervisory body in each Member State and distinguishes the intensity of supervision: qualified providers ex ante and ex post, non-qualified providers only ex post where an alleged failure to comply becomes known. Paragraph 4 sets out the tasks exhaustively in points (a) to (k) – among them the analysis of the conformity assessment reports, the verification of the termination plans and the investigation of claims made by web-browser providers pursuant to Article 45a.

KEY POINT

Only ONE framework in eIDAS: EUR 5 million or 1 %, whichever amount is higher. For QTSPs and TSPs alike.

MAY

□ L3

Art. 16(3)**TOPIC Enforcement through national courts****ADDRESSEE** Member States

CONTENT Depending on the legal system, the administrative fine **MAY** be initiated by the supervisory body and imposed by the national courts; the effectiveness and the equivalence of effect shall be ensured.

PURPOSE Accommodates legal systems in which administrative authorities may not impose administrative fines.

REFERENCES Article 46b Supervision of trust services Successor to the deleted Article 17.

Requires the designation of a supervisory body in each Member State and distinguishes the intensity of supervision: qualified providers ex ante and ex post, non-qualified providers only ex post where an alleged failure to comply becomes known. Paragraph 4 sets out the tasks exhaustively in points (a) to (k) – among them the analysis of the conformity assessment reports, the verification of the termination plans and the investigation of claims made by web-browser providers pursuant to Article 45a.

SHALL

■ L1

Art. 19a(1)(a)**TOPIC Risk management of non-qualified TSPs****ADDRESSEE** Non-qualified trust service providers

CONTENT Non-qualified TSPs **SHALL HAVE** appropriate policies and **SHALL TAKE** corresponding measures to manage legal, business, operational and other direct or indirect risks. These shall, notwithstanding Article 21 of the NIS 2 Directive, include **AT LEAST**: i) registration and onboarding procedures; ii) procedural or administrative checks; iii) the management and implementation of trust services.

PURPOSE Before eIDAS 2.0 non-qualified providers were practically unregulated – now there is a security baseline for all of them.

REFERENCES

REFERENCES **Article 21 NIS2 Cybersecurity risk-management measures**
 The substantive core provision of the Directive and at the same time the subject matter of every QTSP audit under Article 20(1) eIDAS. Paragraph 1 requires appropriate and proportionate technical, operational and organisational measures following an all-hazards approach, measured against the risk, the size, the likelihood of occurrence and the severity of potential impacts. Paragraph 2 names ten minimum areas. Paragraph 3 requires the vulnerabilities of each individual direct supplier in the supply chain to be taken into account. Paragraph 4 requires corrective measures to be taken without undue delay where the requirements are not met. a) policies on risk analysis and information system security b) incident handling c) business continuity – backup management, disaster recovery, crisis management d) supply chain security, including the relationships with direct suppliers and service providers e) security in the acquisition, development and maintenance of network and information systems, including vulnerability handling and disclosure f) policies and procedures to assess the effectiveness of the risk-management measures g) basic cyber hygiene practices and cybersecurity training h) policies and procedures regarding the use of cryptography and, where appropriate, encryption i) human resources security, access control policies and asset management j) the use of multi-factor authentication or continuous authentication, secured voice, video and text communications as well as secured emergency communications Relation to eIDAS: The conformity assessment report under Article 20(1) and Article 21(1) eIDAS must also cover compliance with these ten areas – a purely eIDAS audit is not sufficient. Article 24(2), point (fa) eIDAS supplements them with three fields of its own (registration and onboarding, procedural and administrative checks, management and implementation). Summary, not verified against the original text
 ● summary, not verified

Article 24(2) Catalogue of obligations of the QTSP

The central catalogue, in practice the structure of every audit: a) notification obligations (one month for changes, three months for cessation), b) qualified and trained staff in accordance with recognised standards, c) sufficient financial resources or liability insurance, d) pre-contractual information, e) trustworthy systems including suitable cryptographic techniques, f) verifiable data storage, fa) risk management, fb) 24-hour notification, g) protection against forgery and loss of data, h) recording obligation extending beyond the cessation of activities, i) termination plan, k) certificate database. Point j) was deleted – the gap is intentional. Significance here: point fa) is the word-for-word counterpart for qualified providers – the same triad i, ii, iii.

Article 46b(3) Intensity of supervision

The core distinction of the supervisory regime: qualified providers are subject to supervision ex ante AND ex post, non-qualified providers only ex post – and then only where the supervisory body is informed of an alleged failure to comply. Paragraph 4 sets out the tasks exhaustively in points (a) to (k).

KEY POINT

Article 19a(1)(a) and Article 24(2)(fa) are twins – the same triad i/ii/iii.

SHALL

■ L1

Art. 19a(1) (b)

TOPIC **24-hour notification obligation**

ADDRESSEE *Non-qualified trust service providers*

CONTENT TSPs **SHALL NOTIFY** the supervisory body, the identifiable affected individuals, the public (where it is of public interest) and, where applicable, other relevant competent authorities, **WITHOUT UNDUE DELAY AND IN ANY CASE NO LATER THAN 24 HOURS OF HAVING BECOME AWARE**, of any security breaches or disruptions that have a **SIGNIFICANT** impact on the trust service provided or on the personal data maintained therein.

PURPOSE *24 hours is considerably stricter than the 72-hour deadline of the GDPR – trust services are regarded as critical infrastructure.*

DEADLINE **24 hours from having become aware**

REFERENCES **Article 33 GDPR Notification of a personal data breach to the supervisory authority**

Requires the controller to notify a personal data breach without undue delay and, where feasible, within 72 hours after having become aware of it, unless the breach is unlikely to result in a risk. Later notifications must be accompanied by reasons. The processor notifies the controller without undue delay. The notification must state the nature of the breach, the categories and approximate number of data subjects concerned, the contact point, the likely consequences and the measures taken. Relation to eIDAS: Considerably more generous than eIDAS: Article 24(2), point (fb) eIDAS requires 24 hours of the incident. A single incident may trigger both notification obligations at the same time – with different deadlines, addressees and content. Summary, not verified against the original text

● summary, not verified

REFERENCES Article 23 NIS2 Reporting obligations for significant incidents

Requires significant incidents to be notified without undue delay to the CSIRT or the competent authority and the recipients of the services to be informed. An incident is considered significant if it has caused or is capable of causing severe operational disruption or financial loss, or if it has affected or is capable of affecting other natural or legal persons by causing considerable material or non-material damage. Notification is made in stages. Early warning: without undue delay, in any event within 24 hours of having become aware Incident notification: without undue delay, in any event within 72 hours Intermediate report: upon request of the CSIRT or the competent authority Final report: not later than one month after the notification Progress report: where the incident is still ongoing on expiry of that deadline Relation to eIDAS: Not to be confused with the eIDAS deadlines: Article 24(2), point (fb) eIDAS requires 24 hours OF THE INCIDENT, Article 19a(1), point (b) eIDAS 24 hours of HAVING BECOME AWARE – the NIS 2 early warning of 24 hours likewise runs from having become aware, but is followed by a full 72-hour notification. A QTSP therefore has to serve parallel reporting channels. Summary, not verified against the original text

● summary, not verified

Article 24(2) Catalogue of obligations of the QTSP

The central catalogue, in practice the structure of every audit: a) notification obligations (one month for changes, three months for cessation), b) qualified and trained staff in accordance with recognised standards, c) sufficient financial resources or liability insurance, d) pre-contractual information, e) trustworthy systems including suitable cryptographic techniques, f) verifiable data storage, fa) risk management, fb) 24-hour notification, g) protection against forgery and loss of data, h) recording obligation extending beyond the cessation of activities, i) termination plan, k) certificate database. Point j) was deleted – the gap is intentional. Significance here: point fa) is the word-for-word counterpart for qualified providers – the same triad i, ii, iii.

Article 24 Requirements for qualified trust service providers

The central catalogue of obligations. Paragraphs 1, 1a and 1b govern the verification of identity (four methods) and of attributes (five methods). Paragraph 2 contains points a) to k) – notification obligations, staff, financial resources, user information, trustworthy systems and cryptography, verifiable storage, risk management, 24-hour notification, protection against forgery, recording obligation, termination plan and certificate database. Paragraphs 3 and 4 govern revocation and status information.

KEY POINT

24 hours – not 72. And the start of the period differs between TSP and QTSP.

COMMISSION MANDATE

■ L1

Art. 19a(2)

TOPIC Implementing act on reference standards

ADDRESSEE Commission

CONTENT Implementing act with a list of reference standards and, where necessary, specifications and procedures for Paragraph 1, point (a). Where these are met, the **PRESUMPTION OF CONFORMITY** is triggered.

PURPOSE *The presumption of conformity is the central mechanism of the Regulation: conformity with standards replaces individual proof.*

DEADLINE by 21 May 2025

REFERENCES

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ETSI EN 319 401 · General policy requirements for trust service providers The baseline standard of every trust service audit. It deals, among other things, with risk assessment, the practice statement and terms and conditions, organisation and the trustworthiness of staff, physical and access security, operations and network security, incident management, records, business continuity and the termination of the service. Relation to eIDAS: Gives concrete form to Article 24(2), points (b), (e), (fa), (g), (h) and (i) eIDAS as well as to Article 19a(1), point (a) eIDAS. Through the formula 'recognised European or international standards' in point (b) it is at the same time the bridge to ISO/IEC 27001. ● Summary, not verified against the original text

Article 48(2)

Examination procedure Refers to Article 5 of the Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission may not adopt the draft. All implementing acts under this Regulation follow this procedure.

KEY POINT

Wherever 'shall be presumed' appears, the presumption of conformity applies.

SHALL

■ L1

Art. 20(1)

TOPIC 24-month audit and submission of the CAR

ADDRESSEE QTSP / conformity assessment body

CONTENT	QTSPs SHALL BE AUDITED AT LEAST EVERY 24 MONTHS AT THEIR OWN EXPENSE by a conformity assessment body. The audit shall confirm that the QTSPs and the qualified trust services provided by them fulfil the requirements laid down in THIS REGULATION AND IN ARTICLE 21 OF THE NIS 2 DIRECTIVE . The conformity assessment report (CAR) shall be submitted to the supervisory body WITHIN THREE WORKING DAYS of its receipt.
PURPOSE	<i>Without a recurring external audit, 'qualified' would be a status without ongoing control.</i>
DEADLINE	24 months (audit) / three working days (submission of the CAR)
REFERENCES	Article 21 NIS2 Cybersecurity risk-management measures The substantive core provision of the Directive and at the same time the subject matter of every QTSP audit under Article 20(1) eIDAS. Paragraph 1 requires appropriate and proportionate technical, operational and organisational measures following an all-hazards approach, measured against the risk, the size, the likelihood of occurrence and the severity of potential impacts. Paragraph 2 names ten minimum areas. Paragraph 3 requires the vulnerabilities of each individual direct supplier in the supply chain to be taken into account. Paragraph 4 requires corrective measures to be taken without undue delay where the requirements are not met. a) policies on risk analysis and information system security b) incident handling c) business continuity – backup management, disaster recovery, crisis management d) supply chain security, including the relationships with direct suppliers and service providers e) security in the acquisition, development and maintenance of network and information systems, including vulnerability handling and disclosure f) policies and procedures to assess the effectiveness of the risk-management measures g) basic cyber hygiene practices and cybersecurity training h) policies and procedures regarding the use of cryptography and, where appropriate, encryption i) human resources security, access control policies and asset management j) the use of multi-factor authentication or continuous authentication, secured voice, video and text communications as well as secured emergency communications Relation to eIDAS: The conformity assessment report under Article 20(1) and Article 21(1) eIDAS must also cover compliance with these ten areas – a purely eIDAS audit is not sufficient. Article 24(2), point (fa) eIDAS supplements them with three fields of its own (registration and onboarding, procedural and administrative checks, management and implementation). Summary, not verified against the original text Significance here: The scope of the conformity assessment expressly extends to that provision – a purely eIDAS audit is not sufficient. ● summary, not verified Article 21(1) eIDAS Notification of intention Requires providers intending to start providing a qualified trust service to notify the supervisory body of their intention together with a report issued by a conformity assessment body confirming the fulfilment of the requirements laid down in this Regulation AND in Article 21 of the NIS 2 Directive. Article 46b(4) Catalogue of tasks of the supervisory body Eleven tasks, among them the notification of the NIS2 authorities, the ANALYSIS OF THE CONFORMITY ASSESSMENT REPORTS (point (c)), audits, cooperation with the data protection authorities, the granting and withdrawal of qualified status, the informing of the body responsible for the trusted list, the VERIFICATION OF THE TERMINATION PLANS (point (i)) as well as the investigation of claims made by web-browser providers pursuant to Article 45a (point (k)). Article 51(4) Obligation of existing QTSPs to provide evidence Providers that were granted qualified status before 20 May 2024 must submit to the supervisory body, by 21 May 2026 at the latest, a conformity assessment report proving compliance with Article 24(1), (1a) and (1b) – that is, with the new rules on the verification of identity and attributes. In practice the most important retrofitting deadline for existing providers.
KEY POINT	WORKING days, not calendar days. And the scope of the audit includes NIS2 Article 21.

	SHALL L1 Art. 20(1a)	
TOPIC	Advance information and observer right	
ADDRESSEE	QTSP / supervisory body	
CONTENT	QTSPs SHALL INFORM the supervisory body AT THE LATEST ONE MONTH BEFORE any planned audits and S HALL ALLOW it to PARTICIPATE AS AN OBSERVER upon request.	
PURPOSE	<i>New in eIDAS 2.0: the supervisory body is to know the audit not only from a report but to be able to witness it.</i>	
DEADLINE	one month before the audit	
REFERENCES	Article 20(1) Conformity assessment every 24 months The audit core of the Regulation. QTSPs are audited at their own expense at least every 24 months by a conformity assessment body; the scope of the audit expressly also covers Article 21 of the NIS 2 Directive. The conformity assessment report is to be submitted to the supervisory body within three WORKING days of its receipt. “Qualified trust service providers shall be audited at their own expense at least every 24 months by a conformity assessment body” ✓ Article 20(1) Article 46b(4) eIDAS Catalogue of tasks of the supervisory body Eleven tasks, among them the notification of the NIS2 authorities, the ANALYSIS OF THE CONFORMITY ASSESSMENT REPORTS (point (c)), audits, cooperation with the data protection authorities, the granting and withdrawal of qualified status, the informing of the body responsible for the trusted list, the VERIFICATION OF THE TERMINATION PLANS (point (i)) as well as the investigation of claims made by web-browser providers pursuant to Article 45a (point (k)).	
KEY POINT	New in 2024: the supervisory body may watch. One month's lead time.	

	SHALL	L1	Art. 20(1b)
TOPIC	Notification of the conformity assessment bodies		
ADDRESSEE	Member States / Commission		
CONTENT	Member States shall, WITHOUT UNDUE DELAY , notify to the Commission the names, addresses and ACCREDITATION details of the CABs as well as any subsequent changes thereto; the Commission shall make that information available to all Member States.		
PURPOSE	<i>A CAR is worth only as much as the accreditation of the body that issues it.</i>		
DEADLINE	without undue delay		
REFERENCES	Article 20(4) Implementing act on accreditation and the report Governs the accreditation of the conformity assessment bodies, the content of the conformity assessment report as well as the auditing requirements and the conformity assessment schemes. Together with the act under Article 24(5), the most important audit document for QTSPs. Implemented by Implementing Regulation (EU) 2025/2162. Article 5c(7) Notification of the assessment bodies Requires the Member States to communicate to the Commission the names and addresses of the designated conformity assessment bodies; the Commission makes that information available to all Member States. Only known bodies can be recognised across borders. Article 12a(6) Notification of the assessment bodies Requires the Member States to communicate to the Commission the names and addresses of the conformity assessment bodies they have designated. The parallel provisions are found in Article 5c(7), Article 20(1b) and Article 30(2). Article 30(2) Notification of the designated bodies Requires the Member States to notify to the Commission the names and addresses of the public or private bodies designated for the certification of qualified electronic signature creation devices; the Commission makes that information available to all Member States.		
KEY POINT	Not only name and address – the accreditation too is subject to notification. That is new.		

	MAY	L1	Art. 20(2)
TOPIC	Audit irrespective of any specific cause		
ADDRESSEE	Supervisory body		
CONTENT	The supervisory body MAY AT ANY TIME carry out an audit or request a conformity assessment body (CAB) to perform a conformity assessment – AT THE EXPENSE OF THE QTSP. Where personal data protection rules appear to have been breached, it SHALL INFORM the GDPR supervisory authorities under Article 51 GDPR without undue delay.		
PURPOSE	<i>The 24-month cycle shall not create a period of grace; supervision remains able to act at any time.</i>		
DEADLINE	at any time / without undue delay (GDPR notification)		
REFERENCES	Article 51 GDPR Supervisory authority Requires each Member State to provide for one or more independent public authorities responsible for monitoring the application of the Regulation, and governs their contribution to its consistent application in the Union as well as their cooperation with one another and with the Commission. Relation to eIDAS: Article 20(2) eIDAS requires the eIDAS supervisory body, where personal data protection rules appear to have been breached, to inform those authorities without undue delay; under Article 20(3b) eIDAS their notification back may trigger the withdrawal of qualified status. They are moreover the addressee of the user reports from the Wallet dashboard under Article 5a(4)(d)(iii) eIDAS. Summary, not verified against the original text Article 46b(4) Catalogue of tasks of the supervisory body Eleven tasks, among them the notification of the NIS2 authorities, the ANALYSIS OF THE CONFORMITY ASSESSMENT REPORTS (point (c)), audits, cooperation with the data protection authorities, the granting and withdrawal of qualified status, the informing of the body responsible for the trusted list, the VERIFICATION OF THE TERMINATION PLANS (point (i)) as well as the investigation of claims made by web-browser providers pursuant to Article 45a (point (k)).		
KEY POINT	At any time, at the expense of the audited party.		

	SHALL	L1	Art. 20(3)
TOPIC	Requirement to remedy and withdrawal of status		
ADDRESSEE	Supervisory body / QTSP		
CONTENT	Where there is a failure to fulfil a requirement, the supervisory body SHALL REQUIRE a remedy to be provided within a set time limit. Where no remedy is provided, the supervisory body SHALL WITHDRAW – where justified by the EXTENT, DURATION and CONSEQUENCES – the QUALIFIED STATUS of the provider or of the affected service.		
PURPOSE	<i>Two stages: first the remedy, then the withdrawal. The withdrawal is bound by proportionality.</i>		
DEADLINE	time limit set by the supervisory body		
REFERENCES			

REFERENCES	Article 20(3c) Chain of notification upon withdrawal of status Requires the supervisory body to inform the provider concerned of the withdrawal, and further the body notified pursuant to Article 22(3) as responsible for the trusted list for the purposes of updating it, as well as the competent NIS2 authority. In practice the withdrawal takes effect only once it is visible in the trusted list. Article 46b(4) Catalogue of tasks of the supervisory body Eleven tasks, among them the notification of the NIS2 authorities, the ANALYSIS OF THE CONFORMITY ASSESSMENT REPORTS (point (c)), audits, cooperation with the data protection authorities, the granting and withdrawal of qualified status, the informing of the body responsible for the trusted list, the VERIFICATION OF THE TERMINATION PLANS (point (i)) as well as the investigation of claims made by web-browser providers pursuant to Article 45a (point (k)).	Article 22 Trusted lists Requires each Member State to establish, maintain and publish lists of the qualified providers and of the qualified services they provide – electronically signed or sealed in a secured manner and in a form suitable for automated processing. The information on the body responsible for the list, the place of publication and the signing certificates must be notified to the Commission without undue delay, and the Commission in turn makes it available in a secured, machine-processable form.
KEY POINT	Three criteria for the withdrawal: extent – duration – consequences.	

SHALL		L1		Art. 20(3a)–(3b)	
TOPIC	Withdrawal of status for NIS2 or GDPR infringements				
ADDRESSEE	Supervisory body				
CONTENT	Paragraph 3a: Where the NIS2 authorities designated or established pursuant to Article 8(1) NIS2 report a failure to fulfil a requirement of Article 21 NIS2, the supervisory body SHALL WITHDRAW the qualified status – on the basis of the same three criteria. Paragraph 3b: The same applies where the data protection supervisory authorities report an infringement of the GDPR.				
PURPOSE	eIDAS status is coupled to NIS2 and GDPR compliance – a data protection infringement can cost the qualified status.				
REFERENCES	Article 51 GDPR Supervisory authority Requires each Member State to provide for one or more independent public authorities responsible for monitoring the application of the Regulation, and governs their contribution to its consistent application in the Union as well as their cooperation with one another and with the Commission. Relation to eIDAS: Article 20(2) eIDAS requires the eIDAS supervisory body, where personal data protection rules appear to have been breached, to inform those authorities without undue delay; under Article 20(3b) eIDAS their notification back may trigger the withdrawal of qualified status. They are moreover the addressee of the user reports from the Wallet dashboard under Article 5a(4)(d)(iii) eIDAS. Summary, not verified against the original text ● summary, not verified Article 8 NIS2 Competent authorities and single points of contact Paragraph 1 requires each Member State to designate or establish one or more authorities competent for cybersecurity, which at the same time carry out the supervisory tasks under the Directive. The further paragraphs govern the monitoring of its application, the designation of a single point of contact for cross-border cooperation and its notification to the Commission, as well as the cooperation with the data protection and law enforcement authorities. Relation to eIDAS: It is precisely these authorities designated pursuant to Article 8(1) whose notification triggers the withdrawal of qualified status under Article 20(3a) eIDAS – and which, under Article 21(2) eIDAS, must report back within two months in the admission procedure. Summary, not verified against the original text ● summary, not verified Article 20(1) Conformity assessment every 24 months The audit core of the Regulation. QTSPs are audited at their own expense at least every 24 months by a conformity assessment body; the scope of the audit expressly also covers Article 21 of the NIS 2 Directive. The conformity assessment report is to be submitted to the supervisory body within three WORKING days of its receipt. “Qualified trust service providers shall be audited at their own expense at least every 24 months by a conformity assessment body” ✓ Article 20(1) Article 21 eIDAS Initiation of a qualified trust service Governs the admission procedure: notification of the intention to the supervisory body, accompanied by a conformity assessment report covering eIDAS and Article 21 of the NIS 2 Directive. The supervisory body verifies, involves the NIS2 authorities with a two-month deadline for their reply, and decides within three months. The qualified service may not be provided until the status has been indicated in the trusted list.				
KEY POINT	Three legal acts, one status: eIDAS, NIS2, GDPR. One infringement is enough.				

SHALL		 L2	Art. 20(3c)	
TOPIC	Chain of notification upon withdrawal of status			
ADDRESSEE	Supervisory body			

CONTENT	The supervisory body SHALL INFORM the QTSP of the withdrawal, and further the body notified pursuant to Article 22(3) as responsible for the trusted list (for the purposes of updating it) as well as the competent NIS2 authority.
PURPOSE	<i>The withdrawal takes effect only once it is visible in the trusted list – hence the fixed chain of notification.</i>
REFERENCES	Article 8 NIS2 Competent authorities and single points of contact Paragraph 1 requires each Member State to designate or establish one or more authorities competent for cybersecurity, which at the same time carry out the supervisory tasks under the Directive. The further paragraphs govern the monitoring of its application, the designation of a single point of contact for cross-border cooperation and its notification to the Commission, as well as the cooperation with the data protection and law enforcement authorities. Relation to eIDAS: It is precisely these authorities designated pursuant to Article 8(1) whose notification triggers the withdrawal of qualified status under Article 20(3a) eIDAS – and which, under Article 21(2) eIDAS, must report back within two months in the admission procedure. Summary, not verified against the original text ● summary, not verified Article 22(1) Trusted lists Each Member State establishes, maintains and publishes lists of the QTSPs and of the qualified services they provide. Paragraph 2 requires those lists to be electronically signed or sealed in a secured manner and suitable for automated processing – a PDF list does not satisfy the provision. Under paragraph 4 the Commission maintains the central access point. Significance here: The withdrawal of status takes effect in practice only once it is visible in the trusted list. Article 46b(4) Catalogue of tasks of the supervisory body Eleven tasks, among them the notification of the NIS2 authorities, the ANALYSIS OF THE CONFORMITY ASSESSMENT REPORTS (point (c)), audits, cooperation with the data protection authorities, the granting and withdrawal of qualified status, the informing of the body responsible for the trusted list, the VERIFICATION OF THE TERMINATION PLANS (point (i)) as well as the investigation of claims made by web-browser providers pursuant to Article 45a (point (k)).
KEY POINT	Three addressees: QTSP, the body responsible for the list, the NIS2 authority.

COMMISSION MANDATE		L1	Art. 20(4) (a)–(c)
TOPIC	Implementing act on CAB accreditation, the CAR and the auditing requirements		
ADDRESSEE	Commission		
CONTENT	Implementing act with reference standards, specifications and procedures for (a) the ACCREDITATION of the CABs and the CONFORMITY ASSESSMENT REPORT , (b) the AUDITING REQUIREMENTS for the conformity assessment, including composite assessment, (c) the CONFORMITY ASSESSMENT SCHEMES for carrying out the assessment and for the provision of the report.		
PURPOSE	<i>Without a uniform conformity assessment scheme a CAR from Member State A would not be dependable in Member State B – this is the core document of every QTSP audit.</i>		
DEADLINE	by 21 May 2025		
REFERENCES	— ETSI EN 319 403 · Requirements for conformity assessment bodies assessing trust service providers Lays down the requirements to be met by a body that audits trust service providers – building on ISO/IEC 17065 – and how the audit process and the report are to be structured. Relation to eIDAS: the practical benchmark for the accreditation under Article 20(1b) eIDAS and for the conformity assessment report under Article 20(4)(a) eIDAS. ● Summary, not verified against the original text Article 20(1) Conformity assessment every 24 months The audit core of the Regulation. QTSPs are audited at their own expense at least every 24 months by a conformity assessment body; the scope of the audit expressly also covers Article 21 of the NIS 2 Directive. The conformity assessment report is to be submitted to the supervisory body within three WORKING days of its receipt. “Qualified trust service providers shall be audited at their own expense at least every 24 months by a conformity assessment body” ✓ Article 20(1) Article 21(1) eIDAS Notification of intention Requires providers intending to start providing a qualified trust service to notify the supervisory body of their intention and to attach a report issued by a conformity assessment body confirming the fulfilment of the requirements laid down in this Regulation AND in Article 21 of the NIS 2 Directive. Article 51(4) Obligation of existing QTSPs to provide evidence Providers that were granted qualified status before 20 May 2024 must submit to the supervisory body, by 21 May 2026 at the latest, a conformity assessment report proving compliance with Article 24(1), (1a) and (1b) – that is, with the new rules on the verification of identity and attributes. In practice the most important retrofitting deadline for existing providers. Article 48(2) Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.		

KEY POINT

The single most important follow-up legal act for auditors.

SHALL

■ L1

Art. 21(1)

TOPIC **Notification of intention + submission of the CAR**ADDRESSEE *Trust service provider (applicant)*

CONTENT Where a provider intends to start providing a qualified trust service, it **SHALL NOTIFY** the supervisory body of that intention and **SHALL ATTACH a CONFORMITY ASSESSMENT REPORT** issued by a CAB confirming the fulfilment of the requirements laid down in this Regulation **AND** in Article 21 **NIS 2**.

PURPOSE *Lays down the formal route by which one becomes a QTSP at all – the starting point of every admission audit.*

REFERENCES **Article 21 NIS2 Cybersecurity risk-management measures**
The substantive core provision of the Directive and at the same time the subject matter of every QTSP audit under Article 20(1) eIDAS. Paragraph 1 requires appropriate and proportionate technical, operational and organisational measures following an all-hazards approach, measured against the risk, the size, the likelihood of occurrence and the severity of potential impacts. Paragraph 2 names ten minimum areas. Paragraph 3 requires the vulnerabilities of each individual direct supplier in the supply chain to be taken into account. Paragraph 4 requires corrective measures to be taken without undue delay where the requirements are not met. a) policies on risk analysis and information system security b) incident handling c) business continuity – backup management, disaster recovery, crisis management d) supply chain security, including the relationships with direct suppliers and service providers e) security in the acquisition, development and maintenance of network and information systems, including vulnerability handling and disclosure f) policies and procedures to assess the effectiveness of the risk-management measures g) basic cyber hygiene practices and cybersecurity training h) policies and procedures regarding the use of cryptography and, where appropriate, encryption i) human resources security, access control policies and asset management j) the use of multi-factor authentication or continuous authentication, secured voice, video and text communications as well as secured emergency communications Relation to eIDAS: The conformity assessment report under Article 20(1) and Article 21(1) eIDAS must also cover compliance with these ten areas – a purely eIDAS audit is not sufficient. Article 24(2), point (fa) eIDAS supplements them with three fields of its own (registration and onboarding, procedural and administrative checks, management and implementation). Summary, not verified against the original text

● summary, not verified

Article 20(1) Conformity assessment every 24 months

The audit core of the Regulation. QTSPs are audited at their own expense at least every 24 months by a conformity assessment body; the scope of the audit expressly also covers Article 21 of the NIS 2 Directive. The conformity assessment report is to be submitted to the supervisory body within three WORKING days of its receipt.

“Qualified trust service providers shall be audited at their own expense at least every 24 months by a conformity assessment body”

✓ Article 20(1)

Article 22(1) eIDAS Trusted lists

Each Member State establishes, maintains and publishes lists of the QTSPs and of the qualified services they provide. Paragraph 2 requires those lists to be electronically signed or sealed in a secured manner and suitable for automated processing – a PDF list does not satisfy the provision. Under paragraph 4 the Commission maintains the central access point. Significance here: It is not the administrative decision but the entry in the list that marks the permissible start of the provision of the service.

Article 46b(4)

Catalogue of tasks of the supervisory body Eleven tasks, among them the notification of the NIS2 authorities, the ANALYSIS OF THE CONFORMITY ASSESSMENT REPORTS (point (c)), audits, cooperation with the data protection authorities, the granting and withdrawal of qualified status, the informing of the body responsible for the trusted list, the VERIFICATION OF THE TERMINATION PLANS (point (i)) as well as the investigation of claims made by web-browser providers pursuant to Article 45a (point (k)).

KEY POINT

The CAR is the entry ticket – and must cover eIDAS AND NIS2.

SHALL

■ L1

Art. 21(2)

TOPIC **Verification by the supervisory body (3 months)**ADDRESSEE *Supervisory body*

CONTENT The supervisory body **SHALL VERIFY** the fulfilment of the requirements. For the purposes of the NIS2 verification it **SHALL REQUEST** the NIS2 authorities to carry out supervisory actions and to provide information about the outcome without undue delay and in any event **WITHIN TWO MONTHS**. Where the outcome is positive, it **SHALL GRANT** the qualified status and shall inform the body responsible for the trusted list – **NOT LATER THAN THREE MONTHS** after the notification. Where the verification is not concluded within the time limit, it shall inform the applicant specifying the reasons and the new period.

PURPOSE *Procedural time limits protect the applicant against an open-ended state of limbo and create predictability.*

DEADLINE **3 months (overall procedure) / 2 months (NIS2 reply)**

REFERENCES

REFERENCES Article 8 NIS2

Competent authorities and single points of contact Paragraph 1 requires each Member State to designate or establish one or more authorities competent for cybersecurity, which at the same time carry out the supervisory tasks under the Directive. The further paragraphs govern the monitoring of its application, the designation of a single point of contact for cross-border cooperation and its notification to the Commission, as well as the cooperation with the data protection and law enforcement authorities. Relation to eIDAS: It is precisely these authorities designated pursuant to Article 8(1) whose notification triggers the withdrawal of qualified status under Article 20(3a) eIDAS – and which, under Article 21(2) eIDAS, must report back within two months in the admission procedure. Summary, not verified against the original text

● summary, not verified

Article 22(3) Notification of the trusted list details

Requires the Member States to notify to the Commission, without undue delay, which bodies are responsible for establishing, maintaining and publishing the national trusted lists, where those lists are published, which certificates are used to sign or seal them, and any changes thereto.

Article 46b(4)

Catalogue of tasks of the supervisory body Eleven tasks, among them the notification of the NIS2 authorities, the ANALYSIS OF THE CONFORMITY ASSESSMENT REPORTS (point (c)), audits, cooperation with the data protection authorities, the granting and withdrawal of qualified status, the informing of the body responsible for the trusted list, the VERIFICATION OF THE TERMINATION PLANS (point (i)) as well as the investigation of claims made by web-browser providers pursuant to Article 45a (point (k)).

Article 20 Supervision of qualified trust service providers

The audit core of the Regulation: an audit at least every 24 months at the provider's own expense by a conformity assessment body, the scope of the audit including Article 21 of the NIS 2 Directive, submission of the report within three working days. New are the advance information one month before planned audits, with a right for the supervisory body to attend as an observer, and the withdrawal of qualified status where NIS2 or GDPR infringements are reported. Paragraph 4 contains the empowerment for the central implementing act.

KEY POINT

Three months in total, with the two months for the NIS2 reply falling within them.

SHALL

■ L1

Art. 21(3)**TOPIC Start of the provision of the service****ADDRESSEE** QTSP

CONTENT QTSPs **MAY BEGIN** to provide the service only **AFTER** the qualified status has been **INDICATED** in the trusted lists referred to in Article 22(1).

PURPOSE *The entry in the list – not the administrative decision – is the legally decisive moment.*

REFERENCES Article 22(1) Trusted lists

Each Member State establishes, maintains and publishes lists of the QTSPs and of the qualified services they provide. Paragraph 2 requires those lists to be electronically signed or sealed in a secured manner and suitable for automated processing – a PDF list does not satisfy the provision. Under paragraph 4 the Commission maintains the central access point. Significance here: It is not the administrative decision but the entry in the list that marks the permissible start of the provision of the service.

Article 23(1) Use of the EU trust mark

Allows qualified providers, after their status has been indicated in the trusted list, to use the EU trust mark to indicate in a simple, recognisable and clear manner the qualified services they provide. This is a right, not an obligation.

KEY POINT

It is not the administrative decision that counts, but the entry in the trusted list.

COMMISSION MANDATE

□ L3

Art. 21(4)**TOPIC Implementing act on formats and procedures****ADDRESSEE** Commission

CONTENT Implementing act on the formats and procedures of the notification and verification for the purposes of paragraphs 1 and 2.

PURPOSE *Harmonises the admission procedure across the Member States.*

DEADLINE **by 21 May 2025**

REFERENCES Article 48(2)

Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.

SHALL

■ L1

Art. 22(1)–(2)**TOPIC Trusted lists****ADDRESSEE** Member States

CONTENT	Paragraph 1: Each Member State SHALL ENSURE the establishment, maintenance and publication of trusted lists including information related to the QTSPs for which it is responsible and to the qualified services provided by them. Paragraph 2: Those lists shall be established, maintained and published IN A SECURED MANNER, ELECTRONICALLY SIGNED OR SEALED , and in a form suitable for AUTOMATED PROCESSING .
PURPOSE	<i>A relying party must be able to check BY MACHINE whether a certificate really originates from a QTSP – a PDF list would be worthless.</i>
REFERENCES	— ETSI TS 119 612 · Trusted lists Defines the structure, content and XML format of the trusted lists, including the status information for each service and the history of status changes. Relation to eIDAS: Technical basis of Implementing Regulation (EU) 2015/1505 on Article 22 eIDAS. ● Summary, not verified against the original text Article 21(3) Entry in the list as the starting point A service may be provided as qualified only once the status has been indicated in the trusted list referred to in Article 22(1). What is decisive is therefore not the decision of the supervisory body but the publicly accessible, signed entry in the list – it is that on which relying parties rely. Article 23(2) Obligation to provide a link Requires anyone using the EU trust mark to keep a link to the relevant trusted list available on their website. Only thereby does the qualification asserted by the trust mark become verifiable by anyone. Article 20(3c) Chain of notification upon withdrawal of status Requires the supervisory body to inform the provider concerned of the withdrawal, and further the body responsible for the trusted list pursuant to Article 22(3) for the purposes of updating it, as well as the competent NIS2 authority. In practice the withdrawal takes effect only once it is visible in the trusted list.
KEY POINT	Signed + machine-readable. Those are the two hard requirements.

SHALL		L1	Art. 22(3)–(4)
TOPIC	Notification and publication of the list information		
ADDRESSEE	Member States / Commission		
CONTENT	Paragraph 3: Member States shall notify to the Commission, WITHOUT UNDUE DELAY , information on the bodies responsible for establishing, maintaining and publishing the lists, the place of publication, the CERTIFICATES used to sign or seal them and any changes thereto. Paragraph 4: The Commission shall make that information available to the public in a secure, signed or sealed form suitable for automated processing.		
PURPOSE	<i>Only the central access point of the Commission (List of Trusted Lists) makes 27 national lists usable throughout Europe.</i>		
DEADLINE	without undue delay		
REFERENCES	Article 20(3c) Chain of notification upon withdrawal of status Requires the supervisory body to inform the provider concerned of the withdrawal, and further the body responsible for the trusted list pursuant to Article 22(3) for the purposes of updating it, as well as the competent NIS2 authority. In practice the withdrawal takes effect only once it is visible in the trusted list. Article 21(2) Procedural time limits for the granting of status The supervisory body verifies the fulfilment of the requirements and must request the NIS2 authorities to carry out supervisory actions; they report back within two months. The overall decision is to be taken not later than three months after the notification. Where the time limit is exceeded, the applicant is to be informed, specifying the reasons and a new period. “three months of notification, the supervisory body shall inform the trust service provider specifying the reasons for the delay” ✓ Article 21(2) Article 46c eIDAS Single points of contact Requires each Member State to designate, make public and notify to the Commission a single point of contact for trust services, Wallets and notified electronic identification schemes. Cross-border supervision needs a defined contact; the single point of contact is, among other things, the addressee of the notifications under Article 5e.		
KEY POINT	27 national lists + 1 list of the lists at the Commission.		

COMMISSION MANDATE		L2	Art. 22(5)
TOPIC	Implementing act on the information and the format		
ADDRESSEE	Commission		
CONTENT	The Commission SHALL SPECIFY the information referred to in paragraph 1 and shall define the technical specifications and the formats for trusted lists for the purposes of paragraphs 1 to 4.		

PURPOSE *Without a uniform format, automated evaluation across borders would be impossible.*

DEADLINE **by 18 September 2015 (deadline expired; implemented by Implementing Regulation (EU) 2015/1505)**

REFERENCES — **ETSI TS 119 612 · Trusted lists**

Defines the structure, content and XML format of the trusted lists, including the status information for each service and the history of status changes. Relation to eIDAS: Technical basis of Implementing Regulation (EU) 2015/1505 on Article 22 eIDAS. ● Summary, not verified against the original text

Article 48(2)

Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.

MAY

■ L2

Art. 23(1)–(2)

TOPIC **EU trust mark**

ADDRESSEE *Qualified trust service providers*

CONTENT Paragraph 1: **AFTER** the qualified status referred to in the second subparagraph of Article 21(2) has been indicated in the trusted list, QTSPs **MAY** use the EU trust mark to indicate in a simple, recognisable and clear manner the qualified services they provide. Paragraph 2: Providers using the trust mark **SHALL ENSURE** that a **LINK** to the relevant trusted list is made available on their website.

PURPOSE *A visible, verifiable mark of recognition – the link makes the assertion verifiable by anyone.*

REFERENCES **Article 21(3) Entry in the list as the starting point**

A service may be provided as qualified only once the status has been indicated in the trusted list referred to in Article 22(1). What is decisive is therefore not the decision of the supervisory body but the publicly accessible, signed entry in the list – it is that on which relying parties rely.

Article 22(1) Trusted lists

Each Member State establishes, maintains and publishes lists of the QTSPs and of the qualified services they provide. Paragraph 2 requires those lists to be electronically signed or sealed in a secured manner and suitable for automated processing – a PDF list does not satisfy the provision. Under paragraph 4 the Commission maintains the central access point.

KEY POINT

A right, not an obligation – but whoever uses it MUST provide the link.

COMMISSION MANDATE

□ L3

Art. 23(3)

TOPIC **Implementing act on the design of the trust mark**

ADDRESSEE *Commission*

CONTENT The Commission shall lay down specifications with regard to the form, presentation, composition, size and design of the EU trust mark.

PURPOSE *A trust mark takes effect only if it looks identical throughout the EU.*

DEADLINE **by 1 July 2015 (deadline expired; implemented by Implementing Regulation (EU) 2015/806)**

REFERENCES **Article 48(2)**

Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.

SHALL

■ L1

Art. 24(1)

TOPIC **Verification of identity and attributes – basic obligation**

ADDRESSEE *Qualified trust service providers*

CONTENT When issuing a qualified certificate **OR** a qualified electronic attestation of attributes, the QTSP **SHALL VERIFY** the **IDENTITY** and, if applicable, any **SPECIFIC ATTRIBUTES** of the natural or legal person.

PURPOSE *The verification of identity is the weakest point of every chain of trust – it is here that it is decided whether a certificate is worth anything.*

REFERENCES

REFERENCES	ETSI TS 119 461 · Identity proofing of applicants Describes building blocks and requirements for identity proofing, among them the verification of identity documents, biometric procedures, liveness detection, remote and automated procedures as well as the reuse of identities already verified. Relation to eIDAS: The authoritative standard for Article 24(1a) and (1b) eIDAS, in particular for point (c) – those 'other methods with a high level of confidence' whose conformity must be confirmed by a conformity assessment body. Because of Article 51(4) eIDAS it is in practice indispensable for existing providers by 21 May 2026. ● Summary, not verified against the original text Significance here: The authoritative technical standard for point (c) of paragraphs 1a and 1b – in particular for remote identification.	Article 24(1c) Implementing act on the verification of identity Empowers the Commission to establish a list of reference standards and, where necessary, specifications and procedures for the verification of identity and attributes in accordance with paragraphs 1, 1a and 1b. For existing providers this act is in practice indispensable because of the obligation to provide evidence under Article 51(4).
	Article 24(1a) Four methods of identity verification An exhaustive list: (a) the Wallet or a notified electronic identification means with assurance level high, (b) a certificate of a qualified electronic signature or of a qualified electronic seal issued in compliance with point (a), (c) or (d), (c) other methods which ensure identification with a high level of confidence, the conformity of which is confirmed by a conformity assessment body, (d) physical presence. Point (c) is the gateway for video identification and comparable remote procedures – but only with CAB confirmation.	Article 51(4) Obligation of existing QTSPs to provide evidence Providers that were granted qualified status before 20 May 2024 must submit to the supervisory body, by 21 May 2026 at the latest, a conformity assessment report proving compliance with Article 24(1), (1a) and (1b) – that is, with the new rules on the verification of identity and attributes. In practice the most important retrofitting deadline for existing providers. Significance here: Existing providers must prove compliance with paragraphs 1, 1a and 1b by 21 May 2026 by means of a report.
KEY POINT	eIDAS 2.0 separates cleanly: paragraph 1a = identity, paragraph 1b = attributes. Two lists, not one.	

	SHALL	L1	Art. 24(1a) (a)–(d)
TOPIC	The four permissible methods of identity verification		
ADDRESSEE	Qualified trust service providers		
CONTENT	The verification of identity shall be performed directly or by means of a third party by ONE of the following methods or by a combination thereof: (a) by means of the EUROPEAN DIGITAL IDENTITY WALLET or a notified electronic identification means with LoA HIGH ; (b) by means of a certificate of a QES or of a qualified electronic seal issued in compliance with point (a), (c) or (d); (c) by using OTHER identification methods which ensure a HIGH LEVEL OF CONFIDENCE and the conformity of which is C ONFIRMED BY A CONFORMITY ASSESSMENT BODY ; (d) through the PHYSICAL PRESENCE of the person or of an authorised representative in accordance with national law.		
PURPOSE	Point (c) is the entry path for video identification and other remote procedures – but only with CAB confirmation.		
REFERENCES	ETSI TS 119 461 · Identity proofing of applicants Describes building blocks and requirements for identity proofing, among them the verification of identity documents, biometric procedures, liveness detection, remote and automated procedures as well as the reuse of identities already verified. Relation to eIDAS: The authoritative standard for Article 24(1a) and (1b) eIDAS, in particular for point (c) – those 'other methods with a high level of confidence' whose conformity must be confirmed by a conformity assessment body. Because of Article 51(4) eIDAS it is in practice indispensable for existing providers by 21 May 2026. ● Summary, not verified against the original text Significance here: The authoritative technical standard for point (c) of paragraphs 1a and 1b – in particular for remote identification.	Article 51(4) Obligation of existing QTSPs to provide evidence Providers that were granted qualified status before 20 May 2024 must submit to the supervisory body, by 21 May 2026 at the latest, a conformity assessment report proving compliance with Article 24(1), (1a) and (1b) – that is, with the new rules on the verification of identity and attributes. In practice the most important retrofitting deadline for existing providers. Significance here: Existing providers must prove compliance with paragraphs 1, 1a and 1b by 21 May 2026 by means of a report.	
	Article 24(1c) Implementing act on the verification of identity Empowers the Commission to establish a list of reference standards and, where necessary, specifications and procedures for the verification of identity and attributes in accordance with paragraphs 1, 1a and 1b. For existing providers this act is in practice indispensable because of the obligation to provide evidence under Article 51(4).	Article 8 Assurance levels of electronic identification schemes Requires in paragraph 1 that the assurance level attributed be specified, defines in paragraph 2 the scale low, substantial and high by reference to its effect against misuse of identity, and empowers the Commission in paragraph 3 to lay down minimum requirements for six fields: identity proofing and verification, issuance of the means, authentication mechanism, issuing entity, other bodies involved and the technical specifications of the means.	

REFERENCES Article 5a

European Digital Identity Wallets With 24 paragraphs the longest article of the Regulation and the centrepiece of eIDAS 2.0. It governs the obligation to provide and the deadline (paragraph 1), the three ways of providing (paragraph 2), open source (paragraph 3), the seven user functions (paragraph 4), the mandatory technical properties with eleven interfaces (paragraph 5), revocation, absence of charge, separation of data, voluntariness and unlinkability (paragraphs 9 to 16) as well as notification obligations, the reference on liability, accessibility, exceptions and the two implementing acts (paragraphs 18 to 24).

KEY POINT

Wallet/eID high – certificate – CAB-confirmed procedure – in person. Four routes, no fifth.

SHALL

■ L1

Art. 24(1b) (a)–(e)**TOPIC The five methods of attribute verification****ADDRESSEE** *Qualified trust service providers*

CONTENT The verification of attributes shall be performed by: (a) the European Digital Identity Wallet or a notified electronic identification means with LoA high; (b) a certificate of a QES/of a qualified electronic seal in accordance with paragraph 1a, point (a), (c) or (d); (c) a **QUALIFIED ELECTRONIC ATTESTATION OF ATTRIBUTES**; (d) other methods with a high level of confidence and CAB confirmation; (e) physical presence.

PURPOSE *The QEAA (point (c)) itself becomes an admissible means of evidence – here the circle between Section 3 and Section 9 closes.*

REFERENCES Annex V

Annex V – qualified electronic attestations of attributes Nine mandatory items, (a) to (i). At its core is point (d): the attested attributes including their scope of validity. Point (g) requires – unlike Annexes I and III – a **QUALIFIED** electronic signature or a qualified electronic seal of the issuing QTSP.

Article 24(1c)

Implementing act on the verification of identity Empowers the Commission to establish a list of reference standards and, where necessary, specifications and procedures for the verification of identity and attributes in accordance with paragraphs 1, 1a and 1b. For existing providers this act is in practice indispensable because of the obligation to provide evidence under Article 51(4).

Article 45d

Requirements for the qualified EAA Refers to Annex V and prohibits additional mandatory requirements. Noteworthy is Annex V, point (g): it requires a **QUALIFIED** signature or a qualified seal of the issuing QTSP, whereas Annexes I and III require only an advanced form at the same point. Under paragraph 4 the revocation is final.

Article 45e Verification of attributes against authentic sources

Requires the Member States, at least for the eleven attributes listed in Annex VI – wherever those attributes rely on authentic sources within the public sector – to take measures allowing qualified providers to verify them by electronic means at the request of the user. Without a connection to the registers an attestation of attributes would be a mere assertion. The deadline follows the same anchor as the provision of the Wallet.

KEY POINT

Five instead of four: for attributes the QEAA is added as point (c).

COMMISSION MANDATE

■ L1

Art. 24(1c)**TOPIC Implementing act on the verification of identity and attributes****ADDRESSEE** *Commission*

CONTENT Implementing act with a list of reference standards and, where necessary, specifications and procedures for the verification of identity and attributes in accordance with paragraphs 1, 1a and 1b.

PURPOSE *Without uniform requirements, video identification in particular would be regulated differently in every Member State.*

DEADLINE **by 21 May 2025**

REFERENCES

REFERENCES

ETSI TS 119 461 · Identity proofing of applicants Describes building blocks and requirements for identity proofing, among them the verification of identity documents, biometric procedures, liveness detection, remote and automated procedures as well as the reuse of identities already verified. Relation to eIDAS: The authoritative standard for Article 24(1a) and (1b) eIDAS, in particular for point (c) – those 'other methods with a high level of confidence' whose conformity must be confirmed by a conformity assessment body. Because of Article 51(4) eIDAS it is in practice indispensable for existing providers by 21 May 2026. ● Summary, not verified against the original text Significance here: The authoritative technical standard for point (c) of paragraphs 1a and 1b – in particular for remote identification.

Article 51(4)

Obligation of existing QTSPs to provide evidence Providers that were granted qualified status before 20 May 2024 must submit to the supervisory body, by 21 May 2026 at the latest, a conformity assessment report proving compliance with Article 24(1), (1a) and (1b) – that is, with the new rules on the verification of identity and attributes. In practice the most important retrofitting deadline for existing providers. Significance here: Existing providers must prove compliance with paragraphs 1, 1a and 1b by 21 May 2026 by means of a report.

Article 48(2)

Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.

KEY POINT

Remember the link: Article 24(1)/(1a)/(1b) + Article 51(4) = retrofitting deadline 21 May 2026.

SHALL

■ L1

Art. 24(2) (a)

TOPIC **Notification of changes and cessation of activities**ADDRESSEE *Qualified trust service providers*

CONTENT QTSPs **SHALL** inform the supervisory body **AT LEAST ONE MONTH** before implementing any change in the provision of their qualified trust services and **AT LEAST THREE MONTHS** in advance in the case of an intended **CESSATION** of those activities. The supervisory body may request additional information or the result of a conformity assessment and may make the granting of the permission subject to conditions; where the verification is not concluded within three months, the provider shall be informed, specifying the reasons.

PURPOSE *Changes to a qualified service may affect its conformity – the supervisory body must be involved beforehand.*

DEADLINE **1 month (change) / 3 months (cessation)**

REFERENCES

Article 24(2) Catalogue of QTSP obligations

The central catalogue, in practice the structure of every audit: (a) notification duties (one month for changes, three months for cessation), (b) qualified and trained staff in accordance with European or international standards, (c) sufficient financial resources or liability insurance, (d) pre-contractual information, (e) trustworthy systems including suitable cryptographic techniques, (f) verifiable data storage, (fa) risk management, (fb) 24-hour notification, (g) protection against forgery and data loss, (h) recording duty extending beyond the cessation of activities, (i) termination plan, (k) certificate database. Point (j) was deleted – the gap is intentional.

Article 46b(4)

Catalogue of tasks of the supervisory body Eleven tasks, among them notification of the NIS2 authorities, the ANALYSIS OF THE CONFORMITY ASSESSMENT REPORTS (point (c)), audits, cooperation with the data protection authorities, granting and withdrawal of qualified status, informing the body responsible for the trusted list, the VERIFICATION OF THE TERMINATION PLANS (point (i)) as well as the investigation of web-browser notifications under Article 45a (point (k)).

KEY POINT

One month for changes, three months for the exit.

SHALL

■ L1

Art. 24(2) (b)

TOPIC **Staff and subcontractors**ADDRESSEE *Qualified trust service providers*

CONTENT QTSPs **SHALL** employ staff and, if applicable, subcontractors who possess the necessary **EXPERTISE, RELIABILITY, EXPERIENCE** and **QUALIFICATIONS**, appropriately **TRAINED** regarding security and personal data protection, and **SHALL** apply administrative and management procedures which correspond to **EUROPEAN OR INTERNATIONAL STANDARDS**.

PURPOSE *The link to recognised standards is the entry point for ISO/IEC 27001 and ETSI EN 319 401 in the audit.*

REFERENCES

REFERENCES

ETSI EN 319 401 · General policy requirements for trust service providers The base standard of every trust service audit. It deals, among other things, with risk assessment, the practice statement and terms and conditions, organisation and reliability of staff, facility and access security, operational and network security, incident management, records, business continuity and the termination of the service. Relationship to eIDAS: gives concrete form to Article 24(2), points (b), (e), (fa), (g), (h) and (i) eIDAS as well as to Article 19a(1), point (a) eIDAS. Through the formula 'European or international standards' in point (b) it is at the same time the bridge to ISO/IEC 27001. ● Summary of content, not verified against the original text Relevance here: gives concrete form to points (b) and (fa); through the formula 'European or international standards' it is the point of attachment for ISO/IEC 27001. ISO/IEC 27001 · Information security management system Lays down requirements for the establishment, implementation, maintenance and continual improvement of an ISMS, including risk assessment and risk treatment as well as the control objectives of Annex A. Relationship to eIDAS: not named as such in eIDAS, but through the formula 'European or international standards' in Article 24(2), point (b) eIDAS and through ETSI EN 319 401 the practical frame of reference. It also covers large parts of Article 21(2) NIS2. ● Summary of content, not verified against the original text

Article 5a(20)

Partial application of the catalogue of QTSP obligations Declares Article 24(2), points (b) and (d) to (h), applicable mutatis mutandis to Wallet providers: qualified staff, pre-contractual information, trustworthy systems and cryptography, verifiable storage, risk management, 24-hour notification, protection against forgery and the recording duty. Points (a), (c), (i) and (k) are not taken over – a Wallet provider does not thereby become a QTSP.

KEY POINT

Point (b) is the ISMS bridge: 'European or international standards' means, in practice, ISO 27001 / ETSI EN 319 401.

SHALL

■ L1

Art. 24(2)(c)

TOPIC **Financial resources and liability insurance**ADDRESSEE *Qualified trust service providers*

CONTENT With regard to the risk of liability for damages in accordance with Article 13, QTSPs **SHALL** maintain **SUFFICIENT FINANCIAL RESOURCES AND/OR** obtain **APPROPRIATE LIABILITY INSURANCE** in accordance with national law.

PURPOSE *Liability without assets to cover it would be ineffective – financial capacity is part of trustworthiness.*

REFERENCES

Article 13 Liability and burden of proof

Establishes the liability of all trust service providers for material and non-material damage caused intentionally or negligently and allocates the burden of proof: with a non-qualified provider it lies with the injured party, with a qualified provider intention or negligence is presumed. Paragraph 2 permits a limitation of liability by means of limitations on use, provided that the customer is informed in advance and the limitation remains recognisable to third parties. Paragraph 3 refers to national liability law.

Article 16

Penalties Requires the Member States to lay down effective, proportionate and dissuasive rules on penalties and, in paragraph 2, sets a maximum administrative fine of at least EUR 5 million, or, in the case of legal persons, EUR 5 million or 1 % of the total worldwide annual turnover of the preceding year. Paragraph 3 allows the supervisory body to initiate the procedure and a national court to impose the fine. Article 31 of the NIS 2 Directive remains unaffected.

KEY POINT

'And/or' – own funds or insurance or both.

SHALL

■ L1

Art. 24(2)(d)

TOPIC **Pre-contractual information of users**ADDRESSEE *Qualified trust service providers*

CONTENT QTSPs **SHALL** inform any person seeking to use the service, in a **CLEAR, COMPREHENSIVE** and **EASILY ACCESSIBLE** manner, in a **PUBLICLY ACCESSIBLE SPACE AND INDIVIDUALLY**, of the precise terms and conditions regarding the use of that service, including any **LIMITATIONS ON ITS USE** – and that **BEFORE** entering into a contractual relationship.

PURPOSE *Link to Article 13(2): only a provider that informs beforehand can effectively limit its liability.*

DEADLINE **before conclusion of the contract**

REFERENCES

REFERENCES **Article 13(2)**

Limitation of liability by limitation of use Permits liability for use going beyond the intended use to be excluded – but only where there is double transparency: due prior information of the customer AND recognisability of the limitation to third parties. In practice this means machine-readable limitations in the certificate, not just a clause in the terms and conditions.

Article 5a(20)

Partial application of the catalogue of QTSP obligations Declares Article 24(2), points (b) and (d) to (h), applicable mutatis mutandis to Wallet providers: qualified staff, pre-contractual information, trustworthy systems and cryptography, verifiable storage, risk management, 24-hour notification, protection against forgery and the recording duty. Points (a), (c), (i) and (k) are not taken over – a Wallet provider does not thereby become a QTSP.

Article 15 Accessibility for persons with disabilities and special needs

Requires that electronic identification means, trust services AND the end-user products used in the provision of those services be made available in plain and intelligible language – in accordance with the United Nations Convention on the Rights of Persons with Disabilities and with the accessibility requirements of Directive (EU) 2019/882. Elderly persons and persons with limited access to digital technologies are expressly included as well. eIDAS 2.0 deleted the earlier qualification 'where feasible'.

KEY POINT

Double information: publicly AND individually. Both, not one of them.

SHALL

■ L1

Art. 24(2)(e)

TOPIC **Trustworthy systems and products**ADDRESSEE *Qualified trust service providers*

CONTENT QTSPs **SHALL** use trustworthy systems and products that are **PROTECTED AGAINST MODIFICATION** and ensure the technical security and reliability of the processes supported by them – **INCLUDING** using **SUITABLE CRYPTOGRAPHIC TECHNIQUES**.

PURPOSE *The express mention of cryptography was added by eIDAS 2.0 and makes algorithm management mandatory.*

REFERENCES —

ETSI TS 119 312 · Cryptographic suites Recommends algorithms, key lengths and parameters for signatures, seals and hash functions and states the time horizons up to which they are considered suitable. Relationship to eIDAS: the practical yardstick for the wording 'including using suitable cryptographic techniques' in Article 24(2), point (e) eIDAS – and thus for planning the change of algorithms. ● Summary of content, not verified against the original text

Annex II

Annex II – qualified electronic signature creation devices Point 1 requires, in four sub-points, that the confidentiality of the electronic signature creation data be ensured, that those data occur practically only once, that they cannot be derived and that they are protected against use by others. Point 2 prohibits the device from altering the data to be signed or from preventing those data from being presented to the signatory prior to signing. Sub-point (d) of point 1 is modified by Article 29a(1), point (b), for the remote signature case.

Article 29

Requirements for qualified electronic signature creation devices Refers to Annex II for the requirements and contains, in paragraph 1a, the central innovation of eIDAS 2.0: electronic signature creation data may be generated, managed or duplicated only on behalf of the signatory, at the request of the signatory and by a qualified trust service provider providing a qualified trust service for the management of a remote qualified electronic signature creation device under Article 29a. Paragraph 2 empowers the Commission to establish reference numbers of relevant standards.

Article 30 Certification of qualified electronic signature creation devices

Provides that conformity with Annex II is certified by appropriate public or private bodies designated by the Member States – to be distinguished from the conformity assessment bodies of Article 20. The basis is a security evaluation process in accordance with a listed standard or, in the alternative, an equivalent notified process. New is the five-year limit with a vulnerability assessment every two years.

KEY POINT

'Including cryptographic techniques' is new – post-quantum planning falls under this.

SHALL

■ L1

Art. 24(2)(f)(i) – (iii)

TOPIC **Trustworthy data storage**ADDRESSEE *Qualified trust service providers*

CONTENT QTSPs **SHALL** use trustworthy systems to store the data provided to them in a **VERIFIABLE** form, so that (i) they are publicly available for retrieval only **WITH THE CONSENT** of the person to whom the data relates, (ii) only **AUTHORISED PERSONS** can make entries and changes to the data, (iii) the data **CAN BE CHECKED FOR AUTHENTICITY**.

PURPOSE *Defines confidentiality, integrity and authenticity for the data holdings of the QTSP.*

REFERENCES

REFERENCES Article 24(2) Catalogue of QTSP obligations

The central catalogue, in practice the structure of every audit: (a) notification duties (one month for changes, three months for cessation), (b) qualified and trained staff in accordance with European or international standards, (c) sufficient financial resources or liability insurance, (d) pre-contractual information, (e) trustworthy systems including suitable cryptographic techniques, (f) verifiable data storage, (fa) risk management, (fb) 24-hour notification, (g) protection against forgery and data loss, (h) recording duty extending beyond the cessation of activities, (i) termination plan, (k) certificate database. Point (j) was deleted – the gap is intentional.

Article 24(3) Revocation within 24 hours

The QTSP registers the revocation in its certificate database and publishes the revocation status in a timely manner, in any event within 24 hours after RECEIPT OF THE REQUEST – not after its own decision. The revocation becomes effective only upon publication; a revocation that has not been published protects no one.

“publish the revocation status of the certificate in a timely manner, and in any event within 24 hours after the receipt of the request. The revocation shall become effective immediately upon its publication”

✓ Article 24(3) eIDAS

KEY POINT

Three points = three protection goals: confidentiality, integrity, authenticity.

SHALL

■ L1

Art. 24(2)(fa)(i) – (iii)

TOPIC Risk management of the QTSP

ADDRESSEE Qualified trust service providers

CONTENT Notwithstanding Article 21 NIS2, QTSPs **SHALL** have appropriate policies and **SHALL** take corresponding measures to manage legal, business, operational and other direct or indirect risks – including at least measures related to (i) registration and onboarding procedures, (ii) procedural or administrative checks, (iii) the management and implementation of services.

PURPOSE *Word-for-word counterpart of Article 19a(1), point (a) – the common risk management baseline for all trust services.*

REFERENCES Article 21 NIS2 Cybersecurity risk-management measures

The substantive core provision of the Directive and at the same time an object of examination in every QTSP audit under Article 20(1) eIDAS. Paragraph 1 requires appropriate and proportionate technical, operational and organisational measures following an all-hazards approach, measured against the risk, the size, the likelihood of occurrence and the severity of possible impacts. Paragraph 2 names ten minimum areas. Paragraph 3 requires the vulnerabilities specific to each individual direct supplier in the supply chain to be taken into account. Paragraph 4 requires corrective measures to be taken without undue delay where the requirements are not met. a) policies on risk analysis and information system security b) incident handling c) business continuity – backup management, disaster recovery, crisis management d) supply chain security, including the relationships with direct suppliers and service providers e) security in the acquisition, development and maintenance of network and information systems, including vulnerability handling and disclosure f) policies and procedures to assess the effectiveness of the risk-management measures g) basic cyber hygiene practices and cybersecurity training h) policies and procedures regarding the use of cryptography and, where appropriate, encryption i) human resources security, access control policies and asset management j) the use of multi-factor authentication or continuous authentication, secured voice, video and text communications as well as secured emergency communication Relationship to eIDAS: the conformity assessment report under Article 20(1) and Article 21(1) eIDAS must also cover compliance with these ten areas – a purely eIDAS audit is not sufficient. Article 24(2), point (fa) eIDAS supplements them with three fields of its own (registration and onboarding, procedural and administrative checks, management and implementation). Summary of content, not verified against the original text ETSI EN 319 401 · General policy requirements for trust service providers The base standard of every trust service audit. It deals, among other things, with risk assessment, the practice statement and terms and conditions, organisation and reliability of staff, facility and access security, operational and network security, incident management, records, business continuity and the termination of the service. Relationship to eIDAS: gives concrete form to Article 24(2), points (b), (e), (fa), (g), (h) and (i) eIDAS as well as to Article 19a(1), point (a) eIDAS. Through the formula 'European or international standards' in point (b) it is at the same time the bridge to ISO/IEC 27001. Summary of content, not verified against the original text

● summary, not verified

Relevance: gives concrete form to points (b) and (fa); through the formula 'European or international standards' it is the point of attachment for ISO/IEC 27001.

Article 19a(1)

Security baseline for non-qualified providers Point (a) requires policies and measures to manage risk, at least with regard to registration and onboarding procedures, procedural and administrative checks as well as the management and implementation of the services – word for word identical with Article 24(2), point (fa) for QTSPs. Point (b) requires the notification of significant security breaches within 24 hours of BECOMING AWARE. Before eIDAS 2.0, non-qualified providers were practically unregulated.

Article 24(4b)

Delegated act on risk management Empowers the Commission to adopt delegated acts in accordance with Article 47 establishing additional measures within the meaning of paragraph 2, point (fa). It is a delegated act, not an implementing act – with a right of objection for Parliament and Council.

KEY POINT

Point (fa) and Article 19a(1), point (a) are built identically. Whoever can do one can do both.

SHALL

■ L1

Art. 24(2) (fb)

TOPIC **24-hour notification duty of the QTSP**ADDRESSEE *Qualified trust service providers*

CONTENT QTSPs **SHALL** notify the supervisory body, the identifiable affected individuals, other relevant competent bodies where applicable and – **AT THE REQUEST OF THE SUPERVISORY BODY** – the public (where it is of public interest) **WITHOUT UNDUE DELAY**, and in any event **WITHIN 24 HOURS OF THE INCIDENT**, of any security breaches or disruptions that have a significant impact.

PURPOSE *Difference from Article 19a(1), point (b): here the deadline runs FROM THE INCIDENT, not from becoming aware – and the public is informed only at the request of the supervisory body.*

DEADLINE **24 hours of the incident**REFERENCES **Article 33 GDPR Notification of a personal data breach to the supervisory authority**

Requires the controller to notify a personal data breach without undue delay and, where feasible, within 72 hours after having become aware of it, unless the breach is unlikely to result in a risk. Later notifications must be reasoned. The processor notifies the controller without undue delay. The notification must contain the nature of the breach, the categories and approximate number of data subjects, the contact point, the likely consequences and the measures taken. Relationship to eIDAS: considerably more generous than eIDAS: Article 24(2), point (fb) eIDAS requires 24 hours after the incident. One incident may trigger both notification duties at the same time – with different deadlines, addressees and content. Summary of content, not verified against the original text

● summary, not verified

Article 23 NIS2 Reporting obligations for significant incidents

Requires significant incidents to be notified without undue delay to the CSIRT or the competent authority and the recipients of the services to be informed. An incident is significant where it has caused or is capable of causing severe operational disruption or financial loss, or where it has affected or is capable of affecting other natural or legal persons by causing considerable material or non-material damage. Notification is staged. Early warning: without undue delay, in any event within 24 hours of becoming aware Incident notification: without undue delay, in any event within 72 hours Intermediate report: at the request of the CSIRT or the competent authority Final report: not later than one month after the incident notification Progress report: where the incident is still ongoing at the expiry of that period Relationship to eIDAS: not to be confused with the eIDAS deadlines: Article 24(2), point (fb) eIDAS requires 24 hours AFTER THE INCIDENT, Article 19a(1), point (b) eIDAS 24 hours after BECOMING AWARE – the NIS2 early warning of 24 hours likewise runs from awareness, but is followed by a full notification within 72 hours. A QTSP thus has parallel reporting channels to serve. Summary of content, not verified against the original text

● summary, not verified

Article 19a(1)

Security baseline for non-qualified providers Point (a) requires policies and measures to manage risk, at least with regard to registration and onboarding procedures, procedural and administrative checks as well as the management and implementation of the services – word for word identical with Article 24(2), point (fa) for QTSPs. Point (b) requires the notification of significant security breaches within 24 hours of BECOMING AWARE. Before eIDAS 2.0, non-qualified providers were practically unregulated.

Article 46b(4)

Catalogue of tasks of the supervisory body Eleven tasks, among them notification of the NIS2 authorities, the ANALYSIS OF THE CONFORMITY ASSESSMENT REPORTS (point (c)), audits, cooperation with the data protection authorities, granting and withdrawal of qualified status, informing the body responsible for the trusted list, the VERIFICATION OF THE TERMINATION PLANS (point (i)) as well as the investigation of web-browser notifications under Article 45a (point (k)).

KEY POINT

QTSP: from the incident. TSP: from awareness. The QTSP has it stricter.

SHALL

■ L1

Art. 24(2) (g)

TOPIC **Protection against forgery and data loss**ADDRESSEE *Qualified trust service providers*

CONTENT QTSPs **SHALL** take appropriate measures against **FORGERY**, **THEFT** or **MISAPPROPRIATION** of data as well as against, without right, **DELETING**, **ALTERING** or **RENDERING** data **INACCESSIBLE**.

PURPOSE *Besides confidentiality it expressly covers AVAILABILITY as well ('rendering inaccessible') – the point of attachment for ransomware.*

REFERENCES

REFERENCES	Article 21 NIS2 Cybersecurity risk-management measures The substantive core provision of the Directive and at the same time an object of examination in every QTSP audit under Article 20(1) eIDAS. Paragraph 1 requires appropriate and proportionate technical, operational and organisational measures following an all-hazards approach, measured against the risk, the size, the likelihood of occurrence and the severity of possible impacts. Paragraph 2 names ten minimum areas. Paragraph 3 requires the vulnerabilities specific to each individual direct supplier in the supply chain to be taken into account. Paragraph 4 requires corrective measures to be taken without undue delay where the requirements are not met. a) policies on risk analysis and information system security b) incident handling c) business continuity – backup management, disaster recovery, crisis management d) supply chain security, including the relationships with direct suppliers and service providers e) security in the acquisition, development and maintenance of network and information systems, including vulnerability handling and disclosure f) policies and procedures to assess the effectiveness of the risk-management measures g) basic cyber hygiene practices and cybersecurity training h) policies and procedures regarding the use of cryptography and, where appropriate, encryption i) human resources security, access control policies and asset management j) the use of multi-factor authentication or continuous authentication, secured voice, video and text communications as well as secured emergency communication Relationship to eIDAS: the conformity assessment report under Article 20(1) and Article 21(1) eIDAS must also cover compliance with these ten areas – a purely eIDAS audit is not sufficient. Article 24(2), point (fa) eIDAS supplements them with three fields of its own (registration and onboarding, procedural and administrative checks, management and implementation). Summary of content, not verified against the original text ● summary, not verified
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Article 24(2) Catalogue of QTSP obligations

The central catalogue, in practice the structure of every audit: (a) notification duties (one month for changes, three months for cessation), (b) qualified and trained staff in accordance with European or international standards, (c) sufficient financial resources or liability insurance, (d) pre-contractual information, (e) trustworthy systems including suitable cryptographic techniques, (f) verifiable data storage, (fa) risk management, (fb) 24-hour notification, (g) protection against forgery and data loss, (h) recording duty extending beyond the cessation of activities, (i) termination plan, (k) certificate database. Point (j) was deleted – the gap is intentional.

KEY POINT

Six dangers: forge, steal, misappropriate, delete, alter, render inaccessible.

	SHALL	■ L1	Art. 24(2) (h)
TOPIC	Recording and retention duty		
ADDRESSEE	Qualified trust service providers		
CONTENT	QTSPs SHALL RECORD all relevant information concerning data issued and received and SHALL KEEP it accessible EVEN AFTER THE ACTIVITIES HAVE CEASED for as long as necessary, in order to be able to provide evidence in LEGAL PROCEEDINGS and to ensure the CONTINUITY of the service. Such recording may be done electronically.		
PURPOSE	<i>Without records the QTSP cannot exculpate itself under Article 13(1), third subparagraph – point (h) is the practical precondition of the reversal of the burden of proof.</i>		
DEADLINE	'for as long as necessary' – the specific duration follows from national law		
REFERENCES	Article 13(1) Liability and reversal of the burden of proof Trust service providers are liable for damage caused intentionally or negligently, expressly including non-material damage – an extension introduced by eIDAS 2.0. The decisive difference is set out in the second and third subparagraphs: with a non-qualified provider the injured party must prove intention or negligence, with a qualified provider both are presumed unless that provider exculpates itself. Only thereby does qualified status acquire a value in liability law. Article 46b(4) Catalogue of tasks of the supervisory body Eleven tasks, among them notification of the NIS2 authorities, the ANALYSIS OF THE CONFORMITY ASSESSMENT REPORTS (point (c)), audits, cooperation with the data protection authorities, granting and withdrawal of qualified status, informing the body responsible for the trusted list, the VERIFICATION OF THE TERMINATION PLANS (point (i)) as well as the investigation of web-browser notifications under Article 45a (point (k)).		
KEY POINT	Point (h) outlives the undertaking – the duty does not end with operations.		

	SHALL	■ L1	Art. 24(2) (i)
TOPIC	Termination plan		
ADDRESSEE	Qualified trust service providers		
CONTENT	QTSPs SHALL HAVE an UP-TO-DATE TERMINATION PLAN to ensure the continuity of the service in accordance with provisions that are verified by the supervisory body pursuant to Article 46b(4), point (i).		

PURPOSE *A certificate can remain valid longer than its issuer exists – the termination plan protects users against the failure of the provider. (Point (j) was deleted by eIDAS 2.0.)*

DEADLINE **to be kept up to date on an ongoing basis**

REFERENCES **Article 46b(4)**

Catalogue of tasks of the supervisory body Eleven tasks, among them notification of the NIS2 authorities, the ANALYSIS OF THE CONFORMITY ASSESSMENT REPORTS (point (c)), audits, cooperation with the data protection authorities, granting and withdrawal of qualified status, informing the body responsible for the trusted list, the VERIFICATION OF THE TERMINATION PLANS (point (i)) as well as the investigation of web-browser notifications under Article 45a (point (k)).

Article 24(2) Catalogue of QTSP obligations

The central catalogue, in practice the structure of every audit: (a) notification duties (one month for changes, three months for cessation), (b) qualified and trained staff in accordance with European or international standards, (c) sufficient financial resources or liability insurance, (d) pre-contractual information, (e) trustworthy systems including suitable cryptographic techniques, (f) verifiable data storage, (fa) risk management, (fb) 24-hour notification, (g) protection against forgery and data loss, (h) recording duty extending beyond the cessation of activities, (i) termination plan, (k) certificate database. Point (j) was deleted – the gap is intentional.

KEY POINT

Mind the gap: point (i) is followed by point (k) – point (j) no longer exists.

SHALL

■ L2

Art. 24(2) (k)

TOPIC **Certificate database**

ADDRESSEE *QTSPs issuing qualified certificates*

CONTENT QTSPs issuing qualified certificates **SHALL ESTABLISH a CERTIFICATE DATABASE and KEEP IT UPDATED.**

PURPOSE *Basis for revocation management and status enquiry – without an up-to-date database Article 24(3)/(4) cannot be complied with.*

REFERENCES **Article 24(3) Revocation within 24 hours**

The QTSP registers the revocation in its certificate database and publishes the revocation status in a timely manner, in any event within 24 hours after RECEIPT OF THE REQUEST – not after its own decision. The revocation becomes effective only upon publication; an unpublished revocation protects no one.

“publish the revocation status of the certificate in a timely manner, and in any event within 24 hours after the receipt of the request. The revocation shall become effective immediately upon its publication.”

✓ Article 24(3)

Article 24(4) eIDAS Permanent status information

The QTSP makes information on the validity and revocation status available to relying parties – at least on a per certificate basis, at any time, beyond the validity period, in an automated manner, reliably, free of charge and efficiently. The addition 'beyond the validity period' is decisive: only in that way can signatures still be validated years later.

Article 28(5) Temporary suspension

Allows the Member States to lay down national rules on the temporary suspension of qualified certificates under two conditions: the certificate loses its validity for the period of suspension, and the period of suspension is to be clearly indicated in the certificate database and the suspension status is to be made visible from the service providing information on the status of the certificate.

Article 38(5) Temporary suspension for seal certificates

Allows national suspension rules under the same conditions as Article 28(5): loss of validity for the period of suspension and clear indication of the period in the certificate database as well as in the status service.

KEY POINT

Applies only to certificate-issuing QTSPs – not, for example, to pure time-stamping services.

SHALL

■ L1

Art. 24(3)

TOPIC **Revocation within 24 hours**

ADDRESSEE *QTSPs issuing qualified certificates*

CONTENT If a QTSP decides to revoke a certificate, it **SHALL REGISTER** such revocation in its certificate database and **SHALL PUBLISH** the revocation status **IN A TIMELY MANNER, IN ANY EVENT WITHIN 24 HOURS** after the receipt of the request. The revocation **SHALL BECOME EFFECTIVE IMMEDIATELY UPON ITS PUBLICATION.**

PURPOSE *An unpublished revocation protects no one – only publication produces effect.*

DEADLINE **24 hours from receipt of the request**

REFERENCES **Article 24(4) Permanent status information**

The QTSP makes information on the validity and revocation status available to relying parties – at least on a per certificate basis, at any time, beyond the validity period, in an automated manner, reliably, free of charge and efficiently. The addition 'beyond the validity period' is decisive: only in that way can signatures still be validated years later.

Article 24(4a) Extension to attestations of attributes

Provides that paragraphs 3 and 4 apply accordingly to the revocation of qualified electronic attestations of attributes. The 24-hour time limit and the permanent status information thus apply there as well.

REFERENCES Article 28(4) Finality of revocation

A revoked qualified certificate loses its validity and its status shall not in any circumstances be reverted. A reversible intermediate stage exists only by way of the suspension under paragraph 5, the period of which must be visible in the certificate database. The same finality applies under Article 38(4), Article 45d(4) and Article 45f(4).

Article 38(4) Finality of revocation

Provides that a revoked qualified certificate for electronic seal is no longer valid from the moment of its revocation and that its status shall not in any circumstances be reverted.

Article 45d(4) Finality of revocation

Provides that a revoked qualified electronic attestation of attributes is no longer valid from the moment of its revocation and shall not in any circumstances regain validity.

KEY POINT

24 hours from the REQUEST, not from the decision. Effective upon publication.

SHALL

■ L1

Art. 24(4)

TOPIC Status information to relying parties

ADDRESSEE QTSPs issuing qualified certificates

CONTENT QTSPs **SHALL PROVIDE** relying parties (**RP**) with information on the **VALIDITY OR REVOCATION STATUS** – at least on a per certificate basis, **AT ANY TIME, BEYOND THE VALIDITY PERIOD**, in an **AUTOMATED** manner, **RELIABLY, FREE OF CHARGE** and **EFFICIENTLY**.

PURPOSE *Signatures must still be capable of validation years later – hence the duty extending beyond the validity period.*

DEADLINE **at any time, without time limit beyond the validity period**

REFERENCES Annex I

Annex I – qualified certificates for electronic signatures Ten mandatory items (a) to (j): machine-readable indication that the certificate is a qualified certificate, a data set on the issuing QTSP including its Member State of establishment, name OR pseudonym of the signatory, signature validation data, period of validity, unique identity code, advanced electronic signature or advanced electronic seal of the QTSP, the location, free of charge, of the underlying certificate, an indication of the certificate validity status service and an indication whether a QSCD is used.

Article 32(1) The eight verification points of QES validation

The validation confirms validity only where all eight conditions are met: a qualified certificate complying with Annex I at the time of signing, issuance by a QTSP and validity, correspondence of the validation data, correct provision of the data set representing the signatory, clear indication of any pseudonym, creation by a QSCD, integrity of the signed data and fulfilment of Article 26. Point (f) – the QSCD condition – is precisely the point that is missing in Article 32a.

Article 34 Qualified preservation service

Requires procedures and technologies capable of extending the trustworthiness of a qualified signature beyond its technological validity period. Cryptography ages – without preservation a 15-year-old signature loses its evidentiary value. To be distinguished from Article 45j: preservation keeps the SIGNATURE alive, archiving keeps the DOCUMENT alive.

KEY POINT

Five properties: at any time, beyond the validity period, automated, reliable, free of charge.

REFERENCING PROVISION

■ L2

Art. 24(4a)–(4b)

TOPIC Extension to QEAA + delegated act

ADDRESSEE QTSP / Commission

CONTENT Paragraph 4a: Paragraphs 3 and 4 **SHALL APPLY ACCORDINGLY** to the revocation of **QUALIFIED ELECTRONIC ATTESTATIONS OF ATTRIBUTES**. Paragraph 4b: The Commission shall be empowered to adopt **DELEGATED** acts in accordance with Article 47 establishing **ADDITIONAL** measures referred to in paragraph 2, point (fa).

PURPOSE *The QEAA follows the certificate regime; risk management can be deepened by way of a delegated act.*

REFERENCES Article 45d(4) Finality of revocation

Provides that a revoked qualified electronic attestation of attributes is no longer valid from the moment of its revocation and shall not in any circumstances regain validity.

REFERENCES Article 24(2) Catalogue of QTSP obligations

The central catalogue, in practice the structure of every audit: (a) notification duties (one month for changes, three months for cessation), (b) qualified and trained staff in accordance with European or international standards, (c) sufficient financial resources or liability insurance, (d) pre-contractual information, (e) trustworthy systems including suitable cryptographic techniques, (f) verifiable data storage, (fa) risk management, (fb) 24-hour notification, (g) protection against forgery and data loss, (h) recording duty extending beyond the cessation of activities, (i) termination plan, (k) certificate database. Point (j) was deleted – the gap is intentional.

Article 47 Exercise of the delegation

Governs the procedure for delegated acts: the duration of the delegation, revocation at any time by the Parliament or the Council, the consultation of experts and the objection period within which the Parliament or the Council may raise objections. The Regulation refers to Article 47 in only three places: Article 5c(8), Article 24(4b) and Article 30(4).

KEY POINT QEAs inherit the revocation regime of certificates.

COMMISSION MANDATE

■ L1

Art. 24(5)**TOPIC Implementing act on the requirements of paragraph 2****ADDRESSEE** *Commission*

CONTENT Implementing act with a list of reference standards and, where necessary, specifications and procedures for the requirements referred to in paragraph 2. Where those are complied with, the **P RESUMPTION OF CONFORMITY** applies for that paragraph.

PURPOSE *Together with the implementing act under Article 20(4), this implementing act is the most important audit document for QTSPs.*

DEADLINE **by 21 May 2025****REFERENCES — ETSI EN 319 401 · General requirements for trust service providers**

The base standard of every trust service audit. It deals, among other things, with risk assessment, the practice statement and terms and conditions, organisation and reliability of staff, facility and access security, operational and network security, incident management, records, business continuity and the termination of the service. Relationship to eIDAS: gives concrete form to Article 24(2), points (b), (e), (fa), (g), (h) and (i) eIDAS as well as to Article 19a(1), point (a) eIDAS. Through the formula 'European or international standards' in point (b) it is at the same time the bridge to ISO/IEC 27001. ● Summary of content, not verified against the original text Relevance here: gives concrete form to points (b) and (fa); through the formula 'European or international standards' it is the point of attachment for ISO/IEC 27001.

Article 48(2)

Examination procedure Refers to Article 5 of the Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission may not adopt the draft. All implementing acts under this Regulation follow this procedure.

Article 24(2) Catalogue of QTSP obligations

The central catalogue, in practice the structure of every audit: (a) notification duties (one month for changes, three months for cessation), (b) qualified and trained staff in accordance with European or international standards, (c) sufficient financial resources or liability insurance, (d) pre-contractual information, (e) trustworthy systems including suitable cryptographic techniques, (f) verifiable data storage, (fa) risk management, (fb) 24-hour notification, (g) protection against forgery and data loss, (h) recording duty extending beyond the cessation of activities, (i) termination plan, (k) certificate database. Point (j) was deleted – the gap is intentional.

KEY POINT Article 24(5) + Article 20(4) = the audit double pack.

SHALL

■ L1

Art. 24a(1)–(11)**TOPIC EU-wide recognition of qualified trust services****ADDRESSEE** *Member States*

CONTENT Qualified services issued or provided in **ONE** Member State **SHALL BE RECOGNISED** as such **IN ALL OTHER** Member States: (1) QES and qualified electronic seals based on qualified certificates; (2) certified QSCDs and qualified electronic seal creation devices; (3) qualified certificates for electronic signatures/seals as well as qualified trust services for the management of remote qualified electronic signature creation devices and remote qualified electronic seal creation devices; (4) qualified validation services; (5) qualified preservation services; (6) qualified electronic time stamps; (7) qualified certificates for website authentication; (8) qualified **ERDS**; (9) qualified EAA; (10) qualified electronic archiving services; (11) qualified electronic ledgers.

PURPOSE *Without automatic EU-wide recognition, qualified status would be limited nationally – Article 24a is the table of contents of all eleven types of qualified service.*

REFERENCES

REFERENCES Article 22 Trusted lists

Obliges each Member State to establish, maintain and publish lists of the qualified providers and their qualified services – in a secured manner, electronically signed or sealed and in a form suitable for automated processing. The information on the body responsible for the list, the place of publication and the certificates used for signing is to be notified to the Commission without undue delay, which in turn makes it available in a secured form suitable for automated processing.

Article 14 International aspects

Governs the recognition of trust services from third countries or from international organisations as legally equivalent, provided that an implementing act or an agreement pursuant to Article 218 TFEU exists. The act or the agreement must ensure that the requirements applicable to Union providers are complied with and that the third country maintains its own trusted list. Agreements must in addition secure reciprocity.

KEY POINT

LEARNING TIP: Article 24a(1)-(11) is the complete list of all types of qualified service. Ideal for learning by heart.

LEGAL EFFECT

■ L1

Art. 25(1)**TOPIC Prohibition of discrimination for electronic signatures****ADDRESSEE** Courts / Member States

CONTENT An electronic signature **SHALL NOT BE DENIED** legal effect and admissibility as **EVIDENCE** in legal proceedings **SOLELY ON THE GROUNDS** that it is in an electronic form or that it does not meet the requirements for QES.

PURPOSE *Without this basic rule a court could reject any simple signature across the board – the entire signature hierarchy would be worthless.*

REFERENCES Article 35(1)

Prohibition of discrimination for seals Prohibits denying an electronic seal legal effect and admissibility as evidence solely on the grounds that it is in an electronic form or that it does not meet the requirements for qualified electronic seals.

Article 41(1)

Prohibition of discrimination for time stamps Prohibits denying an electronic time stamp legal effect and admissibility as evidence solely on the grounds that it is in an electronic form or that it does not meet the requirements of the qualified electronic time stamp.

Article 43(1)

Prohibition of discrimination for registered delivery services Prohibits denying data sent electronically legal effect and admissibility as evidence solely on the grounds that they are in an electronic form or that they do not meet the requirements of the qualified electronic registered delivery service.

Article 45b(1)

Prohibition of discrimination for attestations of attributes Prohibits denying an electronic attestation of attributes legal effect and admissibility as evidence on the sole ground that it is in electronic form or that it does not meet the requirements for qualified attestations.

Article 45i(1)

Prohibition of discrimination for archived data Prohibits denying electronically archived data and documents legal effect and admissibility as evidence on the sole ground that they are in electronic form or that they do not meet the requirements for qualified electronic archiving services.

Article 45k(1)

Prohibition of discrimination for ledgers Prohibits denying an electronic ledger legal effect and admissibility as evidence solely on the grounds that it is in an electronic form or that it does not meet the requirements for qualified electronic ledgers.

Article 46 Legal effects of electronic documents

The whole of Chapter IV consists of this single article with one sentence: an electronic document shall not be denied legal effect and admissibility as evidence in legal proceedings solely on the grounds that it is in electronic form.

KEY POINT

'Not solely on the grounds' – the prohibition of discrimination runs as paragraph 1 through SEVEN articles.

LEGAL EFFECT

■ L1

Art. 25(2)**TOPIC Equivalence of the QES with a handwritten signature****ADDRESSEE** Courts / Member States

CONTENT A **QUALIFIED** electronic signature **HAS THE SAME LEGAL EFFECT AS A HANDWRITTEN SIGNATURE.**

PURPOSE *The most important sentence in the whole of signature law – only it makes the QES usable in practice.*

REFERENCES

REFERENCES **Article 26**

Requirements for advanced electronic signatures Names four cumulative requirements: unique linkage to the signatory, capability of identifying him, creation using signature creation data under his sole control with a high level of confidence, and detectability of any subsequent change. Paragraph 2 requires the Commission to assess by 21 May 2026 whether reference standards are necessary by way of an implementing act. Significance here: equivalence with a handwritten signature presupposes that the signature first meets all four requirements of this Article.

Article 28 Qualified certificates for electronic signatures

Requires compliance with Annex I and at the same time prohibits the Member States from laying down mandatory requirements going beyond it; non-mandatory additional attributes remain permissible as long as interoperability and recognition are not affected. Revocation is final and shall not be reverted; a temporary suspension is permissible only under the conditions of paragraph 5.

Article 29

Requirements for qualified electronic signature creation devices Refers to Annex II for the requirements and contains, in paragraph 1a, the central innovation of eIDAS 2.0: electronic signature creation data may be generated, managed or duplicated only on behalf of the signatory, at the request of the signatory and by a qualified trust service provider providing a qualified trust service for the management of a remote qualified electronic signature creation device under Article 29a. Paragraph 2 empowers the Commission to establish reference numbers of relevant standards.

Article 32 Requirements for the validation of qualified electronic signatures

Sets out in eight points when a validation may confirm validity: a qualified certificate complying with Annex I at the time of signing, issuance by a qualified trust service provider and validity, correspondence of the validation data, correct provision of the unique set of data representing the signatory, clear indication of any pseudonym, creation by a qualified electronic signature creation device, integrity of the data and compliance with Article 26. Paragraph 2 additionally requires the result to be displayed in an understandable manner.

KEY POINT

Only the QES is equivalent to a handwritten signature – AdES is not, not even with a qualified certificate.

SHALL

■ L1

Art. 26(1)(a)–(d)

TOPIC **Requirements for advanced signatures (AdES)**ADDRESSEE *Signature solutions / providers (indirectly)*

CONTENT An advanced electronic signature **MEETS ALL** of the following requirements: (a) it is **UNIQUELY LINKED TO THE SIGNATORY**; (b) it is **CAPABLE OF IDENTIFYING** the signatory; (c) it is created using electronic signature creation data that the signatory can, **WITH A HIGH LEVEL OF CONFIDENCE, USE UNDER HIS SOLE CONTROL**; (d) it is linked to the data in such a way that **ANY SUBSEQUENT CHANGE IS DETECTABLE**.

PURPOSE *Defines the minimum quality on which the QES builds – (a) to (d) are CUMULATIVE, not alternative.*

REFERENCES —

ETSI EN 319 122 · CAdES – signature format based on CMS Defines baseline profiles for CMS-based signatures, typical for binary data and containers. Relation to eIDAS: reference format under Implementing Regulation (EU) 2015/1506 relating to Article 27 eIDAS. ● Summary, not verified against the original text ETSI EN 319 132 · XAdES – signature format based on XML Defines baseline profiles for XML signatures, typical for structured data exchange formats. Relation to eIDAS: reference format under Implementing Regulation (EU) 2015/1506 relating to Article 27 eIDAS. ● Summary, not verified against the original text ETSI EN 319 142 · PAdES – signature format for PDF Defines baseline profiles for signatures embedded in PDF, including long-term validation data. Relation to eIDAS: reference format under Implementing Regulation (EU) 2015/1506 relating to Article 27 eIDAS. ● Summary, not verified against the original text

Article 32a(1)

Seven verification points for AdES based on a qualified certificate Substantively identical to Article 32(1), but without the QSCD condition. The provision thereby covers the case, very frequent in practice, of an advanced electronic signature based on a qualified certificate, which was not regulated before eIDAS 2.0. The one missing point is at the same time the difference between QES and AdES.

Article 36(1)

Requirements for advanced electronic seals Mirror image of Article 26(1), related to the creator of the seal as a legal person. The only substantive difference lies in point (c): what is required is the use of the electronic seal creation data under 'its control', not under 'sole control'. In the case of an organisation sole control could not sensibly be represented either.

Article 3

Definitions Contains the legal definitions of points 1 to 57, supplemented by the letter-numbered points inserted by eIDAS 2.0 such as 5a, 16a and 21a. Of particular practical importance: point 3 person identification data, point 5a user, point 6 relying party, point 16 trust service, point 20 qualified trust service provider, point 44 electronic attestation of attributes, point 46 the electronic attestation of attributes issued by or on behalf of a public sector body responsible for an authentic source and point 47 authentic source.

KEY POINT

Linkage – identification – sole control – integrity. Four conditions, all at the same time.

COMMISSION MANDATE

L2

Art. 26(2)

TOPIC **Commission assessment of AdES standards**ADDRESSEE *Commission*

CONTENT The Commission **ASSESSES** whether it is necessary to adopt implementing acts laying down reference standards for advanced electronic signatures. On the basis of that assessment it **MAY** adopt such implementing acts; where they are complied with, the presumption of conformity applies.

PURPOSE *Two-stage: first a mandate to assess with a deadline, then optional legislation – a rare construction in this Regulation.*

DEADLINE **Assessment by 21 May 2026**REFERENCES **Article 36(2) Mandate to assess seal standards**

Requires the Commission to assess by 21 May 2026 whether implementing acts laying down reference standards for advanced electronic seals are necessary, and empowers it to adopt such acts on that basis. Only the assessment is subject to a time limit, not the act.

Article 48(2)

Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.

KEY POINT **First assess (mandatory by 2026), then perhaps regulate ('may').**

SHALL

L2

Art. 27(1)–(2)

TOPIC **Obligation to accept in public services**ADDRESSEE *Member States / public sector bodies*

CONTENT Paragraph 1: If a Member State requires an **ADVANCED** signature to use an online service of a public sector body, it **SHALL RECOGNISE** AdES, AdES based on qualified certificates **AND** QES – at least in the formats or using the methods of the implementing act under paragraph 5. Paragraph 2: If it requires an AdES **BASED ON A QUALIFIED CERTIFICATE**, it shall recognise AdES-with-qualified-certificate and QES.

PURPOSE *Prevents authorities from imposing proprietary formats and thereby excluding foreign users; recognition always works 'upwards'.*

REFERENCES **Article 37(1) Obligation to accept seals**

Requires Member States which require an advanced electronic seal to use an online service of a public sector body also to recognise advanced electronic seals based on qualified certificates and qualified electronic seals – at least in the formats laid down by implementing act.

KEY POINT **Anyone who requires AdES must also accept QES. Upwards is always allowed.**

SHALL NOT

L2

Art. 27(3)

TOPIC **Prohibition of excessive requirements**ADDRESSEE *Member States*

CONTENT Member States **SHALL NOT REQUEST**, for **CROSS-BORDER** use in an online service offered by a public sector body, an electronic signature at a **HIGHER** security level than that of the QES.

PURPOSE *The QES is the upper limit – national special formats above the QES would fragment the internal market.*

REFERENCES **Article 37(3)**

Prohibition of excessive requirements Prohibits Member States from requesting, for the cross-border use in an online service offered by a public sector body, an electronic seal at a higher security level than that of the qualified electronic seal.

Article 25(2) Equivalence of the QES with a handwritten signature

The sentence with the greatest practical consequences in signature law: a qualified electronic signature has the same legal effect as a handwritten signature. Advanced signatures do not achieve that effect – not even on the basis of a qualified certificate. In German law Section 126a BGB is the counterpart.

“A qualified electronic signature shall have the equivalent legal effect of a handwritten signature”

✓ Article 25(2)

Article 4 eIDAS

Internal market principle Prohibits Member States from restricting the provision of trust services from another Member State for reasons that fall within the fields covered by the Regulation. Paragraph 2 requires that products and services lawfully provided in one Member State be permitted to circulate freely in the internal market. The general rule is spelled out for qualified services in Article 24a.

KEY POINT **The QES is the ceiling. Nothing goes above it. (Paragraph 4 was deleted.)**

COMMISSION MANDATE

L2

Art. 27(5)

TOPIC **Implementing act on reference formats**ADDRESSEE *Commission*

CONTENT The Commission **DEFINES**, taking into account existing practices, standards and Union legal acts, **REFERENCE FORMATS** for AdES or reference methods where alternative formats are used.

PURPOSE *Interoperability of the signature formats is the precondition for paragraphs 1 and 2 to work in practice.*

DEADLINE **by 18 September 2015 (deadline expired; implemented by Implementing Regulation (EU) 2015/1506)**

REFERENCES

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ETSI EN 319 122 · CAdES – signature format based on CMS Defines baseline profiles for CMS-based signatures, typical for binary data and containers. Relation to eIDAS: reference format under Implementing Regulation (EU) 2015/1506 relating to Article 27 eIDAS. ● Summary, not verified against the original text ETSI EN 319 132 · XAdES – signature format based on XML Defines baseline profiles for XML signatures, typical for structured data exchange formats. Relation to eIDAS: reference format under Implementing Regulation (EU) 2015/1506 relating to Article 27 eIDAS. ● Summary, not verified against the original text ETSI EN 319 142 · PAdES – signature format for PDF Defines baseline profiles for signatures embedded in PDF, including long-term validation data. Relation to eIDAS: reference format under Implementing Regulation (EU) 2015/1506 relating to Article 27 eIDAS. ● Summary, not verified against the original text ETSI EN 319 162 · ASiC – container for associated signatures Defines container formats which encapsulate document and signature together. Relation to eIDAS: reference format under Implementing Regulation (EU) 2015/1506 relating to Article 27 eIDAS. ● Summary, not verified against the original text

Article 37(5)

Implementing act on seal formats Empowers the Commission to define reference formats for advanced electronic seals or reference methods where alternative formats are used. This was implemented together with the signature formats.

SHALL

L1

Art. 28(1)–(3)

TOPIC **Qualified certificates for signatures**ADDRESSEE *QTSP / Member States*

CONTENT Paragraph 1: Qualified certificates for electronic signatures **SHALL MEET** the requirements of **ANNEX I**. Paragraph 2: **No** mandatory requirements going beyond Annex I may apply. Paragraph 3: Additional **NON-MANDATORY** specific attributes are permissible, but they **SHALL NOT** affect interoperability and recognition.

PURPOSE *Content and structure must be the same throughout the EU so that every relying party can evaluate them by machine; paragraph 2 is a prohibition of national additional requirements.*

REFERENCES

—
ETSI EN 319 412 · Certificate profiles Part 2 describes profiles for certificates of natural persons, Part 3 for legal persons, Part 4 for website authentication and Part 5 the QCStatements – those machine-readable extensions which indicate, for instance, the qualified status or the use of a QSCD. Relation to eIDAS: the technical counterpart of Annexes I, III and IV. Part 5 is in practice the precondition for a validation under Article 32(1)(f) eIDAS to be able to establish the use of a QSCD by machine at all. ● Summary, not verified against the original text

Annex I

Annex I – qualified certificates for electronic signatures Ten mandatory items a to j: machine-readable indication that the certificate has been issued as a qualified certificate, a set of data identifying the issuing QTSP including its Member State of establishment, the name OR pseudonym of the signatory, electronic signature validation data, the period of validity, a unique identity code, an advanced electronic signature or advanced electronic seal of the QTSP, the location where the underlying certificate is available free of charge, an indication of the validity status service and an indication whether a QSCD is used.

Article 24a(3) Recognition of certificates and remote management services

Extends Union-wide recognition to qualified certificates for electronic signatures and for electronic seals as well as to qualified services for the management of remote signature and seal creation devices.

Article 38

Qualified certificates for electronic seals Follows Article 28, but refers to Annex III. The only substantive difference from Annex I lies in point (c): Annex I permits the name OR a pseudonym of the signatory, whereas Annex III requires the name of the creator of the seal and, where applicable, the registration number – a seal without an identifiable organisation would be pointless.

Article 5 Use of pseudonyms

A single, unnumbered sentence: without prejudice to specific obligations to identify oneself and to the legal effect given to pseudonyms under national law, the use of pseudonyms chosen by the user shall not be prohibited in electronic transactions. The Article has NO paragraphs. It is given concrete form in Article 5a(4)(b), Article 5b(9) and Article 32(1)(e).

KEY POINT

Annex I is at the same time the minimum AND the maximum content (paragraph 1 + paragraph 2).

SHALL		L1	Art. 28(4)
TOPIC	Finality of revocation		
ADDRESSEE	QTSP		
CONTENT	If a qualified certificate is REVOKED after initial activation, it is NO LONGER VALID from the moment of its revocation and its status SHALL NOT IN ANY CIRCUMSTANCES BE REVERTED .		
PURPOSE	<i>A reversible revocation would make validation under Article 32 unreliable – no way back.</i>		
REFERENCES	Article 24(3) Revocation within 24 hours The QTSP registers the revocation in its certificate database and publishes the revocation status in a timely manner, in any event within 24 hours after RECEIPT OF THE REQUEST – not after its own decision. The revocation becomes effective only upon publication; a revocation that has not been published protects no one. “publish the revocation status of the certificate in a timely manner, and in any event within 24 hours after the receipt of the request. The revocation shall become effective immediately upon its publication” ✓ Article 24(3) Article 32(1) eIDAS The eight verification points of QES validation The validation confirms validity only where all eight conditions are met: a qualified certificate complying with Annex I at the time of signing, issuance by a QTSP and validity, correspondence of the validation data, correct provision of the data set representing the signatory, clear indication of any pseudonym, creation by a QSCD, integrity of the data and fulfilment of Article 26. Point (f) – the QSCD condition – is precisely the point that is missing in Article 32a. Article 38(4) Finality of revocation Provides that a revoked qualified certificate for electronic seal is no longer valid from the moment of its revocation and that its status shall not in any circumstances be reverted. Article 45d(4) Finality of revocation Provides that a revoked qualified electronic attestation of attributes is no longer valid from the moment of its revocation and shall not in any circumstances regain validity.		
KEY POINT	Revocation is final. Suspension (paragraph 5) is not – that is the difference.		

MAY		L2	Art. 28(5)(a)–(b)
TOPIC	Temporary suspension under national law		
ADDRESSEE	Member States		
CONTENT	Member States MAY lay down national rules on TEMPORARY SUSPENSION , provided that (a) the certificate LOSES ITS VALIDITY FOR THE PERIOD OF SUSPENSION and (b) the period is CLEARLY INDICATED IN THE CERTIFICATE DATABASE and the suspension status is VISIBLE from the status service.		
PURPOSE	<i>Permits a reversible intermediate stage (for example where loss is suspected) without undermining the finality of revocation.</i>		
REFERENCES	Article 24(2) Catalogue of QTSP obligations The central catalogue, in practice the structure of every audit: (a) notification duties (one month for changes, three months for cessation), (b) qualified and trained staff in accordance with recognised standards, (c) sufficient financial resources or liability insurance, (d) pre-contractual information, (e) trustworthy systems including suitable cryptographic techniques, (f) verifiable data storage, (fa) risk management, (fb) 24-hour notification, (g) protection against forgery and data loss, (h) recording duty extending beyond the cessation of activities, (i) termination plan, (k) certificate database. Point (j) was deleted – the gap is intentional. Article 28(4) Finality of revocation A revoked qualified certificate loses its validity and its status shall not in any circumstances be reverted. A reversible intermediate stage exists only by way of the suspension under paragraph 5, the period of which must be visible in the certificate database. The same finality applies under Article 38(4), Article 45d(4) and Article 45f(4). Article 38(5) Temporary suspension for seal certificates Allows national suspension rules under the same conditions as Article 28(5): loss of validity for the period of suspension and clear indication of the period in the certificate database as well as in the status service.		
KEY POINT	Revocation = final. Suspension = time-limited, but visible.		

COMMISSION MANDATE		L1	Art. 28(6)
TOPIC	Implementing act on qualified certificates for electronic signatures		
ADDRESSEE	Commission		

CONTENT	Implementing act with a list of reference standards and, where necessary, specifications and procedures; where these are complied with, the PRESUMPTION OF CONFORMITY applies for Annex I.
PURPOSE	<i>Without a certificate profile, Annex I would be open to differing technical interpretations.</i>
DEADLINE	by 21 May 2025

REFERENCES

— ETSI EN 319 412 · Certificate profiles Part 2 describes profiles for certificates of natural persons, Part 3 for legal persons, Part 4 for website authentication and Part 5 the QCStatements – those machine-readable extensions which indicate, for example, the qualified status or the use of a QSCD. Relationship to eIDAS: the technical counterpart of Annexes I, III and IV. Part 5 is in practice the precondition for a validation under Article 32(1)(f) eIDAS being able to establish the use of a QSCD by machine at all. ● Summary of content, not verified against the original text

Annex I

Annex I – qualified certificates for electronic signatures Ten mandatory items a to j: machine-readable indication that the certificate has been issued as a qualified certificate, a set of data identifying the issuing QTSP including its Member State of establishment, the name OR pseudonym of the signatory, electronic signature validation data, the period of validity, a unique identity code, an advanced electronic signature or advanced electronic seal of the QTSP, the location where the underlying certificate is available free of charge, an indication of the validity status service and an indication whether a QSCD is used.

Article 38(6)

Implementing act on certificates for electronic seals Empowers the Commission to establish reference standards, specifications and procedures; where these are complied with, the presumption of conformity applies for Annex III. In practice this act was adopted together with the one under Article 28(6).

Article 5 Use of pseudonyms

A single, unnumbered sentence: without prejudice to specific obligations to identify oneself and to the legal effects given to pseudonyms under national law, the use of pseudonyms chosen by the user shall not be prohibited in electronic transactions. The Article has NO paragraphs. It is given concrete form in Article 5a(4)(b), Article 5b(9) and Article 32(1)(e).

KEY POINT

Article 28(6) and Article 38(6) are regularly implemented together in a SINGLE legal act.

SHALL

■ L1

Art. 29(1)

TOPIC

Requirements for QSCD

ADDRESSEE

QTSP / manufacturers of QSCD

CONTENT

Qualified electronic signature creation devices **SHALL** meet the requirements laid down in **ANNEX II**.

PURPOSE

The private key is the core of the QES – it must reside in an evaluated environment.

REFERENCES

— **CEN EN 419211 · Protection profiles for local signature creation devices**

A series of Common Criteria protection profiles for smart cards and similar devices in which the signature key is generated and used, with variants for key generation, key import and trusted channel. Relationship to eIDAS: the basis of evaluation for the certification under Article 30 eIDAS against Annex II. ● Summary of content, not verified against the original text CEN EN 419241 · Requirements and protection profile for server-side signature creation Part 1 sets out the security requirements for remote signing systems, among them ensuring the sole control of the signatory; Part 2 contains the associated protection profile for the cryptographic module. Relationship to eIDAS: the central basis of evaluation for Article 29a eIDAS. The certification report under Article 30 eIDAS, to which Article 29a(1)(c) eIDAS refers, is in practice based on this standard. ● Summary of content, not verified against the original text

Annex II

Annex II – qualified electronic signature creation devices Point 1 requires, in four sub-points, that the confidentiality of the electronic signature creation data be ensured, that those data occur practically only once, that they cannot be derived and that they are protected against use by others. Point 2 prohibits the device from altering the data to be signed or from preventing those data from being presented to the signatory prior to signing. Sub-point (d) of point 1 is modified by Article 29a(1), point (b), for the remote signature case.

Article 39(1) Reference to the requirements

Provides that Article 29 applies mutatis mutandis to qualified electronic seal creation devices – and thereby indirectly Annex II as well as the rules on remote management.

Article 30 Certification of qualified electronic signature creation devices

Provides that conformity with Annex II is certified by appropriate public or private bodies designated by the Member States – to be distinguished from the conformity assessment bodies of Article 20. The basis is a security evaluation process in accordance with a listed standard or, in the alternative, an equivalent notified process. New is the five-year limit with a vulnerability assessment every two years.

Article 31 Publication of the list of certified devices

Requires the Member States to notify to the Commission, without undue delay and no later than one month after the certification is concluded, the certified signature creation devices – and likewise, within one month, those devices whose certification has been cancelled. The Commission makes the list publicly available.

KEY POINT

Annex II has only two points – but point 1 has four sub-points.

SHALL

■ L1

Art. 29(1a)

TOPIC

Key generation only by a qualified service

ADDRESSEE

QTSP (remote signing service)

CONTENT	The GENERATING or MANAGING of electronic signature creation data or the DUPLICATING of such signature creation data for back-up purposes SHALL be carried out ONLY ON BEHALF OF THE SIGNATORY, AT THE REQUEST OF THE SIGNATORY , and by a QTSP providing a qualified trust service for the management of a remote qualified electronic signature creation device.
PURPOSE	<i>The central innovation of eIDAS 2.0: server-side key management itself becomes subject to qualification.</i>
DEADLINE	transitional period until 21 May 2026 under Article 51(3)
REFERENCES	— ETSI TS 119 431 · Requirements for remote signature and remote seal services Part 1 is addressed to providers which operate a signature creation device on behalf of the signatory, and deals in particular with key generation, activation data, the sole control of the signatory and back-up copies. Relationship to eIDAS: the central standard for Article 29a and Article 39a eIDAS – and thereby for demonstrating that Article 26(1)(c) eIDAS is complied with on the server side as well. ● Summary of content, not verified against the original text Annex II Annex II – qualified electronic signature creation devices Point 1 requires, in four sub-points, that the confidentiality of the electronic signature creation data be ensured, that those data occur practically only once, that they cannot be derived and that they are protected against use by others. Point 2 prohibits the device from altering the data to be signed or from preventing those data from being presented to the signatory prior to signing. Sub-point (d) of point 1 is modified by Article 29a(1), point (b), for the remote signature case. Article 51(3) Legacy protection for remote signatures and remote seals Permits the management of remote qualified electronic signature and seal creation devices to be continued until 21 May 2026 without a qualified status of its own. Thereafter Articles 29a and 39a apply without restriction. For providers of remote signing this is the most important cut-off date of the entire recast. Relevance: until 21 May 2026 remote management may still be operated without a qualified status of its own. Article 29a Qualified service for the management of remote signature creation devices Makes the server-side management of signature keys a qualified trust service in its own right, subject to three conditions: generation or management of the data on behalf of the signatory, duplication exclusively for back-up purposes at the same security level and in no more copies than the minimum needed, as well as compliance with all requirements identified in the certification report under Article 30. Legacy protection applies until 21 May 2026. Article 39a Qualified service for the management of remote seal creation devices Declares Article 29a applicable mutatis mutandis to the management of remote qualified electronic seal creation devices. Remote sealing is thereby treated in exactly the same way as remote signing, including the transitional period until 21 May 2026 – Article 51(3) expressly names both Articles.

KEY POINT **The most significant practical upheaval of eIDAS 2.0: remote signing needs a qualified status of its own.**

COMMISSION MANDATE		L2	Art. 29(2)
TOPIC	Implementing act on standards for QSCD		
ADDRESSEE	Commission		
CONTENT	The Commission MAY establish reference numbers of standards for QSCD ; where a device meets those standards, the presumption of conformity applies for Annex II.		
PURPOSE	<i>An empowerment in the form of 'may', without a deadline – unlike most implementing-act mandates in eIDAS 2.0.</i>		
DEADLINE	no deadline ('may')		
REFERENCES	— CEN EN 419211 · Protection profiles for local signature creation devices A series of Common Criteria protection profiles for smart cards and similar devices in which the signature key is generated and used, with variants for key generation, key import and trusted channel. Relationship to eIDAS: the basis of evaluation for the certification under Article 30 eIDAS against Annex II. ● Summary of content, not verified against the original text CEN EN 419241 · Requirements and protection profile for server-side signature creation Part 1 sets out the security requirements for remote signing systems, among them ensuring the sole control of the signatory; Part 2 contains the associated protection profile for the cryptographic module. Relationship to eIDAS: the central basis of evaluation for Article 29a eIDAS. The certification report under Article 30 eIDAS, to which Article 29a(1)(c) eIDAS refers, is in practice based on this standard. ● Summary of content, not verified against the original text Annex II Annex II – qualified electronic signature creation devices Point 1 requires, in four sub-points, that the confidentiality of the electronic signature creation data be ensured, that those data occur practically only once, that they cannot be derived and that they are protected against use by others. Point 2 prohibits the device from altering the data to be signed or from preventing those data from being presented to the signatory prior to signing. Sub-point (d) of point 1 is modified by Article 29a(1), point (b), for the remote signature case. Article 48(2) Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.		

SHALL		L1	Art. 29a(1)(a)–(c)
TOPIC	Qualified service for the management of remote signature creation devices		
ADDRESSEE	QTSP (remote signing providers)		
CONTENT	The management of remote qualified electronic signature creation devices as a qualified service SHALL be carried out ONLY by a QTSP that (a) generates or manages the electronic signature creation data ON BEHALF OF THE SIGNATORY; (b) – notwithstanding point (1)(d) of Annex II – duplicates the data FOR BACK-UP PURPOSES ONLY, provided that (i) the security of the duplicated datasets is at THE SAME LEVEL as for the original datasets and (ii) the number of duplicated datasets does NOT EXCEED THE MINIMUM NEEDED to ensure continuity of the service; (c) complies with ALL requirements identified in the certification report under Article 30 for the specific remote signature creation device.		
PURPOSE	<i>Responds to reality: almost all signatures today are created on the server side and not with a smart card.</i>		
REFERENCES	— ETSI TS 119 431 · Requirements for remote signature and remote seal services Part 1 is addressed to providers which operate a signature creation device on behalf of the signatory, and deals in particular with key generation, activation data, the sole control of the signatory and back-up copies. Relationship to eIDAS: the central standard for Article 29a and Article 39a eIDAS – and thereby for demonstrating that Article 26(1)(c) eIDAS is complied with on the server side as well. ● Summary of content, not verified against the original text CEN EN 419241 · Requirements and protection profile for server-side signature creation Part 1 sets out the security requirements for remote signing systems, among them ensuring the sole control of the signatory; Part 2 contains the associated protection profile for the cryptographic module. Relationship to eIDAS: the central basis of evaluation for Article 29a eIDAS. The certification report under Article 30 eIDAS, to which Article 29a(1)(c) eIDAS refers, is in practice based on this standard. ● Summary of content, not verified against the original text Annex II Annex II – qualified electronic signature creation devices Point 1 requires, in four sub-points, that the confidentiality of the electronic signature creation data be ensured, that those data occur practically only once, that they cannot be derived and that they are protected against use by others. Point 2 prohibits the device from altering the data to be signed or from preventing those data from being presented to the signatory prior to signing. Sub-point (d) of point 1 is modified by Article 29a(1), point (b), for the remote signature case. Relevance: point 1, sub-point (d) is modified by paragraph 1, point (b), of this Article for the back-up case. Article 29(1a) Key generation only by a qualified service Electronic signature creation data may be generated, managed or duplicated only on behalf of the signatory, at the request of the signatory and by a QTSP which operates a qualified service for the management of remote signature creation devices under Article 29a. This is the greatest practical upheaval of eIDAS 2.0, because almost all of today's signatures are created on the server side. Legacy protection until 21 May 2026 under Article 51(3). Article 51(3) Legacy protection for remote signatures and remote seals Permits the management of remote qualified electronic signature and seal creation devices to be continued until 21 May 2026 without a qualified status of its own. Thereafter Articles 29a and 39a apply without restriction. For providers of remote signing this is the most important cut-off date of the entire recast. Article 30 Certification of qualified electronic signature creation devices Provides that conformity with Annex II is certified by appropriate public or private bodies designated by the Member States – to be distinguished from the conformity assessment bodies of Article 20. The basis is a security evaluation process in accordance with a listed standard or, in the alternative, an equivalent notified process. New is the five-year limit with a vulnerability assessment every two years. Article 39a Qualified service for the management of remote seal creation devices Declares Article 29a applicable mutatis mutandis to the management of remote qualified electronic seal creation devices. Remote sealing is thereby treated in exactly the same way as remote signing, including the transitional period until 21 May 2026 – Article 51(3) expressly names both Articles.		
KEY POINT	Point (b)(ii) is the strictest single requirement: not 'as few as possible', but 'the minimum needed'.		

COMMISSION MANDATE		L2	Art. 29a(2)
TOPIC	Implementing act on the remote signature service		
ADDRESSEE	Commission		
CONTENT	Implementing act with a list of reference standards and, where necessary, specifications and procedures for paragraph 1.		
PURPOSE	<i>Without uniform requirements, remote signing would not be comparable in terms of security.</i>		
DEADLINE	by 21 May 2025		
REFERENCES			

REFERENCES

ETSI TS 119 431 · Requirements for remote signature and remote seal services Part 1 is addressed to providers which operate a signature creation device on behalf of the signatory, and deals in particular with key generation, activation data, the sole control of the signatory and back-up copies. Relationship to eIDAS: the central standard for Article 29a and Article 39a eIDAS – and thereby for demonstrating that Article 26(1)(c) eIDAS is complied with on the server side as well. ● Summary of content, not verified against the original text CEN EN 419241 · Requirements and protection profile for server-side signature creation Part 1 sets out the security requirements for remote signing systems, among them ensuring the sole control of the signatory; Part 2 contains the associated protection profile for the cryptographic module. Relationship to eIDAS: the central basis of evaluation for Article 29a eIDAS. The certification report under Article 30 eIDAS, to which Article 29a(1)(c) eIDAS refers, is in practice based on this standard. ● Summary of content, not verified against the original text

Article 48(2)

Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.

SHALL

L2

Art. 30(1)–(2)

TOPIC **Certification of QSCD and notification of the bodies**ADDRESSEE *Member States / designated bodies*

CONTENT Paragraph 1: Conformity of **QSCD** with **ANNEX II SHALL BE CERTIFIED BY APPROPRIATE PUBLIC OR PRIVATE BODIES DESIGNATED BY THE MEMBER STATES**. Paragraph 2: Member States shall notify to the Commission the names and addresses; the Commission makes that information available to all Member States.

PURPOSE *Without independent certification the security assertion of Annex II would not be verifiable.*

REFERENCES **Annex II**

Annex II – qualified electronic signature creation devices Point 1 requires, in four sub-points, that the confidentiality of the electronic signature creation data be ensured, that those data occur practically only once, that they cannot be derived and that they are protected against use by others. Point 2 prohibits the device from altering the data to be signed or from preventing those data from being presented to the signatory prior to signing. Sub-point (d) of point 1 is modified by Article 29a(1), point (b), for the remote signature case.

Article 39(2) Reference to the certification

Provides that Article 30 applies mutatis mutandis: certification by designated bodies, evaluation process in accordance with a listed standard or an equivalent process, five-year limit with a vulnerability assessment every two years.

Article 5c(7) Notification of the assessment bodies

Requires the Member States to communicate to the Commission the names and addresses of the designated conformity assessment bodies; the Commission makes that information available to all Member States. Only bodies that are known can be recognised across borders.

Article 12a(6) Notification of the assessment bodies

Requires the Member States to communicate to the Commission the names and addresses of the conformity assessment bodies they have designated. The parallel provisions are found in Article 5c(7), Article 20(1b) and Article 30(2).

Article 20(1b) Notification of the conformity assessment bodies

Requires the Member States to notify to the Commission, without undue delay, the names, addresses AND ACCREDITATION details of the conformity assessment bodies as well as any subsequent changes thereto; the Commission makes that information available to all Member States. That the accreditation is also subject to notification was added by eIDAS 2.0.

Article 29

Requirements for qualified electronic signature creation devices Refers to Annex II for the requirements and contains, in paragraph 1a, the central innovation of eIDAS 2.0: electronic signature creation data may be generated, managed or duplicated only on behalf of the signatory, at the request of the signatory and by a qualified provider of a service for the management of remote signature creation devices under Article 29a. Paragraph 2 empowers the Commission to establish reference numbers of relevant standards.

Article 31 Publication of the list of certified devices

Requires the Member States to notify to the Commission, without undue delay and no later than one month after the certification is concluded, the certified signature creation devices – and likewise, within one month, those devices whose certification has been cancelled. The Commission makes the list publicly available.

KEY POINT

Terminological trap: Article 30 = designated bodies. Article 20 = conformity assessment bodies. Not the same thing.

SHALL

L2

Art. 30(3)(a)–(b)

TOPIC **Permissible certification processes**ADDRESSEE *Designated bodies*

CONTENT The certification shall be based on (a) a **SECURITY EVALUATION PROCESS** carried out in accordance with a standard from the list to be established by the Commission, **OR** (b) **ANOTHER** process using **COMPARABLE** security levels, which the body **NOTIFIES** to the Commission – permissible only in the absence of standards under point (a) or where a process under point (a) is still ongoing. The Commission establishes the list of standards by means of an implementing act.

PURPOSE *Point (b) prevents a standstill where a standard is lacking – but it is expressly subsidiary.*

REFERENCES —
Common Criteria · ISO/IEC 15408 – Common Criteria for Information Technology Security Evaluation An international framework for the security evaluation of IT products. Requirements are described in protection profiles, the depth of testing is expressed by assurance levels; the evaluation methodology is governed by ISO/IEC 18045. Relationship to eIDAS: Article 30(3)(a) eIDAS presupposes a security evaluation process in accordance with a standard listed by the Commission – in practice the Common Criteria. Point (b) allows an equivalent process only on a subsidiary basis. ● Summary of content, not verified against the original text

Article 48(2)

Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.

KEY POINT

Point (b) is the emergency route – only where (a) is not possible.

SHALL

■ L1

Art. 30(3a)

TOPIC **Five-year validity of the QSCD certification**

ADDRESSEE *Designated bodies / QTSP*

CONTENT The validity of a certification **SHALL NOT EXCEED FIVE YEARS**, provided that vulnerabilities assessments are carried out **EVERY TWO YEARS**. Where vulnerabilities are identified and **NOT REMEDIED**, the certification **SHALL BE CANCELLED**.

PURPOSE *New in eIDAS 2.0 – previously QSCD certificates were in practice unlimited in time, which is untenable where cryptography is concerned.*

DEADLINE **5 years max. / vulnerability assessment every 2 years**

REFERENCES **Article 5c(4)**
Period of validity and vulnerability assessment Limits the Wallet certification to five years and ties it to a vulnerability assessment every two years. Where a vulnerability is not remedied in a timely manner, the certification is to be cancelled. The same 5/2 pattern is found in Article 12a(3) (there with an express three-month period) and in Article 30(3a) for QSCD.

“Certification pursuant to paragraph 1 shall be valid for up to five years, provided that a vulnerability assessment is carried out every two years”

✓ Article 5c(4)

Article 12a(3) eIDAS Five years, two years, three months

A more precise variant of the 5/2 rule: the certification of an electronic identification scheme is valid for up to five years where a vulnerability assessment is carried out every two years; where a vulnerability is not remedied within three months of its identification, the certification is to be cancelled. Article 5c(4) says only 'in a timely manner' at the same point, and Article 30(3a) gives no period at all – a favourite examination topic.

Article 5 Use of pseudonyms

A single, unnumbered sentence: without prejudice to specific obligations to identify oneself and to the legal effects given to pseudonyms under national law, the use of pseudonyms chosen by the user shall not be prohibited in electronic transactions. The Article has NO paragraphs. It is given concrete form in Article 5a(4)(b), Article 5b(9) and Article 32(1)(e).

Article 2

Scope Covers notified electronic identification schemes, the Wallets provided by the Member States as well as trust service providers established in the Union. Expressly NOT covered are trust services provided under national law or under an agreement exclusively within a closed set of participants – internal company PKI thereby falls outside. Paragraph 3 makes clear that the Regulation leaves national contract law and the GDPR unaffected.

KEY POINT

The third place where the 5/2 rule appears. Here without a specific period for remediation – unlike Article 12a(3) with its three months.

COMMISSION MANDATE

□ L3

Art. 30(4)

TOPIC **Delegated act on the criteria for the designated bodies**

ADDRESSEE *Commission*

CONTENT The Commission **SHALL BE EMPOWERED** to adopt **DELEGATED** acts in accordance with Article 47 concerning specific criteria to be met by the designated bodies.

PURPOSE *Identical construction to Article 5c(8) for Wallet CABs.*

REFERENCES **Article 5c(8)**
Delegated act on the assessment bodies Empowers the Commission to adopt delegated acts in accordance with Article 47 laying down specific criteria for the designated conformity assessment bodies. A delegated act means: Parliament and Council have a right of objection – unlike under the examination procedure of Article 48.

Article 47 Exercise of the delegation

Governs the procedure for delegated acts: the duration of the delegation, revocation at any time by the Parliament or the Council, the consultation of experts and the objection period within which the Parliament or the Council may raise objections. The Regulation refers to Article 47 in only three places: Article 5c(8), Article 24(4b) and Article 30(4).

SHALL		L2	Art. 31(1)–(2)
TOPIC	Notification and list of certified QSCD		
ADDRESSEE	Member States / Commission		
CONTENT	Paragraph 1: Member States SHALL NOTIFY to the Commission WITHOUT UNDUE DELAY AND NO LATER THAN WITHIN ONE MONTH after the certification is concluded, information on certified QSCD – and likewise within ONE MONTH after CANCELLATION , information on devices that are no longer certified. Paragraph 2: The Commission shall establish, publish and maintain the list.		
PURPOSE	<i>Relying parties and supervisory bodies must be able to check whether a device in use is genuinely certified – in both directions.</i>		
DEADLINE	1 month (certification and cancellation)		
REFERENCES	Article 39(3) Reference to the list Provides for the mutatis mutandis application of Article 31: notification within one month after certification as well as after cancellation, maintenance of the list by the Commission. Article 32(1) The eight verification points of QES validation The validation confirms validity only where all eight conditions are met: a qualified certificate complying with Annex I at the time of signing, issuance by a QTSP and validity, correspondence of the validation data, correct provision of the data set representing the signatory, clear indication of any pseudonym, creation by a QSCD, integrity of the signed data and fulfilment of Article 26. Point (f) – the QSCD condition – is precisely the point that is missing in Article 32a. Article 30 Certification of qualified electronic signature creation devices Provides that conformity with Annex II is certified by appropriate public or private bodies designated by the Member States – to be distinguished from the conformity assessment bodies of Article 20. The basis is a security evaluation process in accordance with a listed standard or, in the alternative, an equivalent notified process. New is the five-year limit with a vulnerability assessment every two years.		
KEY POINT	One month – for inclusion AND for removal.		

COMMISSION MANDATE		L3	Art. 31(3)
TOPIC	Implementing act on formats and procedures		
ADDRESSEE	Commission		
CONTENT	Implementing act on the formats and procedures for the purpose of paragraph 1.		
PURPOSE	-		
DEADLINE	by 21 May 2025		
REFERENCES	Article 48(2) Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.		

SHALL		L1	Art. 32(1)(a)–(h)
TOPIC	Validation of qualified electronic signatures		
ADDRESSEE	Validating body / relying party (RP) / validation service		
CONTENT	The validation process SHALL CONFIRM the validity of a QES provided that: (a) the certificate that supports the signature was, AT THE TIME OF SIGNING , a qualified certificate complying with Annex I; (b) it was issued by a QTSP and was VALID at the time of signing; (c) the signature validation data CORRESPONDS to the data provided to the relying party; (d) the unique set of data representing the signatory is CORRECTLY provided to the relying party; (e) the USE OF ANY PSEUDONYM is CLEARLY indicated to the relying party; (f) the signature was created by a QSCD ; (g) the INTEGRITY of the signed data has not been compromised; (h) the requirements provided for in ARTICLE 26 were met at the time of signing. Where the validation complies with the standards referred to in paragraph 3, the PRESUMPTION OF CONFORMITY applies.		
PURPOSE	<i>A signature is worth only as much as its verification – without uniform validation rules there would be contradictory results.</i>		
REFERENCES			

REFERENCES

ETSI EN 319 102 · Procedures for the creation and validation of signatures and seals Part 1 defines the validation model with the result classes TOTAL-PASSED, TOTAL-FAILED and INDETERMINATE, the building blocks of validation as well as the handling of validation times and proofs of preservation. Relation to eIDAS: Technical basis of Articles 32, 32a, 33, 40 and 40a eIDAS. The result classes are decisive for the display obligation under Article 32(2) eIDAS. ● Summary of content, not verified against the original text

Article 24(4) Permanent status information

The QTSP makes information on the validity and revocation status available to relying parties – at least on a per certificate basis, at any time, beyond the validity period, in an automated manner, reliably, free of charge and efficiently. The addition 'beyond the validity period' is decisive: only in that way can signatures still be validated years later.

Article 26

Requirements for advanced electronic signatures Names four cumulative requirements: unique linkage to the signatory, capability of identifying him, creation using signature creation data under his sole control with a high level of confidence, and detectability of any subsequent change. Paragraph 2 requires the Commission to assess by 21 May 2026 whether reference standards are necessary by way of an implementing act. Significance here: point (h) checks retrospectively whether the requirements of this Article were met at the time of signing.

Article 28 Qualified certificates for electronic signatures

Requires compliance with Annex I and at the same time prohibits the Member States from laying down mandatory requirements going beyond it; non-mandatory additional attributes remain permissible as long as interoperability and recognition are not affected. Revocation is final and shall not be reverted; a temporary suspension is permissible only under the conditions of paragraph 5.

Article 29

Requirements for qualified electronic signature creation devices Refers to Annex II for the requirements and contains, in paragraph 1a, the central innovation of eIDAS 2.0: electronic signature creation data may be generated, managed or duplicated only on behalf of the signatory, at the request of the signatory and by a qualified trust service provider providing a qualified trust service for the management of a remote qualified electronic signature creation device under Article 29a. Paragraph 2 empowers the Commission to establish reference numbers of relevant standards.

Article 33

Qualified validation service Permits provision only by qualified providers and requires that validation be carried out in accordance with Article 32(1) and that the result be provided in an automated, reliable and efficient manner – confirmed by an advanced electronic signature or an advanced electronic seal of the provider. For the result report the advanced form is therefore sufficient.

Article 40 Validation and preservation of qualified electronic seals

A single sentence: Articles 32, 33 and 34 shall apply mutatis mutandis to the validation and preservation of qualified electronic seals. The eight verification points, the requirements for the qualified validation service and the preservation obligations thus apply unchanged to seals as well.

KEY POINT

Eight verification points. Point (f) (QSCD) is precisely the point that is MISSING in Article 32a.

SHALL

L2

Art. 32(2)

TOPIC **Correct display of the result**ADDRESSEE *Validating body / validation system*

CONTENT The validation system **SHALL PROVIDE** the relying party with the **CORRECT RESULT** and **SHALL ALLOW** it **TO DETECT ANY SECURITY RELEVANT ISSUES**.

PURPOSE *A technically correct result that is displayed in an unintelligible manner leads to wrong decisions by the user.*

REFERENCES **Article 33(1) Qualified validation service**

Only QTSPs may provide it. They shall validate in accordance with Article 32(1) and provide the result in an automated, reliable and efficient manner – confirmed by their **ADVANCED** electronic signature or their advanced electronic seal. For the result report the advanced form is therefore sufficient, unlike for the archiving report under Article 45j(1)(d).

Article 45(1a) Obligations of the providers of web-browsers

The politically most contested provision of eIDAS 2.0. Providers of web-browsers shall recognise qualified certificates for website authentication, display the attested identity data in a user-friendly manner and ensure support as well as interoperability. Microenterprises and small enterprises are exempt during their first five years of operation. For the first time browser manufacturers are placed under obligation directly by eIDAS.

“Providers of web-browsers shall ensure that the identity data attested in the certificate and additional attested attributes are displayed in a user-friendly manner”

✓ Article 45(1a) eIDAS

KEY POINT

Not only compute correctly – display intelligibly as well.

COMMISSION MANDATE

L2

Art. 32(3)

TOPIC **Implementing act on validation**ADDRESSEE *Commission*

CONTENT Implementing act with reference standards, specifications and procedures for the validation of qualified electronic signatures.

PURPOSE -

DEADLINE **by 21 May 2025**

REFERENCES

REFERENCES

ETSI EN 319 102 · Procedures for the creation and validation of signatures and seals Part 1 defines the validation model with the result classes TOTAL-PASSED, TOTAL-FAILED and INDETERMINATE, the building blocks of validation as well as the handling of validation times and proofs of preservation. Relation to eIDAS: Technical basis of Articles 32, 32a, 33, 40 and 40a eIDAS. The result classes are decisive for the display obligation under Article 32(2) eIDAS. ● Summary of content, not verified against the original text ETSI TS 119 172 · Signature Policies Describes how signature policies are formulated and represented in machine-readable form – that is, which conditions a signature has to meet in a given context. Relation to eIDAS: Practical complement to the validation under Article 32 eIDAS. ● Summary of content, not verified against the original text

Article 48(2)

Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.

SHALL

■ L1

Art. 32a(1)(a)–(g)

TOPIC **Validation of an AdES with a qualified certificate**ADDRESSEE *Validating body / validation service*

CONTENT The validation of an AdES **BASED ON A QUALIFIED CERTIFICATE** shall confirm its validity provided that (a) a qualified certificate complying with Annex I at the time of signing; (b) issued by a QTSP and valid; (c) the validation data corresponds; (d) the set of data representing the signatory correctly provided; (e) any pseudonym clearly indicated; (f) the **INTEGRITY** not compromised; (g) the requirements of Article 26 met.

PURPOSE *Closes the gap for the case, very frequent in practice, of AdES-with-a-qualified-certificate – new in eIDAS 2.0.*

REFERENCES

Article 32 Requirements for the validation of qualified electronic signatures

Sets out in eight points when a validation may confirm validity: a qualified certificate complying with Annex I at the time of signing, issuance by a qualified trust service provider and validity, correspondence of the validation data, correct provision of the unique set of data representing the signatory, clear indication of any pseudonym, creation by a qualified electronic signature creation device, integrity of the data and compliance with Article 26. Paragraph 2 additionally requires the result to be displayed in an understandable manner. Significance here: the difference consists in exactly one point: the QSCD condition of paragraph 1, point (f) is missing here.

Article 26

Requirements for advanced electronic signatures Names four cumulative requirements: unique linkage to the signatory, capability of identifying him, creation using signature creation data under his sole control with a high level of confidence, and detectability of any subsequent change. Paragraph 2 requires the Commission to assess by 21 May 2026 whether reference standards are necessary by way of an implementing act.

Article 40a Validation of advanced electronic seals based on qualified certificates

A single sentence: Article 32a shall apply mutatis mutandis. The mirroring between the signature section and the seal section is thereby complete – every Article of Section 4 has a counterpart in Section 5.

KEY POINT

32 minus QSCD = 32a. The only difference – and precisely that one makes the difference between QES and AdES.

SHALL

□ L3

Art. 32a(2)–(3)

TOPIC **Display of the result and implementing act**ADDRESSEE *Validation system / Commission*

CONTENT Paragraph 2: Provision of the result and detectability of security relevant issues as in Article 32(2). Paragraph 3: Implementing act with reference standards; where these are complied with, the presumption of conformity applies for paragraph 1.

PURPOSE -

DEADLINE **Paragraph 3: by 21 May 2025**

REFERENCES

REFERENCES Article 32(2) Display of the result

Requires the validation system to provide the relying party with the correct result of the validation process and to allow it to detect any security relevant issues. A technically correct result that is displayed in an unintelligible manner leads to wrong decisions.

Article 40a Validation of advanced electronic seals based on qualified certificates

A single sentence: Article 32a shall apply mutatis mutandis. The mirroring between the signature section and the seal section is thereby complete – every Article of Section 4 has a counterpart in Section 5.

SHALL

L2

Art. 33(1)(a)–(b)

TOPIC Qualified validation service**ADDRESSEE** QTSP (provider of the validation service)

CONTENT Qualified validation services for QES may **ONLY** be provided by QTSPs who (a) provide validation **IN COMPLIANCE WITH ARTICLE 32(1) AND** (b) allow relying parties to receive the result in an **AUTOMATED** manner, which is **RELIABLE** and **EFFICIENT** and **BEARS THE ADVANCED ELECTRONIC SIGNATURE OR THE ADVANCED ELECTRONIC SEAL** of the provider of the validation service.

PURPOSE Enables relying parties to outsource the complex validation and to rely on a signed result.

REFERENCES —

ETSI TS 119 441 · Requirements for validation services Policy and security requirements for providers of signature and seal validation services. Relation to eIDAS: gives concrete form to Article 33 and Article 40 eIDAS. ● Summary of content, not verified against the original text ETSI TS 119 442 · Protocol for validation services Describes the interface and message formats for requesting validation results. Relation to eIDAS: gives concrete form to Article 33(1)(b) eIDAS. ● Summary of content, not verified against the original text

Article 32(1) The eight verification points of QES validation

The validation confirms validity only where all eight conditions are met: a qualified certificate complying with Annex I at the time of signing, issuance by a QTSP and validity, correspondence of the validation data, correct provision of the data set representing the signatory, clear indication of any pseudonym, creation by a QSCD, integrity of the signed data and fulfilment of Article 26. Point (f) – the QSCD condition – is precisely the point that is missing in Article 32a.

Article 40 Validation and preservation of qualified electronic seals

A single sentence: Articles 32, 33 and 34 shall apply mutatis mutandis to the validation and preservation of qualified electronic seals. The eight verification points, the requirements for the qualified validation service and the preservation obligations thus apply unchanged to seals as well.

KEY POINT

Note: an ADVANCED electronic signature suffices for the result report – not a qualified one.

COMMISSION MANDATE

L3

Art. 33(2)

TOPIC Implementing act on the validation service**ADDRESSEE** Commission

CONTENT Implementing act with reference standards, specifications and procedures; where these are complied with, the presumption of conformity applies.

PURPOSE -**DEADLINE** by 21 May 2025**REFERENCES** —

ETSI TS 119 441 · Requirements for validation services Policy and security requirements for providers of signature and seal validation services. Relation to eIDAS: gives concrete form to Article 33 and Article 40 eIDAS. ● Summary, not verified against the original text ETSI TS 119 442 · Protocol for validation services Describes the interface and the message formats for requesting validation results. Relation to eIDAS: gives concrete form to Article 33(1)(b) eIDAS. ● Summary, not verified against the original text

Article 48(2)

Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.

SHALL

L1

Art. 34(1) and 1a

TOPIC Qualified preservation service**ADDRESSEE** QTSP (provider of the preservation service)

CONTENT Paragraph 1: A qualified preservation service for QES may **ONLY** be provided by a QTSP that uses procedures and technologies capable of **EXTENDING THE TRUSTWORTHINESS OF THE QES BEYOND THE PERIOD OF ITS TECHNOLOGICAL VALIDITY**. Paragraph 1a: Where the standards referred to in paragraph 2 are complied with, the presumption of conformity applies.

PURPOSE *Cryptography ages – without preservation, a 15-year-old signature loses its evidentiary value.*

REFERENCES —

ETSI TS 119 511 · Preservation services – policy and security requirements Requirements for services which maintain the evidentiary value of signatures and seals over long periods, including re-signing and the renewal of time stamps before the algorithms become obsolete. Relation to eIDAS: gives concrete form to Article 34 eIDAS and is at the same time the point of reference for Article 45j eIDAS. ● Summary, not verified against the original text ETSI TS 119 512 · Protocol and interfaces for preservation services Technical design of the interfaces to preservation services, including the retrieval of evidence. Relation to eIDAS: gives concrete form to Article 34 eIDAS. ● Summary, not verified against the original text

Article 40 Validation and preservation of qualified electronic seals

A single sentence: Articles 32, 33 and 34 shall apply mutatis mutandis to the validation and the preservation of qualified electronic seals. The eight verification points, the requirements for the qualified validation service and the preservation obligations therefore apply unchanged to seals as well.

Article 45j Requirements for qualified electronic archiving services

Requires provision by qualified providers, procedures and technologies for durability and legibility beyond the technological validity period and at least throughout the entire legal or contractual preservation period, protection against loss and alteration with the exception of changes of medium and of format, as well as a report on integrity retrievable in an automated manner which bears a qualified electronic signature or a qualified electronic seal. Significance here: a demarcation: Article 34 preserves the signature, Article 45j archives the document – two different types of qualified service.

KEY POINT

Preservation (34) keeps the signature alive. Archiving (45j) keeps the document alive.

COMMISSION MANDATE

☐ L3

Art. 34(2)

TOPIC **Implementing act on the preservation service**

ADDRESSEE *Commission*

CONTENT Implementing act with reference standards, specifications and procedures.

PURPOSE -

DEADLINE **by 21 May 2025**

REFERENCES —

ETSI TS 119 511 · Preservation services – policy and security requirements Requirements for services which maintain the evidentiary value of signatures and seals over long periods, including re-signing and the renewal of time stamps before the algorithms become obsolete. Relation to eIDAS: gives concrete form to Article 34 eIDAS and is at the same time the point of reference for Article 45j eIDAS. ● Summary, not verified against the original text ETSI TS 119 512 · Protocol and interfaces for preservation services Technical design of the interfaces to preservation services, including the retrieval of evidence. Relation to eIDAS: gives concrete form to Article 34 eIDAS. ● Summary, not verified against the original text

Article 48(2)

Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.

LEGAL EFFECT

☒ L1

Art. 35(1)–(2)

TOPIC **Legal effects of electronic seals**

ADDRESSEE *Courts / Member States*

CONTENT Paragraph 1: Prohibition of discrimination as for the signature. Paragraph 2: A **QUALIFIED** electronic seal shall enjoy the **PRESUMPTION OF INTEGRITY OF THE DATA AND OF CORRECTNESS OF THE ORIGIN OF THAT DATA**.

PURPOSE *Legal persons need a counterpart to the handwritten signature – the seal attests origin and integrity, but does NOT replace a handwritten signature.*

REFERENCES

Article 41(2) Presumption attaching to the qualified electronic time stamp

Establishes the presumption of the accuracy of the date and time as well as of the integrity of the data bound to them. The time stamp is the glue of the Regulation: it reappears in signature validation, in Article 44(1)(f) for registered delivery services and, indirectly, in the electronic ledgers under Article 45L.

Article 43(2) The four presumptions of the qualified electronic registered delivery service

The densest presumption rule of the Regulation: integrity of the data, the sending of that data by the identified sender, its receipt by the identified addressee as well as the accuracy of the date and time of both operations. This makes the electronic registered delivery service the functional counterpart of registered mail with acknowledgement of receipt.

REFERENCES Article 25

Legal effects of electronic signatures Contains two sentences of far-reaching consequence: paragraph 1 prohibits denying an electronic signature legal effect and admissibility as evidence solely on the grounds that it is in an electronic form or that it does not meet the requirements for qualified electronic signatures. Paragraph 2 gives the qualified electronic signature the equivalent legal effect of a handwritten signature. The former paragraph 3 was deleted by eIDAS 2.0. Significance here: a deliberate difference: equivalence with the handwritten signature only for the signature; for the seal, merely a presumption.

KEY POINT

Signature = person + intent. Seal = organisation + origin. Not interchangeable.

SHALL

■ L1

Art. 36(1)(a)–(d) and paragraph 2

TOPIC Requirements for advanced electronic seals**ADDRESSEE** Seal solutions / providers (indirectly)

CONTENT Paragraph 1: (a) uniquely linked to the **CREATOR OF THE SEAL**; (b) capable of identifying the creator of the seal; (c) created using electronic seal creation data that the creator of the seal can, with a high level of confidence, use **UNDER ITS CONTROL**; (d) linked to the data in such a way that any subsequent change in the data is detectable. Paragraph 2: Commission assessment as to possible implementing acts, with a deadline for that assessment.

PURPOSE *Mirror image of Article 26 – a deliberately identical structure; only the addressee changes from the natural to the legal person.*

DEADLINE **Paragraph 2: assessment by 21 May 2026**

REFERENCES Article 26

Requirements for advanced electronic signatures Names four cumulative requirements: unique linkage to the signatory, capability of identifying him, creation using signature creation data under his sole control with a high level of confidence, and detectability of any subsequent change. Paragraph 2 requires the Commission to assess by 21 May 2026 whether reference standards are necessary by way of an implementing act. Significance here: the only substantive difference: 'sole control' for the signatory, mere 'control' for the creator of the seal.

Article 3

Definitions Contains the legal definitions of points 1 to 57, supplemented by the letter-numbered points inserted by eIDAS 2.0 such as 5a, 16a and 21a. Of particular practical importance: point 3 person identification data, point 5a user, point 6 relying party, point 16 trust service, point 20 qualified trust service provider, point 44 electronic attestation of attributes, point 46 the electronic attestation of attributes issued by or on behalf of a public sector body responsible for an authentic source and point 47 authentic source.

KEY POINT

Article 26 = sole control. Article 36 = control. A one-word difference, deliberately made.

SHALL

■ L2

Art. 37(1)–(3) and 5

TOPIC Electronic seals in public services**ADDRESSEE** Member States / public sector bodies

CONTENT Obligation to recognise and prohibition of excessive requirements **BY ANALOGY WITH ARTICLE 27**, applied to seals; paragraph 5: implementing act on reference formats for advanced electronic seals.

PURPOSE *Mirror image of Article 27 – identical logic, so that authorities also accept evidence relating to organisations EU-wide.*

DEADLINE **Paragraph 5: by 18 September 2015 (deadline expired; Implementing Regulation (EU) 2015/1506)**

REFERENCES Article 27 Electronic signatures in public services

Requires Member States which demand an advanced electronic signature in order to use an online service offered by a public sector body also to recognise advanced electronic signatures based on qualified certificates and qualified electronic signatures – at least in the formats defined by implementing act. Conversely, they shall not request, for cross-border use, a level higher than the qualified electronic signature. The former paragraph 4 was deleted.

KEY POINT

27 and 37 are identical but for the word 'seal'.

SHALL

■ L1

Art. 38(1)–(6)

TOPIC Qualified certificates for electronic seals**ADDRESSEE** QTSP / Member States

CONTENT Paragraph 1: compliance with **ANNEX III**. Paragraph 2: no additional requirements going beyond Annex **III**. Paragraph 3: non-mandatory attributes permissible. Paragraph 4: revocation is **FINAL**. Paragraph 5: national suspension rules by analogy with Article 28(5). Paragraph 6: implementing act with a presumption of conformity for Annex **III**.

PURPOSE *Mirror image of Article 28, but with an Annex of its own (III instead of I) – the difference lies in Annex III, point (c): the name of the CREATOR OF THE SEAL instead of the signatory.*

DEADLINE **Paragraph 6: by 21 May 2025**

REFERENCES

REFERENCES

ETSI EN 319 412 · Certificate profiles Part 2 describes profiles for certificates of natural persons, Part 3 for legal persons, Part 4 for website authentication and Part 5 the QCSentences – those machine-readable extensions which indicate, for instance, the qualified status or the use of a QSCD. Relation to eIDAS: the technical counterpart of Annexes I, III and IV. Part 5 is in practice the precondition for a validation under Article 32(1)(f) eIDAS to be able to establish the use of a QSCD by machine at all. ● Summary, not verified against the original text

Annex III Annex III – qualified seal certificates Structure identical to Annex I.

The only substantive difference lies in point (c): what is required is the name of the creator of the seal and, where applicable, the registration number as stated in official records – a pseudonym is not provided for here.

Article 24a(1) Recognition of signatures and seals

Provides that qualified electronic signatures and qualified electronic seals based on qualified certificates issued in one Member State shall be recognised as such in all other Member States.

Article 28 Qualified certificates for electronic signatures

Requires compliance with Annex I and at the same time prohibits the Member States from laying down mandatory requirements going beyond it; non-mandatory additional attributes remain permissible as long as interoperability and recognition are not affected. Revocation is final and shall not be reverted; a temporary suspension is permissible only under the conditions of paragraph 5.

KEY POINT

Annex I = signature (pseudonym permitted). Annex III = seal (registration number instead of pseudonym).

REFERENCING PROVISION

■ L2

Art. 39(1)–(3)

TOPIC **Qualified electronic seal creation devices**

ADDRESSEE *QTSP / manufacturers*

CONTENT Paragraph 1: **ARTICLE 29** shall apply mutatis mutandis to the **REQUIREMENTS**. Paragraph 2: **ARTICLE 30** shall apply mutatis mutandis to the **CERTIFICATION**. Paragraph 3: **ARTICLE 31** shall apply mutatis mutandis to the **PUBLICATION** of the list.

PURPOSE *Avoids duplicate regulation – identical technology, a different user. Annex II therefore also applies mutatis mutandis.*

REFERENCES

Annex II

Annex II – qualified electronic signature creation devices Point 1 requires, in four sub-points, that the confidentiality of the electronic signature creation data be ensured, that those data occur practically only once, that they cannot be derived and that they are protected against use by others. Point 2 prohibits the device from altering the data to be signed or from preventing those data from being presented to the signatory prior to signing. Sub-point (d) of point 1 is modified by Article 29a(1), point (b), for the remote signature case.

Article 29

Requirements for qualified electronic signature creation devices Refers to Annex II for the requirements and contains, in paragraph 1a, the central innovation of eIDAS 2.0: electronic signature creation data may be generated, managed or duplicated only on behalf of the signatory, at the request of the signatory and by a qualified trust service provider providing a qualified trust service for the management of a remote qualified electronic signature creation device under Article 29a. Paragraph 2 empowers the Commission to establish reference numbers of relevant standards.

Article 30 Certification of qualified electronic signature creation devices

Provides that conformity with Annex II is certified by appropriate public or private bodies designated by the Member States – to be distinguished from the conformity assessment bodies of Article 20. The basis is a security evaluation process in accordance with a listed standard or, in the alternative, an equivalent notified process. New is the five-year limit with a vulnerability assessment every two years.

Article 31 Publication of the list of certified devices

Requires the Member States to notify to the Commission, without undue delay and no later than one month after the certification is concluded, the certified signature creation devices – and likewise, within one month, those devices whose certification has been cancelled. The Commission makes the list publicly available.

KEY POINT

Three paragraphs, three references: 29 – 30 – 31. Neatly numbered through. Qualified service for the management of qualified

REFERENCING PROVISION

■ L1

Art. 39aSole paragraph

TOPIC **Qualified remote seal management service**

ADDRESSEE *QTSP*

CONTENT **ARTICLE 29a** shall apply **MUTATIS MUTANDIS** to a qualified service for the management of remote qualified electronic seal creation devices.

PURPOSE *Remote sealing is treated in exactly the same way as remote signing – including the transitional period under Article 51(3).*

DEADLINE **Transitional period until 21 May 2026 under Article 51(3)**

REFERENCES

REFERENCES

ETSI TS 119 431 · Requirements for remote signature and remote seal services Part 1 is addressed to providers which operate a signature creation device on behalf of the signatory, and deals in particular with key generation, activation data, the sole control of the signatory and back-up copies. Relation to eIDAS: the central standard for Article 29a and Article 39a eIDAS – and thereby for demonstrating that Article 26(1)(c) eIDAS is complied with on the server side as well. ● Summary, not verified against the original text

Article 51(3)

Legacy protection for remote signatures and remote seals Permits the management of remote qualified electronic signature and seal creation devices to be continued until 21 May 2026 without a qualified status of its own. Thereafter Articles 29a and 39a apply without restriction. For providers of remote signing this is the most important cut-off date of the entire recast.

Article 29a Qualified service for the management of remote signature creation devices

Makes the server-side management of signature keys a qualified trust service in its own right, subject to three conditions: generation or management of the data on behalf of the signatory, duplication exclusively for back-up purposes at the same security level and in no more copies than the minimum needed, as well as compliance with all requirements identified in the certification report under Article 30. Legacy protection applies until 21 May 2026.

KEY POINT

One sentence, full effect. Article 51(3) expressly names BOTH – 29a and 39a.

REFERENCING PROVISION

L2

Art. 40Sole paragraph

TOPIC

Validation and preservation of qualified electronic sealsADDRESSEE *Validation and preservation services*

CONTENT **ARTICLES 32, 33 AND 34** shall apply **MUTATIS MUTANDIS** to the validation and preservation of qualified electronic seals.

PURPOSE *Mirror image – learn once, apply twice.*

REFERENCES

Article 32 Requirements for the validation of qualified electronic signatures

Sets out in eight points when a validation may confirm validity: a qualified certificate complying with Annex I at the time of signing, issuance by a qualified trust service provider and validity at the time of signing, correspondence of the signature validation data, correct provision of the unique set of data representing the signatory, clear indication of any pseudonym, creation by a qualified electronic signature creation device, integrity of the data and compliance with Article 26. Paragraph 2 additionally requires that the result be presented intelligibly.

Article 33

Qualified validation service Permits provision only by qualified trust service providers and requires that validation be carried out in compliance with Article 32(1) and that the result be made available in an automated manner that is reliable and efficient – confirmed by an advanced electronic signature or an advanced electronic seal of the provider. For the result report the advanced form therefore suffices.

Article 34 Qualified preservation service

Requires procedures and technologies capable of extending the trustworthiness of a qualified electronic signature beyond the technological validity period. Cryptography ages – without preservation a 15-year-old signature loses its evidential value. To be distinguished from Article 45j: preservation keeps the SIGNATURE alive, archiving keeps the DOCUMENT alive.

KEY POINT

One reference, three articles.

REFERENCING PROVISION

L2

Art. 40aSole paragraph

TOPIC

Validation of advanced electronic seals with a qualified certificateADDRESSEE *Validation services*

CONTENT **ARTICLE 32a** shall apply **MUTATIS MUTANDIS** to the validation of advanced electronic seals based on qualified certificates.

PURPOSE *Completes the mirroring: for every signature article there is a seal article.*

REFERENCES

Article 32a

Validation of advanced electronic signatures with a qualified certificate New in eIDAS 2.0 and substantively identical to Article 32 – minus the condition that the signature was created by a qualified electronic signature creation device. The article thereby closes the regulatory gap for the case, very common in practice, of an advanced electronic signature based on a qualified certificate.

KEY POINT

The seal mirroring is thus complete: 35/25, 36/26, 37/27, 38/28, 39/29+30+31, 39a/29a, 40/32+33+34, 40a/32a.

LEGAL EFFECT

■ L1

Art. 41(1) – 2

TOPIC Legal effect of electronic time stamps

ADDRESSEE Courts / Member States

CONTENT Paragraph 1: prohibition of discrimination. Paragraph 2: **QUALIFIED** electronic time stamps shall enjoy the **PRESUMPTION OF THE ACCURACY OF THE DATE AND TIME** they indicate and of the **INTEGRITY** of the data bound to them.

PURPOSE *Without evidentially reliable time it cannot be shown that a document existed before an event.*

REFERENCES Article 32(1) Eight check points of QES validation

The validation confirms validity only if all eight conditions are met: a qualified certificate complying with Annex I at the time of signing, issuance by a QTSP and validity at the time of signing, correspondence of the signature validation data, correct provision of the unique set of data representing the signatory, clear indication of any pseudonym, creation by a QSCD, unimpaired integrity of the data and compliance with Article 26. Point (f) – the QSCD condition – is precisely the point that is missing from Article 32a.

Article 44(1)

Requirements for qualified electronic registered delivery services Six conditions, points (a) to (f), which in the event of transfer between several providers apply to all those involved. Note the differing signature level: point (d) requires an advanced electronic signature or an advanced electronic seal for securing the sending and receiving process, whereas point (f) requires a **QUALIFIED** electronic time stamp for the time indication.

“the date and time of sending, receiving and any change of data are indicated by a qualified electronic time stamp”

✓ Article 44(1)(f)

Article 45(1) eIDAS

Requirements for qualified electronic ledgers Four conditions: creation and management by one or more QTSP, establishing the origin of the data records, ensuring the unique sequential chronological ordering, and recording data in such a way that any subsequent change is immediately detectable.

Article 42 Requirements for qualified electronic time stamps

Requires three things: a binding of the date and time to the data that reasonably precludes the possibility of the data being changed undetectably; an accurate time source linked to Coordinated Universal Time; and securing by an advanced electronic signature or an advanced electronic seal of the qualified trust service provider, or by some equivalent method. That the advanced form suffices is frequently misremembered.

KEY POINT

The time stamp is the glue of the Regulation – it reappears in ERDS, electronic ledgers and signature validation.

SHALL

■ L1

Art. 42(1)(a) – (c)

TOPIC Requirements for qualified electronic time stamps

ADDRESSEE QTSP (time stamping service)

CONTENT The qualified electronic time stamp **SHALL**: a) **BIND** the date and time to data in such a manner that the possibility of **UNDETECTED CHANGE** is reasonably **PRECLUDED**; b) be based on an **ACCURATE TIME SOURCE** linked to **COORDINATED UNIVERSAL TIME (UTC)**; c) be signed using an **ADVANCED** electronic signature or sealed with an **ADVANCED** electronic seal of the QTSP – or use some equivalent method.

PURPOSE *A time stamp open to manipulation would devalue the entire chain of evidence – including signature validation.*

REFERENCES —

ETSI EN 319 421 · Requirements for providers of qualified electronic time stamps Governs policy and security requirements for time stamping services, in particular the link to Coordinated Universal Time, the permissible deviation, its monitoring and the conduct required where it is exceeded. Relation to eIDAS: gives concrete form to Article 42(1)(b) eIDAS. The associated EN 319 422 describes the protocol and profile. ● Summary, not verified against the original text ETSI EN 319 422 · Profile and protocol for time stamps Describes the technical format of the time stamp token and the request-response protocol. Relation to eIDAS: supplements EN 319 421 in relation to Article 42 eIDAS. ● Summary, not verified against the original text

Article 41(2) Presumption attaching to the qualified electronic time stamp

Establishes the presumption of the accuracy of the date and time and of the integrity of the data bound to them. The time stamp is the glue of the Regulation: it reappears in signature validation, in Article 44(1)(f) for electronic registered delivery services and indirectly in the electronic ledgers under Article 45l.

Article 24a(6) Recognition of time stamps

Requires Union-wide recognition of qualified electronic time stamps.

KEY POINT

Note: an ADVANCED electronic signature suffices (point (c)) – not a qualified one. A common error.

COMMISSION MANDATE

■ L2

Art. 42(1a) and 2

TOPIC Presumption of conformity and implementing act

ADDRESSEE Commission

CONTENT Paragraph 1a: where the standards referred to in paragraph 2 are complied with, the presumption of conformity with paragraph 1 applies. Paragraph 2: implementing act with reference standards for the binding of date and time to data and for establishing the accuracy of time sources.

PURPOSE -

DEADLINE Paragraph 2: by 21 May 2025

REFERENCES —

ETSI EN 319 421 · Requirements for providers of qualified electronic time stamps Governs policy and security requirements for time stamping services, in particular the link to Coordinated Universal Time, the permissible deviation, its monitoring and the conduct required where it is exceeded. Relation to eIDAS: gives concrete form to Article 42(1)(b) eIDAS. The associated EN 319 422 describes the protocol and profile. ● Summary, not verified against the original text

Article 48(2)

Examination procedure Refers to Article 5 of the Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure. Legal effect of an electronic registered delivery

LEGAL EFFECT

■ L1

Art. 43(1)– 2

TOPIC Legal effect of the ERDS

ADDRESSEE Courts / Member States

CONTENT Paragraph 1: prohibition of discrimination. Paragraph 2: Data from a **QUALIFIED** electronic registered delivery service shall enjoy the **PRESUMPTION** of the **INTEGRITY** of the data, of the **SENDING** of that data by the identified **SENDER**, of its **RECEIPT** by the identified **ADDRESSEE** and of the **ACCURACY** of the date and time of sending and receipt.

PURPOSE *The electronic counterpart of registered mail with advice of receipt – without the presumption the proof of delivery would be worthless.*

REFERENCES **Article 24a(8) Recognition of electronic registered delivery services**

Requires Union-wide recognition of qualified electronic registered delivery services.

Article 44 Requirements for qualified electronic registered delivery services

Lists six requirements which, in the event of transfer between several providers, apply to all those involved: provision by qualified trust service providers, identification of the sender with a high level of confidence, identification of the addressee before delivery, securing by an advanced electronic signature or an advanced electronic seal, clear indication of any necessary changes to the data, and indication of the time by a qualified electronic time stamp. The voluntary interoperability frameworks are new.

Article 42 Requirements for qualified electronic time stamps

Requires three things: a binding of the date and time to the data that reasonably precludes the possibility of the data being changed undetectably; an accurate time source linked to Coordinated Universal Time; and securing by an advanced electronic signature or an advanced electronic seal of the qualified trust service provider, or by some equivalent method. That the advanced form suffices is frequently misremembered.

KEY POINT

FOUR presumptions at once: integrity, sender, addressee, time. The densest presumption rule in the Regulation. Requirements for qualified electronic registered delivery

SHALL

■ L1

Art. 44(1)(a) – (f)

TOPIC Requirements for qualified ERDS

ADDRESSEE QTSP (ERDS provider)

CONTENT Qualified electronic registered delivery services **SHALL**: a) be provided by one or **MORE** QTSP; b) ensure the identification of the **SENDER** with a **HIGH LEVEL OF CONFIDENCE**; c) ensure the identification of the **ADDRESSEE BEFORE DELIVERY**; d) secure the sending and receiving of the data by an **ADVANCED** electronic signature or an **ADVANCED** electronic seal of a QTSP in such a manner as to preclude the possibility of the data being changed undetectably; e) **CLEARLY INDICATE** to the sender and the addressee any change of the data needed for sending/receiving; f) indicate the date and time of sending, receiving or any change of the data by a **QUALIFIED ELECTRONIC TIME STAMP**. In the event of transfer between several QTSP, points a) – f) apply to **ALL** those involved.

PURPOSE *Determines what a 'registered letter' must be capable of proving in digital form in the first place.*

REFERENCES

REFERENCES

ETSI EN 319 521 · Requirements for electronic registered delivery service providers Policy and security requirements for ERDS providers, including identification of the sender and the addressee, generation of evidence and retention of that evidence. Relation to eIDAS: gives concrete form to Article 44(1) eIDAS. ● Summary, not verified against the original text
ETSI EN 319 522 · Architecture and protocols for electronic registered delivery services Describes the reference architecture, message formats and interoperability between delivery services. Relation to eIDAS: the practical basis of the voluntary interoperability frameworks under Article 44(2a) eIDAS. ● Summary, not verified against the original text
ETSI EN 319 531 · Requirements for qualified electronic registered delivery services Supplements EN 319 521 with the additional requirements for the qualified variant. Relation to eIDAS: gives concrete form to Article 44 eIDAS for the qualified case. ● Summary, not verified against the original text
ETSI EN 319 532 · Protocols for qualified electronic registered delivery services Technical arrangement of the evidence and interfaces for qualified electronic registered delivery services. Relation to eIDAS: gives concrete form to Article 44 eIDAS. ● Summary, not verified against the original text

Article 43(2) Four presumptions of the qualified electronic registered delivery service

The densest presumption rule in the Regulation: integrity of the data, sending of that data by the identified sender, receipt by the identified addressee and accuracy of the date and time of both operations. This makes the electronic registered delivery service the functional counterpart of registered mail with advice of receipt.

Article 24a(8) Recognition of electronic registered delivery services

Requires Union-wide recognition of qualified electronic registered delivery services.

Article 42 Requirements for qualified electronic time stamps

Requires three things: a binding of the date and time to the data that reasonably precludes the possibility of the data being changed undetectably; an accurate time source linked to Coordinated Universal Time; and securing by an advanced electronic signature or an advanced electronic seal of the qualified trust service provider, or by some equivalent method. That the advanced form suffices is frequently misremembered. Significance here: for the time indication under point (f) a simple electronic time stamp does not suffice – it must be qualified.

KEY POINT

Subtlety: point (d) requires only ADVANCED, whereas point (f) requires QUALIFIED. Do not confuse the two.

COMMISSION MANDATE

L2

Art. 44(1a) and 2

TOPIC **Presumption of conformity and implementing act**

ADDRESSEE *Commission*

CONTENT Paragraph 1a: presumption of conformity where the standards referred to in paragraph 2 are complied with. Paragraph 2: implementing act with reference standards for the processes for sending and receiving data.

PURPOSE -

DEADLINE **Paragraph 2: by 21 May 2025**

REFERENCES

ETSI EN 319 521 · Requirements for electronic registered delivery service providers Policy and security requirements for ERDS providers, including identification of the sender and the addressee, generation of evidence and retention of that evidence. Relation to eIDAS: gives concrete form to Article 44(1) eIDAS. ● Summary, not verified against the original text
ETSI EN 319 522 · Architecture and protocols for electronic registered delivery services Describes the reference architecture, message formats and interoperability between delivery services. Relation to eIDAS: the practical basis of the voluntary interoperability frameworks under Article 44(2a) eIDAS. ● Summary, not verified against the original text
ETSI EN 319 531 · Requirements for qualified electronic registered delivery services Supplements EN 319 521 with the additional requirements for the qualified variant. Relation to eIDAS: gives concrete form to Article 44 eIDAS for the qualified case. ● Summary, not verified against the original text
ETSI EN 319 532 · Protocols for qualified electronic registered delivery services Technical arrangement of the evidence and interfaces for qualified electronic registered delivery services. Relation to eIDAS: gives concrete form to Article 44 eIDAS. ● Summary, not verified against the original text

Article 48(2)

Examination procedure Refers to Article 5 of the Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.

MAY

L2

Art. 44(2a)– 2b

TOPIC **Interoperability between ERDS providers**

ADDRESSEE *QTSP (ERDS) / Commission*

CONTENT	Paragraph 2a: Providers of qualified ERDS MAY agree on INTEROPERABILITY . Such an interoperability framework SHALL comply with the requirements of paragraph 1; that compliance SHALL BE CONFIRMED BY A CONFORMITY ASSESSMENT BODY . Paragraph 2b: The Commission MAY establish reference standards for this; these shall be COST-EFFECTIVE and PROPORTIONATE .
PURPOSE	<i>New in eIDAS 2.0: electronic registered delivery services are to be able to deliver to one another – without interoperability every ERDS remains an island.</i>
DEADLINE	no deadline ('may')
REFERENCES	Article 44(1) Requirements for qualified electronic registered delivery services Six conditions, points (a) to (f), which in the event of transfer between several providers apply to all those involved. Note the differing signature level: point (d) requires an advanced electronic signature or an advanced electronic seal for securing the sending and receiving process, whereas point (f) requires a QUALIFIED electronic time stamp for the time indication. “the date and time of sending, receiving and any change of data are indicated by a qualified electronic time stamp” ✓ Article 44(1)(f) Article 48(2) eIDAS Examination procedure Refers to Article 5 of the Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure. Article 20 Supervision of qualified trust service providers The audit core of the Regulation: an audit at least every 24 months at the provider's own expense by a conformity assessment body, the audit scope including Article 21 of the NIS 2 Directive, submission of the report within three working days. New are the advance notification one month before planned audits, with a right of the supervisory body to attend as observer, and the withdrawal of qualified status where NIS2 or GDPR infringements have been notified. Paragraph 4 contains the empowerment for the central implementing act.

KEY POINT

Voluntary – but if so, then with CAB confirmation. Requirements for qualified certificates for

	SHALL	L1	Art. 45(1)
TOPIC	Requirements for QWACs		
ADDRESSEE	QTSP		
CONTENT	Qualified certificates for website authentication SHALL MEET the requirements of ANNEX IV . The evaluation of compliance shall be carried out in accordance with the standards, specifications and procedures referred to in paragraph 2.		
PURPOSE	<i>The user should be able to see WHO is behind a website – not merely that the connection is encrypted.</i>		
REFERENCES	— ETSI EN 319 411 · Policy and security requirements for certification authorities Part 1 contains the general requirements and defines certificate policies, among them QCP-w for qualified website authentication certificates. Part 2 supplements the requirements for issuers of qualified certificates with the policies QCP-n and QCP-l as well as their QSCD variants. Relation to eIDAS: gives concrete form to Article 24, Article 28 and Article 45 eIDAS as well as to Annexes I, III and IV. ● Summary, not verified against the original text ETSI EN 319 412 · Certificate profiles Part 2 describes profiles for certificates of natural persons, Part 3 for legal persons, Part 4 for website authentication and Part 5 the QCStatements – those machine-readable extensions which indicate, for instance, the qualified status or the use of a QSCD. Relation to eIDAS: the technical counterpart of Annexes I, III and IV. Part 5 is in practice the precondition for a validation under Article 32(1)(f) eIDAS to be able to establish the use of a QSCD by machine at all. ● Summary, not verified against the original text Annex IV Annex IV – website authentication certificates Besides the usual items, this Annex is the only one to contain a point 'ca', which requires for legal persons a unique set of data including the registration number. Point (d) requires address components with city and country, point (e) the domain names operated by the certificate holder. Article 24a(7) Recognition of website certificates Provides for the Union-wide recognition of qualified certificates for website authentication.		
KEY POINT	Annex IV is the only Annex with a point 'ca' – inserted for legal persons.		

	SHALL	L1	Art. 45(1a)
TOPIC	Recognition obligation of the providers of web-browsers		
ADDRESSEE	Providers of web-browsers		

CONTENT	QWACs SHALL BE RECOGNISED by providers of web-browsers. Providers of web-browsers SHALL ENSURE that the attested IDENTITY DATA and additional attributes are DISPLAYED IN A USER-FRIENDLY MANNER . They SHALL ENSURE support and interoperability – WITH THE EXCEPTION OF microenterprises and small enterprises as defined in Recommendation 2003/361/EC DURING THE FIRST FIVE YEARS of their operation as providers of web-browsers.
PURPOSE	<i>The politically most contested provision of eIDAS 2.0: for the first time it places browser manufacturers under a direct obligation.</i>
DEADLINE	SME exemption: first 5 years of operation
REFERENCES	Annex IV Annex IV – website authentication certificates Besides the usual items, this Annex is the only one to contain a point 'ca', which requires for legal persons a unique set of data including the registration number. Point (d) requires address components with city and country, point (e) the domain names operated by the certificate holder. Article 32(2) Display of the result Requires the validation system to provide the relying party with the correct result and to allow it to detect any security relevant issues. A result that is technically correct but displayed incomprehensibly leads to wrong decisions. Article 45a Cybersecurity precautionary measures Prohibits providers of web-browsers from taking measures contrary to their obligations under Article 45, but permits precautionary measures in the event of substantiated concerns related to security breaches or the loss of integrity of an identified certificate or set of certificates. These shall be notified in writing without undue delay to the Commission, the supervisory body, the certificate holder and the issuing provider; the supervisory body investigates and may request that the measure be put to an end. Significance here: the recognition obligation is there flanked by a narrowly limited exception for substantiated security concerns.
KEY POINT	Two obligations: recognise AND display in a user-friendly manner. The second is the harder one.

	SHALL	 L2	Art. 45(1b)+ 2
TOPIC	No additional requirements and implementing act		
ADDRESSEE	Member States / Commission		
CONTENT	Paragraph 1b: No mandatory requirements going beyond paragraph 1 may apply to QWACs. Paragraph 2: implementing act with reference standards, specifications and procedures for QWACs.		
PURPOSE	<i>As with Article 28(2) and Article 38(2): Annex IV is at the same time the minimum and the maximum content.</i>		
DEADLINE	Paragraph 2: by 21 May 2025		
REFERENCES	Article 28(2) No additional requirements going beyond Annex I Member States shall not lay down mandatory requirements for qualified signature certificates beyond Annex I. Annex I is thereby at the same time the minimum and the maximum content. The same pattern is found in Article 38(2), Article 45(1b) and Article 45d(3). Article 38(2) No additional requirements Prohibits mandatory requirements for qualified certificates for electronic seals going beyond Annex III. Annex III is thereby at the same time the minimum and the maximum content. Article 45d(3) No additional requirements Prohibits mandatory requirements for qualified electronic attestations of attributes going beyond Annex V – the same pattern as in Article 28(2), Article 38(2) and Article 45(1b). Article 48(2) Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.		
KEY POINT	The pattern 'no additional requirements' is found in 28(2), 38(2), 45(1b) and 45d(3).		

	SHALL NOT	 L1	Art. 45a(1)–(2)
TOPIC	Principle and exception of the precautionary measures		
ADDRESSEE	Providers of web-browsers		
CONTENT	Paragraph 1: Providers of web-browsers SHALL TAKE NO measures contrary to their obligations under Article 45 – in particular the recognition of QWACs and the user-friendly display. Paragraph 2: BY WAY OF DEROGATION therefrom, and ONLY in the event of SUBSTANTIATED CONCERNS related to security breaches or the loss of integrity of an identified certificate or set of certificates, they MAY take precautionary measures.		
PURPOSE	<i>A balance between the recognition obligation (Article 45) and the need to devalue compromised certificates quickly.</i>		
REFERENCES			

REFERENCES	Article 45(1a) Obligations of the providers of web-browsers The politically most contested provision of eIDAS 2.0. Providers of web-browsers shall recognise qualified certificates for website authentication, display the attested identity data in a user-friendly manner and ensure support as well as interoperability. Microenterprises and small enterprises are exempt during their first five years of operation. For the first time browser manufacturers are placed under obligation directly by eIDAS. “Providers of web-browsers shall ensure that the identity data attested in the certificate and additional attested attributes are displayed in a user-friendly manner” ✓ Article 45(1a)
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Article 46b(4) eIDAS

Catalogue of tasks of the supervisory body Eleven tasks, among them the notification of the NIS2 authorities, the ANALYSIS OF THE CONFORMITY ASSESSMENT REPORTS (point (c)), audits, cooperation with the data protection authorities, the granting and withdrawal of qualified status, the informing of the body responsible for the trusted list, the VERIFICATION OF THE TERMINATION PLANS (point (i)) as well as the investigation of claims made by web-browser providers pursuant to Article 45a (point (k)). Significance here: point (k) expressly assigns the investigation of the browser notification to the supervisory body.

KEY POINT

Rule: recognise. Exception: substantiated security concerns. And only then.

	SHALL	L1	Art. 45a(3)–(4)
TOPIC	Notification obligation and investigation		
ADDRESSEE	<i>Providers of web-browsers / supervisory body</i>		
CONTENT	Paragraph 3: Whoever takes measures under paragraph 2 SHALL NOTIFY its concerns to the Commission, the competent supervisory body, the certificate holder AND the issuing QTSP WITHOUT UNDUE DELAY IN WRITING – together with a description of the measures taken. The supervisory body SHALL ISSUE an A CKNOWLEDGEMENT OF RECEIPT. Paragraph 4: The supervisory body SHALL INVESTIGATE the notification in accordance with Article 46b(4), point (k). Where the investigation does NOT result in the withdrawal of the qualified status, it shall inform the provider of the web-browser and SHALL REQUEST that provider TO PUT AN END to the precautionary measures.		
PURPOSE	<i>Prevents a browser manufacturer from acting de facto as a supervisory authority – the final decision is taken by the supervisory body.</i>		
DEADLINE	without undue delay (notification)		
REFERENCES	Article 46b(4) Catalogue of tasks of the supervisory body Eleven tasks, among them the notification of the NIS2 authorities, the ANALYSIS OF THE CONFORMITY ASSESSMENT REPORTS (point (c)), audits, cooperation with the data protection authorities, the granting and withdrawal of qualified status, the informing of the body responsible for the trusted list, the VERIFICATION OF THE TERMINATION PLANS (point (i)) as well as the investigation of claims made by web-browser providers pursuant to Article 45a (point (k)). Significance here: point (k) expressly assigns the investigation of the browser notification to the supervisory body. Article 20(3) Request for a remedy and withdrawal of status A two-stage procedure: the supervisory body first requires a remedy to be provided within a set time limit. Where none is provided, it withdraws the qualified status where justified by the extent, duration and consequences of the failure. Those three criteria also apply to the withdrawal for NIS2 and GDPR failures under paragraphs 3a and 3b.		
KEY POINT	The browser notifies – the supervisory body decides – the browser must put an end to the measure.		

	LEGAL EFFECT	L1	Art. 45b(1)–(3)
TOPIC	Legal effects of the EAA		
ADDRESSEE	<i>Courts / Member States</i>		
CONTENT	Paragraph 1: Prohibition of discrimination for EAAs. Paragraph 2: A QUALIFIED EAA and EAAs ISSUED BY OR ON BEHALF OF A PUBLIC SECTOR BODY RESPONSIBLE FOR AN AUTHENTIC SOURCE SHALL HAVE THE SAME LEGAL EFFECT AS LAWFULLY ISSUED ATTESTATIONS IN PAPER FORM. Paragraph 3: Such a PuB-EAA shall be recognised in ALL Member States.		
PURPOSE	<i>Without being placed on an equal footing with the paper evidence, a digital attestation (for example a diploma) would be legally worthless.</i>		
REFERENCES	Article 24a(9) Recognition of attestations of attributes Provides for the Union-wide recognition of qualified electronic attestations of attributes. Article 45d Requirements for the qualified EAA Refers to Annex V and prohibits additional mandatory requirements. Noteworthy is Annex V, point (g): it requires a QUALIFIED signature or a qualified seal of the issuing QTSP, whereas Annexes I and III require only an advanced form at the same point. Under paragraph 4 the revocation is final.		

REFERENCES Article 45f

Requirements for the PuB-EAA Creates a third EAA class between the simple and the qualified one. The issuing public sector body does not need QTSP status, but shall under paragraph 2 meet a level of reliability and trustworthiness EQUIVALENT to that of QTSPs in accordance with Article 24, and is notified under paragraph 3 together with a conformity assessment report. Its responsibility for the authentic source shall be evidenced in machine-readable form in the underlying certificate. Paragraph 8 requires an interface with the Wallet.

Article 3

Definitions Contains the legal definitions of points 1 to 57, supplemented by the letter-numbered points inserted by eIDAS 2.0 such as 5a, 16a and 21a. Of particular practical importance: point 3 person identification data, point 5a user, point 6 relying party, point 16 trust service, point 20 qualified trust service provider, point 42 electronic attestation of attributes, point 45 authentic source and point 46 the public sector body responsible for an authentic source.

KEY POINT

Three EAA classes: simple (paragraph 1 only), qualified and PuB-EAA (paragraphs 2 + 3).

SHALL NOT

■ L1

Art. 45cSole paragraph**TOPIC EAA in public services****ADDRESSEE** *Member States / public sector bodies*

CONTENT Where an electronic identification using an electronic identification means and authentication is required under national law to access an online service, **PERSON IDENTIFICATION DATA** contained in an EAA **SHALL NOT SUBSTITUTE** the electronic identification and its authentication – **UNLESS** the Member State has **SPECIFICALLY ALLOWED** it. In such a case, qualified EAAs **FROM OTHER** Member States shall **ALSO** be accepted.

PURPOSE *Prevents the weaker EAA from circumventing the stronger eID authentication – an attestation of attributes is not an identity document.*

REFERENCES Article 5f(1) Public sector obligation to accept

Where a Member State requires electronic identification and authentication to access an online service provided by a public sector body, it shall also accept the Wallet. Without this obligation there would be no use cases and therefore no incentive to use it.

Article 6 eIDAS Mutual recognition

Establishes the obligation to recognise notified electronic identification means from other Member States where the scheme is included in the Commission's list, its assurance level is at least substantial and corresponds to the level required, and the public sector body itself uses substantial or high. Such recognition shall take place no later than twelve months after publication of the list. For the level low there is only an optional recognition. Significance here: the eID recognition remains the stronger means of evidence; the attestation of attributes shall not displace it.

Article 45b

Legal effects of the electronic attestation of attributes Paragraph 1 contains the prohibition of discrimination for all attestations of attributes. Paragraph 2 places the qualified attestation and the attestation issued by a public sector body responsible for an authentic source on an equal footing with the lawfully issued paper attestation. Paragraph 3 provides for the Union-wide recognition of the attestations issued by public sector bodies.

KEY POINT

An EAA does not replace an eID – unless the Member State specifically allows it. But then EU-wide.

SHALL

■ L1

Art. 45d(1)–(3)**TOPIC Requirements for the qualified EAA****ADDRESSEE** *QTSP (QEAA providers) / Member States*

CONTENT Paragraph 1: QEAs **SHALL MEET** the requirements of **ANNEX V**. Paragraph 2: The evaluation shall be carried out in accordance with the standards referred to in paragraph 5. Paragraph 3: **No** mandatory requirements going beyond Annex V may apply.

PURPOSE *Without uniform content and format a relying party (RP) abroad cannot evaluate the attestation.*

REFERENCES Annex V

Annex V – qualified electronic attestations of attributes Nine mandatory items, (a) to (i). At its core is point (d): the attested attributes including their scope of validity. Point (g) requires – unlike Annexes I and III – a **QUALIFIED** electronic signature or a qualified electronic seal of the issuing QTSP. Significance here: point (g) of this Annex requires a qualified signature – stricter than Annexes I and III.

Article 24(1b)

Five methods of attribute verification Parallel to paragraph 1a, but extended by one option: the qualified electronic attestation of attributes is additionally permitted (point (c)). The QEAA from Section 9 thereby itself becomes an admissible means of evidence in the admission procedure of Section 3 – here the circle between the two blocks closes.

Article 24a(9) Recognition of attestations of attributes

Provides for the Union-wide recognition of qualified electronic attestations of attributes.

REFERENCES	Article 28(2) No additional requirements going beyond Annex I Member States shall not lay down mandatory requirements for qualified signature certificates beyond Annex I. Annex I is thereby at the same time the minimum and the maximum content. The same pattern is found in Article 38(2), Article 45(1b) and Article 45d(3).		
KEY POINT	Annex V requires in point (g) a QUALIFIED signature/seal – Annex I only an advanced one. An important difference.		
	SHALL	■ L1	Art. 45d(4)–(5)
TOPIC	Final revocation and implementing act		
ADDRESSEE	QTSP / Commission		
CONTENT	Paragraph 4: Where a QEAA is revoked after issuance, it is NO LONGER VALID from the moment of its revocation and SHALL NOT IN ANY CIRCUMSTANCES REGAIN VALIDITY . Paragraph 5: implementing act with reference standards for QEAA – CONSISTENT with the European Digital Identity Wallet implementing acts referred to in Article 5a(23).		
PURPOSE	<i>Alignment with the Wallet implementing act is decisive: QEAA and Wallet have to fit together technically.</i>		
DEADLINE	Paragraph 5: by 21 November 2024		
REFERENCES	Article 24(4a) Extension to attestations of attributes Provides that paragraphs 3 and 4 apply accordingly to the revocation of qualified electronic attestations of attributes. The 24-hour time limit and the permanent status information thus apply there as well. Article 28(4) Finality of revocation A revoked qualified certificate loses its validity and its status shall not in any circumstances be reverted. A reversible intermediate stage exists only by way of the suspension under paragraph 5, the period of which must be visible in the certificate database. The same finality applies under Article 38(4), Article 45d(4) and Article 45f(4). Article 5a(23) Implementing act on the core requirements for the Wallet The most important empowering provision of the Regulation for practice. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. At the same time one of the two triggers of the 24-month time limit of paragraph 1. Numerous further provisions (5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act. “the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article” ✓ Article 5a(23) Article 45g(2) eIDAS Interface obligation of qualified providers Requires the providers of QUALIFIED attestations of attributes – and only those – to provide an interface with the Wallets. The obligation under paragraph 1 to make it possible to request, obtain, store and manage, by contrast, applies to all providers.		
KEY POINT	The QEAA deadlines (21 November 2024) follow the Wallet rhythm, not the QTSP rhythm (21 May 2025).		

	SHALL	L1	Art. 45e(1)
TOPIC	Verification of attributes against authentic sources		
ADDRESSEE	Member States		
CONTENT	Member States SHALL ENSURE that, at least for the attributes listed in ANNEX VI – wherever those attributes rely on authentic sources WITHIN THE PUBLIC SECTOR – measures are taken to allow QTSPs of EAA to verify those attributes AT THE REQUEST OF THE USER by ELECTRONIC MEANS .		
PURPOSE	<i>An attestation is only as good as its source – without a connection to the registers it would be a mere assertion.</i>		
DEADLINE	24 months after the entry into force of the implementing acts under Article 5a(23) and Article 5c(6) – the same anchor as the provision of the Wallet		
REFERENCES			

REFERENCES **Annex VI**

Annex VI – Minimum list of attributes Eleven items: address, age, sex, civil status, family composition, nationality or citizenship, educational qualifications and licences, professional qualifications and licences, powers and mandates to represent, public permits and licences as well as – expressly only for legal persons – financial and company data. Under Article 45e those attributes must be verifiable by electronic means. Significance here: the eleven attributes listed there form the minimum scope of the obligation to verify by electronic means.

Article 5a(1) Obligation to provide and deadline anchor

Establishes the central implementation obligation of Chapter II: every Member State must provide at least one Wallet. What is decisive is the deadline mechanism – the 24 months run not from the date of the Regulation but from the entry into force of TWO implementing acts: Article 5a(23) (core functions) and Article 5c(6) (certification). As long as either of the two is missing, the period does not begin. The same anchor governs Article 5f(2) (36 months) and Article 45e(1).

“each Member State shall provide at least one European Digital Identity Wallet within 24 months of the date of entry into force of the implementing acts referred to in paragraph 23 of this Article and in Article 5c(6)”

✓ Article 5a(1)

Article 24(1b) eIDAS

Five methods of attribute verification Parallel to paragraph 1a, but extended by one option: the qualified electronic attestation of attributes is additionally permitted (point (c)). The QEAA from Section 9 thereby itself becomes an admissible means of evidence in the admission procedure of Section 3 – here the circle between the two blocks closes.

Article 11

Liability in the field of electronic identification Distributes liability across three roles and three points of Article 7: the notifying Member State is liable for point (d) (unambiguous attribution of the person identification data) and point (f) (availability of authentication), the issuing party for point (e) (correct attribution of the means), and the party operating the authentication procedure for its incorrect operation. All three cases concern cross-border transactions only. Applies mutatis mutandis to Wallets via Article 5a(19).

Article 45d

Requirements for the qualified EAA Refers to Annex V and prohibits additional mandatory requirements. Noteworthy is Annex V, point (g): it requires a QUALIFIED signature or a qualified seal of the issuing QTSP, whereas Annexes I and III require only an advanced form at the same point. Under paragraph 4 the revocation is final.

Article 45f

Requirements for PuB-EAA Creates a third class of EAA between simple and qualified. The issuing public sector body does not need QTSP status, but must under paragraph 2 meet a level of reliability and trustworthiness EQUIVALENT to that of QTSPs under Article 24, and is notified under paragraph 3 together with a conformity assessment report. Its responsibility for the authentic source must be evidenced in machine-readable form in the underlying certificate. Paragraph 8 requires an interface with the Wallet.

KEY POINT

The same 24-month clock as Article 5a(1) – Wallet and register connection start together.

COMMISSION MANDATE



L2

Art. 45e(2)

TOPIC **Implementing act on the catalogue of attributes**ADDRESSEE *Commission*

CONTENT Implementing act with a list of reference standards and, where necessary, specifications and procedures for the **CATALOGUE OF ATTRIBUTES**, the schemes for the attestation of attributes and the verification procedures – taking into account international standards and **CONSISTENT** with the European Digital Identity Wallet implementing act under Article 5a(23).

PURPOSE -

DEADLINE **by 21 November 2024**REFERENCES **Annex VI**

Annex VI – Minimum list of attributes Eleven items: address, age, sex, civil status, family composition, nationality or citizenship, educational qualifications and licences, professional qualifications and licences, powers and mandates to represent, public permits and licences as well as – expressly only for legal persons – financial and company data. Under Article 45e those attributes must be verifiable by electronic means. Significance here: the eleven attributes listed there form the minimum scope of the obligation to verify by electronic means.

Article 5a(23) Implementing act on the core Wallet requirements

The most important empowering provision of the Regulation for practical purposes. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. At the same time it is one of the two triggers of the 24-month period in paragraph 1. Numerous further provisions (Article 5b(11), Article 5d(7), Article 5e(5), Article 45d(5), Article 45e(2), Article 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23)

Article 48(2) eIDAS

Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.

		SHALL	L1	Art. 45f(1)(a)–(b)
TOPIC	Requirements for PuB-EAA			
ADDRESSEE	Public sector bodies referred to in Article 3(46)			
CONTENT	An EAA issued by or on behalf of a public sector body responsible for an authentic source SHALL meet: (a) the requirements set out in ANNEX VII ; (b) the underlying QUALIFIED certificate of the qualified signature/qualified seal of the issuing body contains a SPECIFIC SET OF CERTIFIED ATTRIBUTES in a form suitable for automated processing, from which (i) it is apparent that the body is, under Union or national law, responsible for the authentic source or designated to act on its behalf, (ii) a data record U NAMBIGUOUSLY represents the authentic source and (iii) the relevant provisions of law are IDENTIFIED .			
PURPOSE	<i>Creates a third class of EAA between 'simple' and 'qualified' – official attestations without QTSP status, but with evidenced responsibility for the register.</i>			
REFERENCES	Annex VII Annex VII – EAA of public sector bodies Structured in parallel to Annex V, but with an identification as PuB-EAA and a data record on the issuing public sector body giving the Member State of establishment, the name and, where applicable, the registration number. The signature or seal comes from the public sector body, not from a QTSP. Article 3 Definitions Contains the legal definitions of points 1 to 57, supplemented by the letter-numbered points inserted by eIDAS 2.0 such as 5a, 16a and 21a. Of particular practical importance: point 3 person identification data, point 5a user, point 6 relying party, point 16 trust service, point 20 qualified trust service provider, point 44 electronic attestation of attributes, point 47 authentic source and point 46 the electronic attestation of attributes issued by or on behalf of a public sector body responsible for an authentic source.			
KEY POINT	PuB-EAA = official instead of qualified. The evidence of responsibility for the register sits in the certificate.			

		SHALL	L1	Art. 45f(2)–(3)
TOPIC	Level of reliability and notification			
ADDRESSEE	Member States			
CONTENT	Paragraph 2: the Member State SHALL ENSURE that the issuing public sector bodies meet a level of RELIABILITY AND TRUSTWORTHINESS EQUIVALENT TO QTSPs IN ACCORDANCE WITH ARTICLE 24 . Paragraph 3: Member States shall notify those bodies to the Commission; the notification SHALL INCLUDE A CONFORMITY ASSESSMENT REPORT ISSUED BY A CAB confirming that paragraphs 1, 2 and 6 are met. The Commission shall make the list available to the public through a secure channel, electronically signed or sealed and in a form suitable for automated processing.			
PURPOSE	<i>The waiver of QTSP status is offset by an equivalent level of requirements plus a CAR – this is where the actual audit need lies.</i>			
REFERENCES	Article 20(1) Conformity assessment every 24 months The audit core of the Regulation. QTSPs are audited at their own expense at least every 24 months by a conformity assessment body; the scope of the audit expressly also covers Article 21 of the NIS 2 Directive. The conformity assessment report is to be submitted to the supervisory body within three WORKING days of its receipt. Significance here: even without QTSP status a conformity assessment report must be submitted – the audit-relevant core of the article. “Qualified trust service providers shall be audited at their own expense at least every 24 months by a conformity assessment body” ✓ Article 20(1) eIDAS Article 22 Trusted lists Requires each Member State to establish, maintain and publish lists of the qualified providers and of the qualified services they provide – electronically signed or sealed in a secured manner and in a form suitable for automated processing. The information on the body responsible for the list, the place of publication and the signing certificates must be notified to the Commission without undue delay, and the Commission in turn makes it available in a secured, machine-processable form. Article 24 Requirements for qualified trust service providers The central catalogue of obligations. Paragraphs 1, 1a and 1b govern the verification of identity (four methods) and of attributes (five methods). Paragraph 2 contains points a to k – notification obligations, staff, financial resources, user information, trustworthy systems and cryptography, verifiable storage, risk management, 24-hour notification, protection against forgery, record-keeping obligation, termination plan and certificate database. Paragraphs 3 and 4 govern revocation and status information. Significance here: the public sector body does not need QTSP status, but a level of reliability equivalent to that article.			
KEY POINT	No QTSP status, but QTSP level and a QTSP audit report.			

SHALL

■ L2

Art. 45f(4)–(5)

TOPIC **Final revocation and presumption of conformity**ADDRESSEE *Public sector bodies*

CONTENT Paragraph 4: after revocation the PuB-EAA loses its validity and its status **SHALL NOT BE REVERTED**. Paragraph 5: where it complies with the standards referred to in paragraph 6, the presumption of conformity with paragraph 1 applies.

PURPOSE -

REFERENCES **Article 28(4) Finality of revocation**

A revoked qualified certificate loses its validity and its status shall not in any circumstances be reverted. A reversible intermediate stage exists only by way of the suspension under paragraph 5, the period of which must be visible in the certificate database. The same finality applies under Article 38(4), Article 45d(4) and Article 45f(4).

Article 38(4) Finality of revocation

Provides that a revoked qualified certificate for electronic seal is no longer valid from the moment of its revocation and that its status shall not in any circumstances be reverted.

Article 45d(4) Finality of revocation

Provides that a revoked qualified electronic attestation of attributes is no longer valid from the moment of its revocation and shall not in any circumstances regain validity.

KEY POINT **The fourth place of the same principle: revocation is always final (28(4), 38(4), 45d(4), 45f(4)).**

COMMISSION MANDATE

□ L3

Art. 45f(6)–(7)

TOPIC **Implementing act on PuB-EAA**ADDRESSEE *Commission*

CONTENT Paragraph 6: implementing act with reference standards for PuB-EAA, consistent with the European Digital Identity Wallet implementing act under Article 5a(23). Paragraph 7: implementing act for the purposes of paragraph 3 (notification procedure), likewise consistent with the Wallet implementing act.

PURPOSE -

DEADLINE **both: by 21 November 2024**REFERENCES **Article 5a(23) Implementing act on the core Wallet requirements**

The most important empowering provision of the Regulation for practical purposes. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. At the same time it is one of the two triggers of the 24-month period in paragraph 1. Numerous further provisions (Article 5b(11), Article 5d(7), Article 5e(5), Article 45d(5), Article 45e(2), Article 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23)

Article 48(2) eIDAS

Examination procedure Refers to Article 5 of Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission shall not adopt the draft. All implementing acts under this Regulation follow this procedure.

SHALL

■ L1

Art. 45f(8)

TOPIC **Wallet interface of public sector bodies**ADDRESSEE *Public sector bodies referred to in Article 3(46)*

CONTENT Public sector bodies referred to in Article 3(46) which issue EAA **SHALL PROVIDE** an **INTERFACE** with the European Digital Identity Wallets provided in accordance with Article 5a.

PURPOSE *Without an interface the official attestation would remain outside the Wallet – and thus practically ineffective.*

REFERENCES **Article 45g(2) Interface obligation of qualified providers**

Requires providers of QUALIFIED attestations of attributes – and only those – to provide an interface with the Wallets. The obligation under paragraph 1, to make it possible to request, obtain, store and manage, by contrast applies to all providers.

REFERENCES Article 5a(4)

The seven user functions Describes from the user's perspective what the Wallet must be able to do: (a) securely request, store, erase and selectively present attributes, (b) generate pseudonyms and store them locally in encrypted form, (c) interact with the Wallet of another person, (d) a dashboard with a complete transaction history including erasure requests and a reporting button to the data protection authority, (e) sign and seal in qualified form, (f) download data, (g) exercise data portability. Together with paragraphs 5, 8 and 14 this paragraph forms the subject matter of certification under Article 5c(1).

KEY POINT

Two interface obligations: 45f(8) for public sector bodies, 45g(2) for QTSPs.

SHALL

■ L1

Art. 45g(1)–(2)**TOPIC Issuing of EAA to Wallets****ADDRESSEE** *Providers of electronic attestations of attributes*

CONTENT Paragraph 1: providers of EAA **SHALL PROVIDE** European Digital Identity Wallet users with the possibility to **REQUEST, OBTAIN, STORE AND MANAGE** the EAA **IRRESPECTIVE OF THE MEMBER STATE** in which the Wallet is provided. Paragraph 2: providers of **QUALIFIED** EAA **SHALL PROVIDE** an **INTERFACE** with the Wallets provided in accordance with Article 5a.

PURPOSE *Connects the 'Wallet' block with the 'trust services' block – without an interface the Wallet would remain empty.*

REFERENCES Article 5a(4)

The seven user functions Describes from the user's perspective what the Wallet must be able to do: (a) securely request, store, erase and selectively present attributes, (b) generate pseudonyms and store them locally in encrypted form, (c) interact with the Wallet of another person, (d) a dashboard with a complete transaction history including erasure requests and a reporting button to the data protection authority, (e) sign and seal in qualified form, (f) download data, (g) exercise data portability. Together with paragraphs 5, 8 and 14 this paragraph forms the subject matter of certification under Article 5c(1). Significance here: point (a) there describes exactly the user functions which this interface has to serve technically.

Article 5a(5) Mandatory technical properties

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, wallet-to-wallet, relying party authentication, verification of authenticity, erasure requests, reporting to the authority, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the EAA, point (d) requires assurance level high, point (g) the qualified electronic signature free of charge for natural persons.

Article 45f(8) Interface obligation of public sector bodies

Requires the public sector bodies responsible for an authentic source which issue attestations of attributes to provide an interface with the Wallets provided in accordance with Article 5a. Without an interface the official attestation would remain outside the Wallet.

KEY POINT

Paragraph 1 = all. Paragraph 2 = only qualified ones. And 45f(8) = public sector bodies.

SHALL NOT

■ L1

Art. 45h(1)**TOPIC Prohibition on combining EAA data****ADDRESSEE** *Providers of qualified AND non-qualified EAA services*

CONTENT Providers of qualified and non-qualified EAA services **SHALL NOT COMBINE** personal data relating to the provision of those services **WITH** personal data from **ANY OTHER** services offered **BY THEM OR THEIR COMMERCIAL PARTNERS.**

PURPOSE *Prevents a group of companies from exploiting attribute data for advertising and profiling in its other services – expressly including through commercial partners.*

REFERENCES

REFERENCES	Article 5 GDPR Principles relating to processing of personal data Paragraph 1 names six principles: lawfulness, fairness and transparency; purpose limitation; data minimisation; accuracy; storage limitation; integrity and confidentiality. Paragraph 2 establishes accountability – the controller must be able to DEMONSTRATE compliance with those principles. Relation to eIDAS: Article 5b(2)(c) and Article 5b(3) eIDAS make the purpose limitation of paragraph 1, point (b) technically enforceable: whatever is not stated as an intended use at registration may not be requested. The accountability of paragraph 2 recurs in Article 5a(17) eIDAS as a self-standing obligation to provide evidence. Summary, not verified against the original text ● summary, not verified Article 5a(14) User control and logical separation Prohibits the Wallet provider from collecting usage data that is not necessary, or from combining Wallet data with data from other services of its own or of third parties. It must also keep the data logically separate from all other holdings. Where the Wallet is provided privately under paragraph 2(b) or (c), Article 45h(3) (functional separation) additionally applies mutatis mutandis. This is the only paragraph outside 4, 5 and 8 that is expressly certified. Significance here: the same separation logic; paragraph 3 applies mutatis mutandis to private Wallet providers via Article 5a(14). “Personal data relating to the provision of the European Digital Identity Wallet shall be kept logically separate from any other data held by the provider of the European Digital Identity Wallet” ✓ Article 5a(14) eIDAS	Article 5a(16) Unlinkability in the technical framework Point (a) prohibits providers of electronic attestations of attributes or any other party from obtaining, after issuance, data that would allow transactions or user behaviour to be tracked, linked or correlated. Point (b) requires techniques which ensure unlinkability where identification is not necessary. Whereas paragraph 5, point (b) prohibits reading along, paragraph 16 prohibits bringing data together – technically this leads to techniques such as selective disclosure and zero-knowledge proofs.
KEY POINT	Not only its own services – also those of its commercial partners. This is often overlooked.	

C

All Articles at a Glance

Chapters I to VI and Annexes I to VII

ART.	CH.	SUBJECT	MAIN ADDRESSEE	DEADLINE	KEY POINT	PRIOR
1	I	Subject matter	- (programmatic provision)	-	Three pillars: eID/European Digital Identity Wallet - trust services - legal effects.	L1
2	I	Scope	Member States, trust service providers (indirectly)	-	Closed systems are out - an internal corporate PKI does not fall under eIDAS.	L1
3	I	Definitions (Nos 1-57 plus inserted letter-numbers such as 5a, 16a, 21a, 46)	- (applies to all)	-	No 46 (public sector body responsible for an authentic source) is the key to Article 45f.	L1
4	I	Internal market principle	Member States	-	Article 4 is the general rule, Article 24a the concrete expression of it for qualified services.	L1
5	I	Use of pseudonyms in electronic transactions	Users (entitled), Member States (shall not prohibit)	-	Article 5 is carried through concretely in Article 5a(4)(b), Article 5b(9) and Article 32(1)(e).	L2
5a	II	European Digital Identity Wallets (24 paragraphs)	Member States (provide), European Digital Identity Wallet providers	Provision: 24 months after entry into force of the implementing acts under Article 5a(23) AND Article 5c(6); the implementing-act deadline itself: 21 November 2024	Only paragraphs 4, 5, 8 and 14 are certified (Article 5c(1)).	L1
5b	II	Relying parties of the European Digital Identity Wallet	Relying parties, Member States (registration body)	21 November 2024 (implementing act)	What is not in the registration shall not be requested (paragraph 2(c) + paragraph 3).	L1
5c	II	Certification of the European Digital Identity Wallet	Member States, conformity assessment bodies (CABs)	21 November 2024 (implementing act); certificate: 5 years / 2 years vulnerability assessment	Scope of certification: Article 5a(4), (5), (8) and (14) - no more, no less.	L1
5d	II	Publication of the list of certified European Digital Identity Wallets	Member States (notify), Commission (publishes)	21 November 2024 (implementing act); 1 month (update)	European Digital Identity Wallets are on the list under Article 5d, QTSPs on the trusted list under Article 22.	L2
5e	II	Security breach of European Digital Identity Wallets	Member States, European Digital Identity Wallet providers	3 months (withdrawal); 21 November 2024 (implementing act)	THREE months - identical to the deadline for electronic identification schemes in Article 10(3).	L1
5f	II	Cross-border use / obligation to accept	Public sector bodies; certain private relying parties; very large online platforms	Private relying parties: 36 months after entry into force of the implementing acts under Article 5a(23) and Article 5c(6)	24 months for provision (Article 5a(1)), 36 months for private-sector acceptance (Article 5f(2)).	L1
6	II	Mutual recognition	Member States / public sector bodies	Recognition at the latest 12 months after publication of the list	Low = may. Substantial/high = shall.	L1
7	II	Eligibility for notification	Notifying Member State	Point (g): 6 months before notification	Points (d), (e) and (f) are at the same time the connecting factors for liability in Article 11.	L1
8	II	Assurance levels (low / substantial / high)	Commission (specifications), Member State (assignment)	Paragraph 3: by 18 September 2015	Paragraph 2 = definition. Paragraph 3 = the actual obligation.	L1
9	II	Notification	Member State (notifies), Commission (publishes in the Official Journal)	1 month (publication of changes)	Article 9(1)(a)-(g) and Article 5d(2)(a)-(e) are almost identical.	L2

ART.	CH.	SUBJECT	MAIN ADDRESSEE	DEADLINE	KEY POINT	PRIO
10	II	Security breach of electronic identification schemes	Notifying Member State	3 months	Article 10 = electronic identification scheme, Article 5e = European Digital Identity Wallet. Same deadlines, different addressees.	L2
11	II	Liability (eID)	Notifying Member State, issuer of the electronic identification means, operator of the authentication procedure	-	Applies correspondingly, via Article L2 5a(19), to the European Digital Identity Wallet as well.	
11a	II	Cross-border identity matching	Member States (as relying parties), Commission (implementing act)	21 November 2024 (implementing act)	New in eIDAS 2.0 - and the greatest profiling risk in the Regulation.	L2
12	II	Interoperability / interoperability framework	Commission (framework + implementing act), Member States (connection, peer review)	Paragraph 6 (peer-review arrangements): 18 March 2025; paragraph 8 (interoperability framework): 18 September 2025	Two implementing acts govern the eID part: Article 8(3) for LoA, Article 12(8) for interoperability.	L1
12a	II	Certification of electronic identification schemes	Member States, designated conformity assessment bodies	5 years / 2 years / 3 months for remediation	Certification replaces the peer review (paragraph 5).	L2
12b	II	Access to hardware and software features	Gatekeepers under Regulation (EU) 2022/1925 (DMA)	-	Enforcement runs through the DMA, not through eIDAS supervision.	L2
13	III	Liability and burden of proof	Trust service providers (TSPs and QTSPs)	-	Non-qualified: the customer proves. Qualified: the provider exculpates itself.	L1
14	III	International aspects (third countries)	Commission	no deadline	Two routes: implementing act (unilateral) or agreement (with reciprocity).	L3
15	III	Accessibility	Providers of electronic identification means and trust services	-	eIDAS 2.0 deleted 'where feasible' - the obligation is now unconditional.	L2
16	III	Penalties	Member States	-	Only ONE framework: EUR 5 million or 1 %. For QTSPs and TSPs alike.	L2
17-19	III	Supervisory body / Mutual - assistance / Security requirements (REPEALED)		-	For anyone reading older literature: L2 Articles 17/18/19 no longer exist. The successors are Article 46b, Article 46d and Article 19a.	
19a	III	Requirements for non-qualified trust service providers	Non-qualified trust service providers	Implementing act: 21 May 2025; notification: 24 hours from becoming aware	Article 19a(1)(a) is the twin of Article 24(2)(fa).	L1
20	III	Supervision of qualified trust service providers (AUDIT CORE)	QTSPs (audit obligation), conformity assessment body, supervisory body	24 months (audit); 3 working days (CAR); 1 month (advance notice); implementing act: 21 May 2025	New in 2024: advance notice and the supervisory body's right to attend as observer (paragraph 1a).	L1
21	III	Initiation of a qualified trust service	TSP (applicant), supervisory body	3 months (whole procedure); 2 months (NIS2 response); implementing act: 21 May 2025	It is not the decision that counts but the entry in the trusted list (paragraph 3).	L1
22	III	Trusted lists	Member States (establish/publish), Commission (implementing act + access point)	Paragraph 5: by 18 September 2015	27 national lists plus the list of lists held by the Commission.	L1
23	III	EU trust mark	Qualified trust service providers	Paragraph 3: by 1 July 2015	A right, not an obligation - but whoever uses it SHALL link.	L2

ART.	CH.	SUBJECT	MAIN ADDRESSEE	DEADLINE	KEY POINT	PRIO
24	III	Requirements for qualified trust service providers (AUDIT CORE)	Qualified trust service providers	Implementing act: 21 May 2025; notification of changes 1 month; cessation 3 months; notification 24 hours; revocation 24 hours	Mind the gap in the lettering: (i) is followed by (k) - point (j) was deleted.	L1
24a	III	Recognition of qualified trust services	Member States	-	Article 24a(1) to (11) is the complete list of all types of qualified service - ideal for learning by heart.	L1
25	III	Legal effects of electronic signatures	Courts / Member States	-	Only the QES is treated as equivalent - an AdES is not, not even with a qualified certificate.	L1
26	III	Requirements for advanced electronic signatures (AdES)	Signature solutions / Assessment by 21 providers (indirectly) May 2026		Point (c) ('sole control') is the critical point in remote signing.	L1
27	III	Electronic signatures in public services	Member States / public sector bodies	Paragraph 5: by 18 September 2015	Whoever requires an AdES shall also accept a QES. The QES is the ceiling.	L2
28	III	Qualified certificates for electronic signatures	QTSPs / Member States	Implementing act: 21 May 2025	Annex I is the minimum AND the maximum content at the same time.	L1
29	III	Requirements for qualified signature creation devices (QSCD)	QTSPs / manufacturers of QSCDs	Transition for paragraph 1a: 21 May 2026 (Article 51(3))	Paragraph 1a is new: server-side key management becomes subject to qualification.	L1
29a	III	Qualified service for the management of qualified remote signature creation devices	QTSPs (remote signing providers)	Implementing act: 21 May 2025; transitional period: 21 May 2026	Point (b)(ii) ('no more copies than strictly necessary') is the strictest single requirement.	L1
30	III	Certification of QSCDs	Member States (designate bodies), designated bodies, Commission	5 years / 2 years vulnerability assessment	Paragraph 3a is new in eIDAS 2.0 - previously QSCD certificates were in practice unlimited in time.	L1
31	III	Publication of the list of certified QSCDs	Member States (notify within 1 month), Commission (publishes)	1 month; implementing act: 21 May 2025	One month - for inclusion AND for removal.	L3
32	III	Requirements for the validation of qualified electronic signatures	Validating body / relying party / validation service	Implementing act: 21 May 2025	Eight points. Article 32a has only seven - the QSCD condition is missing there.	L1
32a	III	Validation of advanced signatures based on qualified certificates	Validating body, Commission (implementing act)	Implementing act: 21 May 2025	Article 32 minus the QSCD = Article 32a.	L2
33	III	Qualified validation service	QTSPs (validation service providers)	Implementing act: 21 May 2025	Advanced is enough for the result report - not qualified.	L2
34	III	Qualified preservation service	QTSPs (preservation service providers)	Implementing act: 21 May 2025	Preservation (Article 34) keeps the signature alive. Archiving (Article 45j) keeps the document alive.	L2
35	III	Legal effects of electronic seals	Courts / Member States	-	Signature = equivalence with a handwritten signature. Seal = presumption. Not the same thing.	L1
36	III	Requirements for advanced electronic seals	Seal solutions / providers (indirectly)	Assessment by 21 May 2026	Article 26(c) = sole control. Article 36(c) = control. A difference of one word.	L2
37	III	Electronic seals in public services	Member States / public sector bodies	Paragraph 5: by 18 September 2015	Articles 27 and 37 are identical apart from the word 'seal'.	L2
38	III	Qualified certificates for electronic seals	QTSPs	Implementing act: 21 May 2025	Annex I allows a pseudonym, Annex III requires the name and, where applicable, the registration number.	L1
39	III	Qualified seal creation devices	QTSPs / manufacturers	-	Three paragraphs, three references: Article 29 - Article 30 - Article 31.	L2
39a	III	Qualified service for the management of qualified remote seal creation devices	QTSPs	Transitional period: Article 51(3) 21 May 2026 (Article- Article 29a and Article 39a. 51(3))		L1
40	III	Validation and preservation of qualified seals	Validation and preservation services	-	One reference, three articles.	L2

ART.	CH.	SUBJECT	MAIN ADDRESSEE	DEADLINE	KEY POINT	PRIO
40a	III	Validation of advanced seals based on qualified certificates	Validation services	-	This completes the mirroring of signatures and seals.	L3
41	III	Legal effect of electronic time stamps	Courts / Member States	-	The time stamp is the glue: it reappears in ERDS (Article 44(f)), electronic ledgers (Article 45l) and validation.	L1
42	III	Requirements for qualified electronic time stamps	QTSPs (time stamping service)	Implementing act: 21 May 2025	Point (c) requires only ADVANCED - a common mistake.	L1
43	III	Legal effect of an electronic registered delivery service	Courts / Member States	-	Four presumptions at once - the densest presumption rule in the Regulation.	L1
44	III	Requirements for qualified electronic registered delivery services	QTSPs (ERDS providers)	Implementing act under paragraph 2: 21 May 2025	Point (d) only advanced, point (f) by contrast qualified.	L1
45	III	Requirements for qualified certificates for website authentication (QWAC)	QTSPs, providers of web-browsers	Implementing act: 21 May 2025	Two obligations for browsers: recognise AND display in a user-friendly manner.	L1
45a	III	Cybersecurity precautionary measures	Providers of web-browsers	without undue delay (notification)	The browser notifies - the supervisory body decides - the browser shall withdraw the measure.	L2
45b	III	Legal effects of the electronic attestation of attributes (EAA)	Courts / Member States	-	Three classes of EAA: plain, qualified, PuB-EAA.	L1
45c	III	Electronic attestation of attributes in public services	Member States / public sector bodies	-	Primarily a PROHIBITION, not an obligation to accept - a frequent misunderstanding.	L2
45d	III	Requirements for the qualified electronic attestation of attributes	QTSPs (QEAA providers)	Implementing act: 21 November 2024	Annex V requires a QUALIFIED signature/seal - Annex I only an advanced one.	L1
45e	III	Verification of attributes against authentic sources	Member States, operators of authentic sources	24 months after entry into force of the implementing acts under Article 5a(23) and Article 5c(6); the implementing act itself: 21 November 2024	The same 24-month clock as the provision of the European Digital Identity Wallet under Article 5a(1).	L1
45f	III	Requirements for EAA issued by public sector bodies (PuB-EAA)	Public sector bodies within the meaning of Article 3, point (46)	Implementing act: 21 November 2024	No QTSP status, but QTSP level and a QTSP assessment report (paragraphs 2 and 3).	L1
45g	III	Issuing of electronic attestations of attributes to European Digital Identity Wallets	Providers of electronic attestations of attributes	-	Paragraph 1 = all providers. Paragraph 2 (interface) = qualified providers only.	L1
45h	III	Additional rules for EAA services	Providers of qualified AND non-qualified EAA services	-	Business partners are covered too - this is often overlooked. Paragraph 3 also applies, via Article 5a(14), to private European Digital Identity Wallet providers.	L1
45i	III	Legal effect of electronic archiving services	Courts / Member States	-	The presumption applies only for the preservation period.	L2
45j	III	Requirements for qualified electronic archiving services	QTSPs (archiving service)	Implementing act: 21 May 2025	The report under point (d) requires QUALIFIED - unlike Article 33(1)(b).	L1
45k	III	Legal effects of electronic ledgers	Courts / Member States	-	The Regulation deliberately never says 'blockchain'.	L2
45l	III	Requirements for qualified electronic ledgers	QTSPs (ledger providers)	Implementing act: 21 May 2025	Four points: QTSP - origin - sequence - immutability.	L3
46	IV	Legal effects of electronic documents	Courts / Member States	-	The shortest chapter in the Regulation: one article, one sentence.	L2
46a	IVa	Supervision of the European Digital Identity Wallet Framework	Member States (designate), supervisory bodies, European Digital Identity Wallet providers	-	The new Chapter IVa bundles the entire governance.	L1

ART.	CH.	SUBJECT	MAIN ADDRESSEE	DEADLINE	KEY POINT	PRIO
46b	IVa	Supervision of trust services	Member States, supervisory bodies, TSPs/QTSPs	-	Paragraph 3(a)/(b) is the core distinction: QTSPs ex ante + ex post, TSPs ex post only.	L1
46c	IVa	Single points of contact	Member States (designate), Commission (publishes)	-	The single point of contact is the addressee of the notifications under Article 5e.	L2
46d	IVa	Mutual assistance	Supervisory bodies of the Member States	-	Successor to the deleted Article 18.	L3
46e	IVa	The European Digital Identity Cooperation Group	Commission (chair/secretariat), Member States (members)	-	Addressee of the national draft certification schemes under Article 5c(3).	L2
47	V	Exercise of the delegation (delegated acts)	Commission, Parliament, Council	-	Only three provisions refer to Article 47: Article 5c(8), Article 24(4b) and Article 30(4).	L3
48	V	Committee procedure (comitology)	Commission, committee of the Member States	-	The standard cross-reference at the end of almost every empowerment to adopt implementing acts.	L2
48a	VI	Reporting requirements (statistics)	Member States	annually	New in eIDAS 2.0.	L2
49	VI	Review	Commission	-	Together with Article 5f(5), the starting point for a possible eIDAS 3 amendment.	L3
50	VI	Repeal	-	1 July 2016	-	L3
51	VI	Transitional measures (AUDIT-RELEVANT)	QTSPs, supervisory bodies, Member States	21 May 2026 (paragraphs 2, 3, 4) / 21 May 2027 (paragraph 1)	Four paragraphs, three deadlines in L1 May 2026 and one in May 2027.	
52	VI	Entry into force / date of application	-	1 July 2016 / 17 September 2014 / depending on the implementing act	Article 52(2)(c) contains the three-year delay for the recognition obligation in Article 6.	L2
Ann. I	Annex	Requirements for qualified QTSPs certificates for electronic signatures	-	-	TEN points (a)-(j), not nine. Point (i) was recast by eIDAS 2.0.	L1
Ann. II	Annex	Requirements for qualified QTSPs / QSCD electronic signature creation devices (QSCD)	manufacturers	-	Two numbered points, but point 1 has four letters. Point 1(d) is modified by Article 29a(1)(b).	L1
Ann. III	Annex	Requirements for qualified QTSPs certificates for electronic seals	-	-	The only substantive difference from Annex I lies in point (c).	L1
Ann. IV	Annex	Requirements for qualified QTSPs certificates for website authentication	-	-	The only Annex with a point (ca) - inserted for legal persons.	L2
Ann. V	Annex	Requirements for qualified QTSPs (QEAA) electronic attestations of attributes	-	-	Point (g) requires QUALIFIED - Annex I and Annex III require only advanced at the same place.	L1
Ann. VI	Annex	Minimum list of attributes (11 items)	Member States / authentic sources	-	ELEVEN items. Item 11 applies expressly only to legal persons.	L1
Ann. VII	Annex	Requirements for EAA issued by public sector bodies (PuB-EAA)	Public sector bodies and their agents	-	Annex V and Annex VII are almost identical - the difference lies in the issuer (QTSP vs. public sector body).	L2

D Roles in the eIDAS System

Who acts, who is supervised, who benefits

ROLE	TASK	TYPICAL ARTICLES	DELIMITATION
European Commission	Adopts implementing acts and delegated acts, lays down reference standards and technical specifications, publishes lists (European Digital Identity Wallets, notified electronic identification schemes, QSCDs, single points of contact, trusted list access point), carries out the review	5a(23)+(24), 5c(6), 5d(3), 8(3), 9(2), 12(6)+(8), 14, 22(4)+(5), 24(5), 28(6), 31(2), 38(6), 45e(2), 47, 48, 49	Almost every article ends with a Commission empowerment - whoever knows the deadlines knows the state of implementation.
Member State	Provides the European Digital Identity Wallet, notifies electronic identification schemes, designates supervisory bodies, CABs and designated bodies, maintains trusted lists, lays down penalties, secures access to authentic sources, provides validation mechanisms, collects statistics	5a, 5b(5)+(7), 5c(3)+(7), 5d, 5e, 5f(1), 6-12, 11a, 16, 22, 30(1), 45e, 45f(2)+(3), 46a, 46b, 46c, 48a	The Member State is at once provider (Wallet), supervisor (46a/46b) and relying party (11a).
Supervisory body	Supervises QTSPs ex ante AND ex post, non-qualified TSPs only ex post where there is suspicion; receives and analyses conformity assessment reports; grants and withdraws qualified status; examines termination plans; investigates browser notifications under Article 45a	19a(1)(b), 20, 21, 24(2)(a)+(fb), 45a(3)+(4), 46b, 46d, 51(4)	Successor to the deleted Article 17. Its tasks are set out exhaustively in Article 46b(4)(a)-(k).
Conformity assessment body (CAB)	Audits QTSPs at least every 24 months and draws up the conformity assessment report (CAR); certifies European Digital Identity Wallets under Article 5c and electronic identification schemes under Article 12a; confirms CAB-verified identification procedures under Article 24(1a)(c) and ERDS interoperability frameworks under Article 44(2a); draws up the CAR for PuB-EAA bodies	5c(1), 12a(1), 20(1), 21(1), 24(1a)(c), 24(1b)(d), 44(2a), 45f(3)	Not to be confused with the 'designated bodies' under Article 30 (QSCD certification).
Designated body (QSCD certification)	Certifies qualified electronic signature creation devices and qualified electronic seal creation devices against Annex II - valid for a maximum of five years subject to a vulnerability assessment every two years	30, 31, 39(2)+(3)	A role type of its own - Article 30 deliberately speaks of 'public or private bodies', not of CABs.
Trust service provider (TSP)	Provides trust services; shall carry out risk management and report security incidents within 24 hours of becoming aware of them; is liable for breaches of duty (burden of proof on the injured party)	13, 19a, 46b(3)(b)	No longer unregulated since eIDAS 2.0 - Article 19a is the new security baseline.
Qualified trust service provider (QTSP)	Meets the full catalogue of obligations under Article 24, is subject to the 24-month audit obligation, may use the EU trust mark, bears the burden of proof in liability questions and reports incidents within 24 hours of the incident	13(1), 20, 21, 23, 24, 28, 29a, 33, 34, 42, 44, 45, 45d, 45g(2), 45j, 45l, 51(4)	Eleven types of qualified service are listed exhaustively in Article 24a(1)-(11).
European Digital Identity Wallet provider	Provides the Wallet technically; shall ensure certification, security, data protection, the dashboard, logical separation and freedom from tracking; shall offer user support; is subject to Article 24(2)(b) and (d)-(h) mutatis mutandis	5a(2)+(3)+(10)+(14)+(20), 5c, 5e, 46a	Not a QTSP - but subject in part to the same obligations (Article 5a(20)).
Relying party	Relies on electronic identification, the European Digital Identity Wallet or a trust service; shall register, identify itself to the user, state the purpose, comply with data minimisation and accept pseudonyms; certain private relying parties shall accept the Wallet; responsible for authentication and validation	5a(8)(b), 5b, 5f(2)+(3), 6, 11a, 32, 45j(1)(d)	Article 5b(9) places the responsibility for validation expressly on the relying party - not on the Wallet provider.
Intermediary / identity broker	Acts on behalf of relying parties, is itself deemed to be a relying party and shall NOT store any data about the content of the transaction	5b(10)	A role of its own with an additional prohibition - often overlooked in practice.

ROLE	TASK	TYPICAL ARTICLES	DELIMITATION
Issuer of an electronic identification means	Issues notified electronic identification means; is liable for the correct attribution of the means to the right person (Article 7(e))	7(a)+(e), 9(1)(a), 11(2), 12b	Liable under Article 11(2) - for point (e), not for (d) or (f).
Operator of the authentication procedure	Carries out the online authentication under Article 7(f) and is liable for its incorrect performance	7(f), 9(1)(b)(ii), 11(3)	Third liability role alongside the Member State and the issuer - Article 11 knows exactly three.
Provider of electronic attestations of attributes	Issues EAAs and QEAs, verifies attributes against authentic sources, provides (if qualified) the European Digital Identity Wallet interface, keeps data logically and functionally separate and shall not combine them with data from other services of its own or of partners	45d-45h, 24(1b)(c)	Article 45h applies equally to QUALIFIED AND NON-QUALIFIED providers.
Public sector body under Article 3(46) / authentic source	Maintains registers (population, commercial and education registers); enables the electronic verification of attributes; issues PuB-EAA under Annex VII, demonstrates an assurance level corresponding to Article 24, is notified with a CAR and provides a European Digital Identity Wallet interface	3(46), 45b(2)+(3), 45e, 45f	The CAR under Article 45f(3) is the most audit-relevant obligation of this role.
Provider of web-browsers	Shall recognise QWACs, ensure their interoperability and display the attested identity data in a user-friendly manner; may take precautionary measures only in the case of substantiated security concerns and shall notify them to four addressees	45(1a), 45a	SME exception: micro and small enterprises in their first five years of activity.
Gatekeeper	Shall grant European Digital Identity Wallet and services free of charge, effective access to the same operating system, hardware and software features (e.g. Secure Element, NFC)	12b (in conjunction with Article 2(2) and (21) and Article 6(7) DMA)	The only eIDAS obligation that is not enforced by eIDAS authorities.
User / natural person	Uses the European Digital Identity Wallet and services voluntarily; decides on the disclosure of attributes; is entitled to a free Wallet and free QES, to pseudonyms, to the dashboard and to data portability; shall not be disadvantaged for not using it	3(5a), 5, 5a(4)+(13)+(15), 5b(8)+(9), 45e(1)	Article 3(5a) ('user') is a new definition introduced by eIDAS 2.0.
European Digital Identity Cooperation Group	Coordinates the Member States, facilitates peer reviews, receives drafts of national European Digital Identity Wallet certification schemes and issues opinions and recommendations	5c(3), 5d(1), 46e	Established by Article 46e(1) - comparable to the NIS Cooperation Group.
ENISA	Contributes through the cybersecurity certification schemes of Regulation (EU) 2019/881, to which Articles 5c(2) and 12a(2) refer	5c(2), 12a(2) (indirectly via Regulation (EU) 2019/881)	ENISA is not placed under obligations by name in eIDAS - the link runs through the Cybersecurity Act.
NIS2 authority	Carries out supervisory measures relating to Article 21 NIS 2 at the request of the supervisory body, reports back within two months and informs the supervisory body of NIS2 infringements - which can lead to withdrawal of the qualified status	20(3a), 20(3c), 21(2), 46b(4)(a) (in conjunction with Article 8 NIS 2)	New in eIDAS 2.0: an NIS2 infringement can cost the eIDAS qualified status.
Data protection supervisory authority	Is informed without undue delay by the supervisory body where a data protection breach appears to have occurred and can, by its notification, trigger the withdrawal of the qualified status; addressee of the user notifications from the European Digital Identity Wallet dashboard	5a(4)(d)(iii), 5a(5)(a)(x), 20(2), 20(3b), 46b(4)(f) (in conjunction with Article 51 GDPR)	The Wallet contains a direct reporting button to the data protection authority (Article 5a(4)(d)(iii)).

E

Deadline Calendar

One-off dates and recurring obligations

DATE / RHYTHM	ARTICLE	WHAT MUST BE DONE	ADDRESSEE	NOTE
17 September 2014	52(2)(a)	Start of application of the empowering provisions (including Articles 8(3), 12, 20(4), 21(4), 22(5), 23(3), 24(5), 28(6), 47, 48)	Commission	expired
1 July 2015	23(3)	Implementing Regulation on the design of the EU trust mark	Commission	expired - Implementing Regulation (EU) 2015/806
18 September 2015	8(3)	Implementing Regulation on the assurance levels (LoA)	Commission	expired - Implementing Regulation (EU) 2015/1502
18 September 2015	22(5)	Implementing Regulation on the information and format of the trusted lists	Commission	expired - Implementing Regulation (EU) 2015/1505
18 September 2015	27(5) / 37(5)	Implementing Regulation on reference formats for signatures and seals	Commission	expired - Implementing Regulation (EU) 2015/1506
1 July 2016	50(1) / 52(2)	Repeal of Directive 1999/93/EC and general start of application of the Regulation	all	expired
20 May 2024	51(4)	Cut-off date: QTSPs granted qualified status BEFORE this date shall upgrade	QTSP	expired - triggers the obligation falling due on 21 May 2026
18 October 2024	-	Status of the present consolidated version 02014R0910 - 002.001	-	reference point of this table
21 November 2024	5a(23)	Implementing Regulation on the core European Digital Identity Wallet requirements (paragraphs 4, 5, 8, 18) - basis of the ARF	Commission	DEADLINE ANCHOR for Articles 5a(1), 5f(2), 45e(1)
21 November 2024	5b(11)	Implementing Regulation on the registration of relying parties	Commission	-
21 November 2024	5c(6)	Implementing Regulation on the certification of the European Digital Identity Wallet	Commission	SECOND DEADLINE ANCHOR for Article 5a(1)
21 November 2024	5d(7)	Implementing Regulation on the formats and procedures for the European Digital Identity Wallet list notification	Commission	-
21 November 2024	5e(5)	Implementing Regulation on measures in the event of European Digital Identity Wallet security breaches	Commission	-
21 November 2024	11a(3)	Implementing Regulation on cross-border identity matching	Commission	-
21 November 2024	45d(5)	Implementing Regulation on qualified electronic attestations of attributes (Annex V)	Commission	shall be consistent with the European Digital Identity Wallet Implementing Regulation
21 November 2024	45e(2)	Implementing Regulation on the catalogue of attributes (Annex VI) and on the verification procedures	Commission	-
21 November 2024	45f(6) and (7)	Implementing Regulation on PuB-EAA (Annex VII) and on the notification procedure	Commission	-
18 March 2025	12(6)	Implementing Regulation on the procedural arrangements for mutual assessment (peer review)	Commission	-
21 May 2025	19a(2)	Implementing Regulation on reference standards for non-qualified trust service providers	Commission	-
21 May 2025	20(4)	Implementing Regulation on CAB accreditation, the conformity assessment report and audit rules	Commission	Implementing Regulation (EU) 2025/2162 - AUDIT CORE
21 May 2025	21(4)	Implementing Regulation on the form and procedure of the notification for qualified status	Commission	-

DATE / RHYTHM	ARTICLE	WHAT MUST BE DONE	ADDRESSEE	NOTE
21 May 2025	24(1c)	Implementing Regulation on the verification of identity and attributes	Commission	basis for Article 51(4)
21 May 2025	24(5)	Implementing Regulation on the requirements for QTSPs (Article 24(2))	Commission	Implementing Regulation (EU) 2025/2530 - AUDIT CORE
21 May 2025	28(6) / 38(6)	Implementing Regulation on qualified certificates for signatures and seals	Commission	Implementing Regulation (EU) 2025/1943
21 May 2025	29a(2)	Implementing Regulation on the qualified remote signature management service	Commission	-
21 May 2025	31(3) / 32(3) / 32a(3) / 33(2) / 34(2)	Implementing Regulation on QSCD lists, signature validation and preservation services	Commission	-
21 May 2025	42(2) / 44(2) / 45(2) / 45j(2) / 45l(3)	Implementing Regulation on time stamps, ERDS, QWAC, archiving and ledgers	Commission	-
18 September 2025	12(8)	Implementing Regulation on the interoperability framework for notified eID schemes	Commission	together with Article 8(3), triggers the start of application under Article 52(2)(b)
21 May 2026	51(2)	Qualified certificates for natural persons under Directive 1999/93/EC cease to have continued validity	QTSP	AUDIT-RELEVANT
21 May 2026	51(3)	Management of remote signatures and remote seals without its own qualified status ends - from then on, obligation under Articles 29a / 39a	QTSP	AUDIT-RELEVANT - biggest change in practice
21 May 2026	51(4)	Existing QTSPs shall submit a CAR on compliance with Article 24(1), (1a) and (1b)	QTSP	AUDIT-RELEVANT
21 May 2026	26(2) / 36(2)	Assessment by the Commission of whether Implementing Regulations on advanced signatures and seals are necessary	Commission	only the assessment is time-limited, not the legal act
21 May 2027	51(1)	Secure signature creation devices (SSCD) under Directive 1999/93/EC cease to have continued validity as QSCD	QTSP / manufacturers	AUDIT-RELEVANT
24 months after Implementing Regulation 5a(23) + 5c(6)	5a(1)	Each Member State shall provide at least one European Digital Identity Wallet	Member States	depends on the entry into force of BOTH Implementing Regulations
24 months after Implementing Regulation 5a(23) + 5c(6)	45e(1)	Electronic verification of the Annex VI attributes against authentic sources is made possible	Member States	same deadline anchor as Article 5a(1)
36 months after Implementing Regulation 5a(23) + 5c(6)	5f(2)	Certain private relying parties shall accept the European Digital Identity Wallet	Private RP (except microenterprises and small enterprises)	-
24 months after European Digital Identity Wallet deployment	5f(5)	Assessment by the Commission of the demand for, and the availability and usability of, the European Digital Identity Wallet	Commission	-
ongoing: every 24 months	20(1)	Conformity assessment of the QTSP by a CAB at its own expense	QTSP	AUDIT CORE DEADLINE

DATE / RHYTHM	ARTICLE	WHAT MUST BE DONE	ADDRESSEE	NOTE
ongoing: 1 month in advance	20(1a)	Advance information to the supervisory body about planned audits	QTSP	new in eIDAS 2.0
ongoing: 3 working days	20(1)	Submission of the conformity assessment report to the supervisory body after its receipt	QTSP	WORKING days
ongoing: 1 month / 3 months	24(2)(a)	Notification of changes (1 month) or of cessation of activities (3 months)	QTSP	-
ongoing: 24 hours	19a(1)(b)	Notification of significant security breaches from BECOMING AWARE	Non-qualified TSP	deadline starts: awareness
ongoing: 24 hours	24(2)(fb)	Notification of significant security breaches AFTER THE INCIDENT	QTSP	deadline starts: incident - stricter than for TSP
ongoing: 24 hours	24(3)	Publication of the revocation status after receipt of the request	QTSP	-
ongoing: 3 months	5e(2) / 10(3)	At the latest after three months without remedy: withdrawal of the European Digital Identity Wallet or revocation of the eID scheme	Member States	identical deadline in both provisions
ongoing: 3 months	21(2)	Decision of the supervisory body on the granting of qualified status	supervisory body	of which 2 months for the NIS2 response
ongoing: 1 month	9(3) / 9(4) / 5d(6) / 31(1)	Publication or notification of changes to lists	Commission / Member States	-
ongoing: 5 years / 2 years	5c(4) / 12a(3) / 30(3a)	Maximum validity of certifications where a vulnerability assessment is carried out every two years	CAB / designated bodies	Article 12a(3) additionally specifies a 3-month remediation period
ongoing: 6 months	7(g)	Provision of the description of the scheme to the other MS before a notification	Notifying MS	-
ongoing: 12 months	6(1)	Deadline for recognition of a notified eID means after publication of the list	Member States	-
ongoing: annually	48a	Statistical report from the Member States to the Commission	Member States	-

F

Signature and Seal Side by Side

What matches — and where the mirror ends

SUBJECT	SIGNATURE	SEAL	COMMON CONTENT	DIFFERENCE
Legal effect	25	35	QES = handwritten signature (equivalence). Qualified seal = PRESUMPTION of integrity and origin.	MAJOR DIFFERENCE - not a true mirror image. Only the signature is placed on an equal footing with the handwritten signature.
Advanced form	26	36	Both: (a) unique linkage, (b) identification, (c) control over the creation data, (d) detectability of any subsequent change.	Fine difference in point (c): Article 26 requires SOLE control, Article 36 only 'under its control'.
Public services	27	37	Obligation to accept the listed forms, prohibition of excessive requirements, implementing act on reference formats.	Completely mirror-symmetrical. Both have a deleted paragraph 4.
Qualified certificates	28 (Ann. I)	38 (Ann. III)	Compliance with the annex, no additional requirements, optional attributes, definitive revocation, national suspension rules.	Difference only in the annexes: Annex I permits a pseudonym, Annex III requires the name and, where applicable, the registration number of the creator of the seal.
Creation devices	29 (Ann. II)	39	Article 39 refers to Articles 29, 30 and 31 and, mutatis mutandis, to Annex II.	A pure referring provision - no separate annex for seal creation devices.
Remote management service	29a	39a	Article 39a refers in full to Article 29a.	The transitional period under Article 51(3) applies to BOTH until 21 May 2026.
Certification of the devices	30	39(2)	Certification by designated bodies, max. 5 years where a vulnerability assessment is carried out every two years.	A single joint certification may cover signature and seal where the same hardware is used.
List of certified devices	31	39(3)	Notification within one month, the Commission maintains the list.	-
Validation (qualified)	32	40	Eight check points (a)-(h); Article 40 refers - to Articles 32, 33 and 34.	-
Validation (AdES based on a qualified certificate)	32a	40a	Seven check points (a)-(g) - the QSCD condition of Article 32(1)(f) is missing.	EXAM TRAP: 32 has eight, 32a has seven points.
Validation service	33	40	Only by a QTSP; result confirmed with an ADVANCED electronic signature or an advanced electronic seal.	Advanced is sufficient - unlike the archiving report under Article 45j(1)(d), which must be qualified.
Preservation service	34	40	Extension of trustworthiness beyond the technological validity period.	Distinguish from Article 45j (archiving of documents).

G

Retrieval Cards

Cover the answer, respond, then compare

01 Within what period shall a Member State provide at least one European Digital Identity Wallet - and on what does the start of that period depend?

MEDIUM

24 months after the entry into force of the implementing acts under Article 5a(23) AND Article 5c(6). The clock only starts running once BOTH acts are in force - not from the date of the Regulation. — Article 5a(1)

02 Which paragraphs of Article 5a are the subject of the certification of the European Digital Identity Wallet under Article 5c?

HARD

Exactly four: paragraph 4 (user functions), paragraph 5 (technical requirements), paragraph 8 (validation mechanisms) and the logical separation under paragraph 14 - plus, where applicable, the standards under paragraph 24. — Article 5c(1)

03 After how many months shall a suspended European Digital Identity Wallet be withdrawn if the security breach is not remedied?

EASY

After THREE months (Article 5e(2)). The same period applies under Article 10(3) to notified electronic identification schemes. — Article 5e(2)

04 Which Articles do NOT apply to the European Digital Identity Wallet under Article 5a(22) - and which one applies by way of exception after all?

HARD

Articles 7, 9, 10, 12 and 12a do not apply. Article 11 (liability), however, applies mutatis mutandis via Article 5a(19). — Article 5a(19) and (22)

05 May a relying party request more data than it indicated at registration?

EASY

No. Article 5b(3) expressly prohibits requesting data other than that indicated pursuant to paragraph 2, point (c). The registered scope is the maximum scope. — Article 5b(2)(c) and (3)

06 From which assurance level onwards is recognition of a foreign electronic identification means mandatory?

EASY

From 'substantial'. At 'low', Article 6(2) provides only that recognition may take place. — Article 6(1)(b) and (2)

07 What does Article 8(2) govern - obligations or definitions?

MEDIUM

Definitions only. The three points (a) to (c) describe the scale low/substantial/high (decrease - decrease substantially - prevent). The actual obligation is in paragraph 3 and is addressed to the Commission. — Article 8(2) and (3)

08 How long is a certification under Articles 5c, 12a and 30 valid - and subject to what condition?

HARD

Up to five years, provided that a vulnerability assessment is carried out every two years. Article 12a(3) additionally names a three-month period for remedying. — Article 5c(4), Article 12a(3), Article 30(3a)

09 Who is liable for what under Article 11?

MEDIUM

The notifying Member State for Article 7, points (d) and (f); the party issuing the electronic identification means for point (e); the party operating the authentication procedure for the incorrect operation under point (f) - in each case in cross-border transactions. — Article 11(1)-(3)

10 How does the burden of proof differ between qualified and non-qualified trust service providers?	EASY
With non-qualified TSPs the person who suffered the damage shall prove intention or negligence. With a QTSP both are presumed - it has to exonerate itself. — Article 13(1), second and third subparagraphs	
11 What is the maximum level of administrative fines under Article 16?	MEDIUM
At least EUR 5 000 000 for natural persons, or for legal persons EUR 5 000 000 or 1 % of the total worldwide turnover of the preceding year - whichever is higher. A separate framework for European Digital Identity Wallet providers does NOT exist in eIDAS. — Article 16(2)	
12 When does the 24-hour notification deadline start running for a TSP and when for a QTSP?	HARD
For the non-qualified TSP from BECOMING AWARE (Article 19a(1)(b)), for the QTSP from THE INCIDENT (Article 24(2)(fb)). The QTSP is thus held to the stricter standard. — Article 19a(1)(b) and Article 24(2)(fb)	
13 At what intervals is a QTSP audited and how quickly shall the report be available?	EASY
At least every 24 months, at its own expense. The conformity assessment report shall be submitted to the supervisory body within THREE WORKING DAYS of its receipt. — Article 20(1)	
14 What obligation does a QTSP have before a planned audit - new since eIDAS 2.0?	MEDIUM
It shall inform the supervisory body at least one month in advance and shall allow it to participate as an observer upon request. — Article 20(1a)	
15 May a GDPR infringement cost a provider its eIDAS qualified status?	MEDIUM
Yes. Under Article 20(3b) the supervisory body shall withdraw the status where the data protection supervisory authorities report an infringement and this is justified by the extent, duration and consequences. The same applies under paragraph 3a to NIS2 infringements. — Article 20(3a) and (3b)	
16 From what point in time may a service be provided as 'qualified'?	EASY
Only after the qualified status has been indicated in the trusted list under Article 22(1) - not already upon the supervisory body's decision. — Article 21(3)	
17 Which four methods of identity verification does Article 24(1a) permit?	MEDIUM
(a) European Digital Identity Wallet or notified electronic identification means with assurance level high, (b) certificate of a qualified electronic signature or of a qualified electronic seal issued in compliance with (a), (c) or (d), (c) other methods ensuring a high level of confidence and confirmed by a conformity assessment body, (d) physical presence. — Article 24(1a)	
18 How does Article 24(1b) differ from paragraph (1a)?	HARD
Paragraph 1b concerns the verification of ATTRIBUTES and provides five methods instead of four - additionally permitted is the qualified electronic attestation of attributes (point (c)). — Article 24(1a) and (1b)	
19 Why is point (i) in Article 24(2) followed directly by point (k)?	HARD
Point (j) was deleted by eIDAS 2.0. The gap in the lettering is intentional. — Article 24(2)	
20 Within what period shall a revocation of a certificate be published, and from when does it take effect?	EASY
Within 24 hours of receipt of the request. The revocation becomes effective immediately upon its publication. — Article 24(3)	

21 How many types of qualified services does Article 24a list?	MEDIUM
Eleven - from qualified electronic signatures and qualified electronic seals (paragraph 1) through to qualified electronic ledgers (paragraph 11). — Article 24a(1)-(11)	
22 What legal effect does a QES have, and what legal effect a qualified electronic seal?	EASY
The QES has the equivalent legal effect of a handwritten signature (Article 25(2)). The qualified electronic seal enjoys the presumption of integrity of the data and of correctness of the origin of that data (Article 35(2)) - it does not replace a signature. — Article 25(2) and Article 35(2)	
23 What is the difference between Article 26, point (c), and Article 36, point (c)?	HARD
Article 26(c) requires the SOLE control of the signatory over the electronic signature creation data; Article 36(c) requires of the creator of a seal only 'its control'. — Article 26(1)(c) and Article 36(1)(c)	
24 What changes for remote signing under eIDAS 2.0 - and by when?	MEDIUM
The management of remote qualified electronic signature and seal creation devices becomes a qualified trust service in its own right under Article 29a and Article 39a respectively. The grandfathering under Article 51(3) ends on 21 May 2026. — Article 29(1a), Article 29a, Article 39a, Article 51(3)	
25 How many copies of the electronic signature creation data may a remote signature service keep?	HARD
Only as many as are STRICTLY NECESSARY to ensure continuity of the service - and they shall be at the same security level as the originals. — Article 29a(1)(b)(i) and (ii)	
26 How many points does validation check under Article 32, and how many under Article 32a?	HARD
Article 32 checks eight points ((a) to (h)), Article 32a only seven ((a) to (g)). Precisely the QSCD condition in Article 32(1), point (f), is missing. — Article 32(1) and Article 32a(1)	
27 Shall a qualified electronic time stamp bear a qualified signature?	MEDIUM
No. Article 42(1), point (c), requires an ADVANCED electronic signature or an advanced electronic seal of the QTSP - or some equivalent method. — Article 42(1)(c)	
28 Which four presumptions does a qualified electronic registered delivery service (ERDS) trigger?	MEDIUM
Integrity of the data, the sending of that data by the identified sender, its receipt by the identified addressee, and the accuracy of the date and time of sending and receipt. — Article 43(2)	
29 Which signature level does Article 44 require for securing the sending/receiving process, and which for the point in time?	HARD
Point (d) requires an advanced electronic signature or an advanced electronic seal; point (f), by contrast, requires a QUALIFIED electronic time stamp. — Article 44(1)(d) and (f)	
30 Which two obligations does Article 45(1a) impose on providers of web-browsers?	MEDIUM
They shall recognise QWACs AND display the attested identity data in a user-friendly manner. Microenterprises and small enterprises during their first five years of operation are exempt. — Article 45(1a)	
31 Under what conditions may a provider of a web-browser take precautionary measures against a QWAC?	MEDIUM
Only in the event of substantiated concerns related to a security breach or a loss of integrity - and it shall notify this in writing without undue delay to the Commission, the supervisory body, the certificate holder and the issuing QTSP. — Article 45a(2) and (3)	

32 Does an electronic attestation of attributes replace electronic identification?	HARD
In principle, no. Article 45c expressly prohibits this unless the Member State has specifically allowed it - in which case qualified EAAs from other Member States are also accepted. — Article 45c	
33 Which signature level does Annex V require for the QEAA - and what does Annex I require at the same point?	HARD
Annex V, point (g), requires a QUALIFIED electronic signature or a qualified electronic seal of the QTSP. Annex I, point (g), requires at the same point only an advanced electronic signature. — Annex I(g) and Annex V(g)	
34 How many attributes does the minimum list in Annex VI comprise?	MEDIUM
Eleven: address, age, gender, civil status, family composition, nationality, educational qualifications, professional qualifications, powers and mandates, public permits and licences, and - for legal persons only - financial and company data. — Annex VI	
35 What distinguishes a PuB-EAA from a QEAA?	HARD
The PuB-EAA is issued by a public sector body responsible for an authentic source within the meaning of Article 3(46) and meets Annex VII. That body needs no QTSP status, but shall demonstrate a level of reliability and trustworthiness in accordance with Article 24 and is notified together with a conformity assessment report. — Article 45f(1)-(3), Annex VII	
36 Which providers of electronic attestations of attributes shall provide an interface with the European Digital Identity Wallet?	HARD
Only providers of QUALIFIED electronic attestations of attributes (Article 45g(2)) and public sector bodies within the meaning of Article 3(46) (Article 45f(8)). The obligation under Article 45g(1) (request, obtain, store, manage), by contrast, applies to all providers of electronic attestations of attributes. — Article 45f(8), Article 45g(1) and (2)	
37 Whose data shall a provider of electronic attestations of attributes not combine with EAA data under Article 45h?	MEDIUM
Data from other services offered by it ITSELF OR BY ITS COMMERCIAL PARTNERS. The provision thus reaches beyond the provider's own group. — Article 45h(1)	
38 How do the preservation service (Article 34) and the archiving service (Article 45j) differ?	MEDIUM
Article 34 extends the trustworthiness of a qualified SIGNATURE beyond its technological validity period. Article 45j ensures the durability, legibility and integrity of the DOCUMENTS throughout the legal or contractual preservation period. — Articles 34 and 45j	
39 Which signature level does the integrity report of a qualified electronic archiving service require?	HARD
A QUALIFIED electronic signature or a qualified electronic seal (Article 45j(1), point (d)) - unlike the validation service under Article 33(1), point (b), where an advanced one suffices. — Article 45j(1)(d)	
40 What does Article 45k(2) presume for qualified electronic ledgers?	MEDIUM
The unique and accurate sequential chronological ordering and the integrity of the data records - not their substantive correctness. — Article 45k(2)	
41 Which Articles were deleted by eIDAS 2.0 and where is their content found today?	MEDIUM
Article 17 (supervisory body), Article 18 (mutual assistance) and Article 19 (security requirements). Their successors are Article 46b, Article 46d and Article 19a in conjunction with Article 24(2), points (fa) and (fb). — Articles 17-19 (repealed)	

42 Which three deadlines does Article 51 name for 21 May 2026?

MEDIUM

Paragraph 2: end of the continued validity of old qualified certificates. Paragraph 3: end of the grandfathering for the management of remote signature/seal creation devices without qualified status. Paragraph 4: submission of a CAR on compliance with Article 24(1), (1a) and (1b). 21 May 2027 applies only to old SSCDs under paragraph 1. — Article 51(1)-(4)

43 What intensity of supervision applies to QTSPs and what to non-qualified TSPs?

MEDIUM

QTSPs are supervised both ex ante AND ex post. Non-qualified TSPs only ex post - and then only where the supervisory body is informed of an alleged failure to comply. — Article 46b(3)(a) and (b)

H

Corrections Against the Previous Edition

What was checked against the Regulation and put right

TYPE	REFERENCE	SUBJECT	PREVIOUS WORDING	FINDING AGAINST THE REGULATION
CORRECTION	5e(2)	Deadline for withdrawal of a suspended European Digital Identity Wallet	Previous edition: 'if the compromise remains unremedied for more than 6 months'	Correct: THREE months. The wording reads 'not remedied within three months of the suspension'. Identical to Article 10(3) for electronic identification schemes.
CORRECTION	16(2)	Maximum administrative fines	Previous edition: 'for European Digital Identity Wallet providers at least EUR 10 million or 2 %'	Article 16 knows only ONE framework: EUR 5 000 000, or, where the provider is a legal person, EUR 5 000 000 or 1 % of the total worldwide turnover of the preceding financial year - whichever is higher, applying to qualified AND non-qualified TSPs. The figures of EUR 10 million / 2 % come from the NIS-2 Directive.
CORRECTION	45c	Electronic attestation of attributes in public services	Previous edition: 'shall accept of attributes in publicqualified EAAs'	Article 45c is primarily a PROHIBITION: PID in an EAA shall NOT substitute electronic identification and its authentication - unless the Member State specifically allows it. Only then does acceptance of QEAs from other Member States follow.
CORRECTION	3	Number of definitions	Previous edition: 'approximately 55 definitions'	The numbering runs from point (1) to point (57), supplemented by inserted letter-numbers such as 5a, 16a and 21a. Now stated precisely instead of estimated.
CORRECTION	Ann. VI	Minimum list of attributes	Previous edition: incomplete list, 'marital status', 'tax and social security numbers'	Annex VI contains eleven items; item 4 reads 'civil status'; item 10 is public permits and licences, item 11 financial and company data for legal persons. Tax and social security numbers are not mentioned in the wording.
CORRECTION	Ann. I / Ann. III	Number of mandatory contents	Previous edition: points (a) to (i)	Both Annexes contain points (a) to (j). Point (i) (indication of the validity status) was recast by eIDAS 2.0.
CLARIFICATION	5a(1)	Start of the deadline for provision of the European Digital Identity Wallet	Previous edition: no deadline named	24 months after the entry into force of the implementing acts under Article 5a(23) AND Article 5c(6) - both shall be in force.
CLARIFICATION	5f(2)	Obligation of private relying parties to accept	Previous edition: without a deadline and without the SME exemption	36 months after the entry into force of the same implementing acts; microenterprises and small enterprises as defined in Recommendation 2003/361/EC are exempt; acceptance takes place only upon the voluntary request of the user.
CLARIFICATION	20	Supervision of QTSPs	Previous edition: only the 24-month audit and the 3-working-day deadline	Added: paragraph 1a (advance information one month beforehand and the supervisory body's right to participate as an observer), paragraph 1b (notification of the CAB together with its accreditation), paragraphs 3a/3b (withdrawal of qualified status for NIS2 and GDPR infringements); the scope of the audit includes Article 21 NIS-2.

TYPE	REFERENCE	SUBJECT	PREVIOUS WORDING	FINDING AGAINST THE REGULATION
CLARIFICATION	24	Verification of identity and attributes	Previous edition: one common list of methods	eIDAS 2.0 separates paragraph 1a (identity, four methods) and paragraph 1b (attributes, five methods including QEAA). Also added were the letter gap at (j) and the 24-hour deadlines in paragraph 2, point (fb) and paragraph 3.
CLARIFICATION	12	Interoperability	Previous edition: only a reference to Implementing Regulation (EU) 2015/1501	Added: paragraph 3, point (c) (privacy and security by design, new in eIDAS 2.0), paragraphs 5/6 (peer review, implementing act deadline 18 March 2025), paragraph 8 (new interoperability framework, deadline 18 September 2025). Paragraph 7 was deleted.
CLARIFICATION	45f	PuB-EAA	Previous edition: only Annex VII and the qualified electronic seal	Added: paragraph 2 (level of reliability in accordance with Article 24), paragraph 3 (notification with a conformity assessment report - the audit-relevant core), paragraph 8 (obligation to provide an interface with European Digital Identity Wallets).
CLARIFICATION	45h(1)	Prohibition on combining data	Previous edition: 'data from the provider's own other services'	The wording also covers services of the provider's COMMERCIAL PARTNERS.
ADDITION	17-19	Deleted Articles	not covered in the previous edition	Included as a row of its own in order to explain the gap in numbering: Articles 17, 18 and 19 were repealed by eIDAS 2.0; their successors are Articles 46b, 46d and 19a.
ADDITION	5c(4), 12a(3), 30(3a)	Validity period of certifications	not covered in the previous edition	Newly included: up to five years, provided that a vulnerability assessment is carried out every two years. Article 12a(3) additionally names a remediation period of three months. For QSCDs (Article 30(3a)) this time limit is new in eIDAS 2.0.
ADDITION	44(2a) and (2b)	Interoperability between ERDS providers	not covered in the previous edition	New in eIDAS 2.0: providers may agree on an interoperability framework; its conformity is confirmed by a conformity assessment body.
ADDITION	new roles	Map of roles	16 roles in the previous edition	Extended by: the designated body under Article 30 (to be distinguished from the CAB), the operator of the authentication procedure, intermediaries/identity brokers under Article 5b(10), the NIS2 authority and the data protection supervisory authority. ENISA entry corrected: the link runs via Regulation (EU) 2019/881, not via Article 46c.
NEW	Sheets 03 and 04	Paragraph-level detail in the previous edition only Article for Chapter II and Chapter III	8	Complete analysis by paragraph and point for Chapter II (Articles 5a-12b) and Chapter III (Articles 13-45l) with addressee, modality, purpose, deadline, cross-references, audit question and mnemonic for each row.
NEW	Sheet 07	Calendar of deadlines	not present	All dates and deadlines in the Regulation in chronological order - one-off cut-off dates and recurring obligations shown separately.
NEW	Sheet 08	Mirror image of electronic signature / electronic seal	not present	Comparison of the Article pairs 25/35 through 34/40, with explicit marking of the points at which the mirroring does NOT apply.

TYPE	REFERENCE	SUBJECT	PREVIOUS WORDING	FINDING AGAINST THE REGULATION
NEW	Sheet 09	Flashcards	not present	43 question-and-answer cards with Article reference and difficulty level for self-testing. The answer column can be hidden for revision.
NEW	Sheet 00	Reading guide and progress	not present	Legend of the modalities and priorities, list of abbreviations, operating instructions and a progress evaluation with formulas over the status column of the master sheet.